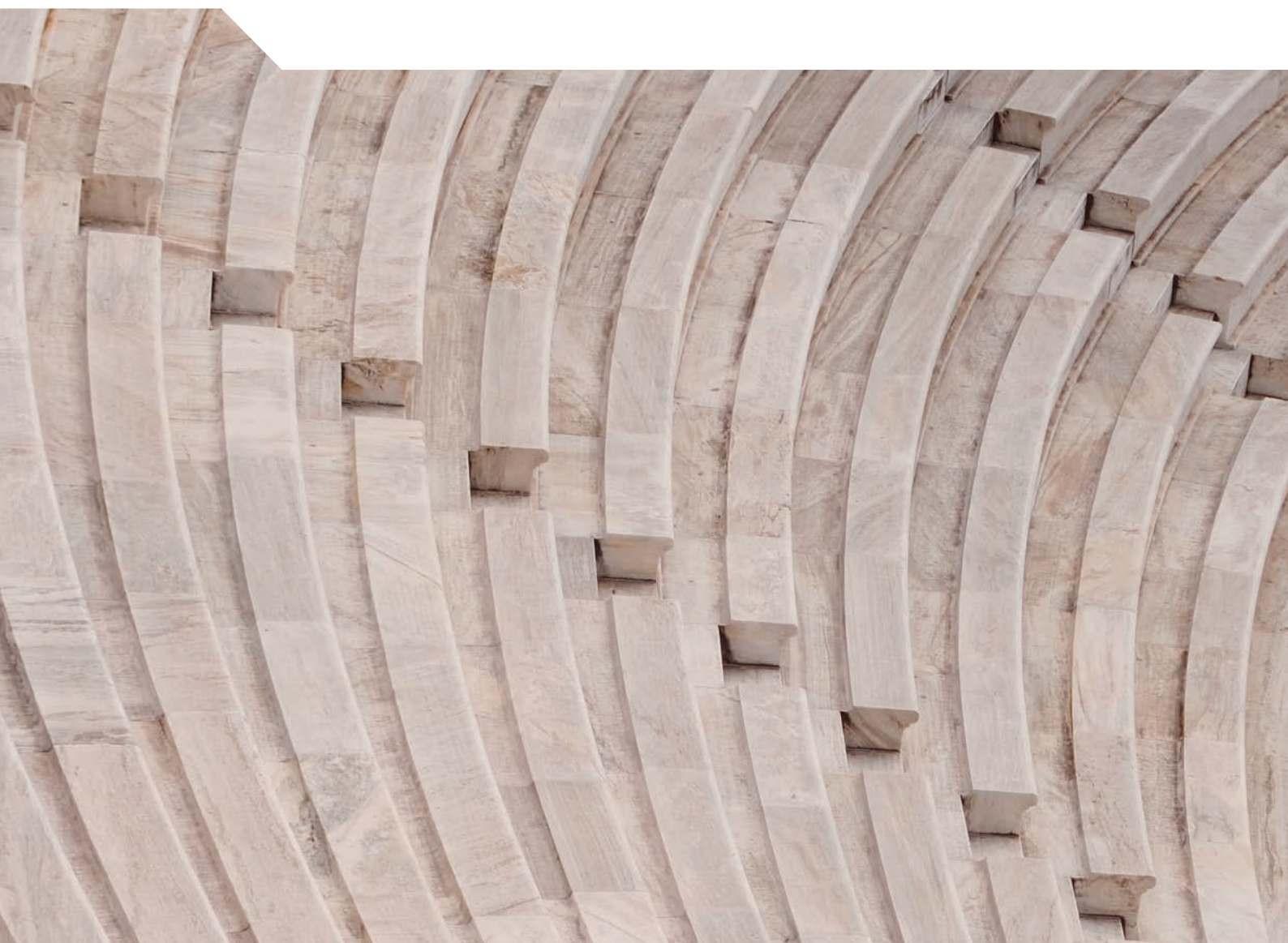




Innovative Citizen Participation and New Democratic Institutions

CATCHING THE DELIBERATIVE WAVE



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Please cite this publication as:

OECD (2020), *Innovative Citizen Participation and New Democratic Institutions: Catching the Deliberative Wave*, OECD Publishing, Paris, <https://doi.org/10.1787/339306da-en>.

ISBN 978-92-64-83762-1 (print)

ISBN 978-92-64-72590-4 (pdf)

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Foreword

The increasing complexity of policy making and the failure to find solutions to some of the most pressing policy problems have prompted politicians, policy makers, civil society organisations, and citizens to reflect on how collective public decisions should be taken in the twenty-first century. There is a need for new ways to find common ground and take action. This is particularly true for issues that are values-based, require trade-offs, and demand long-term solutions. The OECD has collected evidence and data that support the idea that citizen participation in public decision making can deliver better policies, strengthen democracy, and build trust. This report focuses on representative deliberative processes in particular, as part of a wider effort by democratic institutions to become more participatory and open to informed citizen input and collective intelligence.

Assembling ordinary citizens from all parts of society to deliberate on complex political questions and develop collective proposals has become increasingly attractive in this context. Over the past few decades, the ‘deliberative wave’ has been building. Public authorities at all levels of government have been using Citizens’ Assemblies, Juries, Panels, and other representative deliberative processes. In these processes, randomly selected citizens, making up a microcosm of a community, spend significant time learning and collaborating through facilitated deliberation to develop informed collective recommendations for public authorities.

In many ways, combining the principles of deliberation (careful and open discussion to weigh evidence about an issue), representativeness (achieved through random sampling from which a representative selection is made), and impact (with a link to public decision making) is not new. This combination of principles is rooted in ancient Athenian democracy and were applied throughout history until two to three centuries ago. It is their modern application, to complement representative democratic institutions that make such processes innovative today.

As the use of representative deliberative processes proliferates, this report provides evidence to guide policy makers on good practices and options for institutionalising citizen deliberation. It is the first empirical comparative study that analyses how deliberative processes are being used for public decision making around the world. Drawing on data collected from 289 case studies (282 from OECD countries) from 1986 to October 2019, and in collaboration with an international advisory group, the OECD has identified twelve distinct models of deliberative processes, evaluated what a ‘successful’ process entails, developed good practice principles, and explored three routes to institutionalising citizen deliberation. This research and proposals for action fit within the organisation’s work on innovative citizen participation, which seeks to guide countries on the implementation of provisions 8 and 9 of the 2017 OECD Recommendation on Open Government.

Growing efforts to embed public deliberation into public decision making could be seen as the start of a period of transformation to adapt the architecture of representative democracy. Democratic institutions across the world are beginning to transform in ways that give citizens a more direct role in setting agendas and shaping the public decisions that affect them. Based on extensive data and analysis, this OECD report contributes to the emerging international evidence base about these trends and helps public authorities implement good practices and consider routes to institutionalising citizen deliberation.

Acknowledgements

The report was prepared by the OECD Public Governance Directorate (GOV), headed by Marcos Bonturi. It was developed under the strategic direction of Alessandro Bellantoni, acting Head of the Open and Innovative Government Division in GOV and Head of the Open Government Unit. The report was co-ordinated by Claudia Chwalisz, who is in charge of the Unit's work on innovative citizen participation. Ieva Česnulaitytė provided support throughout the report elaboration and was largely responsible for the data collection, cleaning, and validation. Amelia Godber and Roxana Glavanov prepared the manuscript for publication and controlled the quality. Alessandro Bellantoni provided strategic comments on all chapters.

The data collection was facilitated by collaboration with members of the Democracy R&D Network, an international network of organisations, associations, and individuals who are organising, implementing, studying, and advocating for deliberative activities. Democracy R&D members were extremely generous with their time to provide the OECD Secretariat with detailed data concerning their respective deliberative projects.

Chapters 5 (on principles) and 6 (on institutionalisation) were both written with substantive collaboration from two international advisory groups of leading practitioners from government, civil society, and academics.

The group that contributed to Chapter 5 included: Yago Bermejo Abati (Deliberativa, Spain); Damian Carmichael (Department of Industry, Science, Energy, and Resources, Australia); Nicole Curato (Centre for Deliberative Democracy & Global Governance, Australia); Linn Davis (Healthy Democracy, United States); Yves Dejaeghere (G1000 Organisation, Belgium); Marcin Gerwin (Center for Climate Assemblies, Poland); Angela Jain (Nexus Institute, Germany); Dimitri Lemaire (Particitiz, Belgium); Miriam Levin (Department of Digital, Culture, Media, and Sport, United Kingdom); Peter MacLeod (MASS LBP, Canada); Malcolm Oswald (Citizens' Juries CIC, United Kingdom); Anna Renkamp (Bertelsmann Stiftung, Germany); Min Reuchamps (UC Louvain, Belgium), and Iain Walker (newDemocracy Foundation, Australia).

The group that contributed to Chapter 6 included: Bjørn Bedsted (Danish Board of Technology, Denmark); Yago Bermejo Abati (Deliberativa, Spain); Terrill Bouricius (Former elected official and unaffiliated political scientist, United States); Lyn Carson (newDemocracy Foundation, Australia); Nicole Curato (Centre for Deliberative Democracy and Global Governance, Australia); Yves Dejaeghere (G1000 Organisation, Belgium); Mahmud Farooque (Arizona State University, United States); Doreen Grove (Scottish Government, United Kingdom); Brett Hennig (Sortition Foundation, United Kingdom); Dominik Hierlemann (Bertelsmann Stiftung, Germany); Angela Jain (Nexus Institute, Germany); Dimitri Lemaire (Particitiz, Belgium); Miriam Levin (UK Government, United Kingdom); Peter MacLeod (MASS LBP, Canada); Arantxa Mendiherat (Deliberativa, Spain); Min Reuchamps (UC Louvain, Belgium); David Schechter (Democracy R&D, International Network); Graham Smith (Centre for the Study of Democracy, University of Westminster, United Kingdom); Jane Suiter (Institute for Future Media and Journalism, Dublin City University, Ireland); Nivek Thompson (Deliberatively Engaging, Australia), Niamh Webster (Scottish Government, United Kingdom), and Antoine Vergne (Missions Publiques, France).

The OECD has been engaging with the OECD Innovative Citizen Participation Network (ICPN), an international network of practitioners, public officials, academics, and designers. The ICPN members were convened at full-day meetings in June 2019, where they helped identify the research questions and suggested sources for the data collection, and in January 2020, where they provided rich comments and feedback regarding the report's preliminary findings. These meetings were possible thanks to support from the Royal Society of Arts, Manufactures, and Commerce (RSA), the Electoral Reform Society (ERS), and the Open Society Foundations (OSF). The full list of ICPN members is in the methodology annex.

The report benefitted from the strategic comments of Kent Aitken, Carlotta Alfonsi, Karine Badr, Éric Buge, Nicole Curato, Marco Daglio, Natalia Domagala, Laurie Drake, Karin Fuller, Felipe González-Zapata, Doreen Grove, Lauren Howard, Claire McEvoy, Matt Ryan, Teele Pehk, Mariana Prats, Arturo Rivera-Perez, Graham Smith, David Schechter, Jane Suiter, Piret Tõnurist, Barbara Ubaldi, João Vasconcelos, and Benjamin Welby.

The OECD Secretariat wishes to express its gratitude to the Working Party on Open Government for reviewing the report.

Table of contents

Foreword	3
Acknowledgements	4
Reader's guide	10
Executive summary	16
1 Introduction: Deliberation and new forms of governance	19
2 Models of representative deliberative processes	33
3 Key trends	65
4 What is a 'successful' representative deliberative process for public decision making? Assessing the evidence	80
5 Good practice principles for deliberative processes for public decision making	115
6 Reimagining democratic institutions: Why and how to embed public deliberation	121
7 Other interesting deliberative practices	149
8 Conclusion	158
Annex A. Overview of existing principles	168
Annex B. Methodology	182
Annex C. Resources for representative deliberative processes	192

Tables

Table 1. Characteristics of Debate, Dialogue, and Deliberation	11
Table 2. Key differences between deliberative and participatory democracy	12
Table 1.1. The equality-participation-deliberation trilemma	28
Table 2.1. Models of representative deliberative processes	35
Table 3.1. Average cost of twelve models of representative deliberative processes	78

Table 4.1. Duration of participant recruitment process for different types of recruitment methods	97
Table 4.2. Citizens' Assemblies, Citizens' Initiative Reviews, and Citizens' Juries/Panels involve the most face-to-face participant meeting time	98
Table 6.1. Types of accountability in deliberative processes with participants chosen by lot	145

Figures

Figure 1.1. Confidence in national government in 2018 and its change since 2007	21
Figure 1.2. In most countries, many respondents feel the government does not properly take account of the views of people like them when formulating social benefits	23
Figure 2.1. Types of purpose of representative deliberative processes	35
Figure 2.2. Citizens' Assembly model	37
Figure 2.3. Citizens' Assemblies across OECD Member countries	38
Figure 2.4. Citizens' Jury/Panel model	39
Figure 2.5. Citizens' Juries/Panels across OECD Member countries	42
Figure 2.6. Citizens' Juries/Panels across OECD Member countries: Europe	42
Figure 2.7. Consensus Conference model	43
Figure 2.8. Consensus Conferences across OECD Member countries	44
Figure 2.9. Planning Cell model	45
Figure 2.10. Planning Cells across OECD Member countries	46
Figure 2.11. G1000 model	47
Figure 2.12. G1000 across OECD Member countries	48
Figure 2.13. Citizens' Council model	48
Figure 2.14. Citizens' Councils across OECD Member countries	50
Figure 2.15. Citizens' Dialogue model	50
Figure 2.16. Citizens' Dialogues across OECD Member countries	51
Figure 2.17. Citizens' Dialogues across OECD Member countries: Europe	52
Figure 2.18. Deliberative Poll/Survey model	52
Figure 2.19. Deliberative Polls/Surveys across OECD Member countries	53
Figure 2.20. World Wide Views model	54
Figure 2.21. Citizens' Initiative Review model	56
Figure 2.22. Citizens' Initiative Reviews across OECD Member countries	57
Figure 2.23. Ostbelgien model	58
Figure 2.24. The Ostbelgien Model across OECD Member countries	59
Figure 2.25. City Observatory model	60
Figure 2.26. City Observatory across OECD Member countries	60
Figure 2.27. Properties of representative deliberative models	62
Figure 3.1. Number of representative deliberative processes in OECD Member and non-Member countries, 1986-2019	67
Figure 3.2. Number of representative deliberative processes per country, 1986-2019	68
Figure 3.3. The deliberative wave has been building over time	69
Figure 3.4. Representative deliberative processes have been used most often locally, though examples exist at all levels of government	70
Figure 3.5. The Citizens' Jury/Panel has been used most often by public authorities for public decision making	71
Figure 3.6. Regional trends of different deliberative models	72
Figure 3.7. Regional trends of different deliberative models: Europe	72
Figure 3.8. Representative deliberative processes have been used by public authorities most often for addressing issues that have a direct impact on a community's life, such as planning, health, and the environment	73
Figure 3.9. The diversity of public policy issues addressed by representative deliberative processes has increased over time	74
Figure 3.10. Urban planning, infrastructure, and strategic planning are the most common policy issues addressed through representative deliberative processes for public decision making at local level	75
Figure 3.11. Health, strategic planning, and infrastructure are the most commonly addressed policy issues through representative deliberative processes at regional/state level	76
Figure 3.12. Technology, environment, and health are the most commonly addressed policy issues through representative deliberative processes at the national/federal level	77
Figure 3.13. Types of policy issues addressed through international level deliberative processes, 1986-2019	77

Figure 3.14. The majority of representative deliberative processes have been implemented by a private sector company or a non-governmental non-profit organisation	79
Figure 4.1. Framework of analysis for representative deliberative processes	82
Figure 4.2. Two-stage random selection is the most common random participant selection method for representative deliberative processes	89
Figure 4.3. Two-stage random selection is most commonly used as a recruitment method for representative deliberative processes in Germany, Australia, and Canada	90
Figure 4.4. Single-stage random selection recruitment is most common for some Citizens' Juries/Panels, Citizens' Dialogues, and G1000s	92
Figure 4.5. Participants in representative deliberative processes receive some form of remuneration or expenses coverage in slightly more than half of cases	95
Figure 4.6. Preparing a representative deliberative process requires a significant amount of time, often lasting at least 10 weeks	97
Figure 4.7. Having experts available at in-person meetings and providing reading material before the first meeting are the most common learning element	100
Figure 4.8. In two-thirds of cases, public authorities discuss participants' recommendations face-to-face with them	104
Figure 4.9. In the majority of examples, at least half of participants' recommendations are accepted by public authorities	105
Figure 4.10. The majority of representative deliberative process evaluations take the form of a participant exit survey	108
Figure 4.11. Awareness and understanding of the Irish Citizens' Assembly by voters in the referendum on repealing the eight amendment of the Irish constitution about abortion	110
Figure 4.12. Representative deliberative processes are most frequently complemented by open submissions, surveys, and public consultations	111
Figure 5.1. Good practice principles for deliberative processes for public decision making	118
Figure 6.1. Three existing approaches to institutionalising representative citizen deliberation as of 2019	126

Boxes

Box 2.1. The Irish Citizens' Assembly (2016-2018)	38
Box 2.2. Jury/Panel examples	41
Box 2.3. Consensus Conference: Gene technology in the food chain (1999)	44
Box 2.4. Planning Cell example	45
Box 2.5. G1000 Steenwijkerland (2017)	47
Box 2.6. Citizens' Council on mobility in Vorarlberg (2018-2019)	49
Box 2.7. Citizen Dialogues on Canada's energy future (2017)	51
Box 2.8. Deliberative Poll on Construction of Shin-Gori Nuclear Reactors (2017)	53
Box 2.9. World Wide Views on Climate and Energy (2015)	55
Box 2.10. Citizens' Initiative Review on Measure 97 (2016)	57
Box 4.1. Considerations for the appropriateness of an issue for public deliberation	85
Box 4.2. Do's and don't's for defining the remit	86
Box 4.3. Planning the response to recommendations	87
Box 4.4. Melbourne People's Panel (2014)	104
Box 4.5. Effectiveness of deliberative processes	106
Box 4.6. Ensuring sufficient feedback & monitoring implementation	107
Box 4.7. Monitoring implementation of recommendations	107
Box 4.8. Participation in a deliberative process can lead to increased trust by citizens in government	110
Box 4.9. Participants as conveners of the wider public	112
Box 6.1. The Ostbelgien Model	127
Box 6.2. Planning and Transportation Standing Panels in Toronto	128
Box 6.3. Madrid City Observatory	129
Box 6.4. Mixed deliberative committees in the parliament of the region of Brussels and the French-speaking parliament in Brussels	130
Box 6.5. Annual Performance Forums and Ward Committees in Australia	131
Box 6.6. Citizens' Initiative Review	132
Box 6.7. Institutionalised deliberation in France	133
Box 6.8. 2017 Mongolian Deliberative Polling Law	133
Box 6.9. Deliberative processes for assessing science and technology: Denmark and the UK	134

Box 6.10. Citizen Deliberation Meetings in cities of Yoshikawa and Iwakura, Japan	135
Box 6.11. Institutionalising public deliberation as part of public budgeting	136
Box 6.12. Local legislation that allows citizens to initiate representative deliberative processes on the local level in Poland	137
Box 6.13. Citizens' Councils in Vorarlberg, Austria	138
Box 6.14. French Economic, Social, and Environmental Council (Conseil économique, social, et environnemental, CESE)	139
Box 6.15. French Centre for Citizen Participation (Le centre de la participation citoyenne, CPC)	143
Box 6.16. UK What Works Centres	143

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Reader's guide

This brief guide is intended to help readers understand key terms, concepts, and the research methodology used to produce this first OECD report on deliberative processes and institutions. A detailed methodology description is presented in Annex B.

In this report, representative deliberative processes are often referred to in shorthand as deliberative processes, and the term is used interchangeably with deliberative mini-public. It refers to a randomly selected group of people who are broadly representative of a community spending significant time learning and collaborating through facilitated deliberation to form collective recommendations for policy makers.

Deliberative institutions refer to forms of citizen deliberation that have been embedded in public decision-making procedures through legal mechanisms.

Defining recurring key terms

Stakeholder and citizen participation

The OECD Recommendation on Open Government (2017) defines the following terms:

- **“The policy cycle:** includes 1) identifying policy priorities 2) drafting the actual policy document, 3) policy implementation; and 4) monitoring implementation and evaluation of the policy’s impacts;
- **Stakeholders:** any interested and/or affected party, including: individuals, regardless of their age, gender, sexual orientation, religious and political affiliations; and institutions and organisations, whether governmental or non-governmental, from civil society, academia, the media or the private sector;
- **Stakeholder participation:** all the ways in which stakeholders can be involved in the policy cycle and in service design and delivery, including:
 - **Information:** an initial level of participation characterised by a one-way relationship in which the government produces and delivers information to stakeholders. It covers both on-demand provision of information and “proactive” measures by the government to disseminate information.
 - **Consultation:** a more advanced level of participation that entails a two-way relationship in which stakeholders provide feedback to the government and vice-versa. It is based on the prior definition of the issue for which views are being sought and requires the provision of relevant information, in addition to feedback on the outcomes of the process.
 - **Engagement:** when stakeholders are given the opportunity and the necessary resources (e.g. information, data and digital tools) to collaborate during all phases of the policy-cycle and in the service design and delivery.”

Representative deliberative processes can be categorised as consultation or engagement depending on how they are designed. They are considered as a form of citizen participation, which can be seen as a

sub-category of stakeholder participation, as in these cases citizens are empowered in the process: they take evidence from and question stakeholders, who are not the primary actors.

Debate, dialogue, and deliberation

Deliberation in this report refers to public deliberation (as opposed to internal deliberation) and to group deliberation (as opposed to individual deliberation), which emphasises the need to find common ground. First, to understand what it is, it is important to distinguish deliberation from debate and dialogue (Table 1).

- In a **debate**, the aim is to persuade others, and ultimately the majority, to one's own position. It is a win/lose situation, where the incentives are such that they encourage participants to maintain their original view rather than be open to changing one's mind.
- **Dialogue** helps to overcome some of the weaknesses of debate, through "slower civil exchange, sharing understandings by listening well, and building relationships" (Carson, 2017). With dialogue, the emphasis is on respectful exchange rather than on decision making (Bone *et al.*, 2006).
- **Deliberation** involves both dialogue and debate and it has four key characteristics.
 - First, it means to "weigh carefully both the consequences of various options for action and the views of others" (Matthews, 1999).
 - Second, deliberation requires accurate and relevant information, which reflects diverse perspectives. It might involve debate when there are invited experts arguing different positions.
 - Third, "there is a broadly-shared evaluative criteria for considering solutions and reaching decisions, which takes into account the views of others regardless of how divergent" (Bone *et al.*, 2006).
 - Finally, deliberation requires participants to apply these evaluative criteria to proposed solutions, to weigh trade-offs, and find common ground to reach a group decision (Carson, 2017; Bone *et al.*, 2006).

The fundamental distinction between deliberation and debate is in relation to the objective, whether it is consensus-seeking as in the former, or zero-sum as in the latter. For this reason, dialogue is an essential element of deliberation (Yankelovitch, 2001). Successful deliberation requires skilful facilitation – "just enough to allow the group to make its own decisions and find its own way when the going gets rough but to keep the group working well" (Carson, 2017).

Table 1. Characteristics of Debate, Dialogue, and Deliberation

Debate	Dialogue	Deliberation
Compete	Exchange	Weigh
Argue	Discuss	Choose
Promote opinion	Build relationships	Make choices
Seek majority	Understand	Seek overlap
Persuade	Seek understanding	Seek common ground
Dig in	Reach across	Framed to make choices
Tight structure	Loose structure	Flexible structure
Express	Listen	Learn
Usually fast	Usually slow	Usually slow
Clarifies	Clarifies	Clarifies
Win/lose	No decision	Common ground
Most useful when: A position or course of action is being advocated; winning is the goal	Most useful when: People want to talk together about something without desiring a particular outcome from the conversation	Most useful when: A decision or criteria for a decision, about the best way(s) to approach an issue or problem is needed.

Source: Bone *et al.*, 2006.

Deliberative and participatory democracy

The terms *deliberative democracy* and *participatory democracy* are sometimes used interchangeably, which can be confusing for policy makers and those not steeped in the academic debates of the field. Here we briefly identify some similarities and differences for the sake of clarity in this report. For further reading, see Carson and Elstub's (2019) research note.

- **Deliberative democracy** is the wider political theory that claims that political decisions should be a result of fair and reasonable discussion among citizens. Gastil and Levine's *Deliberative Democracy Handbook* (2005) argues that "deliberative democracy strengthens citizen voices in governance by including people of all races, classes, ages and geographies in deliberations that directly affect public decisions". The theory gained traction in academic literature in the 1980s (e.g. Mansbridge, 1980; Habermas, 1981).
- **Participatory democracy** has a slightly longer history, gaining ground with the activist movements of the 1960s that demanded greater participation in government decision making (e.g. civil rights, women's liberation movements, see Pateman, 1970). A central tenet to later work on participatory democracy is that it must increase the capacities of citizens to participate, which necessitates reform of democratic institutions to make participation more meaningful (Pateman, 2012).

The main similarity between deliberative and participatory democracy is that both "refer to the direct involvement of citizens in political decision making, beyond choosing representatives through elections. Both approaches to democracy, therefore, critique the current democratic system and seek to reform it by strengthening it" (Carson and Elstub, 2019). The key differences between deliberative and participatory democracy are in terms of: the number of participants; the type of participation, and how participants are selected. A brief summary of these differences is in Table 2.

Some scholars have suggested ways to combine deliberative and participatory democracy (Elstub, 2018; Bouricius, 2013; Schechter and Sullivan, 2018), such as the use of open and widespread participation at a first stage to develop proposals, followed by focused deliberation among a smaller, representative group of the public to review them, find consensus on final proposals, and decide.

Table 2. Key differences between deliberative and participatory democracy

	Number of participants	Type of participation	Participant selection method
Deliberative democracy	Relatively small (but representative) groups of people, as it is difficult to have deep deliberation among large numbers.	Deliberation , which requires that participants are well-informed about a topic and consider different perspectives in order to arrive at a public judgement (not opinion) about "what can we strongly agree on?"	Typically, a civic lottery , which combines random selection with stratification , to assemble a public body that is: representative of the public; able to consider perspectives, and not vulnerable to being stacked by representatives of powerful interest groups.
Participatory democracy	Large numbers of people, ideally everyone affected by a particular decision. The aim is to achieve breadth.	More participation , in all aspects of politics, from all citizens who choose to be involved; an embrace and encouragement of a diversity of opportunities for political engagement	Self-selected participation in order to enable as many people as possible to share the experience

Source: Table is author's own creation, based on descriptions in Carson and Elstub (2019).

Other key definitions

- **Random selection:** Throughout this report, random selection is used as a shorthand to refer to recruitment processes that involve random sampling from which a representative selection is made to ensure that the group broadly matches the demographic profile of the community (based on census or other similar data).
- **Citizen:** This report makes frequent references to citizens. The term is meant in the larger sense of ‘an inhabitant of a particular place’, which can be in reference to a village, town, city, region, state, or country depending on the context. When the word citizen is employed, it is not meant in the more restrictive sense of ‘a legally recognised national of a state’, and is thus used interchangeably with ‘people’ in this report.
- **Institutionalisation:** Institutionalising deliberation means incorporating deliberative activities into the rules of public decision-making structures and processes of a community, in a way that is legally-constituted. It entails establishing a basic legal or regulatory framework to ensure continuity regardless of political change. Institutionalisation is explored in detail in Chapter 6.

Methodology

The data collection for this report was through desk research, a targeted call for submissions to the international Democracy R&D Network of deliberative practitioners, and an open call through the OECD Toolkit and Case Navigator for Open Government platform¹.

The case collection was not limited to OECD Member countries, however, only seven examples were found in non-OECD Member countries. They are acknowledged at the outset of Chapter 3 about key trends, but the rest of the empirical analysis is based on data from the 282 cases from OECD Member countries for comparability reasons. More details about the methodology can be found in Annex B.

In analysing the evidence collected on representative deliberative processes across countries, three core defining features were revealed as being of key importance, a fact also reflected in the work of a number of scholars in the field. These were thus the three criteria required to be included in this study:

1. **Deliberation**, which involves: weighing carefully different options, which requires accurate and relevant information and a diversity of perspectives; a shared evaluative framework for reaching decisions, and a requirement for participants to apply these shared criteria to weigh trade-offs and find common ground to reach a group decision (see, for example, Matthew, 1999; Carson, 2017; Bone *et al.*, 2006);
2. **Representativeness**, achieved through random sampling from which a representative selection is made to ensure the group broadly matches the demographic profile of the community against census or other similar data, and
3. **Impact**, meaning decision makers agree to respond to and act on recommendations (see, for example, Farrell *et al.*, 2019; Carson and Elstub, 2019).

Deliberation refers to long and careful consideration and facilitated discussion, based on weighing evidence. The criteria of one full day of meetings was established to operationalise the fact that deliberation requires time. This threshold was decided after deliberation with the OECD Innovative Citizen Participation Network².

Random selection (technically called ‘sortition’) with demographic stratification is also a shared thread between cases since the overarching aim of the research is to explore innovative forms of participation. While not new in itself, as the practice of sortition dates back to Ancient Athens and has been used in many places around the world at various times throughout history, its modern incarnation is novel. It helps to

overcome some of the key challenges involved in designing stakeholder participation, notably those related to the representativeness, diversity, and inclusiveness of participants.

Finally, the report excludes deliberative processes conducted purely for academic or experimental purposes without a direct link to public decisions. The link to an authority that will eventually decide on a policy issue has an impact on numerous factors, such as who decides to participate, the response rate, and the dropout rate. The first of these knock-on effects is particularly important, as one of the main benefits of deliberative processes for public decision making over other forms of citizen participation is that it helps overcome the self-selection bias of certain demographics disproportionately taking part. Removing the link to power makes participation less meaningful and makes it more likely that only those with a strong interest in the topic will choose to participate. It is also likely why experiments have lower response rates and higher dropout rates than the average. That does not mean that experiments are not useful for other purposes, such as research. However, including such cases in this study would skew the analysis and conclusions about their use for governance.

The case needed to have been completed by the end of October 2019 in order to be included. Cases that were in progress at that time were omitted for comparability reasons. For each case, the OECD analysed 60 criteria (see Annex B).

Limitations of the data

The data in this report is a repository of as many cases as could be possibly identified by the OECD Secretariat and that fit the minimum criteria of inclusion during the data collection period of March-October 2019. It is possible, and even likely, that the database is missing some valid cases that had taken place before the cut-off date. This is due to ignorance rather than a desire to exclude any particular example. It is recognised that there is some bias towards cases in Anglophone and Francophone countries, although efforts have been made to increase the reach of our research beyond them. Omissions due to language barriers are possible. The OECD is expanding the membership of the Innovative Citizen Participation Network to help address these imbalances in future work.

Notes

¹ The OECD Toolkit and Case Navigator for Open Government platform is available here: <https://www.oecd.org/gov/open-government-toolkit-navigator.htm>.

² As part of the area of work on innovative citizen participation, the OECD has been engaging with an international network of practitioners, designers, academics, researchers, civil servants, and curators to frame the topics and scope of research, to gather feedback and inputs to the research in an ongoing manner, and to strengthen the ties between these important groups of actors.

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Executive summary

The deliberative wave has been building as innovative ways of involving citizens in the policy-making cycle have gained traction with governments and citizens across the globe. This report is the first empirical, comparative study to consider the workings of representative deliberative processes for public decision making and discuss the case for their institutionalisation.

Deliberative processes take many forms and have been executed at all government levels: local (52%); regional (30%); national (15%), and international/supranational (3%). They have addressed many policy questions, from urban planning (43 processes), health (32 processes), environment (29 processes), infrastructure (28 processes), strategic planning (26 processes), and others. Generally, they are well suited to addressing: values-based dilemmas, complex problems that involve trade-offs, and long-term issues.

The OECD has identified 12 models of deliberative processes, clustered under four types of purpose: (1) informed citizen recommendations on policy questions; (2) citizen opinion on policy questions; (3) informed citizen evaluation of ballot measures, and (4) permanent deliberative models.

Good practice principles for deliberative processes

When conducted effectively, deliberative processes can lead to better policy outcomes, enable policy makers to make hard choices and enhance trust between citizens and government. Based on evidence collected and in collaboration with international practitioners from government, civil society, and academics, the OECD has identified common principles that can guide policy makers in implementing such processes as well as provisions 8 and 9 of the 2017 OECD Recommendation on Open Government. These principles should help achieve high-quality processes that, in turn, result in useful recommendations and meaningful opportunities for citizens to shape public decisions.

The principles are summarised as follows:

- The task should be clearly defined as a question that is linked to a public problem.
- The commissioning authority should publicly commit to responding to or acting on recommendations in a timely manner and should monitor and regularly report on the progress of their implementation.
- Anyone should be able to easily find the following information about the process: its purpose, design, methodology, recruitment details, experts, recommendations, the authority's response, and implementation follow-up. Better public communication should increase opportunities for public learning and encourage greater participation.
- Participants should be a microcosm of the general public; this can be achieved through random sampling from which a representative selection is made to ensure the group matches the community's demographic profile.
- Efforts should be made to ensure inclusiveness, such as through remuneration, covering expenses, and/or providing/paying for childcare or eldercare.

- Participants should have access to a wide range of accurate, relevant, and accessible evidence and expertise, and have the ability to request additional information.
- Group deliberation entails finding common ground; this requires careful and active listening, weighing and considering multiple perspectives, every participant having an opportunity to speak, a mix of formats, and skilled facilitation.
- For high-quality processes that result in informed recommendations, participants should meet for at least four full days in person, as deliberation requires adequate time for participants to learn, weigh evidence, and develop collective recommendations.
- To help ensure the integrity of the process, it should be run by an arm's length co-ordinating team.
- There should be respect for participants' privacy to protect them from unwanted attention and preserve their independence.
- Deliberative processes should be evaluated against these principles to ensure learning, help improve future practice, and understand impact.

Deliberative processes as part of wider participation strategies

Deliberative processes involve a component of broader stakeholder participation, the most common being online calls for submissions (used in 33 cases) and surveys (29 cases). Other methods are public consultations (19 cases) and roundtable discussions (16 cases). The combination needs to be sequenced so it is clear how the outputs of participatory processes feed into citizen deliberations.

Institutionalising deliberative processes into policy-making cycles and public decision making

Institutionalising deliberative processes enables governments to take more hard decisions and at lower cost. It improves practice by ensuring collective learning and experimentation, and can potentially increase trust in government, strengthen democracy, and enrich society's democratic fitness by creating more opportunities for more people to significantly shape public decisions. There is no 'one-size-fits-all' approach; it depends on the context, purpose, and process. Three existing routes to institutionalisation are explored:

1. Permanent or ongoing structure for citizen deliberation;
2. Requirements for public authorities to organise deliberative processes under certain conditions, and
3. Rules allowing citizens to demand a deliberative process on a specific issue.

Governments should consider drafting legislation or regulation that introduces requirements for deliberative processes under certain conditions and allows citizens to initiate a deliberative process with enough signatures.

Additional legal support issues, such as enabling database access for random selection, are needed to make organising processes easier, cheaper, and more effective. A next step would be for employers to provide paid leave to participate, as with criminal juries, recognising the value of citizens' time and input into policy making.

Institutionalisation also requires sufficient capacity in the civil service and civil society, and sufficient funding. To this end, governments could assign new responsibilities to an existing office (like the Open Government office) or establish an office with responsibilities for:

- setting good practice standards

- advising decision makers considering using deliberation in their work
- building government knowledge by training civil servants
- providing independent monitoring and evaluation of ongoing processes and their impact
- managing dedicated budgets for deliberative processes
- investing in civil society organisations
- regularly reporting findings from deliberative processes to government and parliaments.

Reflections for future study

This report has provided a foundation for future study of deliberative processes for public decision making. However, it has only scratched the surface. Chapter 7 identifies examples that did not meet the inclusion criteria but that present promising avenues for investigation.

Future research could provide a better understanding of impact, a framework for evaluating deliberative processes, and explore how digital tools can enrich deliberation. Finally, further experiments with institutionalised forms of citizen deliberation should be carried out, monitored, evaluated, and adapted.

1 Introduction: Deliberation and new forms of governance

Claudia Chwalisz

This chapter sets the context for the report in light of current economic, cultural, political, technological, and environmental trends. It links the findings to the OECD's ongoing work on open government, explains the rationale for the focus on representative deliberative processes, why such processes can be effective for policy making, as well as when and when not to use them.

Introduction

To set the scene for why deliberative processes and institutions are the focus of this OECD report, it is important to first consider the wider context and the drivers of the trends that describe our time. In an age that is often defined by “polarisation, populism, and pessimism” (Taylor, 2019), the future of public governance and – more broadly – of democracy are prominent concerns. Books about democracy’s end, death or crisis have proliferated in the past few years. In its Greek roots, ‘crisis’ – or *krisis* – means decision, a turning point. In this time of complex change, current democratic and governance structures are failing to deliver. Arguably, there are five drivers of this trend: economic; cultural; political, technological, and environmental. They are interconnected, although not always portrayed as such. Let us briefly take these in turn.

Economic drivers

Explanations for the malaise are often framed in economic and cultural terms. The argument that the “left behind” are revolting against inequality and globalisation has received widespread traction (Ford and Goodwin, 2014). Inequalities have risen in most countries in recent decades and wealth inequality in particular has grown (OECD, 2019b). Under-employment and insecure, precarious work has augmented in most industrial economies (OECD, 2018a). In some of them, average earnings and living standards have stagnated, barely changing from a decade ago, or only maintained due to rising household debt (OECD, 2019c). A large proportion of societies worries about the future of work. The 2020 Edeleman Trust Barometer shows that 83% of people in the 28 countries surveyed fear job loss due to one or more of the following causes: freelance/gig economy; looming recession; lack of training/skills; cheaper foreign competitors; immigrants who work for less; automation, or jobs being moved to other countries. In these circumstances, many politicians, commentators, as well as ordinary people are questioning whether current economic policies are adequate to address the challenges that countries face.

Cultural drivers

The economic and cultural issues are intricately linked. Groups that have been labelled as “left behind” have an identity that corresponds to their economic standing, socio-cultural status of being historically under-represented in decision making, and working in sectors that have been disproportionately affected by lower-wage migrant fluxes. Many analysts and academics also argue that the roots of current political crises lie in how certain identity and cultural constructs are being challenged by immigration, which in turn creates anxieties (Norris and Inglehart, 2019; Eatwell and Goodwin, 2018; Goodhart, 2017).

These two tendencies of rising inequality and the increased salience of the immigration issue have coincided to create “new dimensions of inequality and conflict” (Piketty, 2018). As Piketty and others have argued, there has been an emergence of a new split between educated, high-earning, pro-migration “globalists” and less educated, poorer, anti-migration “nativists”. Inglehart and Welzel’s extensive analysis drawing on the World Values Survey draws similar conclusions (2005; 2009). Their research finds that as countries have become wealthier and more industrialised, people have adopted more secular, emancipatory values that prioritise openness, freedom of expression, tolerance, progress, and change. Yet, while some people in many countries have largely embraced these values, it does not mean that everyone has. Many people still value tradition, authority, religion, and stability. While some analysts have made the cultural angle the core aspect of their explanations for recent political crises, it does not explain the full picture on its own.

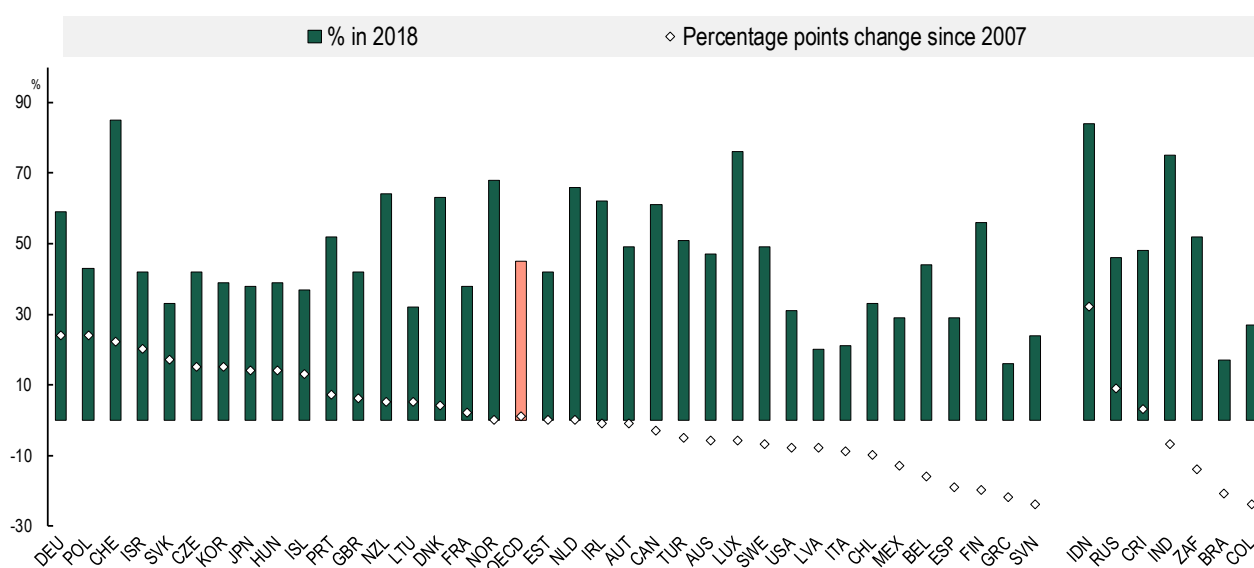
Political drivers

Among this wealth of interpretations, a common point seems to have emerged – that economic growth and better policies alone will not quell social dissatisfaction. Political factors are also important. Evidence suggests that today, more than ever, people want to have a greater say in shaping the policies that affect their lives beyond the opportunity to vote every few years (Chwalisz, 2015, 2017; Hansard Society, 2019). The “stealth democracy” thesis, which argues that people do not want to intervene in public policy and they care only about outcomes (Hibbing and Theiss-Morse, 2002), has come under scrutiny. The OECD’s work on trust and public policy suggests that citizens’ perceptions of fairness, in process as much as in outcome, is a critical dimension of their trust in government (OECD, 2017b). Paul Webb coined the concept of ‘dissatisfied democrats’ – people who are unhappy with the current state of democracy, but are enthusiastic about all forms of political participation, which are more active and deliberative (2013). More recent empirical research in the United States has found that a majority of people are willing to take an opportunity to deliberate with fellow citizens and their member of Congress; moreover, “those most willing to deliberate are precisely those who are turned off by standard partisan and interest group politics” (Neblo *et al.*, 2018).

These requests for greater participation seem linked to the fact that the trust upon which societies rely upon to function has been damaged. In OECD countries, only 45% of citizens trust their government (Gallup, 2018). This figure has risen from a low of 37% in 2013, but it is not necessarily a reason to celebrate. Trust levels vary from above 70% in Switzerland and Luxembourg to 20% or less in Greece and Latvia (Gallup, 2018; Figure 1.1). These findings are echoed in the Edelman Trust Barometer, which shows that in the 28 countries surveyed, 66% of people do not have confidence in their current government leaders to address their country’s challenges (2020).

Moreover, comparing survey data from some of the earliest polls conducted around the 1960s to today, available in some countries like the United Kingdom (UK) and United States (US), highlights that public disenchantment and distrust have reached historic highs (Clarke, Jennings, Moss, and Stoker, 2014; Pew Research Centre, 2015). For instance, in the USA, 73% of Americans said they could trust the government in 1958, down to a mere 31% in 2018 (Pew Research Centre, 2015; Gallup, 2018).

Figure 1.1. Confidence in national government in 2018 and its change since 2007



Source: OECD (2019), Government at a Glance 2019, OECD Publishing, Paris, <https://doi.org/10.1787/8ccf5c38-en>.

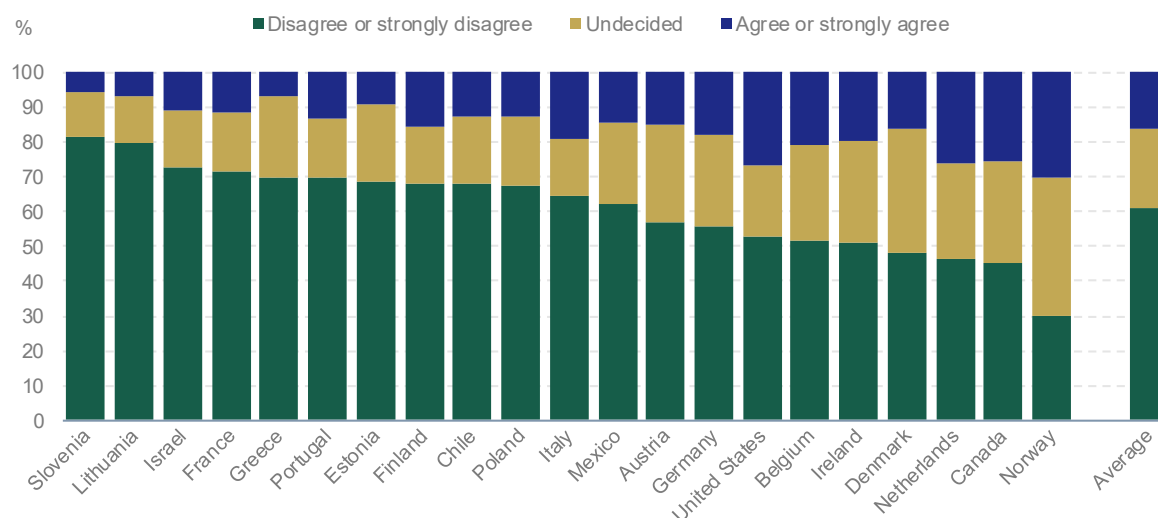
This matters for numerous reasons. There is an economic cost to low trust, in the form of high transaction costs in social, economic, and political relationships (Fukuyama, 1995), risk aversion among investors, and non-compliance with regulations (Algan and Cahuc, 2010). Low trust also impacts negatively on social cohesion, exacerbating polarisation, and on voter turnout, the rise of radical political parties, and protest movements (OECD, 2017b). With the advance of new technologies and widespread use of social media, scandals about governments, politicians, and businesses have increased, creating an opportunity for a new class of political figures to demand trust instead (Davies, 2018). As Will Davies has written:

“The project that was launched over three centuries ago, of trusting elite individuals to know, report and judge things on our behalf, may not be viable in the long term, at least not in its existing form. It is tempting to indulge in the fantasy that we can reverse the forces that have undermined it, or else batter them into retreat with an even bigger arsenal of facts. But this is to ignore the more fundamental ways in which the nature of trust is changing... [A] new type of heroic truth-teller has emerged in tandem with these trends... [The] roots of this new and often unsettling ‘regime of truth’ don’t lie with the rise of populism or the age of big data. Elites have largely failed to understand that this crisis is about trust rather than facts – which may be why they did not detect the rapid erosion of their own credibility” (2018).

This trend coincides with ever greater numbers of people feeling like their voice does not count and that the government does not listen to people like them (OECD, 2018b; Hansard Society, 2019). The OECD Risks that Matter Survey shows that in all but four surveyed countries (Canada, Denmark, Norway, and the Netherlands), a majority of respondents actively disagree with the statement “I feel the government incorporates the views of people like me when designing or reforming public benefits” (OECD, 2018b: 26; Figure 1.2).

Figure 1.2. In most countries, many respondents feel the government does not properly take account of the views of people like them when formulating social benefits

Distribution of responses to the statement “I feel the government incorporates the views of people like me when designing or reforming public benefits”, 2018



Source: OECD (2019), “Risks that Matter: Main Findings from the 2018 OECD Risks that Matter Survey,” www.oecd.org/social/risks-that-matter.htm

Protest movements and recent election results around the world highlight that the most economically disempowered feel not just disillusioned, but forgotten, by the democratic system. They are distant from meaningful expressions of agency to influence change (Snower, 2018). More than that, in an increasing number of countries, it has become an intentional policy to limit citizen agency, participation, and even fundamental freedoms such as those of association, assembly, and speech. This has led many representatives of civil society organisations to denounce that civic space has been “closing” for numerous years (Civicus, 2018). As Peter MacLeod has argued, the triangulated relationship between the people, public servants, and politicians has gone awry (2018). The people say, “You don’t speak for me”. Public servants say, “But you only speak for yourselves”. And politicians respond with: “I have a mandate”. How to strengthen and reimagine this relationship between them for the 21st century?

Technological drivers

Moreover, this century has also been defined by the consequences of the digital transformation underway in economies and societies. Social media and messaging apps are exacerbating public opinion fragmentation, with evidence that people tend to share like-minded news articles and avoid conflicting ones, with partisans being more likely to do so (Bright, 2018; An *et al.*, 2013). The media ecosystem’s erosion also contributes to this tribalisation and polarisation. Among people surveyed in 25 countries, Edelman finds that 57% think that the media they use is “contaminated” with untrustworthy information. The same survey finds that three-quarters (67%) worry about false information being used as a weapon, and that half (51%) of those surveyed think the media serves the interests of only the few (Edelman, 2020). Left-right partisans trust the news slightly less in general, have higher levels of trust in the news they use, and perceive a larger ‘trust gap’ between the news they consume, and the rest of the news available in their country (Suiter and Fletcher, 2020). The digital transformation has also increased citizens’

expectations regarding their governments' delivery of more effective public services, which is also highly related to their trust in government (OECD, 2018b).

On the other hand, new technologies and social media can enable more participatory governance. Many places have adapted their governance processes to emphasise the importance of an open culture, open data, and citizen participation through digital means (see for example, Open Data Institute, 2020).

Environmental drivers

Finally, the fact that we are now living in the Anthropocene, an age in which every human activity has a consequence in the natural order, requires a new approach to governance. In this “new climatic regime” (Latour, 2018), people’s activities have a profound, lasting, and global impact on the environment. Natural environment systems do not behave in predictable, linear ways; they have ‘tipping points’ which can lead to disastrous repercussions (OECD, 2019a). Governance mechanisms need to be reformed to account for this complexity and dynamism (see Dryzek and Pickering, 2019).

Why this report focuses on deliberation and new forms of governance

Considering these five drivers together prompts a recognition that the current governance system’s failure to address the most pressing challenges is partly down to democratic processes and institutions that are not fully fit for purpose in the twenty-first century (OECD, 2019a). It is not only the outcomes of the game that count; the rules of the game shape the outcomes. In many OECD countries, these rules were set in the 17th and 18th centuries. While advances have been made (e.g. in terms of suffrage), and policy makers use new tools, the institutional architecture and mechanisms of current political systems have remained largely unchanged.

It is in this context that this report on deliberation and new forms of governance has been developed. It builds on the findings of the OECD report *Open Government: The Global Context and the Way Forward* (2016) and numerous open government reviews around the world, where the trends of declining trust in government, citizen demands for more openness, and growing numbers of innovative practices that give people more agency in shaping public decisions have been identified. The report also seeks to explore the ways in which governments are working to implement the OECD’s Recommendation on Open Government, which, with respect to citizen participation in government, provides that Adherents should:

“8. Grant all stakeholders equal and fair opportunities to be informed and consulted and actively engage them in all phases of the policy-cycle [...]”; and

“9. Promote innovative ways to effectively engage with stakeholders to source ideas and co-create solutions [...]” (OECD, 2017a).

This report takes a deep dive into representative deliberative processes¹, such as Citizens’ Assemblies, Juries and Panels. This type of process refers to a randomly selected group of people who are broadly representative of a community spending significant time learning and collaborating through facilitated deliberation to form collective recommendations for policy makers. They are the focus for four key reasons:

1. **Across the globe, public authorities are increasingly using representative deliberative processes to involve citizens more directly in solving some of the most pressing policy challenges.** While these processes are not ‘new’ in the sense that the first contemporary wave started in the late 1960s, there is nowadays a new wave underway towards greater experimentation in their purpose, design, combination with other forms of participation, and institutionalisation. There is thus a need to better understand their workings and impact through comparative analysis.
2. **The evidence shows that representative deliberative processes have helped public authorities take difficult decisions on a wide range of policy issues at all levels of government for which there was previously political stalemate or a lack of evident solutions.** This merits a deeper look at the good practices that have enabled these processes to help decision makers.
3. **They are one of the most innovative methods of citizen participation,** reintroducing the Ancient Athenian practice of random selection (sortition), updated with modern statistical methods that allow for stratification – a method used to ensure representativeness. These innovations offer the possibility of useful and interesting mechanisms to complement existing representative democratic institutions.
4. Existing literature and studies of representative deliberative processes indicate that, **if institutionalised, they have the potential to help address some of the key drivers of democratic malaise outlined in this introduction:** giving voice and agency to a much wider range of citizens; rebuilding trust in government, and leading to more legitimate and effective public decision making.

The report builds a new international and comparative evidence base about the use of these processes for public decision making in OECD Member countries², presenting a comparative analysis regarding design integrity, sound deliberation, and influence on public decisions. It identifies and compares different models of representative deliberative processes and highlights global, national, and regional trends. The empirical sections are based on 282 case studies from OECD Member countries and offer a solid evidence base from which principles of good practice may be drawn and based on which questions of institutionalisation can be explored, that is, how to move from ad hoc initiatives towards embedded practices.

This report identifies:

- Different models of representative deliberative processes and how to choose a model depending on the issue, complexity, and context (Chapter 2);
- International trends regarding the places, levels of governance, models, and types of public issues that are best suited to be addressed in this way (Chapter 3);
- How design choices impact on quality of deliberation and outcomes (Chapter 4);
- How representative deliberative processes are and could be used to in connection with other forms of stakeholder participation, including digital tools (Chapter 4);
- Principles of good practice for deliberative processes for public decision making (Chapter 5),
- And different routes to institutionalisation, so that citizen deliberation becomes an embedded aspect of public decision-making procedures (Chapter 6).

Chapters 5 and 6 have been developed collaboratively with two OECD International Advisory Groups on Principles and Institutionalisation, composed of international leading practitioners in government, civil society, and academics who are implementing, experimenting with, and studying deliberative processes. Chapter 7 provides a brief overview of other deliberative practices that did not meet all three criteria for inclusion in the study, but are worth noting.

Why representativeness and deliberation?

In times of complex change, current democratic and governance institutions are failing to deliver. Representative deliberative processes are one part of a bigger picture of the systemic change that is needed. When conducted effectively, they can enable policy makers to take hard decisions about the most challenging public policy problems and enhance trust between citizens and government.

Representative deliberative processes provide an opportunity for better solutions as they tap into the collective intelligence and cognitive diversity of a group (Landemore, 2012). Evidence suggests that humans reason more effectively through social interactions, particularly with those who bring completely different perspectives to the table, which help people to justify their beliefs and behaviour to others, convince them through defending arguments, and evaluate the positions that others make (Mercier and Sperber, 2019; Grönlund *et al.*, 2015; Mercier and Landemore, 2012).

Representative deliberative processes can also help engender support for public decisions amongst the wider public, as people are more likely to trust a decision that has been informed by ordinary people than one made solely by government or behind closed doors. Moreover, deliberative processes help to increase participants' broad level of knowledge about issues, build the civic capacity and political efficacy of both participants and the wider public (Knobloch, Barthel and Gastil, 2019), and can also lead to higher levels of knowledge and participation if public communication is done well (Suiter, 2018). These issues are covered in depth in Chapter 4.

Drawing on the evidence collected and existing theoretical research in the field of deliberative democracy, there are seven key reasons why representative deliberative processes can help lead to better public decisions and enhance trust:

1. Better policy outcomes because deliberation results in considered public judgements rather than public opinions, resulting in informed recommendations about issues.

Most public participation exercises – such as ballots, town hall meetings, online forums, participatory budgeting and others – are not designed to be representative nor constructive. Consequently, they can be adversarial – a chance to air grievances rather than find solutions or common ground. Deliberative processes create the spaces for learning, deliberation, and the development of informed recommendations, which are of greater use to policy and decision makers. They can also tap into local knowledge and lived experience of an issue. While deliberative processes are not the only way of achieving this aim, due to the use of random sampling from which a representative selection is made, they involve a wide cross-section of society, thus painting a more holistic picture than can come from open participation processes that rely on self-selection.

2. Greater legitimacy to make hard choices.

By convening a deliberative process, where a representative group of people are given the time and the resources to learn, deliberate with skilled facilitators, and collectively develop considered recommendations, politicians have created greater legitimacy to take those tough decisions. These processes help policy makers to better understand public priorities, and the values and reasons behind them, and to identify where consensus is and is not feasible. Evidence suggests that they are particularly useful in situations where there is a need to overcome political deadlock.

3. Enhance public trust in government and democratic institutions by giving citizens an effective role in public decision making.

People are more likely to trust a decision that has been influenced by ordinary people than one made solely by government or behind closed doors. Trust also works two ways. For governments to engender trust among the public, they must in turn also trust the public to be more directly involved in decision

making. It can also demonstrate to citizens the difficulty of taking collective decisions and improve their sense of collective democratic life.

4. Signal civic respect and empower citizens.

Engaging citizens in active deliberation can also strengthen their sense of political efficacy (the belief that one can understand and influence political affairs) by not treating them as objects of legislation and administration (see Knobloch *et al.*, 2019).

5. Make governance more inclusive by opening the door to a much more diverse group of people.

Most political decision-making bodies are not descriptively representative of the wider population (meaning that representatives do not have similar backgrounds or characteristics to those whom they represent), nor are they designed to be. Deliberative processes, with their use of random selection and stratified sampling, bring in typically excluded categories like youth, the disadvantaged, women, or others minorities into public policy and decision making.

6. Strengthen integrity and prevent corruption by ensuring that groups and individuals with money and power cannot have undue influence on a public decision.

Key principles of deliberative good practice are that the process is transparent, visible, and provides an opportunity for all stakeholders to present to the participants. Participants' identities are often protected until after the process is over to protect them from being targeted by interest groups. Presentations and all submissions should be made available to the public. The participants are given adequate time to weigh the evidence, deliberate, and come to a collective public judgement.

7. Help counteract polarisation and disinformation.

Empirical research has shown that “communicative echo chambers that intensify cultural cognition, identity reaffirmation, and polarisation do not operate in deliberative conditions, even in groups of like-minded partisans” (Dryzek *et al.*, 2019; see Grönlund *et al.*, 2015). There is also evidence to suggest that deliberation can be an effective way to overcome ethnic, religious, or ideological divisions between groups that have historically found their identity in rejecting that of the other (Ugarizza *et al.*, 2014).

When to use and not to use representative deliberative processes

Drawing on the evidence collected and existing scholarship, deliberative processes have been shown to work well for the following types of problems:

1. **Values-driven dilemmas:** many public policy questions are values-driven. Representative deliberative processes are designed in a way that encourages active listening, critical thinking, and respect between participants. They create an environment in which discussing difficult ethical questions that have no evident or ‘right’ solutions can happen in a civil way, and can enable participants to find common ground.
2. **Complex problems that require trade-offs:** representative deliberative processes are designed to provide participants with time to learn, reflect, and deliberate, as well as access to a wide range of evidence and expertise from officials, academics, think tanks, advocacy groups, businesses and other stakeholders. These design characteristics enable citizens to grapple with the complexity of decision making and to consider problems within their legal, regulatory and/or budgetary constraints.
3. **Long-term issues that go beyond the short-term incentives of electoral cycles:** many public policy issues are difficult decisions to take, as their benefits are often only reaped in the long term, while the costs are incurred in the short term. Deliberative processes help to justify action and

spending on such issues, as they are designed in a way that removes the motivated interests of political parties and elections, incentivising participants to act in the interests of the public good.

However, deliberative processes are not a panacea; they do not address all of the democratic and governance problems outlined in this introduction. Democratic societies face a wide set of challenges, which require different methods of resolution or participation. For example, deliberative processes are not sufficient to address the problems of political inclusion and collective decision making. The former is better satisfied through political equality in the form of universal suffrage, and voting is useful for broader participation in decision making (though often suffers from voters having low information). Nor are deliberative processes well-suited for urgent decisions, problems in the late stages of decision making where possible solutions are limited, for issues that involve national security, or for resolving binary questions. Democratic governance requires the use of different mechanisms for different purposes to take advantage of their strengths and weaknesses.

Table 1.1. The equality-participation-deliberation trilemma

	Equality	Participation	Deliberation
Mass democracy (general suffrage)	+	+	-
Mobilised deliberation (selective invitation)	-	+	+
Microscopic deliberation (representative sample)	+	-	+

Source: Fishkin, 2009.

As James Fishkin (2009) has identified, there is a trilemma of democratic values – (political) equality, (massive) participation, and (meaningful) deliberation. They are equally important for democracy, but extremely difficult to acquire at the same time. Trying to realise two of these values will necessarily undermine the third. As demonstrated in Table 1.1, mass democracy, which refers to voting, referendums, and participatory processes (such as town hall meetings, open in-person and online forums, participatory budgeting), realises the values of equality and participation, but not citizen deliberation. Mobilised deliberation, where participants are self-selected or nominated and not representative of the wider public, realises the values of participation and deliberation, but not equality. Microscopic deliberation, which involves a small but representative sample of the population, realises the democratic values of equality and deliberation, but not participation. The focus in this report is on microscopic deliberation, recognising that large-scale participation is not achievable at the same time by deliberative practices alone.

Notes

¹ Representative deliberative processes are referred to interchangeably as deliberative processes for shorthand throughout this report. Please see the reader's guide on definitions for greater clarity about language.

² Data collection was not limited to OECD Member countries and there are seven examples that meet the criteria for inclusion from non-Member countries. These are mentioned at the outset of Chapter 3 on key trends, as they are notable examples. However, for comparability reasons, they do not feature in the analysis throughout the report, which is limited to OECD Member countries.

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2 Models of representative deliberative processes

Ieva Česnulaitytė

Numerous models of representative deliberative processes have been developed, tested, and implemented across the world. They can be clustered into four types of purpose:

- (1) informed citizen recommendations on policy questions;
- (2) citizen opinion on policy questions;
- (3) informed citizen evaluation of ballot measures, and
- (4) permanent representative deliberative models.

This chapter's first section introduces 12 models of representative deliberative processes, broken down by the types of purpose. The models described are: Citizens' Assembly; Citizens' Jury/Panel; Consensus Conference; Planning Cell; G1000; Citizens' Council; Citizens' Dialogue; Deliberative Poll/Survey; World Wide Views; Citizens' Initiative Review; the Ostbelgien Model; and the City Observatory.

The second part of this chapter outlines how to choose between different models depending on the purpose, complexity, issue and other factors. The chapter concludes with a discussion of combining features of different models.

Introduction

Drawing on the new empirical research collected for this report and broader theoretical research, this chapter introduces 12 models of representative deliberative processes (referred to interchangeably as deliberative processes for shorthand), grouped by four types of purpose. It defines their design characteristics and outlines how to choose between the different models depending on the purpose, complexity, issue and other factors.

Over the years, due to the combined efforts of policy makers, academics, and civil society, numerous models of representative deliberative processes have been developed, tested, and implemented across the world. As their use has spread, some models have come to be named differently depending on the country, but remain essentially similar. For instance, Reference Panels in Canada and Citizens' Juries in Australia fall under the same model type, despite their differences in nomenclature. These divergences, as well as others, are partly down to political culture and history, which are discussed in the relevant sections.

Overall, the choice of deliberative models has so far depended on the familiarity with the model and experience using it, leading to preferences in different countries for specific models. However, their widespread use signals their universality and potential applicability in different national and local contexts.

The deliberative models presented in this chapter are not necessarily exhaustive. Each model shares the essential phases of quality representative deliberative processes: learning, deliberation, and the development of collective recommendations.

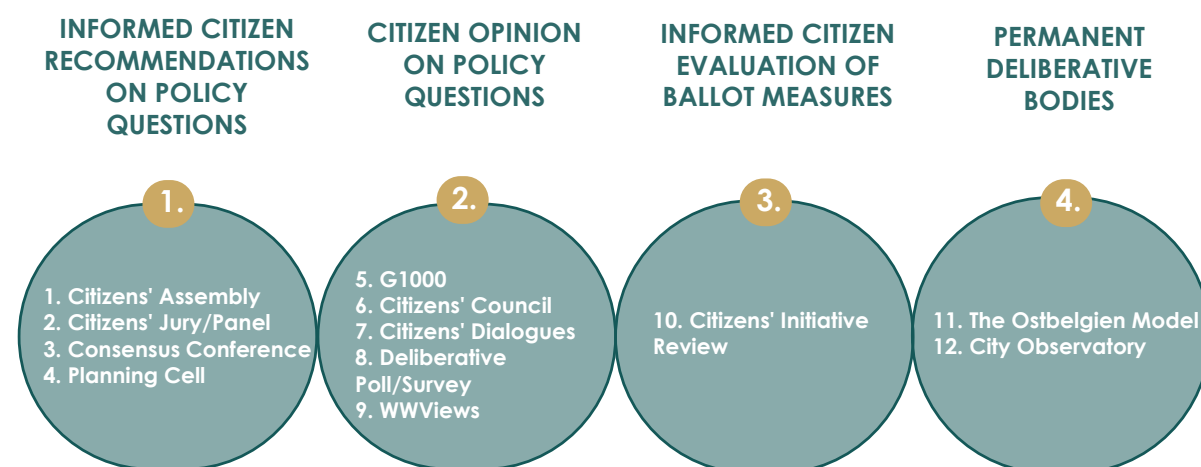
Empirical examples of representative deliberative processes in this report meet the three criteria of: (1) being commissioned by public authorities; (2) participants being randomly selected and demographically stratified; and (3) one day or longer of face-to-face deliberation.

Overview of different models

The models can be characterised by four types of purpose:

1. **Informed citizen recommendations on policy questions:** These processes require more time (on average a minimum of four days, and often longer) to allow citizens adequate time and resources to develop considered and detailed collective recommendations. They are particularly useful for complex policy problems that involve many trade-offs, or where there is entrenched political deadlock on an issue.
2. **Citizen opinion on policy questions:** These processes require less time than those in the first category, though still respect the principles of representativeness and deliberation, to provide decision makers with more considered citizen opinions on a policy issue. Due to the time constraints, their results are less detailed than those of the processes designed for informed citizen recommendations.
3. **Informed citizen evaluation of ballot measures:** This process allows for a representative group of citizens to identify the pro and con arguments for both sides of a ballot issue to be distributed to voters ahead of the vote.
4. **Permanent representative deliberative bodies:** These new institutional arrangements allow for representative citizen deliberation to inform public decision making on an ongoing basis.

Figure 2.1. Types of purpose of representative deliberative processes



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

Table 2.1. Models of representative deliberative processes

	Average no. of participants per panel	Average length of meetings	Average length from first to last meeting	No. of times used to date process (panels)	Used by countries	Result	Policy questions Addressed to date
Informed citizen recommendations on policy questions							
1. Citizens' Assembly	90	18.8 days	47 weeks	6 (6)	Canada, Ireland	Detailed collective recommendations	Electoral reforms, institutional setup, constitutional questions
2. Citizens' Jury/Panel	34	4.1 days	5 weeks	115 (168)	Austria, Australia, Belgium, Canada, France, Poland, Spain, UK, USA	Collective recommendations	Broad range of topics. Most common: infrastructure, health, urban planning, environment. Ongoing processes mandated to provide input on various questions when public authority is in need.
a) Consecutive day meetings	30	3.4 days	0 weeks	23 (40)			
b) Non-consecutive day meetings	35	4.1 days	7 weeks	90 (126)			
c) Ongoing	32	11 days	2 years	2 (2)			
3. Consensus Conference	16	4.0 days	2 weeks	19 (19)	Australia, Austria, Denmark, France, Norway, United Kingdom	Collective recommendations	New technology, environment, health
4. Planning Cell	24	3.2 days	0 weeks	57 (247)	Germany, Japan	Collective position report / citizens' report	Most common use for urban planning, but also other topics
Citizen opinion on policy questions							
5. G1000	346	1.7 days	4 weeks	12 (12)	The Netherlands, Spain	Votes on proposals	Strategic planning: developing a future vision for the city
6. Citizens' Council	15	1.7 days	1 week	14 (24)	Austria, Germany	Collective recommendations	Various topics, most common: environment, strategic planning

7. Citizens' Dialogues	148	2.1 days	4 weeks	38 (112)	Globally	Broad ideas / recommendations	Various topics, often several addressed at once
8. Deliberative Poll/Survey	226	1.6 days	0 weeks	14 (15)	Argentina, Australia, Brazil, China, Italy, Japan, Korea, Mongolia, USA	Survey opinions and opinion changes	Various topics
9. WWViews	120	1 day	0 weeks	4 (150)	Globally	Votes on proposals	Environment issues on a global scale
Informed citizen evaluation of ballot measures							
10. Citizens' Initiative Review	22	4.4 days	0 weeks	8 (8)	USA	Collective statement of key facts	Various topics
Permanent deliberative bodies							
11. Ostbelgien model	24	No data yet	1.5 years	1 (1)	Belgium	Collective recommendations	Mandate to set the agenda and initiate citizens' panels
12. City Observatory	49	8 days	1 year	1 (1)	Spain	Decisions on citizen proposals	Mandate to evaluate citizen proposals and suggest them for referenda

Note: All calculations for this table have been made by the authors on the basis of the data from the 289 cases, which together feature 763 separate deliberative panels, collected for this study, from OECD Member and non-Member countries. The average length from first to last meeting of the Planning Cell is an exception due to lack of data. In this instance, Nexus Institute, the principal organisation implementing Planning Cells in Germany, was consulted. The overall average length of meetings of the Citizens' Jury/Panel excludes the ongoing processes.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020)

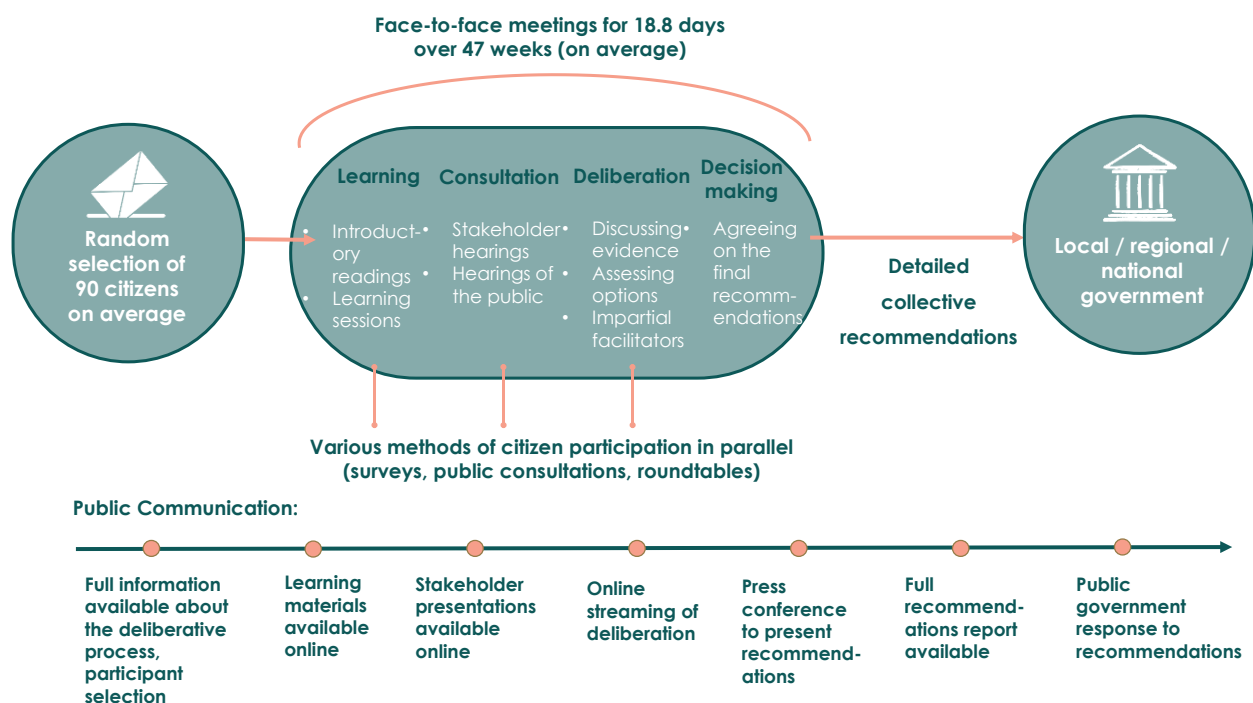
Models for developing informed citizen recommendations on policy questions

Citizens' Assembly

The Citizens' Assembly is considered as the most robust and elaborate model of representative deliberative processes (Escobar and Elstub, 2017). It was first introduced in Canada in the early 2000s – 2004 in British Columbia and 2006 in Ontario – to address the question of electoral reform. The first Citizens' Assembly was organised in response to the need to create a platform where ordinary citizens, rather than political elites (who may have been influenced by party loyalties), could contribute to the design of a new electoral system for British Columbia.

Citizens' Assemblies, as characterised in this chapter, have been mostly used to address questions to do with institutional setup and constitutional changes. They have also tended to be used in contexts of political tension. For example, the 2016-2018 Irish Citizens' Assembly was set up to solve a political and social divide on contentious issues unresolved in years – same-sex marriage and abortion. The 2019-2020 French Citizens' Convention on Climate has been an answer to social mobilisation – a direct outcome of the Yellow Vest movement and a sequel to its first response, the Great National Debate.

Figure 2.2. Citizens' Assembly model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

Given the reasons for their use, Citizens' Assemblies tend to involve more participants and last longer than the other representative deliberative models. On average, Citizens' Assemblies gather 90 citizens (ranging from 36 to 161, although four of the six examples have 99 participants or more) for 18.8 days. Typically, these are spread over numerous weekends. In the cases collected by the OECD, the average duration is around 11 months.

They begin with a learning phase, where citizens become familiar with the policy question and consider a range of perspectives presented by experts, stakeholders and affected groups, a diverse mix of whom present to the participants in person and answer their questions. It is also common for citizens to be able to request additional information, experts or stakeholders if they feel they are missing information or need additional clarifications. This is one of the reasons why meetings tend to be spread out over numerous weeks, to allow the organisers to invite additional experts and prepare extra information if needed (see Chapter 4 for more details).

Often an independent advisory group of researchers is formed prior to the assembly with a mandate to prepare a diverse information and evidence base for this purpose. Assembly members also consider inputs from other citizens, either by holding citizen hearings and calling for online submissions, or drawing from various citizen consultation and engagement processes that have been done in preparation for the assembly.

Learning and consultation is followed by citizen deliberation, when evidence is discussed, options and trade-offs are assessed, and recommendations are collectively developed. The process is carefully designed to maximise opportunities for every participant to express their opinion and is led by impartial trained facilitators.

The final set of recommendations is voted on by all participants, most commonly by a majority vote, resulting in a detailed report and often a minority report, which acknowledges other opinions that were expressed but did not achieve majority consensus. Final recommendations are made publicly available

and presented to the government authority. The government authority responds to recommendations providing feedback to the participants and the broader public.

Lengthy and elaborate, Citizens' Assemblies typically attract more media attention than other types of processes. Since all the learning material and information that Citizens' Assembly members access is made public, this representative deliberative model creates an opportunity for enriching the wider information debate to encourage widespread and informed deliberation on a key policy question well beyond the group of selected Citizens' Assembly members (Suiter, 2018; Fournier *et al.*, 2011; Warren and Pearce, 2008).

Box 2.1. The Irish Citizens' Assembly (2016-2018)

The Irish Citizens' Assembly involved 100 randomly selected citizen members who considered five important legal & policy issues: the 8th amendment of the constitution on abortion; ageing populations; referendum processes; fixed-term parliaments & climate change. The Assembly's recommendations were submitted to parliament for further debate. Based on its recommendations, the government called a referendum on amending the 8th amendment and declared a climate emergency.

More information can be found here: <https://www.citizensassembly.ie/en/>

Figure 2.3. Citizens' Assemblies across OECD Member countries



Note: This document and any map included herein are without prejudice to the status of or sovereignty over any territory, to the delimitation of international frontiers and boundaries and to the name of any territory, city or area.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Citizens' Jury/Panel

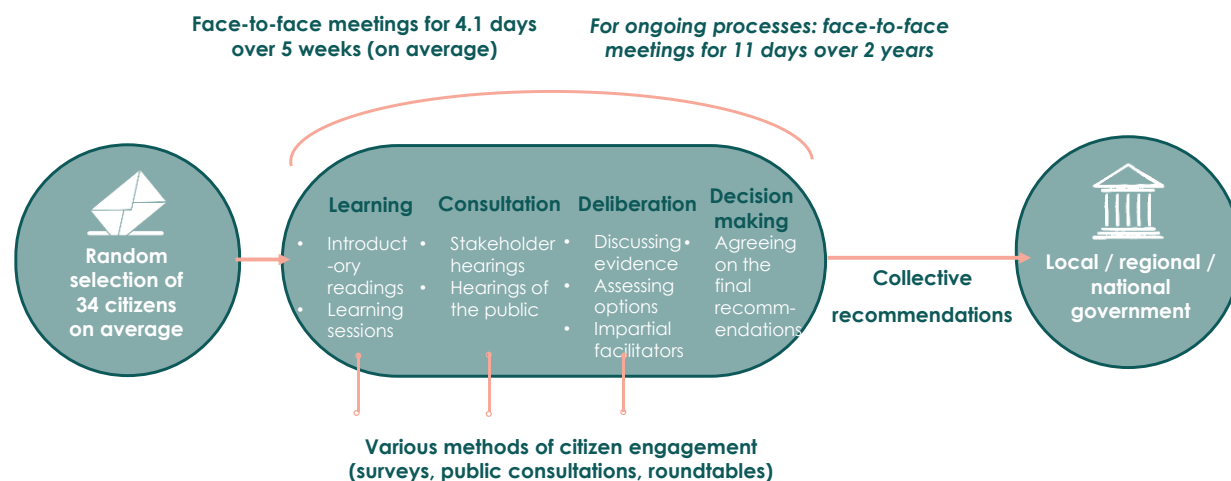
Used at all levels of government, Citizens' Juries and Panels have been initiated to address a broad range of policy questions, the most common ones being infrastructure, health, urban planning, environment, and public services. Most of them have been ad hoc, but there is also one institutionalised model of an ongoing Panel. It has two examples – the Toronto Planning Review Panel (Box 2.2) and the Greater Toronto Hamilton Area Metrolinx Transport Panel (see Chapter 6 on institutionalisation for more details about both).

Citizens' Juries and Panels follow the same learning, deliberation, and decision-making phases as Citizens' Assemblies, but more concisely. They are, to date, the most adapted of representative deliberative models, and three main sub-categories have emerged over time:

1. processes that have taken place over consecutive days;
2. processes where meeting days are spread out over numerous weeks, and
3. ongoing panels over much longer periods of time (e.g. two years).

Citizens' Juries and Panels have often been combined with a rich array of other citizen participation practices that precede the jury or are conducted as parallel citizen engagement activities. These include community meetings, surveys, and online calls for proposals, advisory committees, community discussions, public consultations, focus groups, neighbourhood meetings, and others.

Figure 2.4. Citizens' Jury/Panel model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

Processes that have taken place over consecutive days

The Citizens' Jury was developed in the United States by Ned Crosby and the Jefferson Center in 1971. Ned Crosby designed it while writing a doctoral dissertation on social ethics. His goal was to invent a process that would enhance reason and empathy among citizens as they discussed a public policy matter or evaluated candidates (Jefferson Center). The initial design and method follows a rigid model, and causes some confusion as many processes labelled as Citizens' Juries in other countries do not follow the same strict design criteria of the initial model.

Distinctive characteristics of the Jefferson Center Citizens' Juries are that they are usually smaller than average – between 12 to 24 people – and they typically run three to six days consecutively (Jefferson

Center). While this approach was developed in the United States (US), it has been replicated in other places, including examples in Australia, Canada, Denmark, France, Korea, Spain, and the UK.

Processes where meeting days are spread out over numerous weeks

In contrast, similar processes called Reference Panels in Canada, pioneered by MASS LBP, evolved from the experience with Citizens' Assemblies in British Columbia and Ontario in the late 2000s. During this same period (and without awareness of one another at the time), the newDemocracy Foundation in Australia was separately developing a similar deliberative model to MASS LBP's, calling its processes Citizens' Juries.

The Canadian and Australian Reference Panels and Citizens' Juries tend to involve larger groups of participants (usually around 36 to 45) and the meetings are spread out over numerous weekends, based on the view that this is crucial for the learning process and for quality deliberation. They also began the trend of a new and rigorous two-stage method for random selection. MASS LBP coined the term "civic lottery" to describe it, which is now widely used. The civic lottery involves an initial step where a large number (typically 10,000-20,000) letters are sent by post to a random portion of the population. The letter contains an invitation to participate in the Reference Panel or Citizens' Jury, often signed by the public authority commissioning it, and contains key information about the purpose, remit, duration, meeting dates, and frequently asked questions. Among those who accept this invitation, a second step involves random selection with demographic stratification to ensure that the final make-up of the group reflects a wide cross-section of society. The details of this process are available in MASS LBP's handbook on *How to Run a Civic Lottery* (2017) and are discussed in more detail in Chapter 4.

In the UK, there was a peak in the use of processes called Citizens' Juries, which more closely resembled the Jefferson Center's approach, in the late 1990s/early 2000s. However, these processes were not particularly well-regarded in terms of their design integrity and impact, and their use more or less stopped at around the time of the 2008 financial crisis (Chwalisz, 2017). Policy makers ignored the method for close to a decade. When the deliberative wave picked up again in the UK in the late 2010s, the previous use of the term Citizens' Jury carried negative connotations. It is one of the likely reasons why the term Citizens' Assembly has been used to describe many of the most recent processes that are in fact more similar to Citizens' Juries and Reference Panels as practiced elsewhere, rather than to the historical precedent of the characteristics of a Citizens' Assembly as described in this chapter.

Some of the UK examples have been closer to the Jefferson Center's model, while others are more similar to the MASS LBP/newDemocracy Foundation approach depending on the practitioner. However, the civic lottery was not used in the UK before 2019. In 2019, the UK's Innovation in Democracy programme was launched, through which the Citizens' Jury model has been implemented in several local level deliberative processes across the country.

Moreover, in Poland, the Citizens' Panels ("panel obywatelski") that have taken place are closely aligned to with the practices of MASS LBP in Canada and the newDemocracy Foundation in Australia, although they tend to be slightly larger in size (around 60 participants). Participants are chosen through a civic lottery and the meetings are also spread out over numerous weeks. In English, the Polish processes are often cited or referenced as Citizens' Assemblies, however, in this study they are categorised under the Citizens' Jury/Panel model due to their design similarities.

Other terms that have been used to describe processes that meet the characteristics of a Citizens' Jury/Panel are Community Panel and People's Panel. In non-English-speaking countries, there are other variations.

Ongoing panels over much longer periods of time (e.g. two years)

Finally, the third sub-category of Citizens' Juries/Panels refers to an ongoing representative deliberative body for a longer period and on multiple issues related to one policy area. As of early 2020, it has been used only in Canada and run by MASS LBP, with many of the same characteristics of a Reference Panel in terms of average number of participants (around 30), selection through a civic lottery, an in-depth learning phase, deliberation moderated by skilled facilitators, and ultimately the provision of informed inputs to policy makers.

The example of such an ongoing deliberative body in this study is the Toronto Planning Review Panel (TPRP) 2015-2017. A second iteration of the panel also took place from 2017-2019, with a new group of randomly selected Toronto residents. The remit of the TPRP is to provide informed inputs on a regular basis on planning issues to the City's Chief Planner and Planning Division. At the time of writing in early 2020, a panel with similar characteristics is operating on transportation issues in the Greater Toronto and Hamilton Area, commissioned by Metrolinx, the regional public transport authority.

It is understandable that there has thus been much debate and confusion about terminology among practitioners and academics, as the same terms have been applied to different processes, largely driven by different political contexts. These differences are acknowledged and the OECD has attempted to group the processes with similar design characteristics, regardless of what they are called, to allow for a more accurate comparative analysis. For this reason, five processes¹ that were called "Citizens' Assemblies" (three in the UK and two in Canada) have been reclassified as Citizens'/Juries Panels for the analysis of deliberative models in this report (see Annex B for full methodology details).

Box 2.2. Jury/Panel examples

Citizens' Jury/Panel that has taken place over consecutive days

Forest of Dean District Citizens Jury (2018) took place in the United Kingdom. The National Health Service bodies commissioned a Citizens Jury that provided residents the chance to evaluate prospective hospital locations and choose the one that best suits citizens' needs.

More information can be found here: <https://jefferson-center.org/forest-of-dean-citizens-jury/>

Citizens' Jury/Panel where meeting days are spread out over numerous weeks

Melbourne People's Panel (2014) in Australia provided 43 randomly selected citizens with an opportunity to contribute to the 10 Year Financial Plan of the City of Melbourne and provide their recommendations on the allocation of resources. This was the largest city budget opened up to a deliberative process, reaching \$400 million Australian dollars.

More information can be found here: <https://www.newdemocracy.com.au/2014/08/05/city-of-melbourne-people-s-panel/>

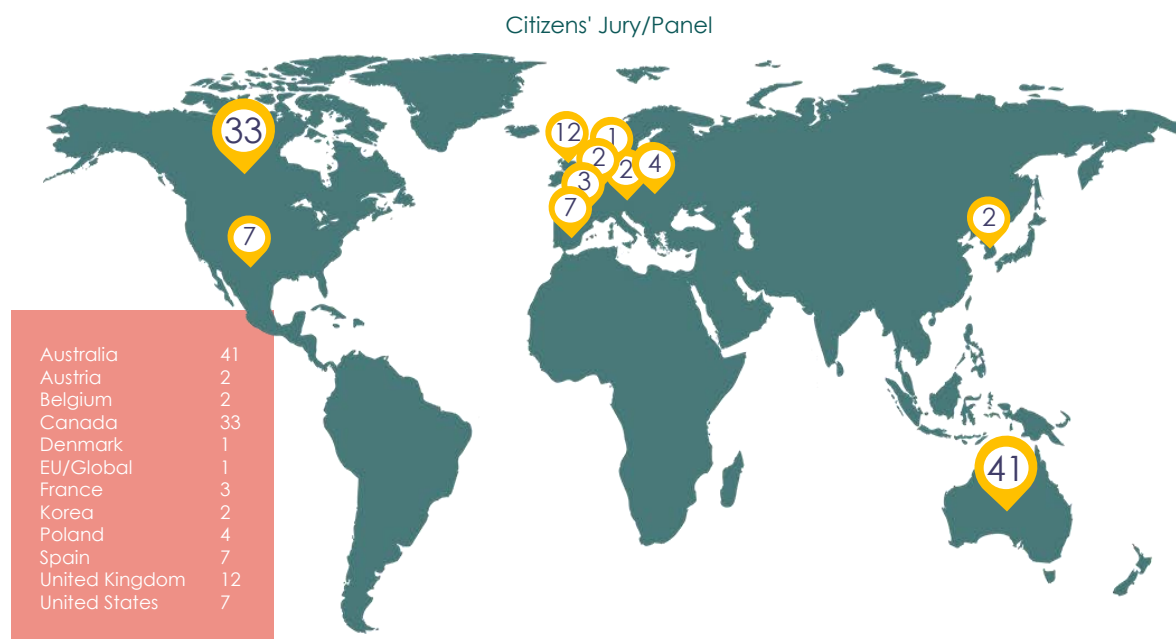
Ongoing Citizens' Jury/Panel

Toronto Planning Review Panel (2015-2017)

The Toronto Planning Review Panel was an ongoing deliberative body, embedded into the city's planning division, which enabled ongoing citizen input on the issues of planning and transportation. Its members served two-year terms, after which time a new cohort was randomly selected to be representative of the Greater Toronto Area. A group of 28 randomly selected residents from all parts of the greater Toronto area met for 11 full-day meetings from 2015-2017. Prior to deliberation, participants met for four days of learning and training. A similar panel was appointed for the 2017-2019, this time consisting of 32 randomly selected citizens.

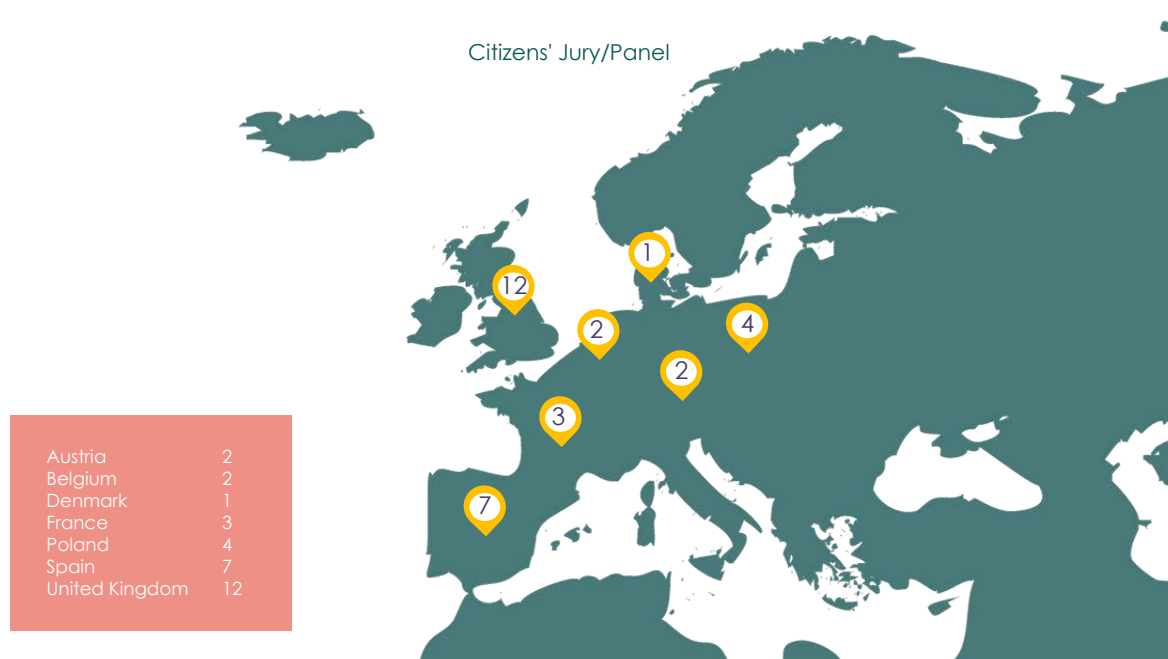
More information can be found here: <http://bit.ly/3brvnxv>.

Figure 2.5. Citizens' Juries/Panels across OECD Member countries



Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Figure 2.6. Citizens' Juries/Panels across OECD Member countries: Europe



Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Consensus Conference

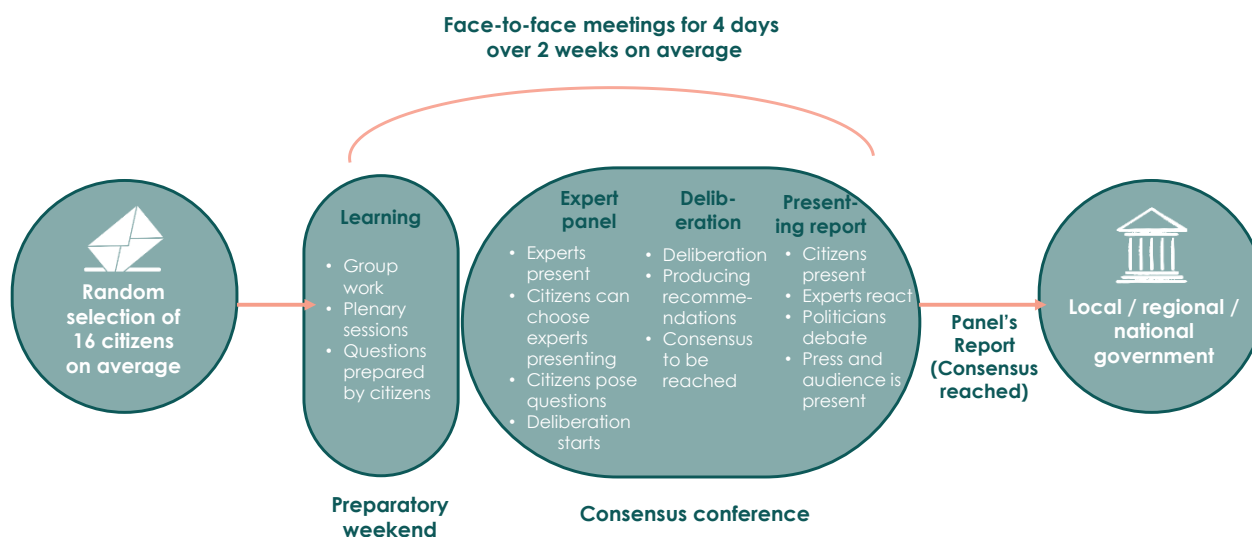
The Consensus Conference was developed in Denmark in 1987 by the Danish Board of Technology. It is based on a model of technology assessment that originated in the USA during the 1960s, which did not include elements of citizen deliberation at the time, as citizens were solely responsible for choosing the expert panel that would deliberate amongst themselves.

The model of Consensus Conferences featured in this report tends to bring together, on average, 16 randomly selected citizens for four days, usually Friday to Monday. The learning stage happens during a preparatory weekend. Participants dive deeper into the policy question and identify a range of questions they would like to ask the expert panel – comprised of scientists, practitioners, and policy makers. During the first day of the conference, the expert panel presents their perspectives, and citizens question the panel's positions (The Danish Board of Technology, 2006).

This is followed by citizen deliberation and writing recommendations during the next half day. Consensus Conferences are specific as citizens usually have to reach a consensus on the recommendations they have produced, indicating the points for which 100% consensus was reached. During the final day, citizens present their recommendations to the panel of experts and politicians.

This design enables an immediate response from the experts to citizens, as citizen suggestions are then discussed. In addition, press and broader members of society are invited to participate in the final phase, making citizen recommendations public and opening them up for wider deliberation and debate.

Figure 2.7. Consensus Conference model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

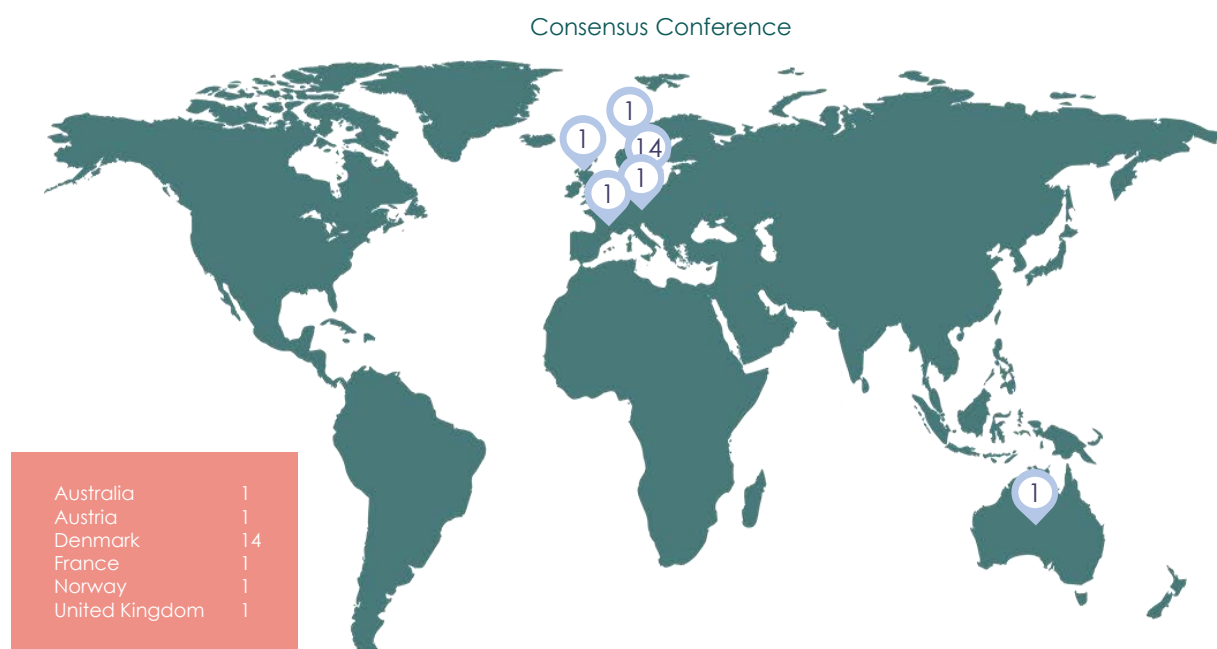
To date, the model has been used over 50 times all over the world to address policy questions related to new technologies, health, and environment (The Loka Institute, 2013). Only the Consensus Conferences that have met all three criteria for inclusion (impact; representativeness, and deliberation) have been included in this study.

Box 2.3. Consensus Conference: Gene technology in the food chain (1999)

Fourteen randomly selected citizens were brought together to provide feedback and reach a consensus on the use of gene technology in food production. Citizens recommended an establishment of establishing the Gene Technology Office, that is in charge of ensuring the labelling of genetically modified foods. They further recommended a licence fee for companies selling genetically modified foods.

More information can be found at: <http://www.abc.net.au/science/slab/consconf/dinner.htm>

Figure 2.8. Consensus Conferences across OECD Member countries



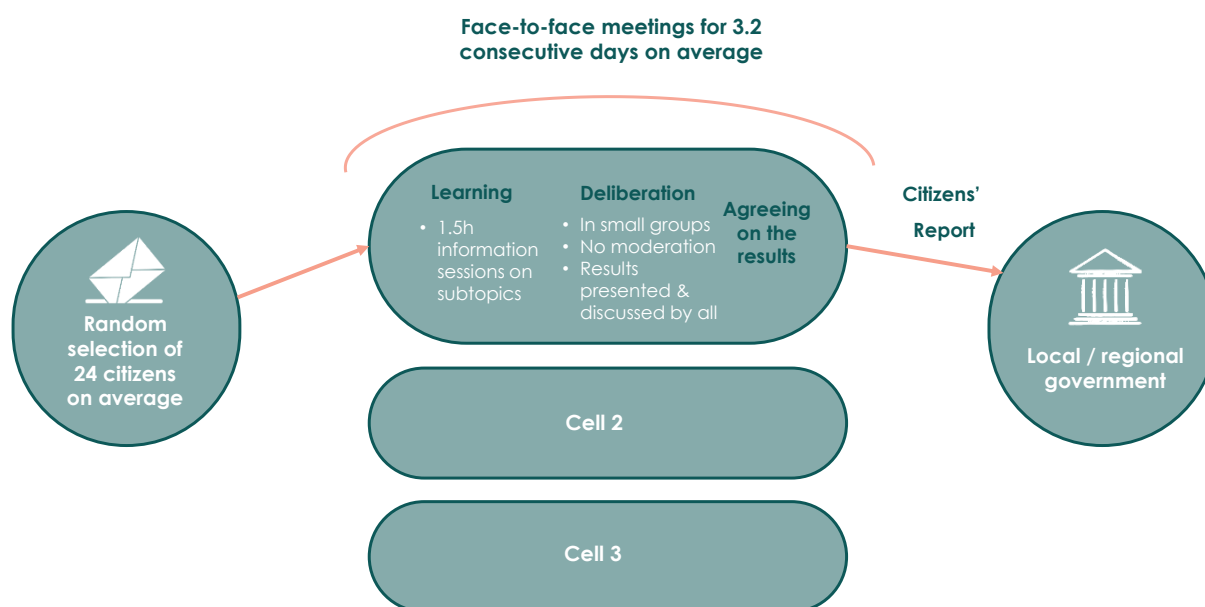
Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Planning Cell

The Planning Cell is a representative deliberative process model developed by Peter Christian Dienel at the University of Wuppertal in 1970s in Germany, where it has been used ever since at both local and regional levels to address various policy questions, most often regarding urban planning issues. Having observed a one-sided relationship between government and citizens, Peter C. Dienel designed the Planning Cell as a tool for citizens to express their opinions and participate in decision making. What makes this model particular is that it usually consists of numerous planning cells happening running in parallel to one another, sometimes considering different elements of the same overarching problem.

The Planning Cell has also been adapted in Japan, where it has been mostly used on at the municipal level and called Citizen Deliberation Meetings – *Shimin Tougikai* (Nagano, 2020). The Japanese model is particular, however, as it usually has only one Planning Cell happening running at a time.

Figure 2.9. Planning Cell model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

The planning cell typically gathers 24 randomly selected citizens for 3.2 consecutive days to develop a citizens' report – a collective position on a policy question discussed. It also follows the core phases of a representative deliberative process (learning, deliberation, decision making). It has a clearly defined structure of the learning stage, with 1.5 hour-long information sessions dedicated to different sub-topics relevant to the main policy question (Nexus, 2019).

In addition, the Planning Cell has some flexibility when it comes to citizen deliberation, as participants deliberate in small groups without facilitators. This is a key distinction to Citizens' Assemblies and Citizens' Juries/Panels, which involve skilled facilitators. Not having skilled facilitators makes a Planning Cell less costly to organise, but it also presents a challenge to the quality of deliberation, as it is not assured that more confident individuals will not dominate discussions.

While the average duration of Planning Cells in this study is 3.2 days, with many lasting at least four days, there are numerous examples of shorter Planning Cells that last only two days. These instances tend to be for less complex policy issues, and thus their results after a shorter period of learning and deliberation would fall closer to the second category of purpose – citizen opinion on policy issues.

Box 2.4. Planning Cell example

A cable car for the citizens of Wuppertal (2016)

Forty-eight randomly selected citizens were brought together to discuss the possibility of building a cable car. Citizens met for four full days and engaged in learning and deliberation. They listed arguments for and against the cable car, and concluded by recommending the local government to conduct a thorough cost-benefit analysis and funding options before making a decision.

More information can be found: https://www.wuppertal.de/microsite/buergerbeteiligung/abgeschlossene_projekte/content/seilbahn.php

Figure 2.10. Planning Cells across OECD Member countries



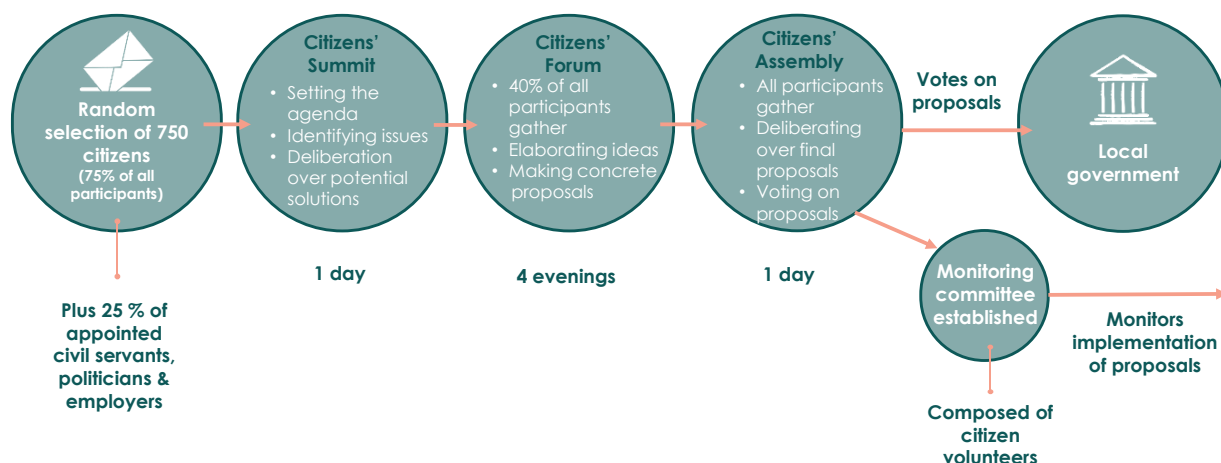
Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Models for capturing citizen opinion on policy questions

G1000

The G1000 is a deliberative model designed as a platform for citizens to collectively develop a broader vision for a municipality or to address a specific question (G1000, 2019). It originated in the Netherlands, where the founders were inspired by the G1000 process that took place in Belgium in 2011 (which was quite different to from this model and was developed as a bottom-up, grassroots initiative). To date, it has been used by local public authorities in the Netherlands and Spain.

Figure 2.11. G1000 model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

The G1000 process consists of three consecutive phases: the Citizens' Summit, the Citizens' Forum, and the Citizens' Assembly, resulting in a Citizens' Decision. Citizens make up 75% of total participants, the other 25% being equal parts civil servants and/or politicians, and employers (see Chapter 4).

During the first phase, the Citizens' Summit, 150-1,000 randomly selected citizens come together for a whole day with no agenda set beforehand: participants lead themselves. Participants engage in an open dialogue, creating a joint vision and defining various solutions for the question at hand.

In the second phase, the Forum, during multiple evenings, participants work together in small groups on the ideas of the Summit to come to concrete proposals. During this phase, participants gather expertise in various ways. The work of the groups is open to reactions and responses from all residents of the municipality.

Finally, participants reconvene in the Citizens' Assembly, again a gathering of one day, to deliberate over the final proposals presented by the working groups, and to decide which proposals are acceptable to the whole.

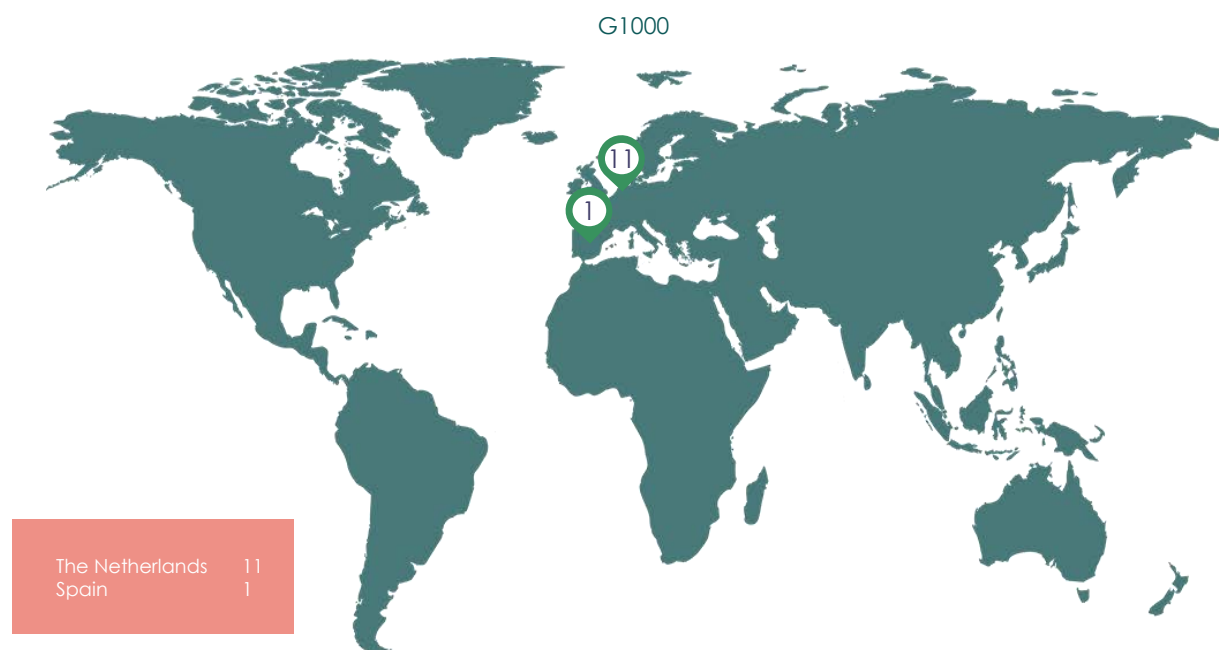
A majority vote is required for a proposal to be included in the Citizens' Decision, the final result of the deliberations and vote, which is first signed by all participants and then handed over to the chair of the local or regional council or parliament (G1000, 2019). Until now, all Citizens' Decisions have been fully accepted by local and regional councils.

Box 2.5. G1000 Steenwijkerland (2017)

Around 250 randomly selected citizens were brought together with civil servants, employers and experts for four days and discussed strategies of how can the city of Steenwijkerland become energy neutral.

More information can be found at: <https://g1000.nu/project/g1000steenwijkerland/>

Figure 2.12. G1000 across OECD Member countries



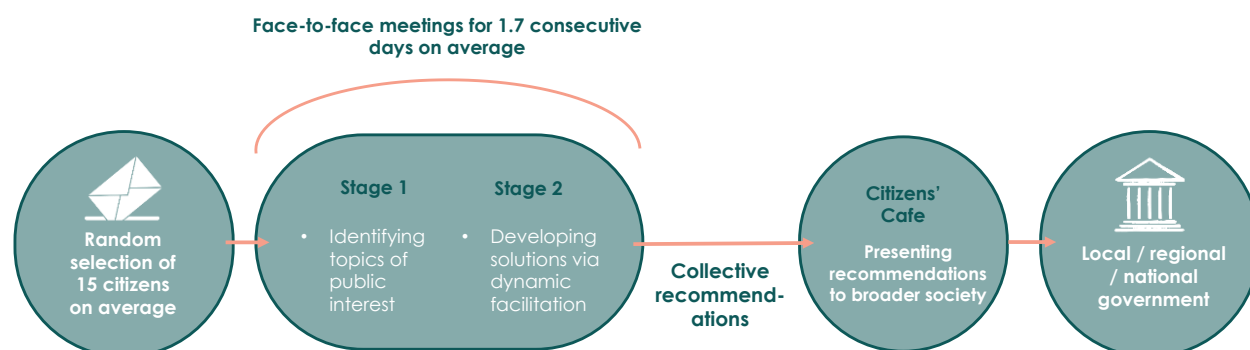
Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Citizens' Council

The Citizens' Council is a model of representative deliberative process that has been used most frequently in Austria on the local and regional levels to address a wide range of policy questions, mostly environmental concerns and public services.

The Citizens' Council (or Bürgerrat in German) was developed in the Austrian state of Vorarlberg and is based the model of the Wisdom Council, created by Jim Rough (Asenbaum, 2016). As it became prominently used by local governments in Austria, the Citizens' Council is today a more established model than its predecessor, the Wisdom Council. The model was designed to address community issues in a quick and inexpensive manner, strengthening community ties along the way.

Figure 2.13. Citizens' Council model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

Citizens' Councils are typically composed of 15 randomly selected citizens and last 1.7 consecutive days on average. As a shorter process, it has less distinct learning and deliberation phases, which are usually intertwined. The first part of the process allows participants to identify issues of public interest to be discussed by the Citizens' Council within the proposed subject, and there is no strictly predetermined remit. In practice, this is less often the case and there is a clearly defined problem to be addressed.

During the next step, citizens engage in facilitated deliberation, develop solutions to the problems identified, and produce collective recommendations (Partizipation.at, 2019). A distinguishing feature is dynamic facilitation, where the facilitator encourages participants to speak their minds without having to follow a strict agenda or process. This creates a safe place for everyone to express themselves, which can lead to openness, inclusion, and creative solutions (Center For Wise Democracy, 2019).

Recommendations are then presented and discussed with the broader public in a Citizens' Café, open to anyone. Finally, the Citizens' Council's recommendations are presented to the local government and a small group of participants are assigned to follow up with the government regarding the recommendations' implementation (Partizipation.at, 2019).

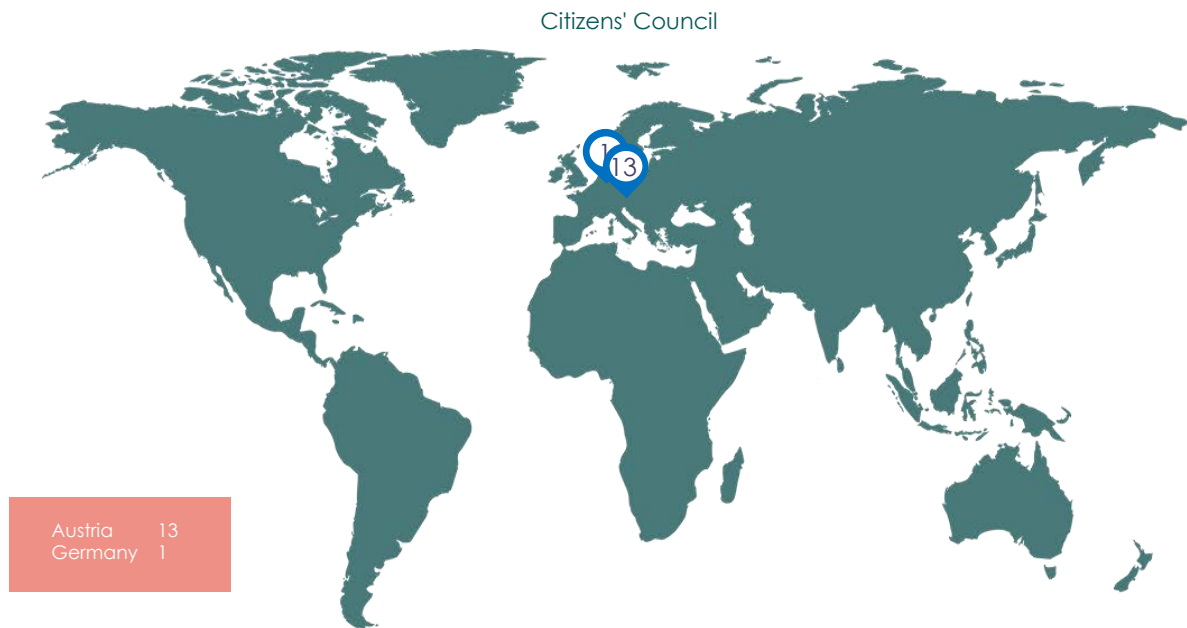
As there is no separate learning phase, Citizens' Councils do not require many resources and long preparation, and are well-suited to be used as a helpful way to periodically give citizens an opportunity to bring salient issues to the attention of local or regional government.

Box 2.6. Citizens' Council on mobility in Vorarlberg (2018-2019)

The state government of Vorarlberg brought together 30 randomly selected citizens for one and a half days to develop principles and priorities in the field of mobility and transport for the state of Vorarlberg for the next ten to fifteen years. Following the Citizens' Council, a Citizens' Café took place, where the broader public could learn about the recommendations produced and discuss them with politicians and public administration.

More information can be found at: <https://vorarlberg.mitdenken.online/buergerrat>

Figure 2.14. Citizens' Councils across OECD Member countries



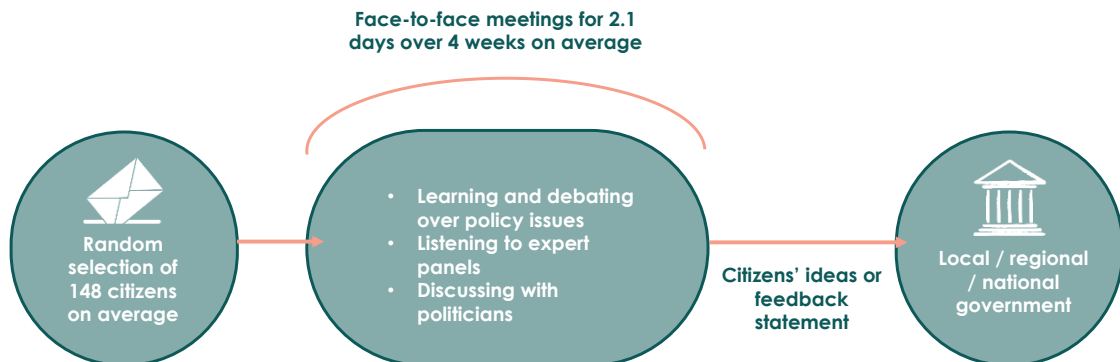
Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Citizens' Dialogues

Citizens' Dialogues are less intensive, often two-day deliberative processes. Their use is widespread across countries and at all levels of government. They often address more than one policy question and, on average, gather 148 randomly selected citizens, though the size can vary greatly – from 18 to 499 participants. Usually they have very brief learning and deliberation stages and include expert panel discussions.

They are more suited to inform citizens on policy issues and gather their broad ideas and reactions, rather than resulting in detailed recommendations for policy makers. Often part of a broader citizen engagement strategy, Citizens' Dialogues are also sometimes called Citizens' Summits, Deliberative Events, Citizens' Forums, and Deliberative Workshops.

Figure 2.15. Citizens' Dialogue model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

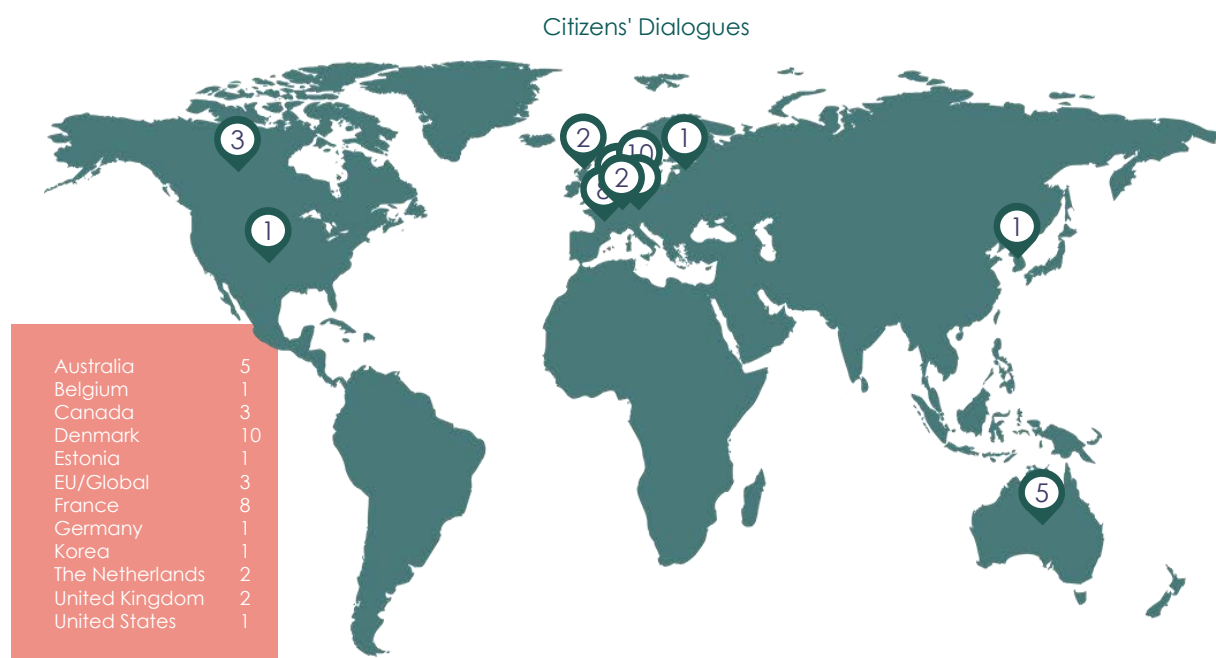
Box 2.7. Citizen Dialogues on Canada's energy future (2017)

The federal government of Canada brought together 35 randomly selected citizens for three days to discuss the future of Canada's energy policy. The process was complemented by five regional dialogue events (two days each). Citizens recommended the following:

1. Developing new forms of governance and oversight for energy issues.
2. Investments in clean technology research and innovation to build the new energy economy.
3. Incentives to accelerate the adoption of existing green or low-carbon energy technologies.
4. Regulations to protect the environment or reduce greenhouse gas emissions.
5. Investing in energy infrastructure that serves Canada and its communities.
6. Addressing impacts on Canadians during changes to energy economy.

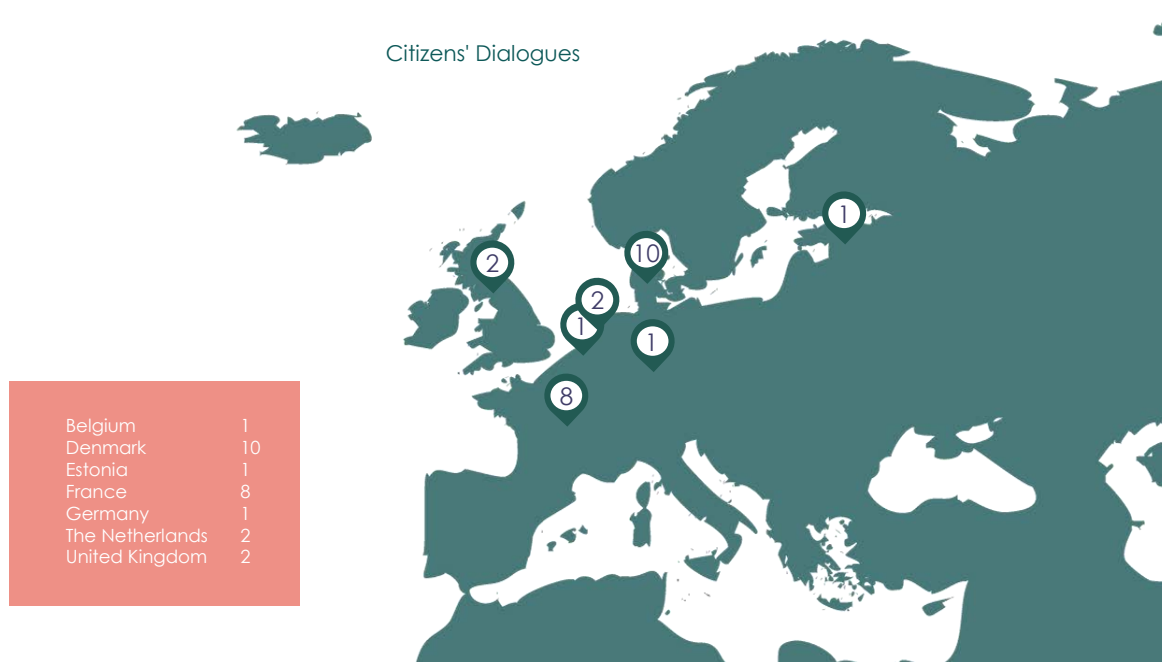
More information can be found at: <https://canadaenergyfuture.ca/resources/>

Figure 2.16. Citizens' Dialogues across OECD Member countries



Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Figure 2.17. Citizens' Dialogues across OECD Member countries: Europe



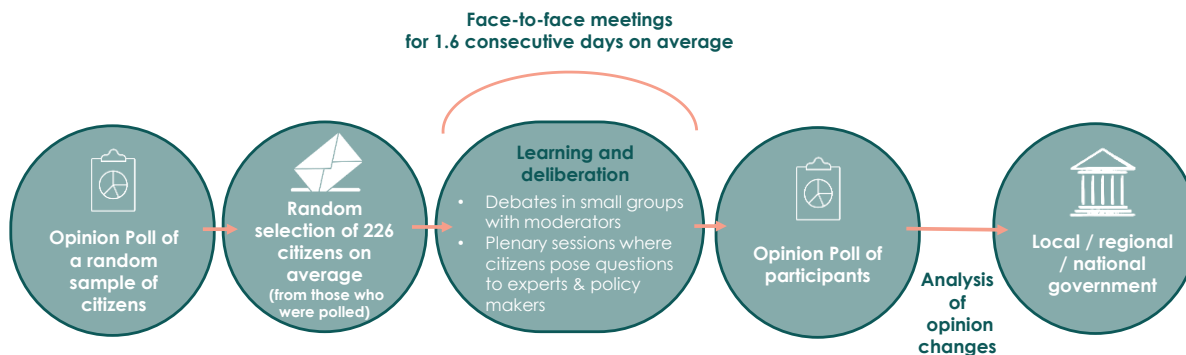
Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Deliberative Poll/Survey

A Deliberative Poll or Survey is a process that aims to capture citizen opinion change on a policy question before and after participants have been exposed to learning and deliberation. James Fishkin developed and patented the Deliberative Poll in the United States at Stanford University in 1988. The idea of the method first appeared in an academic article and was inspired by ancient Athenian democracy and Gallup public opinion polling methods (Fishkin & Luskin, 1988). As Fishkin patented the Deliberative Poll, similar approaches that do not follow the exact methodology tend to be called Deliberative Surveys.

There have been many more Deliberative Polls/Surveys conducted than are included in this study, as the vast majority of them have not been commissioned by a public authority, and have been conducted rather as academic experiments. The model has been used to address policy questions linked to public decision making in countries such as Brazil, China, Italy, Japan, Korea, and Mongolia.

Figure 2.18. Deliberative Poll/Survey model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

On average, the Deliberative Polls/Surveys in this study have gathered 226 citizens (ranging from 62 to 669 participants) over 1.6 consecutive days. Participants are randomly selected and undergo the first opinion survey to measure their initial attitudes towards a policy question. After plenary sessions with citizens posing questions to experts and moderated dialogues in smaller groups, a second opinion survey is conducted to capture citizens' opinions after they have carefully considered the policy question (Center for Deliberative Democracy, 2019). Opinion changes are analysed, made public, and presented to the government authority.

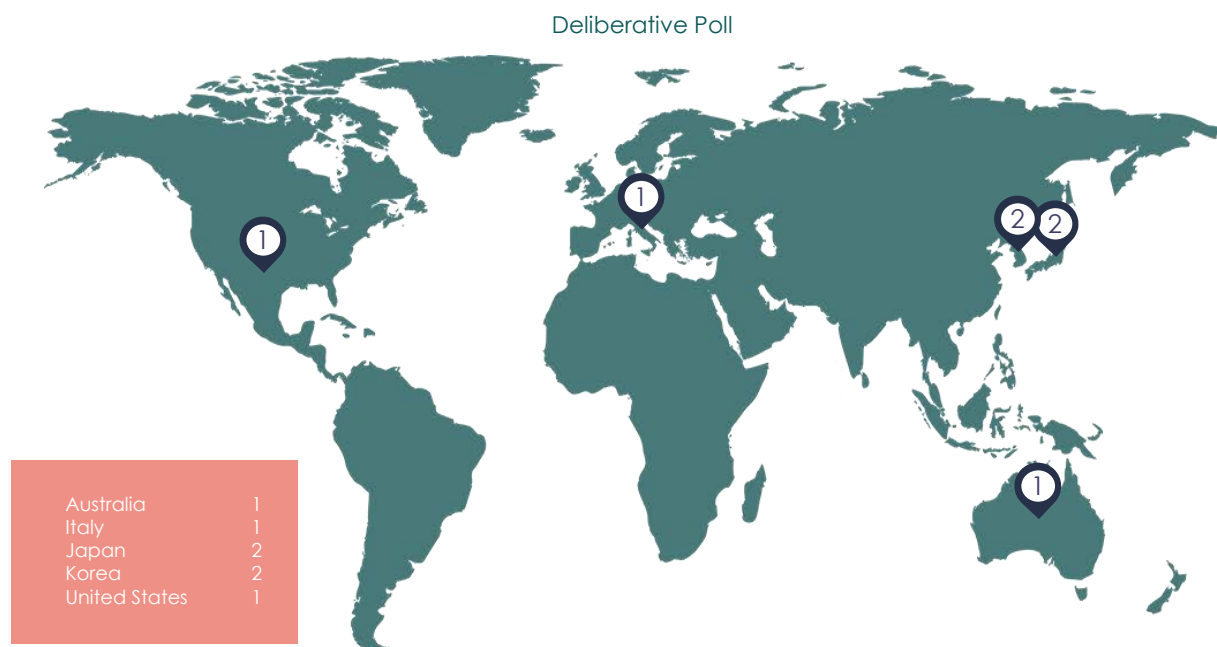
Due to its scientific approach, this model of deliberative engagement is very rigid in terms of design and does not leave any room for participants to influence the process. It is better-suited to identify citizen opinion changes rather than produce detailed recommendations or extend decision-making influence to citizens.

Box 2.8. Deliberative Poll on Construction of Shin-Gori Nuclear Reactors (2017)

A Deliberative Poll took place in Korea with regards to the construction of Shin-Gori Nuclear Reactors No. 5 & 6. The government convened 471 citizens for three days with a mandate to decide whether to resume the construction of the nuclear power plants. Citizens recommended to resume the construction, and the government implemented their recommendation.

More information can be found at: <https://cdd.stanford.edu/2017/proposed-deliberation-in-south-korea-on-closing-two-nuclear-reactors/>

Figure 2.19. Deliberative Polls/Surveys across OECD Member countries



Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

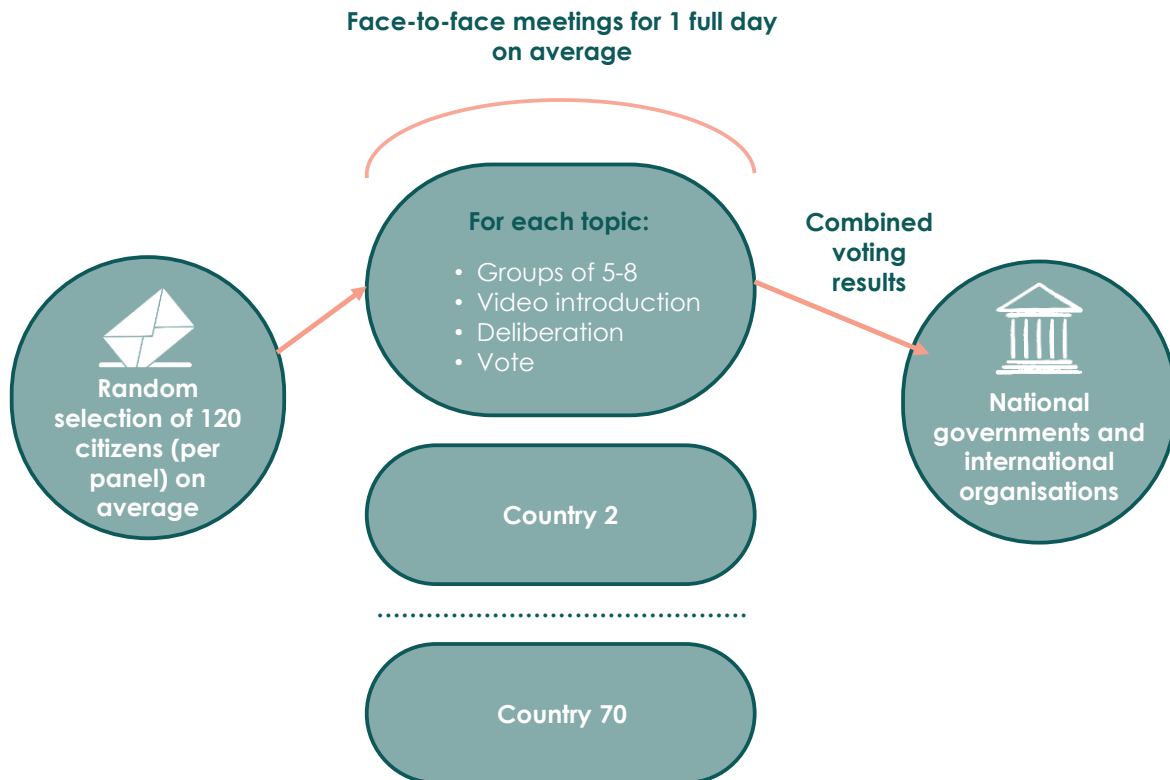
World Wide Views

World Wide Views is a model of representative deliberative process on an international scale. The method was first developed by the Danish Board of Technology in the lead-up to the 2009 climate COP15 in

Copenhagen, with an aim of gathering citizen opinions from across the world in a way that was easy to implement, inexpensive, and consistent in every country.

To date, it has predominantly been used to address policy issues negotiated at the United Nations Climate and Biodiversity Conferences of the Parties (COPs). The process can be commissioned by an international organisation to help inform global agreements and summits, but could also be applied on a national scale.

Figure 2.20. World Wide Views model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

Each World Wide Views initiative has involved numerous national and regional Citizens' Dialogues, each gathering around 100 participants. The number of Citizens' Dialogues has varied widely, from 34 in 2012 to 97 in 2015. Although stratified, their selection is not exclusively random and includes self-selected volunteers, depending on the country. The process takes place for one full day at the exact same time across the world and follows the same format over the course of the day. There is no cross-border deliberation; what results is an aggregate of individual country perspectives (for more details see Chapter 7).

Four to five themes relating to the core policy question are identified prior to the World Wide Views event, and informational videos are prepared for each of those themes. During the day, each theme is introduced with the exact same video material across all participating countries, followed by moderated participant deliberation in small groups (World Wide Views, 2019). Each short session is concluded by individual citizen votes on the questions regarding the issue discussed.

At the end of the day, the breakdown of votes of all the participants across countries is available on an online platform for policy makers and broader society to access (World Wide Views, 2019). This model of deliberative engagement requires precise co-ordination among international partners carrying out the process, and has a strict and clear structure.

Due to its global dimension and large number of participants, it has the potential to generate media interest and initiate broader debate on the policy question at hand. However, as a short process, it is better suited to give policy makers a snapshot of citizen opinion from a range of countries on policy options already on the negotiation table, rather than informed, detailed recommendations that take into account national and local contexts.

Box 2.9. World Wide Views on Climate and Energy (2015)

The United Nations Framework Convention on Climate Change (UNFCCC) Secretariat, together with partnering citizen participation organisations, initiated a World Wide Views process in preparation to the COP21 United Nations Climate Change Conference. Around 10,000 randomly and self-selected citizens were brought together in 76 national panels across different countries aiming to gather citizen views on international climate change and energy policy issues. All the panels took place on the same day and the results of citizens' opinions were immediately publicly available publicly for dissemination to policy makers involved in the UNFCCC negotiations.

More information can be found at: <http://climateandenergy.worldviews.org/>

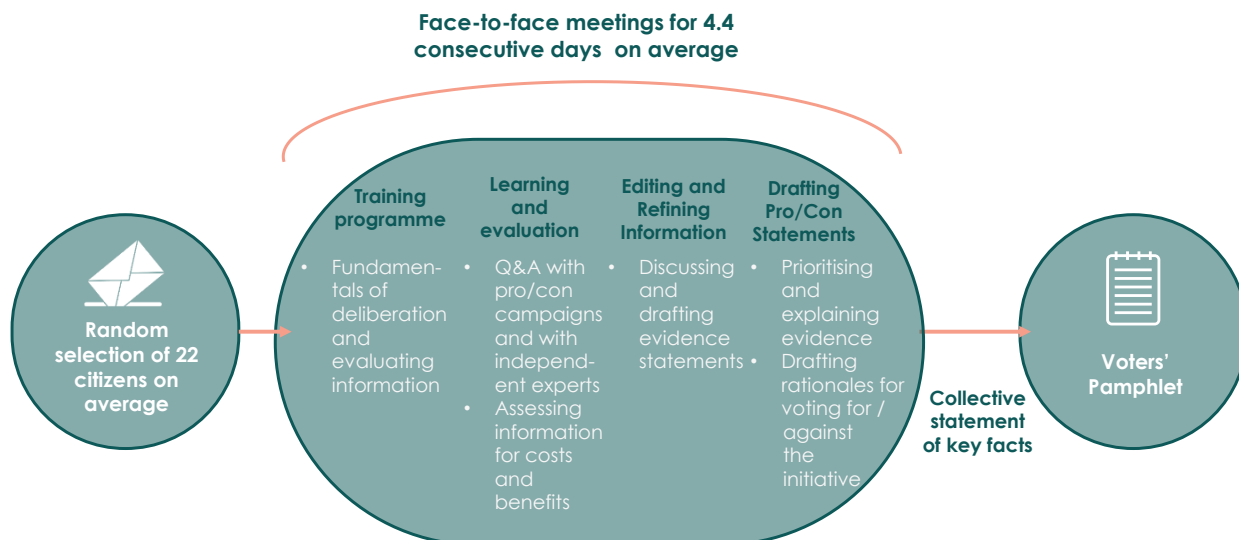
Model for informed citizen evaluation of ballot measures

Citizens' Initiative Review

In contrast to the previously described models that aim to develop citizen recommendations for policy makers, the Citizens' Initiative Review (CIR) is a deliberative process that was designed for a representative group of citizens to evaluate a proposed ballot measure, providing informed arguments for both sides of the issue to all voters with their ballot papers.

To date, the Citizens' Initiative Review has been implemented and institutionalised in the United States in the state of Oregon, where the model was developed in the early 2000s by Healthy Democracy (and the founder of the Citizens' Jury method, Ned Cosby, along with his colleague, Pat Benn). Governments have also piloted it in the state of Arizona, as well as the Swiss city of Sion. Additionally, academia and civil society-led pilots have been implemented in Colorado, Massachusetts, California, and in Korsholm, Finland.

Figure 2.21. Citizens' Initiative Review model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

Citizens' Initiative Reviews typically gather 22 randomly selected citizens for 4.4 consecutive days, on average. As CIRs have been altered and adjusted over the years, their duration has also changed, and the current standard is four days. The two European initiatives, in Finland and Switzerland, were both held over two consecutive weekends rather than consecutive days. Prior to the first meeting, citizens have no information on what policy question they will be addressing. Due to political pressures, organisers do not prepare briefing documents in advance. Rather, citizens receive all testimony directly from campaigns and experts during the review. The process begins with a training programme for participants, providing them with the fundamentals of deliberating and evaluating information.

The following stage is learning and evaluation. Participants assess written evidence submitted by opponents and proponents of the ballot measure, and question both campaigners and independent experts. They then add to, edit, deliberate on, and prioritise all the evidence collected. The editing and refining information phase is carried out in smaller groups where participants are invited to discuss and draft evidence statements, examine costs, benefits and trade-offs of the proposed ballot measure (Healthy Democracy, 2019). Finally, they draft a collective statement that includes the most important information for all voters to know. Participants also select the strongest evidence for and against the measure, and then explain why each piece of evidence is important to one side or the other.

Their final statement is presented publicly in the press conference to the wider public and is included in the voters' pamphlet, which reaches every voter across the state. Compared to the other representative deliberative models, the CIR is less visible publicly until it has finished. The final result of the CIR is not addressed to the government, but rather to fellow citizens, helping them make better informed choices when it comes to voting on a ballot measure. The method can be a powerful tool to help counteract the spread of misinformation and disinformation ahead of a vote.

Box 2.10. Citizens' Initiative Review on Measure 97 (2016)

The Oregon state government brought together 20 randomly selected citizens for four days to conduct an in-depth study of a ballot question on corporate tax and share their findings with their fellow voters. After citizens became acquainted with the arguments for and against the proposed measure, arguments they found most important and convincing were included in a voter's guide and delivered to every voter across the state.

More information can be found here: <https://sites.psu.edu/citizensinitiativereview/files/2015/01/Assessment-of-the-2016-Oregon-CIR-zmzb9i.pdf>

Figure 2.22. Citizens' Initiative Reviews across OECD Member countries



Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Models of permanent representative deliberative bodies

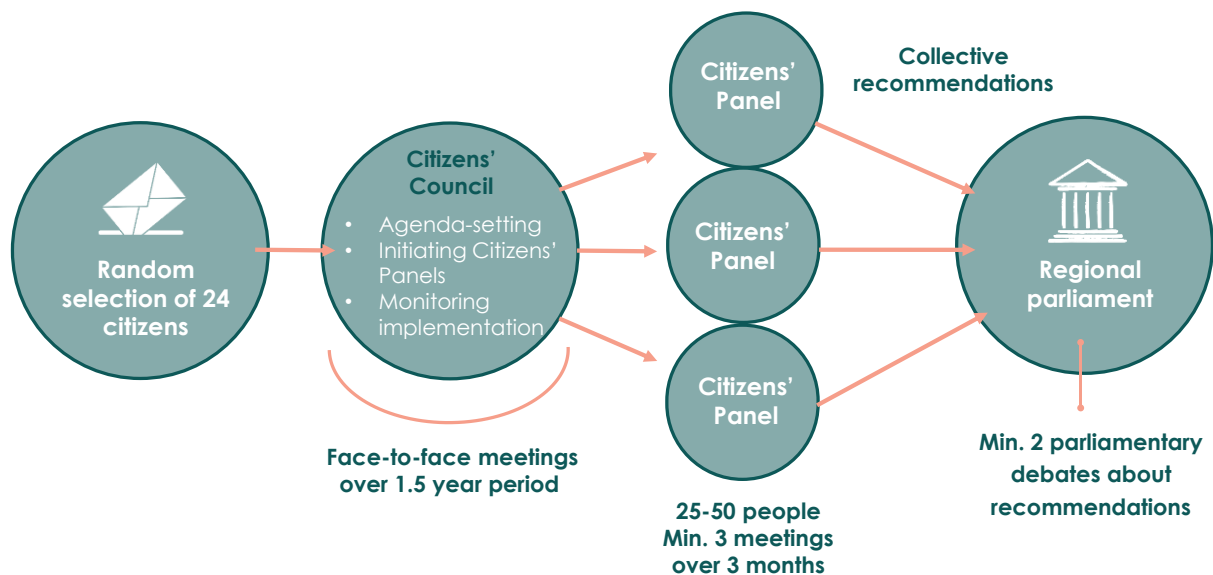
Ostbelgien Model

The Ostbelgien Model is a recently developed model that combines a permanent representative deliberative body with the ongoing use of representative deliberative processes. The permanent deliberative citizens' body is called a Citizens' Council and it has a mandate to initiate and decide the issues of ad hoc Citizens' Panels. It originated in the German-speaking Community of Belgium, Ostbelgien, and was established through a piece of legislation, for which all political parties unanimously voted in favour, in February 2019 (Foundation for Future Generations, 2019).

The Citizens' Council's inaugural meeting took place on 16 September, 2019. The model was designed in 2018 by a group of practitioners, academics and experts of deliberative and participative processes, which

included Claudia Chwalisz from the OECD. They were brought together and given such a mandate by the parliament of the German-speaking Community of Ostbelgien.

Figure 2.23. Ostbelgien model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

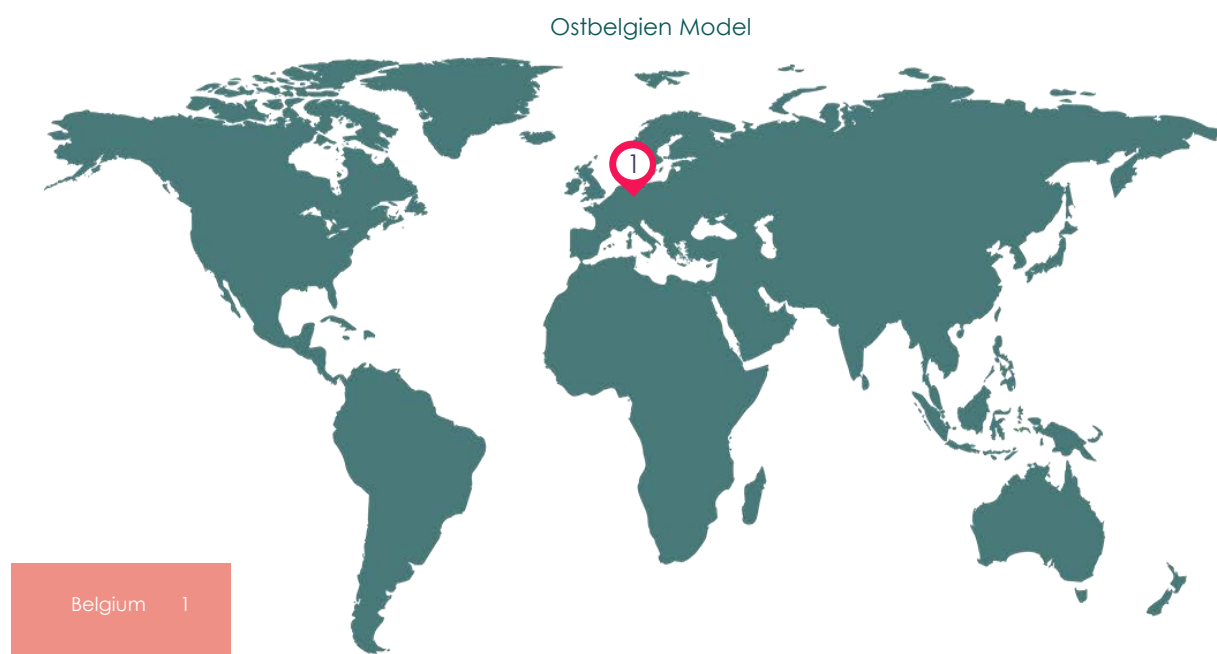
In this model, 24 randomly selected citizens form the Citizens' Council. They have a mandate to represent fellow citizens for one and a half years. The first 24 members are comprised of three different groups: six are randomly selected among the participants of a previous Citizens' Panel that took place in the region; six are politicians – one from each political party, and twelve are randomly selected citizens from the population of Ostbelgien. Every six months, one third of the cohort is rotated out, to be replaced with randomly selected citizens. The politicians will be the first to be rotated out and will be replaced by citizens selected through a civic lottery. This is to allow for some continuity, but also to ensure that the Citizens' Council does not become a body of people who have become professionalised and prey to some of the same problems as elected politicians.

The Citizens' Council has the power to set its own agenda and initiate up to three ad hoc Citizens' Panels on the most pressing policy issues of their choice. Citizen proposals that have the support of at least 100 citizens, as well as proposals of parliamentary groups or the government can also be submitted for the consideration by the Citizens' Council (Parliament of the German-speaking Community of Belgium, 2019). Each Citizens' Panel will be comprised of 25 to 50 randomly selected citizens, who will meet for a minimum of three times over three months. The Citizens' Council decides the number of participants and the length of the Citizens' Panel.

In accordance with the legislation, the regional parliament is required to debate and respond to the recommendations developed by the Citizens' Panels. The implementation of agreed upon recommendations is further monitored by the Citizens' Council. The Ostbelgien model is the only example where this new institution extends the privilege of giving citizens a genuine voice in setting the policy agenda and providing citizens with the framework and tools to actively explore issues of their choice.

The remit of the first Citizens' Panel is to explore options for improving the working conditions of healthcare workers. The Panel's work began in spring 2020 but has been postponed as of the time of publication due to the global health crisis. The topic was chosen by the Citizens' Council a few months before the new coronavirus (COVID-19) pandemic began.

Figure 2.24. The Ostbelgien Model across OECD Member countries



Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

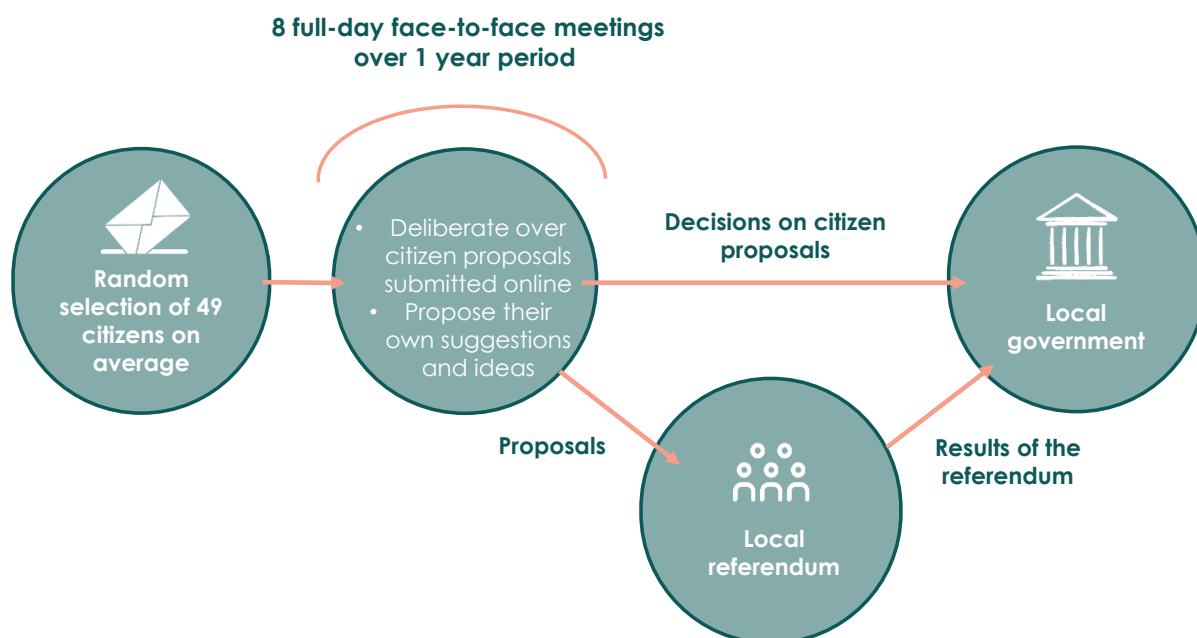
City Observatory

The City Observatory is a model of a permanent deliberative body that was developed and implemented in Madrid city council in Spain. It was established through a regulation passed on 29 January 2019 that transformed the existing City Observatory into a representative deliberative body comprised of randomly selected citizens with new competencies. The initial Observatory was limited to a regular meeting between governing politicians and civil servants to analyse data about citizens' opinions (collected through traditional means like opinion polls, focus groups, etc.). Until this regulatory change, the City Observatory had not held any meetings for several years.

The Observatory was designed by the Madrid city council, Participa Lab, newDemocracy Foundation, and other experts in the field of deliberation (Smith, 2019). However, after a change in government in May 2019, the future of the City Observatory was brought into question, and in February 2020, the composition and function of the Observatory reverted to a body comprised of governing politicians and civil servants.

Mandated to evaluate citizen proposals submitted through the decide.madrid digital participation platform, the City Observatory gathered 49 randomly selected citizens who met and deliberated over citizen proposals eight times per year (Madrid City Council, 2019). Observatory members had the power to send citizen proposals to a local referendum for a citizen vote, in this way opening up meaningful opportunities for participation both in setting the agenda and having a say in decision making. It is an example of digital democracy, deliberative democracy, and direct democracy being combined in an innovative way. The lessons drawn about institutionalising deliberative democracy in this way are discussed in Chapter 6.

Figure 2.25. City Observatory model



Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

Figure 2.26. City Observatory across OECD Member countries



Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Choosing a model of representative deliberative process

The most appropriate deliberative model depends primarily on the policy problem. The more complex the question is and the wider its implications, the more detailed recommendations are required and hence the more elaborate deliberative process is applicable. For example, Citizens' Assemblies are well-suited to address constitutional questions and issues of national or greater importance, as this model allows for extensive learning about the policy issue and in-depth deliberation. They take place over 18.8 days spread over eleven months, on average. The participants, 90 on average, offer a large, diverse base of perspectives, which provides for greater legitimacy of their recommendations. However, they require more resources than any other model, due to their length and scale, as well as take much longer to set up and carry out.

Citizens' Juries/Panels are focused processes to advise on a specific policy issue, typically at sub-national level, although they have also been used nationally/federally. As shorter, usually four-to-six day processes gathering 35-50 randomly selected citizens, they are long enough for citizens to develop detailed, informed recommendations to address specific policy issues, but require less time and less resources than Citizens' Assemblies. They can thus be used more often and yield quicker results.

At the local and regional levels, a G1000 or a Citizens' Council can be reasonable options for residents to develop a collective vision for a municipality and to address less complex community problems. As they can start from a clean sheet without a predetermined agenda, it is an opportunity to collectively identify and address the most pressing issues of the community or co-create a future vision. On the other hand, these options are less well-suited for in-depth recommendations on specific policy issues.

Another important consideration is how much flexibility should be given to participants during the deliberative process. More open-ended and flexible formats, such as the Austrian Citizens' Councils that allow participants to shape the process, might lead to more out-of-the-box and creative ideas, and can be considered as well-suited to shape broader visions. The commissioning public authority needs to be open to genuinely considering all options that come out of such a process. However, if decision makers desire specific, informed recommendations for a pressing policy problem, then they need to clearly define the task for participants.

Other important considerations include available time and resources, level of government, and policy area. For example, the Consensus Conference model is helpful to assess technological advancements, as the format allows citizens to question scientists and policy makers extensively to get to the core of an issue. Figure 2.27 provides further indications on the properties of each model based on their use to date.

Overall, all models have trade-offs that need to be considered when making a choice. The longer the deliberative process is and the more participants it gathers, the more time and resources it will require. However, it is also more likely to result in more detailed and considered recommendations, and thus can be more useful for decision makers and more legitimate in the public's eyes. The shorter a process is, the less well-thought through and detailed recommendations it is likely to provide, since it means there is less time for learning and deliberation. The stricter the design of the process, the less room there can be for creative ideas and solutions.

Figure 2.27. Properties of representative deliberative models

	Complexity of the policy question		Depth of recommendations		Flexibility given to participants		Resources necessary		Length of the process		Level of government for which used so far				So far used as permanent or ad hoc	
	Simple	Complex	Broad	Detailed, extensive	Rigid format	Flexible, participant-led	Low-cost	High-cost	Short	Long	Local	Regional	National	International	Ad hoc	Permanent
Informed citizen recommendations on policy questions																
Citizens' Assembly	=====		=====		=====		=====		=====		✓	✓	✓		✓	
Citizens' Jury/Panel	=====		=====		=====		=====		=====		✓	✓	✓	✓	✓	✓
Consensus Conference	=====		=====		=====		=====		=====				✓		✓	
Planning Cell	=====		=====		=====		=====		=====		✓	✓	✓		✓	
Citizen opinion on policy questions																
G1000	=====		=====		=====		=====		=====		✓				✓	
Citizens' Council	=====		=====		=====		=====		=====		✓	✓	✓		✓	✓
Citizens' Dialogues	=====		=====		=====		=====		=====		✓	✓	✓	✓	✓	
Deliberative Poll/Survey	=====		=====		=====		=====		=====		✓	✓	✓		✓	
World Wide Views	=====		=====		=====		=====		=====					✓	✓	
Informed citizen evaluation of ballot measures																
Citizens' Initiative Review	=====		=====		=====		=====		=====			✓			✓	✓
Permanent deliberative bodies																
The Ostbelgien Model	=====		=====		=====		=====		ongoing			✓				✓
City Observatory	=====		=====		=====		=====		ongoing		✓					✓

Source: Author's own creation based on data in the OECD Database of Representative Deliberative Processes and Institutions (2020).

Combining features from different models

The process of choosing and tailoring the most appropriate representative deliberative model for a given context, level of government, phase of the policy cycle, and policy issue at hand is a creative one, with opportunities to combine features from different models. However, it is of essence to ensure that all fundamental phases of a representative deliberative process are preserved: learning, deliberation, and developing informed collective recommendations.

One practice is to combine several deliberative processes on different levels of government, which build on recommendations produced by preceding panels. An example of such a combination is a Policy Jury on School-based Clinics, conducted in Minnesota, United States in 1988. First, eight Citizens' Juries, each comprised of 12 jurors, were set up in each of Minnesota's Congressional districts to deliberate and provide recommendations on school-based clinics for the prevention of AIDS and teen pregnancy (Jefferson Center, 1988). They were then followed by a state-wide Citizens' Jury, where three participants from each congressional district jury were gathered to bring recommendations together and decide on a final citizen stance.

Such a structure potentially allows for a greater number of citizens to be involved, to learn about the preferences of different regions, and to allow for informed deliberation between districts to reach a collective decision on a higher level of government. However, this type of combination also has potential disadvantages. Representatives from the process at the lower level of government will feel mandated by the outcomes established, undermining the deliberative nature of the process that takes place at a higher

level of government since they will likely see themselves as representatives of the locality (Smith, 2019). In a deliberative process, participants need to be willing to consider the common interest and not come into the process with a strong mandate. These considerations should be taken into account when designing a process that combines citizen deliberation at different levels of government.

Some models also allow for some flexibility for the participants to shape the process. Predominantly an element of a G1000 or a Citizens' Council, the opportunity to set the agenda, plan the proceedings, or decide how to self-organise during the deliberative process can and has been extended to other models, such as Citizens' Juries and Citizens' Assemblies.

Elements of deliberative models or a combination of several models have also been used to create permanent deliberative bodies. The most recent example as of early 2020 is the Ostbelgien Model, where a permanent Citizens' Council is combined with the ongoing use of Citizens' Panels. The result is a model that has features of agenda-setting, oversight, quality learning, deliberation, and informed recommendation development.

Note

¹ Lethbridge Citizens' Assembly on Councillor Employment and Compensation, Prince Edward County Citizens' Assembly, Citizens' Assembly on Social Care, Camden's Citizens' Assembly on the Climate Crisis, and National Assembly for Wales

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3

Key trends

Ieva Česnulaitytė

This chapter highlights key trends in the use of representative deliberative processes for public decision making from 1986 to October 2019 across OECD Member countries.

It presents an overview of two waves of interest in the use of representative deliberative processes over time, their use at different levels of government, the popularity of different deliberative models, types of policy issues that have been addressed using these processes, average cost, and types of organisations that were commissioned to implement them.

Introduction

Drawing on the new empirical research collected for this report, this chapter highlights key trends in the use of representative deliberative processes (referred to interchangeably as deliberative processes for shorthand) to better understand their workings and impact. This chapter is mostly descriptive, with more in-depth analysis in Chapter 4.

It covers key international trends regarding representative deliberative processes in the following seven dimensions:

- Their overall use in OECD Member countries
- Different waves of interest in their use over time
- Their use at different levels of government
- The popularity of each deliberative model
- Types of policy issues that have been addressed using these processes
- Average cost
- Types of organisations that were commissioned/assigned to implement the processes by public authorities.

Overview of key findings

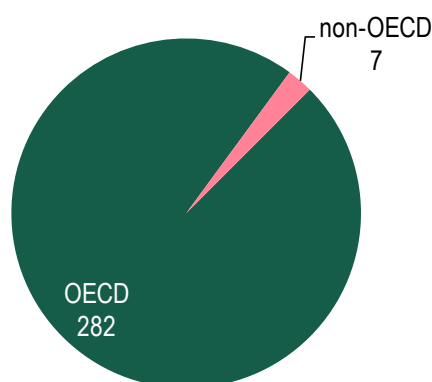
Overall, the evidence shows that:

- To date, OECD Member countries have been paving the way for representative deliberative processes in the international context.
- Since 2010, there has been a notable trend for public authorities to increasingly use representative deliberative processes for public decision making.
- Representative deliberative processes have been carried out at all levels of government, and have been most popular on at the local level (52% of cases).
- The Citizens' Jury/Citizens' Panel is the most widely used model of representative deliberative process to date (used 115 times, 41% of all cases).
- Europe is the region with the largest variety of models of representative deliberative processes used by public authorities for public decision making (amongst OECD Member countries and overall). All models have been used in Europe (Figure 3.7).
- The range of policy issues addressed using representative deliberative processes has been wide and increasing. The issues that are addressed most often are those that have a direct impact on citizens' everyday lives and those to which citizens can easily contribute their personal opinions and experiences: urban planning and health.
- Local and regional/state level representative deliberative processes are commonly concerned with urban and strategic planning, infrastructure, and health questions. National and international ones are most often about environment and technology policy issues.
- To date, the cost of representative deliberative processes varies greatly depending on the model chosen, the length of the process, and the number of participants. Based on available data, it ranges from 13 thousand to 1.8 million euros.
- Representative deliberative processes are most often delivered by a private sector partner specialising in citizen participation and deliberation (37%) or a non-governmental, non-profit organisation (29%).

The use of representative deliberative processes in OECD Member countries

Over the years, the vast majority (282 out of 289) of the representative deliberative processes collected for this report took place in OECD Member countries (Figure 3.1). The seven deliberative processes that occurred in non-member countries took place in Argentina, Brazil, China and Mongolia. All seven of these processes were Deliberative Polls.

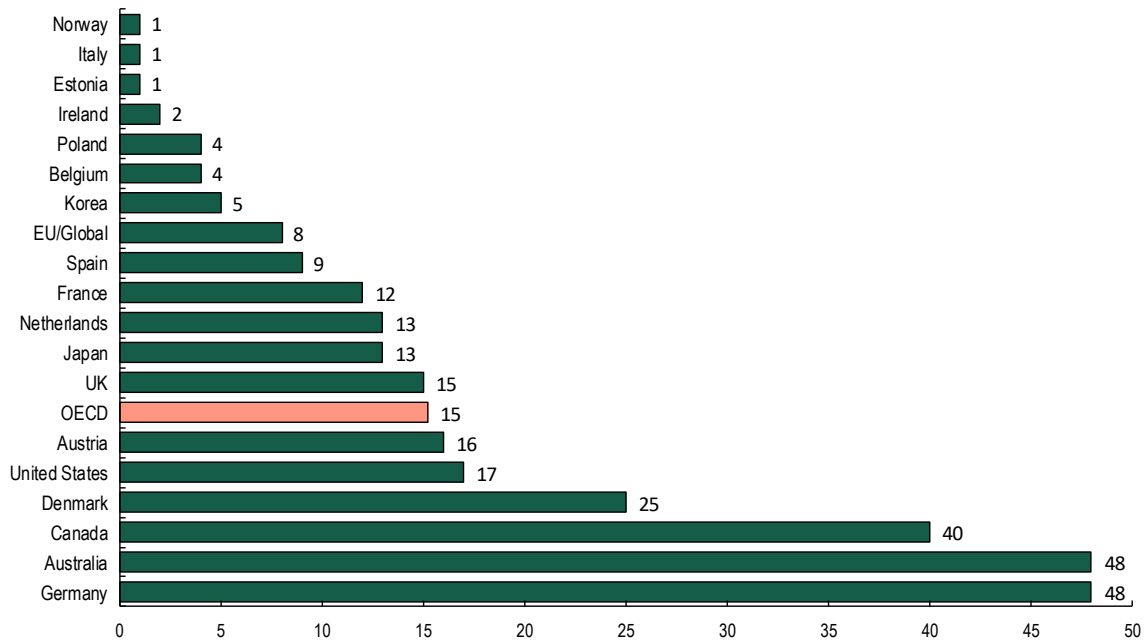
Figure 3.1. Number of representative deliberative processes in OECD Member and non-Member countries, 1986-2019



Note: n=289; Data for OECD countries is based on 18 OECD countries that were members in 2019 plus the European Union. Non-OECD countries are Argentina, Brazil, China, and Mongolia.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

The cases that the OECD has collected in this report are from the countries in Figure 3.2. This figure is not a ranking, nor is it representative of all the cases in a country. It is a graphic representation of the number of cases that the OECD has collected. The countries with the largest number of cases are also those in which a number of the deliberative models were initiated: the Planning Cell originates in Germany, the Citizens' Assembly in Canada, and the Consensus Conference in Denmark.

Figure 3.2. Number of representative deliberative processes per country, 1986-2019

Notes: n=282. Data for OECD countries is based on 18 OECD countries that were members in 2019 plus the European Union. This figure is not a ranking, nor is it representative of all the cases in a country. It is a graphic representation of the number of cases that the OECD has collected. Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Waves of interest in the use of representative deliberative processes over time

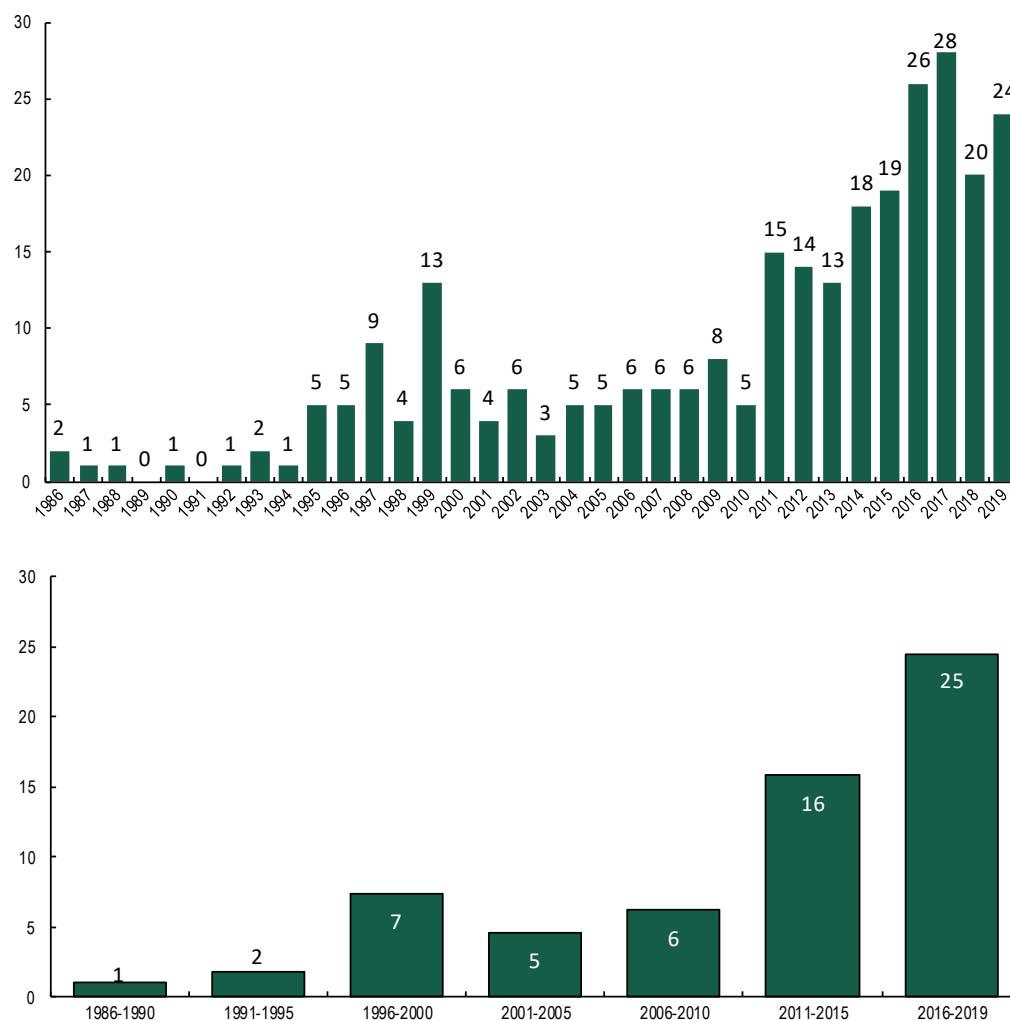
Interest in representative deliberative processes has been increasing across OECD Member countries. A first wave of interest took place between 1996 and 2000 and was characterised by a high number of Planning Cells in Germany and a peak in Consensus Conferences in Denmark. Since 2011, the number of deliberative processes has been steadily increasing. Between 2011 and 2019, there have been 177 representative deliberative processes in total, with an average of 25 processes per year in the period of 2016-2019 (Figure 3.3).

The first graph shows the numbers of deliberative processes that took place each year. The second one indicates the averages of the number of deliberative processes per year over the five-year period.

Since the data collection cut-off date is the end of October 2019, the data for 2019 does not cover the entire year, and the number of processes that were thus initiated (though not necessarily completed) in 2019 is higher than indicated.

Figure 3.3. The deliberative wave has been building over time

Number of representative deliberative processes over time (total annually and on average per year), 1986-2019



Note: n=282; Data for OECD countries is based on 18 OECD countries that were members in 2019 plus the European Union. Processes that spanned over multiple years are noted by the year of their completion (except for permanent ongoing processes).

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Use of representative deliberative processes at different levels of government

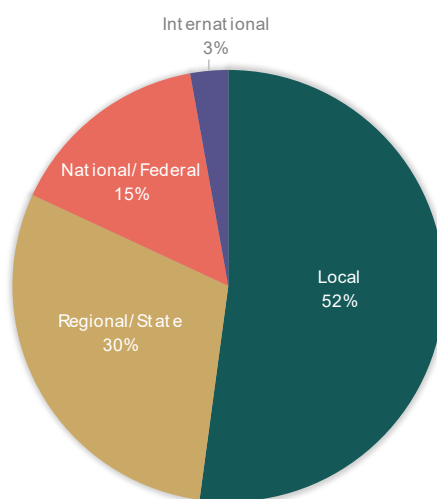
To date, deliberative processes have been carried out at all levels of government. Half of the processes (52%) took place on at the local level. This could be explained by several factors. Local governments often deal with policy issues that are close to people's everyday lives, hence citizens can more easily participate and express their opinions and experiences compared to national level issues. Local governments also tend to be in closer proximity and in a more immediate relationship with citizens and residents, which provides motivation for citizens to participate in higher numbers. The costs of organising a deliberative process are also lower, since participant travel is less expensive for short distances and accommodation costs are not necessary. Deliberative processes that are used at the local level are also usually of a smaller scale (with an exception being the G1000), as citizens are brought together to represent a smaller

community compared to the national level. There are also far more municipalities than regions or nations, so there are naturally more opportunities for experimentation.

Thirty per cent have been commissioned by regional or state public authorities and 15% have been carried out at the national or federal level (Figure 3.4). Three per cent have been international processes initiated by international organisations or supranational bodies, spanning either across multiple countries globally or across various EU member states.

Figure 3.4. Representative deliberative processes have been used most often locally, though examples exist at all levels of government

Representative deliberative processes at all levels of government, 1986-2019



Note: n=282; Data for OECD countries is based on 18 OECD countries that were members in 2019 plus the European Union.
Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Popularity of the different representative deliberative models

The Citizens' Jury/Panel has been the most prominent choice of public authorities so far when choosing a model for deliberative processes. It has been used 115 times in a broad range of countries under various names (such as Reference Panel or Community Jury) and with variations in length, number of meetings and number of participants (Figure 3.5).

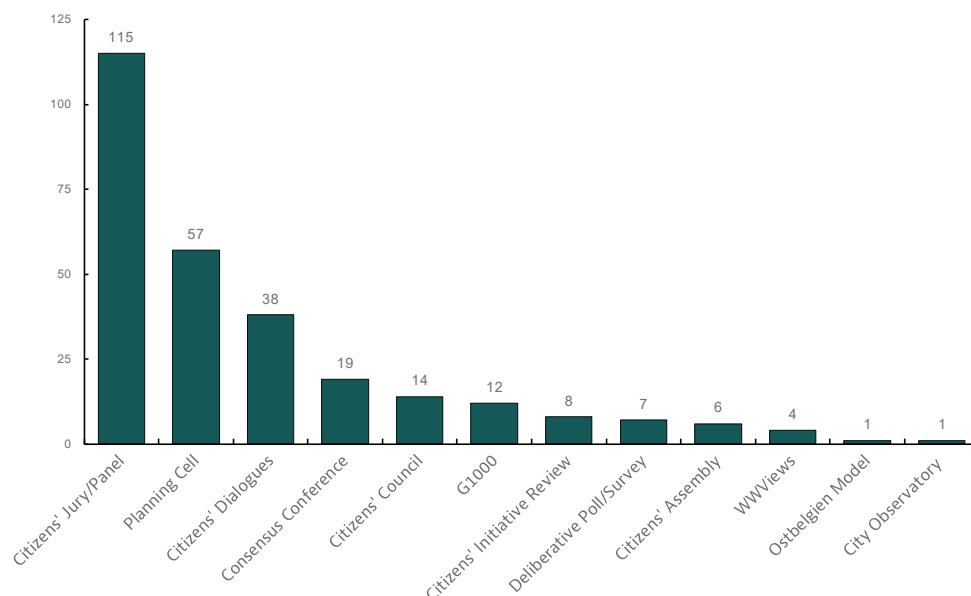
The popularity of Citizens' Juries/Panels could be attributed to several factors. It is a classic model of a deliberative process, one of the first ones developed, with a history of over 50 years. Consisting of a relatively low number of participants (on average 34), however long enough (on average four days) to provide policy makers with informed policy recommendations, it has been a common choice and a trusted option to start with when introducing deliberative processes in public decision making across various contexts.

Other shorter processes such as the Planning Cell (57 times), Citizens' Dialogues (38 times), Consensus Conferences (19 times), and Citizens' Councils (14 times) have also been used quite extensively. Longer, more complex models such as the Citizens' Assembly (six times), and international processes that require extensive co-ordination efforts such as World Wide Views (four times) have been employed less frequently.

New institutionalised deliberative processes – such as the Ostbelgien Model and Madrid City Observatory – took place only once.

Figure 3.5. The Citizens' Jury/Panel has been used most often by public authorities for public decision making

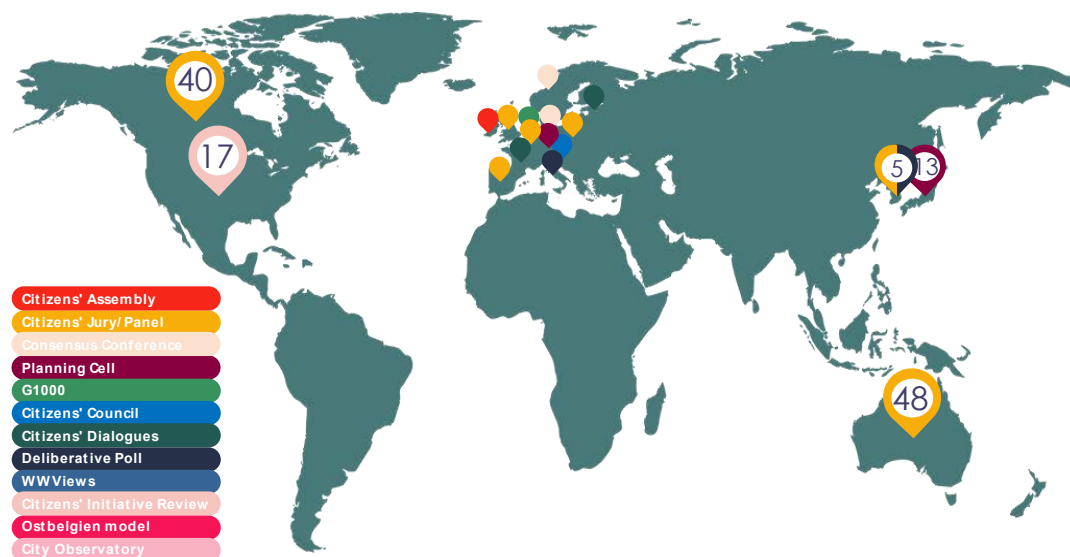
Total number of times each deliberative model has been used for public decision making, 1986-2019



Note: n=282; Data for OECD countries is based on 18 OECD countries that were members in 2019 plus the European Union.
Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Evidence also shows that the use of Citizens' Juries/ Panels is widespread across different regions of the world, dominating the deliberative scene (Figure 3.6). A bit less popular but still geographically widespread and applied to various contexts are Citizens' Dialogues, Deliberative Polls, and Consensus Conferences. Some models are used only in one country (Ostbelgien Model in Belgium, and City Observatory in Spain), and it is their country of origin. Europe is the region with the largest variety of models of deliberative processes used by public authorities for decision making. (Figure 3.7).

Figure 3.6. Regional trends of different deliberative models

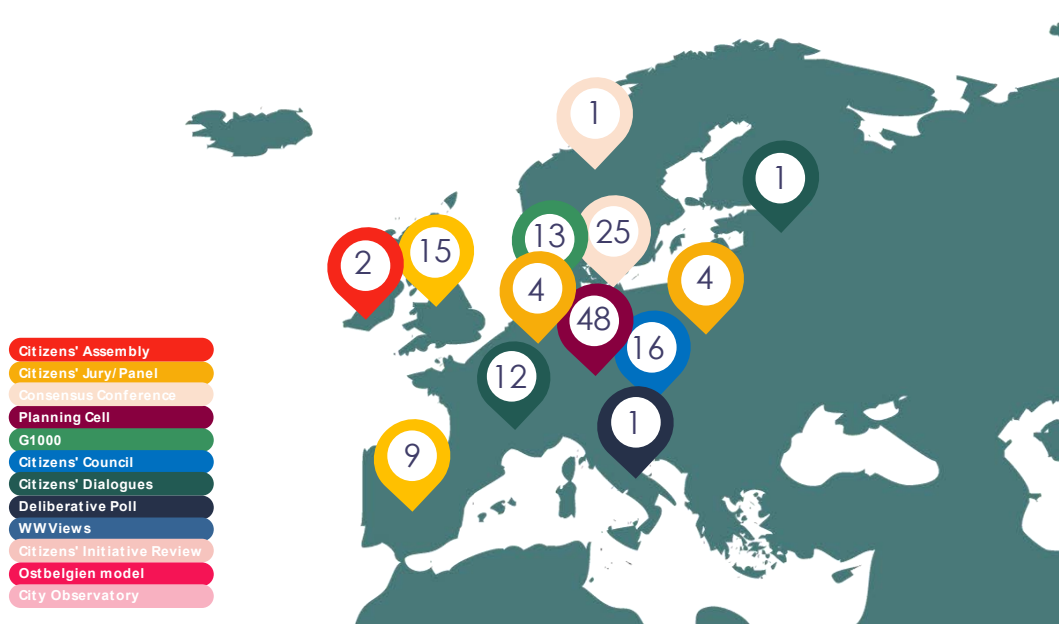


Note: The colour indicates the dominant deliberative model; the number indicates the total number of representative deliberative processes in a country. The map excludes international processes that took place in more than one country.*

*This document and any map included herein are without prejudice to the status of or sovereignty over any territory, to the delimitation of international frontiers and boundaries and to the name of any territory, city or area.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Figure 3.7. Regional trends of different deliberative models: Europe



Note: The colour indicates the dominant deliberative model; the number indicates the total number of representative deliberative processes in a country. The map excludes international processes that took place in more than one country.*

*This document and any map included herein are without prejudice to the status of or sovereignty over any territory, to the delimitation of international frontiers and boundaries and to the name of any territory, city or area.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

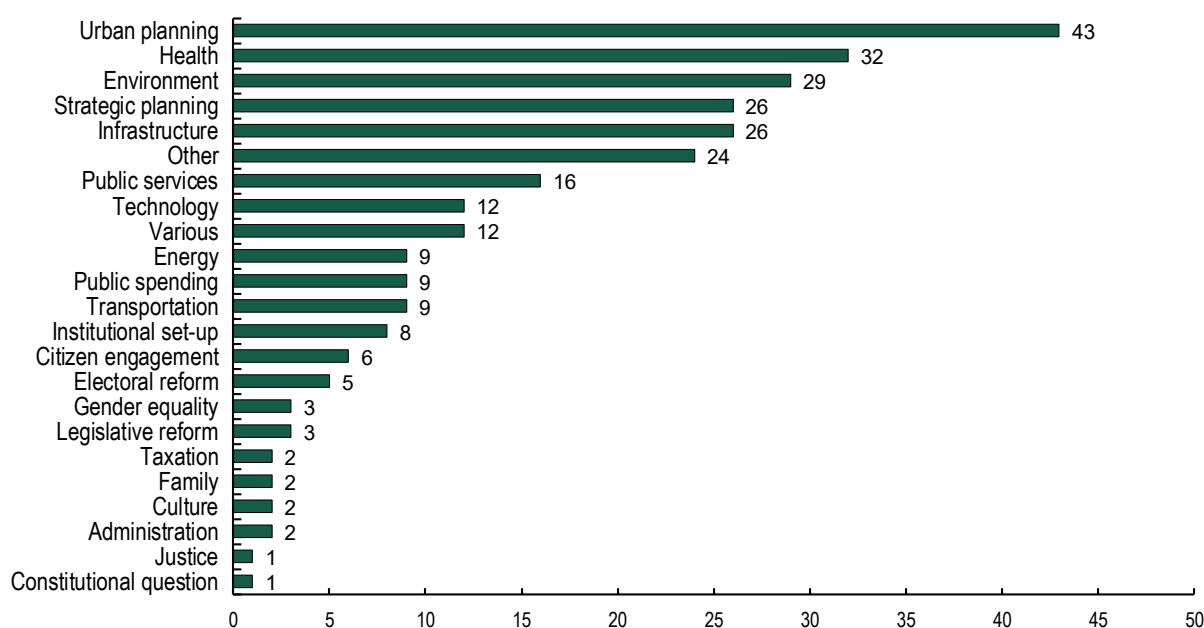
Types of policy issues addressed using representative deliberative processes

Deliberative processes are used to address various policy issues. However, some policy questions have been tackled more frequently than others. To date, the most prominent ones to be addressed have been urban planning (43 processes), health (32 processes), environment (29 processes), strategic planning (26 processes), and infrastructure (26 processes) (Figure 3.5). The trend shows that representative deliberative processes have been most popular in addressing issues that have a direct impact on a community's life, which represent shared problems, and those to which citizens can easily contribute their personal opinions and experiences.

There are twelve instances where one deliberative process has been used to address more than one policy question at a time. This has been the case in situations when participants were brought together from different countries, and the organisers were determined to make the most of their time together. For example, an international Citizens' Dialogue – “A Different Kind of EU Summit: Citizens' Dialogue in The Hague” – was used for citizens to deliberate on three dimensions of Europe: Social Europe, Global Europe, and Digital Europe. Permanent deliberative processes, such as the Ostbelgien Model or the City Observatory, have the mandate to explore and deliberate about multiple issues that are either of their own choice, suggested by citizens, or proposed by the government.

Figure 3.8. Representative deliberative processes have been used by public authorities most often for addressing issues that have a direct impact on a community's life, such as planning, health, and the environment

Number of times a policy issue has been addressed through a representative deliberative process



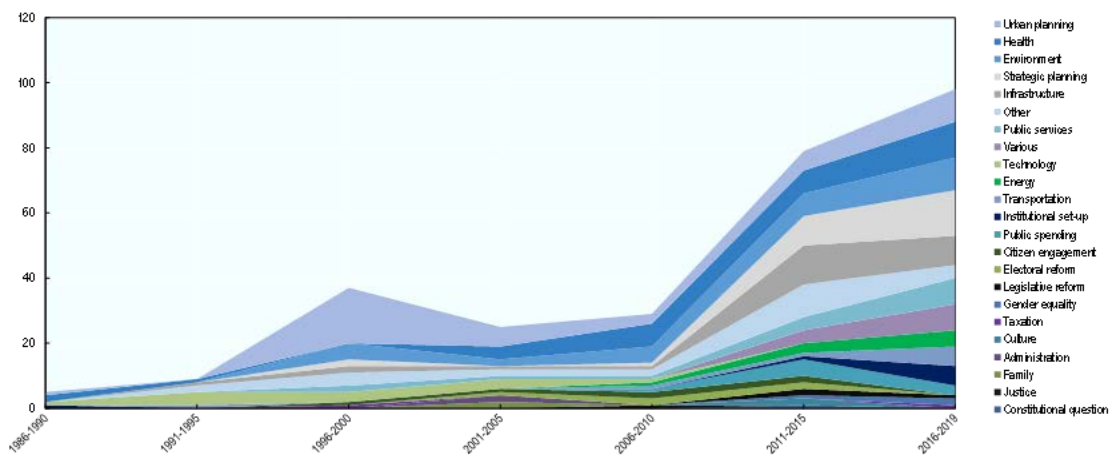
Note: n=282; Other policy issues include: constitutional questions; justice; culture; taxation; gender equality; legislative reform; migration; youth; sustainable development; water management; noise pollution; consumer protection; cooperative housing; firework use; socioeconomic development; gambling regulations; agriculture; safety; science; and research. Note: n=282; Other policy issues include: agriculture; constitutional questions; consumer protection; cooperative housing; culture; firework use; gambling regulations; gender equality; justice; legislative reform; migration; noise pollution; safety; socioeconomic development; science and research; sustainable development; taxation; water management; youth.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Over time, the range of policy issues addressed has been increasing and the dominant types of policy issues addressed has been changing. The use of deliberative processes for urban planning peaked in the year 2000. Questions of infrastructure, transportation, health, strategic planning, public services, environment, and energy are on the rise (Figure 3.9). Technology (assessing new technological solutions and their application from a citizens' perspective) is another issue area for which deliberative processes were used often between 1995-2005, but there has since been a decline.

Figure 3.9. The diversity of public policy issues addressed by representative deliberative processes has increased over time

Types of policy issues addressed through representative deliberative processes over time, 1986-2019

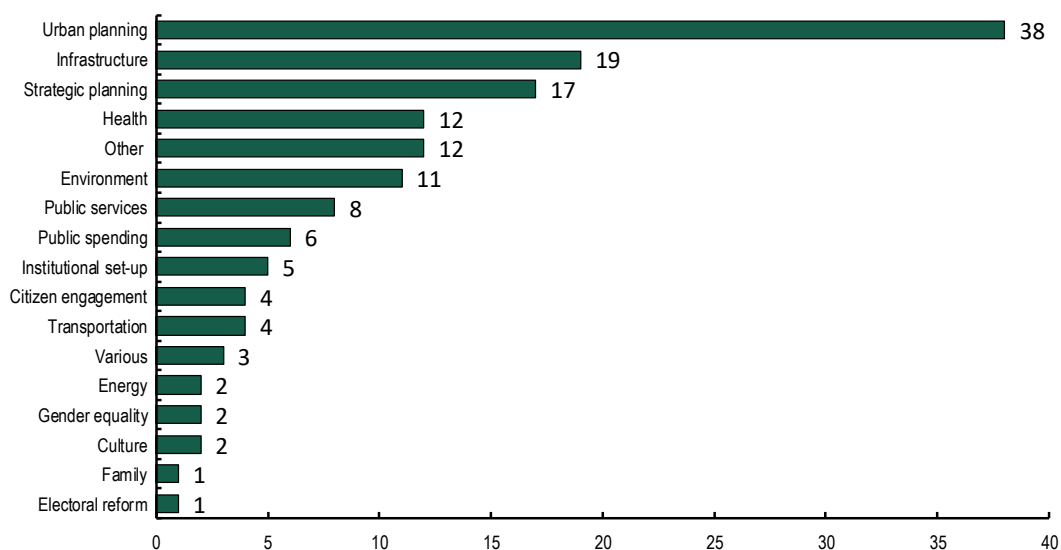


Note: n=282; Data for OECD countries is based on 18 OECD countries that were members in 2019 plus the European Union.
Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

At the local level, citizens are most commonly engaged on in urban and strategic planning (i.e. long-term plans or priorities for a community), infrastructure, health, and environment issues. Municipalities and local public institutions, such as hospitals, often initiate deliberative processes to understand informed citizen perspectives that take into account difficult trade-offs regarding new roads, bridges, and buildings, as well as to find new ways of improving health services and collectively plan cities' responses to climate change (Figure 3.10). These issues can often be beholden to "not in my backyard" opposition, where some individuals 'lose' for the greater community to 'win'. Representative deliberative processes in these situations help to identify where there is common ground and strategies to help ensure a positive outcome for the entire community. Similar tendencies can be observed on the regional/state level, with health leading as the most prominent policy issue (Figure 3.11).

Figure 3.10. Urban planning, infrastructure, and strategic planning are the most common policy issues addressed through representative deliberative processes for public decision making at local level

Types of policy issues addressed through local representative deliberative processes, 1986-2019

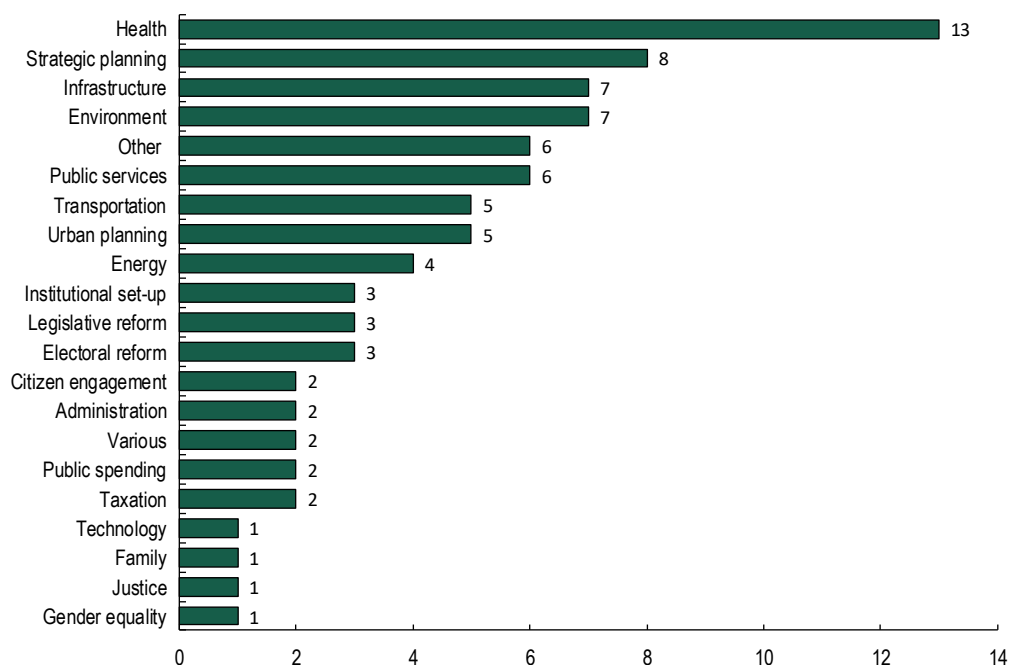


Notes: n=147; Data for OECD countries is based on 14 OECD countries that were members in 2019 (Australia, Austria, Belgium, Canada, Denmark, France, Germany, Japan, Korea, The Netherlands, Poland, Spain, United Kingdom, United States) plus the European Union; Category "various" refers to several different issues addressed in the same deliberative process, and permanent deliberative bodies that address different issues every time they meet.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Figure 3.11. Health, strategic planning, and infrastructure are the most commonly addressed policy issues through representative deliberative processes at regional/state level

Types of policy issues addressed through regional and stake level deliberative processes, 1986-2019



Notes: n=84; Data for OECD countries is based on 12 OECD countries that were members in 2019 (Australia, Austria, Belgium, Canada, Denmark, France, Germany, Italy, Japan, Spain, United Kingdom, United States) plus the European Union; Category "various" refers to several different issues addressed in the same deliberative process, and permanent deliberative bodies that address different issues every time they meet.

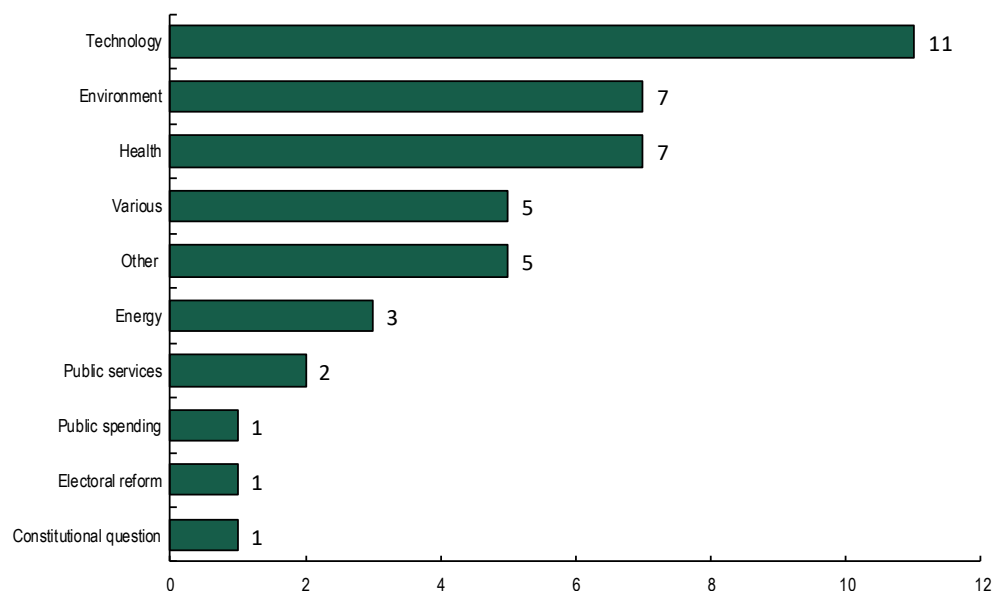
Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

At the national/federal level, technology, environment, and health have been the most popular policy issues addressed by deliberative processes (Figure 3.12). International processes have been almost exclusively used for environmental questions, with some other issues related to producing strategic visions of the future of Europe (Figure 3.13).

Figure 3.12. Technology, environment, and health are the most commonly addressed policy issues through representative deliberative processes at the national/federal level

Types of policy issues addressed through national and federal level deliberative processes, 1986-2019

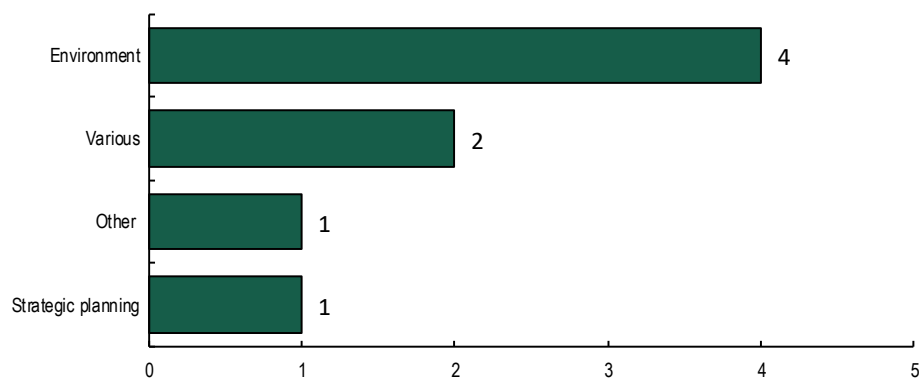
Types of policy issues addressed through national and federal level deliberative processes, 1986-2019



Notes: n=43; Data for OECD countries is based on 13 OECD countries that were members in 2019 (Australia, Austria, Canada, Denmark, Estonia, France, Germany, Ireland, Japan, Korea, The Netherlands, Norway, United Kingdom) plus the European Union; Category “various” refers to several different issues addressed in the same deliberative process, and permanent deliberative bodies that address different issues every time they meet.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Figure 3.13. Types of policy issues addressed through international level deliberative processes, 1986-2019



Notes: n=8; Data for OECD countries is based on 18 OECD countries that were members in 2019 plus the European Union; Category “various” refers to several different issues addressed in the same deliberative process, and permanent deliberative bodies that address different issues every time they meet.

Source: OECD Database of Deliberative Processes and Institutions (2020).

Average cost of representative deliberative processes

The cost of deliberative processes varies greatly depending on the model chosen, the length of the process, the number of participants, and the existing know-how and institutional knowledge related to such processes. Ad hoc processes are likely to cost more than institutionalised ones, when the cost of a single panel is considered. Table 3.1 shows the average cost of the deliberative models for which there is available data.

Table 3.1. Average cost of twelve models of representative deliberative processes

Deliberative Model	Average cost in EUR	
Citizens' Assembly	€	1,822,775.33
Citizens' Jury/Panel	€	66,578.59
Planning Cell		no data
Consensus Conference		no data
G1000	€	71,666.67
Citizens' Council	€	13,000.00
Citizens' Dialogues	€	250,560.00
Deliberative poll/survey		no data
WWViews		no data
Citizens' initiative review	€	89,250.00
Ostbelgien Model		no data
City Observatory		no data

Notes: n=72; Data for OECD countries is based on 10 OECD countries that were members in 2019 (Australia, Austria, Canada, Estonia, The Netherlands, Poland, Spain, United Kingdom, United States) plus the European Union; Exchange rates used for calculation in May 2020: USD to EUR at 0.9, CAD to EUR at 0.68, AUD to EUR at 0.62, PLN to EUR at 0.23.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Types of organisations commissioned to implement representative deliberative processes

As discussed in Chapter 5 (Good practice principles for deliberative processes for public decision making), it is important that the organisation that is responsible for carrying out the random selection and designing, running, and facilitating the deliberative process is at arm's length from the commissioning authority to ensure public confidence. Citizens should be able to trust that participants have been chosen without any manipulation of those initiating the process. Those who have a stake in the outcome should not be able to influence or bias the presentation of expertise and evidence, or to guide the development of participant recommendations in one way or another. For these reasons, an independent organisation (which can be either external or an arm's length public body) is commissioned to execute the representative deliberative process. Public institutions therefore have a choice to make regarding the type of organisation that will be commissioned for implementation.

To date, based on the evidence collected, the most common choice is to commission a private sector partner specialising in citizen participation and deliberation, such as MASS LBP (Canada), Missions Publiques (France), or Nexus Institute (Germany). Thirty-seven per cent of the cases collected by the OECD were implemented by a private sector partner (Figure 3.14).

The second most popular partner for implementing deliberative processes is a non-governmental, non-profit organisation (29%), such as the newDemocracy Foundation in Australia, Healthy Democracy in the United States, or Involve in the United Kingdom.

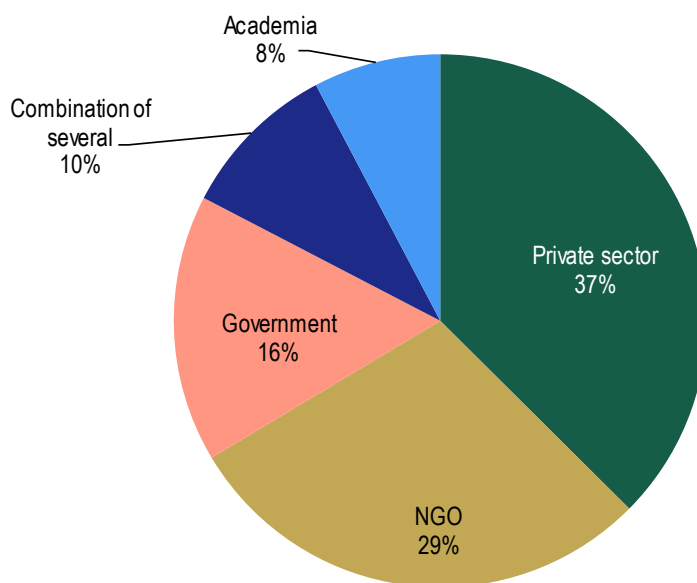
Sixteen per cent of deliberative processes were implemented by a governmental organisation. In these instances, usually it is an independent institution that specialises in citizen participation and is funded by the government. Examples include the Danish Board of Technology (until 2011) in Denmark, Participa Lab in Spain, and the Office for Future Affairs in Austria, state of Vorarlberg.

Eight per cent of deliberative processes were implemented by university institutes and centres specialising in deliberative democracy and citizen participation, such as the Institute for Participation and Democracy Research of the University of Wuppertal in Germany.

Around 10% of the cases were implemented by a partnership of several organisations – from public institutions in partnership with a non-governmental organisation, to joint efforts of a private sector organisation and a university institute.

Figure 3.14. The majority of representative deliberative processes have been implemented by a private sector company or a non-governmental non-profit organisation

Organising entity of representative deliberative process, 1986-2019



Notes: n=259; Data for OECD countries is based on 15 OECD countries that were members in 2019 (Australia, Austria, Canada, Denmark, Estonia, France, Germany, Ireland, Japan, Korea, The Netherlands, Poland, Spain, United Kingdom, United States) plus the European Union. Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

4

What is a ‘successful’ representative deliberative process for public decision making? Assessing the evidence

Claudia Chwalisz and Ieva Česnulaitytė

This chapter relies on the evidence gathered for this report and the wider academic literature to assess the elements that contribute to what could be considered a ‘successful’ representative deliberative process.

The framework for analysis has four principles of evaluation:

- 1) design integrity: the procedural criteria which ensure that a process is perceived as fair by the public and in line with principles of good practice;
- 2) sound deliberation: the elements that enable quality deliberation that results in public judgement;
- 3) influential recommendations and actions: the evidence of impact on public decision making, and
- 4) impact on the wider public: the secondary and long-term effects on efficacy and public attitudes.

Through this analysis, this chapter considers the key benefits and challenges of deliberative processes for public decision making.

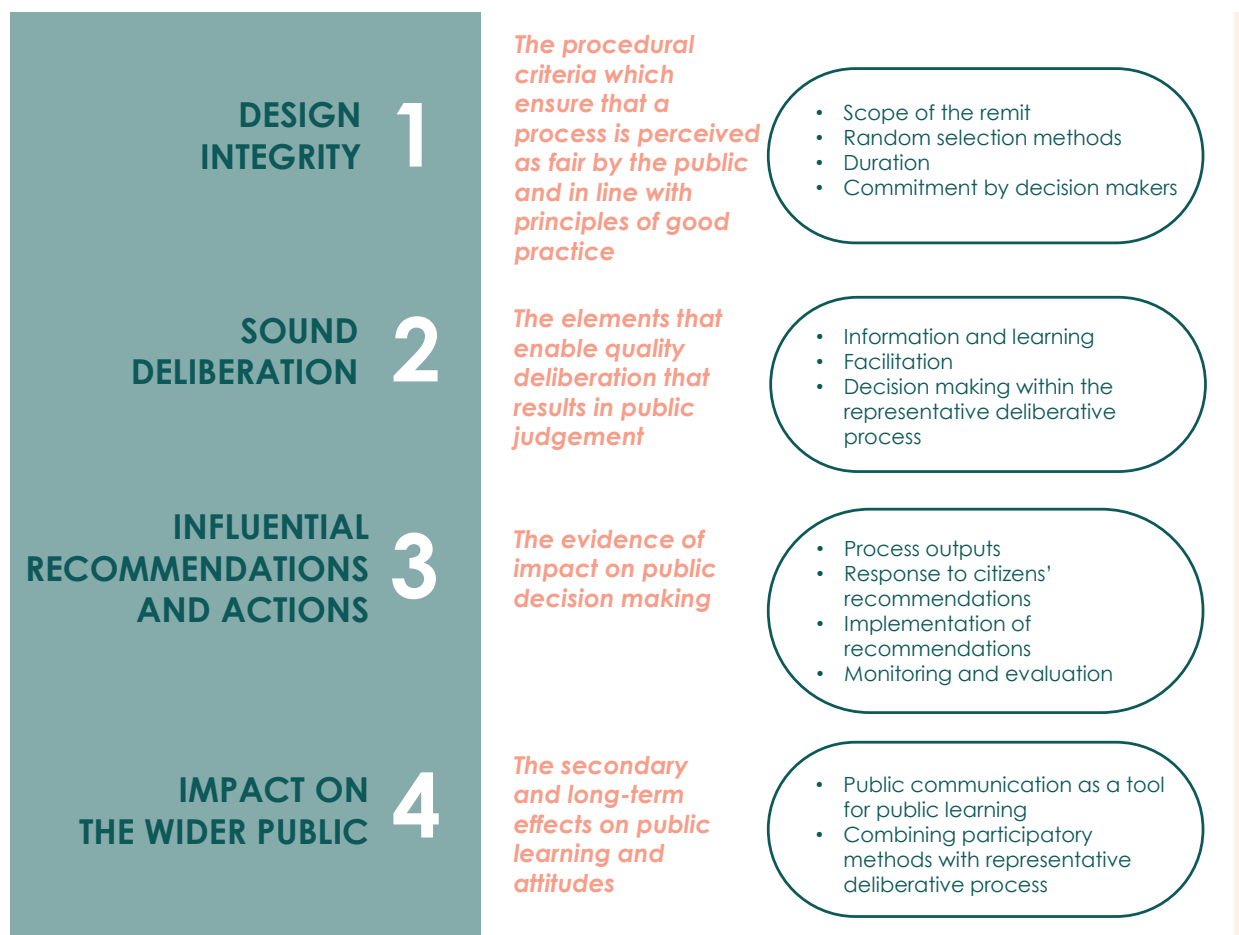
Introduction

How a representative deliberative process is designed and run, and the impact that it has on policy and the wider public are all questions that arise when determining whether it has been a success. For instance, if participants have been chosen through a fair and transparent recruitment process, then the wider public is more likely to see someone like them as part of it and trust the outcome (newDemocracy Foundation and UN Democracy Fund, 2019). If there is enough time devoted to learning and participants hear from a wide range of perspectives, then they are able to formulate more than just opinions; they develop informed policy recommendations. If the process has been well-communicated to the public before, during, and after, then it is arguable that public decision makers are more likely to be held accountable to respond to and implement a resulting public decision. If participants have heard from a wide range of experts and stakeholders and this information is transparently available to the wider public, then it is more likely that the public will be aware of and trust the recommendations of the deliberative process (Suiter, 2018). This chapter tests whether these assumptions are substantiated by the international data.

Drawing on the new empirical comparative research collected by the OECD for this report and wider theoretical research on deliberation, this chapter seeks to assess the different approaches and designs of deliberative processes. Nabatachi *et al.* (2012) have outlined evaluation principles for the practice and impact of deliberative civic engagement, covering four aspects. The OECD draws inspiration from this framework for analysis in this chapter, adapted to the specific focus on representative deliberative processes and the type of data collection that was feasible for this report (see Figure 4.1):

1. **Design integrity:** the procedural criteria which ensure that a process is perceived as fair by the public and in line with principles of good practice;
2. **Sound deliberation:** the elements that enable quality deliberation that results in participants' arriving at sound public judgement;
3. **Influential recommendations and actions:** the evidence of impact on public decision making, and
4. **Impact on the wider public:** the secondary and long-term effects on efficacy and public attitudes.

Figure 4.1. Framework of analysis for representative deliberative processes



Source: Adapted by OECD from Nabatachi, Tina, John Gastil, Matt Leighninger, and G. Michael Weiksner (2012), *Democracy in Motion: Evaluating the Practice and Impact of Deliberative Civic Engagement*, Oxford: Oxford University Press, DOI:10.1093/acprof:oso/9780199899265.003.0010.

Overview of key findings

Overall, the evidence shows that:

- Random selection attempts to overcome the shortcomings and distortions of “open” and “closed” calls for participation. It ensures that nearly every person has an equal chance of being invited to participate and that the final group is a microcosm of society. It can also insulate the process from an overwhelming influence of vested interests. While it is not a statistically perfect method, it delivers a more mixed and diverse sample than any other recruitment process.
- The most popular random participant selection method for representative deliberative processes to date has been two-stage selection (59%), commonly called a “civic lottery”. This method has mostly been used in Germany, Australia, Canada, and the United States (US), although there are also a handful of examples from other countries.
- When stratifying the final sample of citizens, all deliberative processes select participants according to demographic selection criteria that matches the general makeup of the wider population (such as that available in a census), and usually includes at least four criteria: gender; age; geography, and socioeconomic factors (a variable that captures disparity in income and education levels).

- While demographic stratification is enough to ensure diversity and representativeness, in some circumstances it may not be enough to ensure credibility, requiring discursive or attitudinal representation as well.
- Participants are compensated in one way or another (either through remuneration or costs being covered) 57% of the time.
- Time is one of the factors that distinguishes representative deliberative processes from most other types of stakeholder and citizen participation. Half (48%) of the cases with known duration of preparation required 12 weeks or more of preparation before the first participant meeting took place and almost all (98%) of these cases involved a minimum of five weeks of preparation.
- While the minimum timeframe required to be included in this report was one full day of face-to-face deliberation between participants, the average duration was 3.7 full meeting days, spread out over the course of 6.6 weeks.
- The average duration varies greatly depending on the model of deliberative process. The most common model of the Citizens' Jury/Panel lasts for 4.1 days over five weeks on average.
- Having strong political and/or institutional commitment is important for giving the process credibility and motivating people to invest their time by participating. Evidence suggests that the commitment of public decision makers is one of the key factors for why response rates are high and dropout rates are low amongst participants in representative deliberative processes for public decision making.
- The learning stage tends to include: inviting issue experts to present and answer questions to the meetings (79%); providing introductory reading material before the first meeting (48%); learning sessions, such as field trips (43%); the right for participants to request information and invite speakers, stakeholders, and experts (35%); and providing participants with clear and extensive reading material in between meetings (31%),
- There are two key aspects of information sources: 1) diversity of information and 2) importance of giving citizens control. The independent team responsible for designing and organising the deliberative process chooses the experts and informational material. Having a wide breadth ensures that participants encounter and consider different points of view. The type of information provided also matters in terms of public perceptions of fairness (i.e. this cannot be government brochures highlighting their successes or arguing for certain solutions). Allowing citizens to ask for information is therefore a crucial aspect of winning public trust in the process.
- A key difference between representative deliberative processes and other forms of citizen participation is that the outcome is not many individual views, but a collective and considered view. Citizens are tasked with finding common ground on the recommendations they provide to public decision makers.
- At the end of a deliberative process, the citizens' recommendations are delivered to the commissioning public authorities. Participants sometimes accept or amend the proposals of experts from whom they hear, particularly when it comes to more technical proposals. The good practice principle is that the participants should have control of the recommendations.
- Once the final recommendations are delivered to the public authority, it is their responsibility to act. In a representative democracy, there is no expectation that the authority is obliged to accept all recommendations. There is a responsibility to respond and to explain a rationale for accepting or rejecting any proposals.
- In two-thirds (66%) of examples, the public authority discussed the final recommendations face-to-face with participants. In four in ten (42%) cases, the public authority communicated a public response through government channels (such as a website, social media) and traditional media (newspapers, radio), but it did not take place in person with the participants. In one quarter (24%)

of the cases, the commissioning authority followed up directly with the participants to let them know about the response to their recommendations, in addition to the public response.

- The OECD tried to collect as much data as possible about the implementation of commitments made based on citizens' recommendations. There was data available for 55 cases. In three quarters (76%) of these cases, the public authorities implemented over half of the recommendations. In four in ten (36%) of these cases, it implemented all of them. Only in six (11%) of these 55 cases were none of the recommendations implemented.
- The limited impact data suggest that when presented with informed and considered proposals, public authorities are likely to act on them, as they include sensible recommendations that can lead to more effective public policies. More data is needed for this to be a robust conclusion, but it sheds some preliminary light on an issue that is much discussed and of great importance.
- The most common method of evaluation of representative deliberative process (67%) has been an anonymous survey of participants. Seventeen per cent have had an academic analysis, and only seven per cent have had an independent evaluation, usually by a private consulting company or a non-governmental organisation with expertise in citizen participation.
- With effective public communication, a deliberative process can be a mechanism for the broader public to learn about an issue as well as encourage it to participate more in public life in general.
- Empirical research has also shown that strong public communication about representative deliberative processes can be a tool to help counteract disinformation and polarisation related to the issue being addressed in the process.
- Representative deliberative processes are not typically used in isolation, and are rather a central part of a wider strategy of citizen participation around a specific policy issue. The most common types of stakeholder participation that are used in conjunction with deliberative processes are online calls for proposals/ submissions (used in 33 cases), surveys (29 cases), public consultations (19 cases) and roundtable discussions (16 cases).

Design integrity

Design integrity refers to the rigour and fairness of how the representative deliberative process is organised to ensure that it stands up to public scrutiny, is trusted by the public, and is in line with good practice principles (see Chapter 5). The elements discussed in this report are: scope of the remit; random selection methods; duration; and commitment by decision makers.

Scope of the remit

The very first stage involves identifying the problem and deciding whether a representative deliberative process is the right type of process to help address the issue (see Chapters 1 and 2 for guidance on identifying whether this is the case). If that is the case, setting out the scope and defining clearly the task at hand are important for ensuring that the process is worthwhile in the eyes of both the organisers and participants. Deliberative processes are a tool for public problem-solving and “good problem-solving requires having a clearly defined problem” (MASS LBP Reference Panel Playbook).

Considering the right question for a deliberative process should only take place after the public problem or dilemma has been clearly identified. The Kettering Foundation (2015) provides a useful list of considerations for the appropriateness of an issue before beginning a process of public deliberation (Box 4.1).

Box 4.1. Considerations for the appropriateness of an issue for public deliberation

An issue is appropriate IF:

- Broad concern exists within a community;
- Choices must be made, but there are no clear “right” answers;
- A range of people and groups must act in order for the community to effectively move forward;
- Additional perspectives and ideas may help the community to move forward;
- Citizens have not had the opportunity to consider the different courses of action and their long-term consequences; and
- The decision-making of officeholders and other leaders needs to be informed by public judgment, as well as experts’ views.

An issue is NOT appropriate for public deliberation if it:

- Is solely technical and requires a technical solution;
- Needs only a “yes” or “no” answer;
- Has a specific solution that has already been decided, and the public’s role would only be seen as a “rubber stamp”;
- Requires an immediate response;
- Is relevant only to a narrow interest group; or
- Is one for which your group has a particular approach to advocate.

Source: Pratt, Julie (2005), *A Guidebook for Issue Framing*, Kettering Foundation.

Once the appropriate issue is identified, it is then necessary to frame the question for the deliberative process in order to define its remit. There is a fine line between a remit that is too broad and one that is too narrow. It should be sufficiently broad as to allow for numerous recommendations to be possible, but should be narrow enough to avoid the group side-tracking into irrelevant discussions (Carson, 2018; MASS LBP Reference Panel Playbook; Gerwin, 2018). Moreover, it is important that the question encapsulates the trade-offs or constraints involved. In order to avoid confusion and ambiguity, using simple and clear language is advisable.

Setting the remit is a crucial step as it is one of the key distinctions of a deliberative process. It is not merely a consultation exercise, where people are being asked feedback or input. In a deliberative process, they have a mandate to address genuine challenges and provide practical recommendations. The newDemocracy Foundation has provided some ‘Do’s and Don’t’s’ when it comes to defining the remit, listed in Box 4.2

Box 4.2. Do's and don't's for defining the remit

Do's

- Start with a question, not merely a subject description.
- Ensure that it is a neat fit for what the decision maker will ultimately decide.
- Aim for brevity and clarity.
- Make it not neither too broad nor too narrow.
- Do not lead the participants toward a pre-determined answer or even give the unintended perception impression that you are.
- Sometimes it will be useful to precede or follow a question with an explanatory statement.
- Embed the trade-offs in either the question or supporting statement.
- Test your remit with someone outside the organising group – check that it makes perfect sense to an everyday citizen.
- Share the problem/dilemma; don't sell a solution.

Don't's

- Don't frame a question that can be answered with either 'yes' or 'no'.
- Avoid compound questions (two questions in one). Keep each question separate.
- Avoid words like 'should' or have a good reason for using them.

Source: Carson, Lyn (2018), "Framing the Remit", newDemocracy Research and Development Note, available at: https://newdemocracy.com.au/wp-content/uploads/2018/07/docs_researchnotes_2018_July_RampD_Note_-_Framing_the_Remmit.pdf

Finally, there is a decision that needs to be made about whether the recommendations that are produced by the participants in the deliberative process should be advisory or binding. In the vast majority of cases in this report, the remit is advisory. This seems to be in line with citizens' preferences for the use of deliberative processes to be advisory (see Chwalisz, 2015 and Goldberg, 2020), as well as the normative theory of deliberative democracy that suggests such processes should be advisory to decision makers and a conversation-starter with the broader public.

Even with advisory processes, there are nonetheless varying levels of commitment possible. It can be a legal obligation for public authorities to respond (publicly or not), which does not necessarily mean there is a commitment to accept all recommendations. Or it can be a prior political commitment from public authorities to respond to or take into account the recommendations.

In a democratic system, there is a question about the legitimacy of participants that have been randomly selected to produce recommendations that carry an obligation to be enacted. Ultimately it is the role of decision makers to accept accountability for their decisions. However, it is a key consideration at the stage of setting the remit to determine what will be done with the recommendations. Participants devote a significant amount of time and effort to learn, deliberate, form consensus, and write a report. As such, they will want to know that their time is valued and receive assurance that their recommendations will be taken seriously. A commitment to heed and respond to the recommendations is therefore important. MASS LBP have outlined a set of questions to consider about planning the response, detailed in Box 4.3.

Box 4.3. Planning the response to recommendations

Questions to consider

- How will the recommendations fit within the existing policy development process?
- Who will respond to the recommendations? What form will this take?
- Will officials publicly receive the participants' report?
- How will officials communicate their decisions and progress on their implementation to the participants?
- How will the hard work of the participants be recognised and celebrated?

Source: Adapted from MASS LBP, "The Reference Panel Playbook", available at: <https://www.masslbp.com/the-reference-panel-playbook>.

Random selection methods

Why random selection? Comparing random selection to other participant recruitment methods

In many traditional consultation processes, there is often an **"open call"** to recruit participants, either to an in-person meeting or to participate in an online consultation or forum. Participation is usually encouraged through advertising the opportunity via a variety of channels (online, social media, post, posters). Participation is open, so anyone who wants to is able to come in person or contribute online. In other instances, participants may be chosen by an institution through an application or selection process, such as before a committee hearing. There is a wealth of research that demonstrates that certain demographics tend to disproportionately participate, notably those who are older, male, well-educated, affluent, white, and urban (Dalton, 2008; Olsen, Ruth and Galloway, 2018; Smith, Schlozman, Verbe and Brady, 2009).

Public authorities may also conduct consultations through a **"closed call"** for participants, meaning that politicians and/or civil servants might choose specific members of a community who have a particular expertise or experience needed to address a policy issue. In these instances, participation could be based on merit, experience, affiliation with an interest group, or because of their role in the community (see MASS LBP, 2017).

Both the open and closed calls result in non-representative samples of the community, meaning a group that does not mirror the wider population in terms of gender, age, socio-economic status, and other criteria. These processes also tend to be dominated by stakeholders and advocacy groups who are most affected by a decision and potentially have the most to lose (newDemocracy Foundation and UN Democracy Fund, 2019: 49). Depending on their purpose, these processes may thus result in outcomes that are not perceived as fair or legitimate since everyone does not have an equal opportunity to be selected.

As provision 8 of the OECD Recommendation on Open Government (2017) emphasises that public authorities should "grant all stakeholders equal and fair opportunities to be informed and consulted and actively engage[d]", representativeness and inclusiveness were central to the processes studied for this research. For these reasons, all of the deliberative processes in this report recruit participants through different random selection (sortition) methods, often called a civic lottery (MASS LBP, 2017; newDemocracy Foundation and UN Democracy Fund, 2019).

Random selection attempts to overcome the shortcomings and distortions of "open" and "closed" calls for participation described earlier. It ensures that nearly every person has an equal chance of being invited to participate in a deliberative process and that the final group is a microcosm of society. It

can also insulate the process from an overwhelming influence of partisan, wealthy, or special interests (MASS LBP, 2017).

While it is not a statistically perfect method – which is why the result is a sample that one can say is broadly representative of the wider population – it delivers a more mixed and diverse sample than any other recruitment process. This is particularly true in the context of its use for deliberative processes for public decision making. Receiving an invitation to participate from someone with authority (like a minister or mayor) encourages people who have never voted, never attended a town hall meeting, or never participated in an online consultation to consider the opportunity seriously. This brings new voices into the room that are often under-represented in “open” and “closed call” processes.

Representative processes are thus able to garner greater legitimacy and ensure a diversity of participants that are not achievable to the same extent through other recruitment mechanisms. Research suggests that non-participants’ legitimacy perceptions increase when deliberative forums are maximally representative and inclusive (Goldberg, 2020).

Diverse groups also result in better outcomes. Having greater cognitive diversity leads to better decisions than those made by more homogeneous groups (for e.g. groups of experts), since the latter tend to have access to similar types of information and are more likely to reinforce one another’s views than to introduce completely new ideas (Landemore, 2012; Page, 2007).

Participants randomly selected to be broadly representative are also more likely to win citizens’ trust, as people trust random draws in lotteries in other situations, such as the jury system in many countries, but also in sporting events and competitions, as it is very difficult to cheat (newDemocracy Foundation and UN Democracy Fund, 2019). Moreover, people are more likely to trust a process where they see ordinary people reflecting all parts of society engaging in the complex trade-offs required for public decision making.

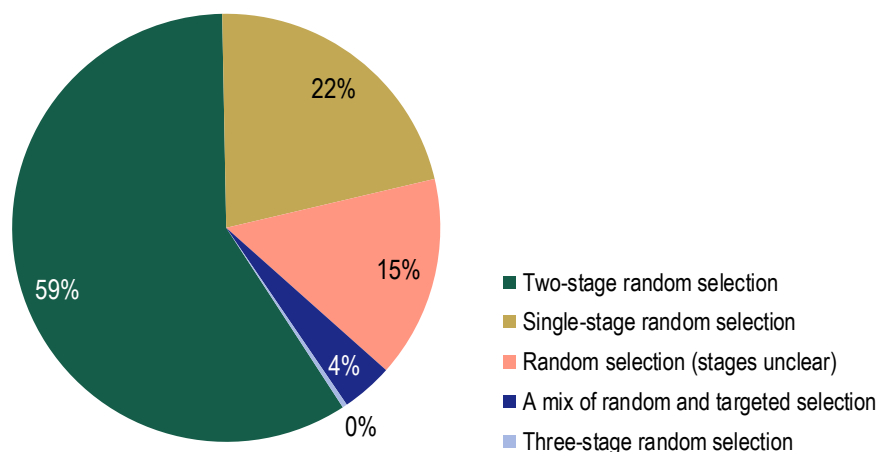
Finally, it is important to emphasise that stakeholders and experts play a key role in deliberative processes. They are offered an opportunity to make their case and have a fair hearing by a randomly selected group of participants who are broadly representative of the wider population. As a result, such processes can empower elected representatives and civil servants to put forward solutions to complex public problems that have received citizen input, informed by stakeholders and experts. It complements their role in representative democratic institutions to improve the democratic process more broadly.

Different random selection methods

The principle of random selection can be operationalised in various ways (Figure 4.2), each with advantages and disadvantages to be acknowledged. The participants for the cases in this report have been recruited in one of four ways: two-stage random selection (59%); single-stage random selection (22%); a mix of random and targeted selection of hard-to-reach groups (4%), and three-stage random selection (less than 1%). In fifteen per cent of cases, notably those that are the most dated, the details of the random selection process were not available, but a general description of random selection in the reports about these cases confirmed that one of the methods described in this chapter was employed.

Figure 4.2. Two-stage random selection is the most common random participant selection method for representative deliberative processes

Random participant selection methods used for representative deliberative processes for public decision making, 1986-2019



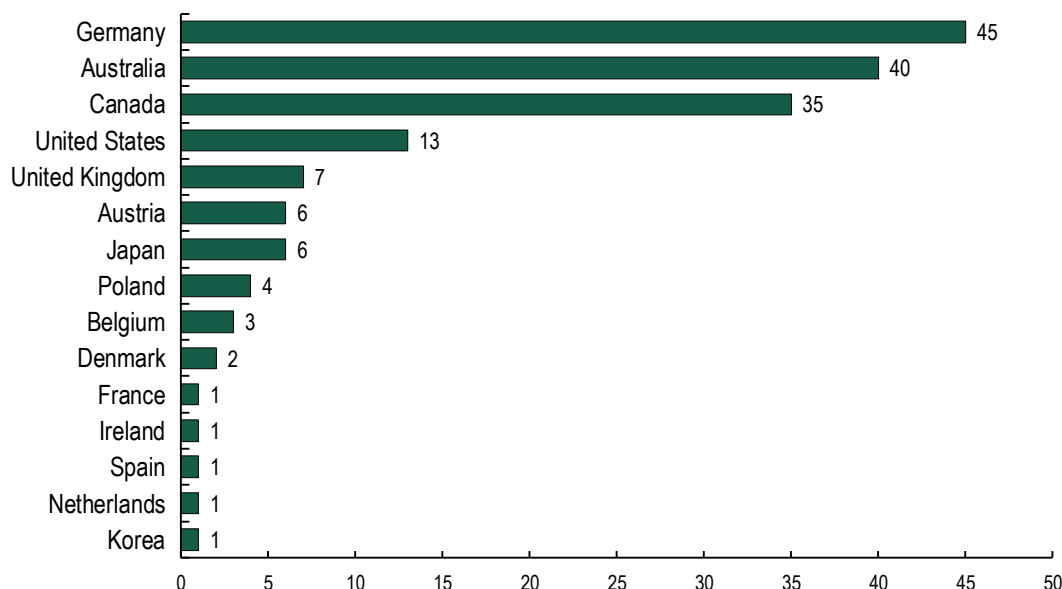
Notes: n=282; Data for OECD countries is based on 18 OECD countries that were members in 2019 plus the European Union/Global.
Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Two-stage random selection (e.g. civic lottery)

The most popular random participant selection method for deliberative processes to date has been two-stage selection. It means there is randomisation at multiple stages of the participant recruitment and selection process. This method has predominantly been used in Germany, Australia, Canada, and the US, although there are also a handful of examples from other countries (Figure 4.3).

Figure 4.3. Two-stage random selection is most commonly used as a recruitment method for representative deliberative processes in Germany, Australia, and Canada

Number of times that a two stage random selection method has been used to recruit participants for deliberative processes for public decision making across countries, 1986-2019



Notes: n=166; Data for OECD countries is based on 15 OECD countries that were members in 2019 (Australia, Austria, Belgium, Canada, Denmark, France, Germany, Ireland, Japan, Korea, Netherlands, Poland, Spain, United Kingdom, and United States) plus the European Union/Global, from 1986-2019.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

In Germany, the Nexus Institute has been running Planning Cells that also use a two-stage methodology, although it differs in many ways to the approach in the other three countries. In Australia, the non-profit research and development organisation, newDemocracy Foundation, was set up in 2007 and has been running Citizens' Juries that employ a civic lottery method very similar to the one developed in Canada by the democracy organisation MASS LBP during the same period (the two organisations did not know about one another for numerous years). The participants for a Citizens' Initiative Review in the United States are also selected through a civic lottery.

In a two-stage random selection process, the first stage involves sending a large number of invitations to randomly selected individuals or households. This entails first deciding on four criteria:

1. the population that will be represented through the civic lottery;
2. the number of individuals to be selected;
3. the stratification criteria – meaning the demographic criteria that will be used to ensure the selected group broadly represents the wider community (e.g. gender, age, geography), as well as attitudinal criteria if appropriate for the context, and
4. the method for inviting that set number of randomly chosen individuals from within that population to participate (MASS LBP, 2017: 9).

Depending on the size of the wider population (i.e. if it is a small town, a big city, a region, or a state), the size of the initial round of random invitations varies. For small populations, usually there are at least 2,000 people initially contacted; for national-level processes, a first round of random invitations can go out to around 30,000 depending on the population size. One of the differentiators between the civic lottery method

(used mostly in Australia, Canada, and the US, among other places) and the approach in Germany is that in the former the initial selection pool is much larger (usually at least 10,000).

According to interviews with practitioners in different countries, the number of people to contact to have the desired number of participants depends on the anticipated response rate. This will vary depending on the level of government (due to the size of the population affected), issue salience, level of commitment required from participants, and other contextual factors. Response rates vary due to these factors, plus other aspects such as mode of invitation (i.e. by post, telephone, online), invitation wording, who sends the invitation (i.e. whether it is from someone with authority, like a mayor or a minister), and other design elements. The larger the overall population and the lower the anticipated response rate, the larger the initial invitation pool should be.

Sometimes email invitations are used, but in those cases, they are usually complemented by post or phone invitations to help ensure that older age groups are reached. The trade-offs of different methods for distributing invitations are discussed in the following section.

The convenors will need to have a universal contact list, which can vary from the electoral register (in places where registration is compulsory or automatic) to the national post database, registry of landline and mobile numbers, or other similar resource. In many places, a universal contact list is not available, or not always available to the organisers of deliberative processes due to data privacy rules. Many data sources thus miss part of the population, so it is important to acknowledge this shortcoming or to combine sources. The principle should be to ensure that the largest number of people can be eligible to receive an invitation in the first place.

The invitation typically contains an introduction to the process, an information sheet, and a response form and envelope if by post (or a phone number or a link to an online registration form). Based on their experience of having conducted over 30 civic lotteries, MASS LBP (2017) has identified seven important pieces of information that the invitation should contain:

1. An introduction to the convening public institution;
2. An introduction to the problems or issues;
3. An introduction to the selection and engagement process;
4. An outline of the rules and exclusions of the selection process;
5. An introduction to the specific issue to be addressed;
6. The request to volunteer, which includes: volunteer dates; deadlines; methods of registration; and other information pertaining to the process; and
7. An outline of the responsibilities of volunteers if selected by the lottery (MASS LBP, 2017: 20-21).

In the case of the 2004 British Columbia Citizens' Assembly on Electoral Reform, as it was the first time that a process of such scale was undertaken, those who were interested in participating after receiving an initial invitation in the post were invited to a meeting where they learned more about the initiative before confirming their interest. This is not a common practice, however.

The second stage of the civic lottery relates to the stratification by demographic criteria of all the individuals who volunteer to participate in the deliberative process. Stratification criteria are essential for bringing together a group of citizens that broadly mirrors the composition of society. From the individuals who volunteer, a second random draw is made, this time using the stratification criteria, to compose the final sample. In most cases, there are four standard variables of stratification:

1. age;
2. gender;
3. geographic locality, and

4. a demographic indicator that ensures a mix of income and education levels (this will vary depending on the context) (newDemocracy Foundation and UN Democracy Fund, 2019; Gerwin, 2018).

For more technical details about how to run a two-stage random selection process, please see the newDemocracy Foundation and UN Democracy Fund handbook on democracy beyond elections (2019), MASS LBP's guide on how to run a civic lottery (2017), and Marcin Gerwin's guide to organising Citizens' Assemblies (2018).

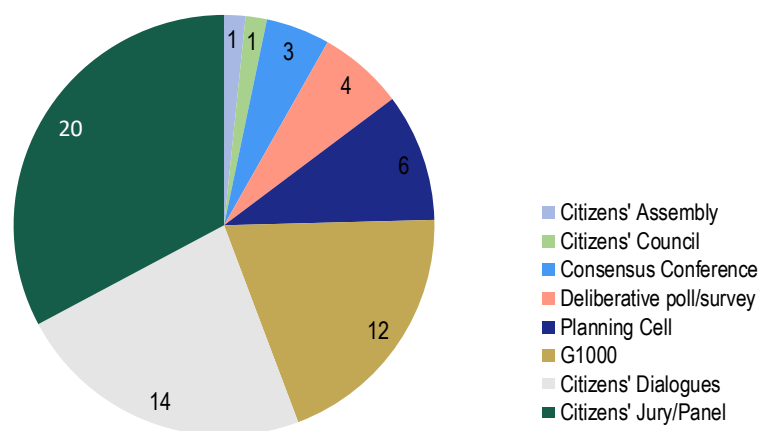
Single-stage random selection

While two-stage random selection – and notably the rigorous method of a civic lottery – has been employed most often, one in five cases (22 %) have relied on single-stage random selection. Geographically, there is a wide spread of where this approach has been used. It has been used more for certain models than others, however. Many of the Citizens' Juries/Panels convened in France, Spain, and the United Kingdom (UK), Citizens' Dialogues in France, Consensus Conferences outside of Denmark, Deliberative Polls, G1000s, and the Citizens' Assemblies in Ireland have relied on single-stage random selection to recruit and select participants (Figure 4.4).

What this most often entails in practice is that a polling company is commissioned to recruit a stratified random sample (based on the same process described in the previous section of identifying the key demographic criteria that the final sample needs to match).

Figure 4.4. Single-stage random selection recruitment is most common for some Citizens' Juries/Panels, Citizens' Dialogues, and G1000s

Number of times that single-stage random selection methods have been used to recruit participants for representative deliberative processes for public decision-making, 1986-2019



Notes: n=61; Data for OECD countries is based on 13 OECD countries that were members in 2019 (Australia, Austria, Canada, Denmark, Estonia, France, Ireland, Japan, Korea, Netherlands, Spain, United Kingdom, and United States) plus the European Union/Global, from 1993-2019.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Mix of random selection and targeted selection of hard-to-reach groups

In very few cases, especially the international examples like World Wide Views (described in Chapter 2), a mix of random and targeted selection to reach vulnerable groups is used. Typically, the vast majority of participants are randomly selected and a smaller proportion are targeted. Targeting a specific group can

be useful when the issue relates strongly to a specific segment of the society, although should be considered with caution. This is not a common practice as the types of issues that deliberative processes are well-suited to address (values-based dilemmas, complex policy problems that require trade-offs, and long-term issues) are ones that affect the entire population. Targeting certain demographics occurs during the random sampling phase to increase their response rate rather than over-representing certain demographics within the group itself, which can distort the dynamic.

Three-stage random selection

There was one example where a three-stage random selection process was used to recruit and select the participants: the 2017 Yarra Valley Water Citizens' Jury in Australia. In this Jury, citizens were tasked with providing recommendations to the public water authority regarding its five-year costed plan.

The three-stage random selection process entailed first sending out an electronic invitation to participate to a random sample of 240,000 of Yarra Valley Water's customers whose email addresses were available. This database was sufficiently large (one third of their customers) to avoid any skew.

To avoid a digital skew, the second stage involved randomly drawing 10% of Yarra Valley Water's overall database (not just digital subscribers) to send an invitation by post to 5,000 randomly selected addresses. These were able to reach those without or limited digital access.

Finally, the third stage involved randomly selected a group of 35 participants for the Citizens' Jury from the pool of expressions of interest, stratifying for gender, age, geography, and tenancy (owner or renter). More details about the deliberative process and the random selection process are available on the newDemocracy Foundation's project webpage about the Yarra Valley Water Citizens' Jury (2017).

Implications of database used for the random sampling

Various databases can be used to carry out the random selection process depending on the country and the available access. Some examples include: the voters registry; the census (national population registry); the national survey database; the civil registration number register; the national post address register, and the Vote Compass (a voting advice application). Other tactics include random digit dialling, ensuring a mix of landline and mobile phone numbers.

Depending on the database used, there are risks of excluding residents who are not citizens, people without a permanent address, or people who are not registered to vote. Sometimes due to legislation or rules limiting access to certain types of databases to service providers, it is not possible to access a complete registry. It is important to consider the limitations of the database to be used and make active efforts to make the process as inclusive as possible.

Descriptive vs. discursive representation (i.e. stratifying by demographics alone vs. stratifying by demographics and opinion)

When stratifying the final sample of citizens for a deliberative process, all deliberative processes select participants according to demographic selection criteria that matches the general makeup of the wider population (such as that available in a census), and usually includes at least four criteria: gender; age; geography; and socioeconomic factors (a variable that captures disparity in income and education levels). This is done to ensure descriptive representation, meaning that the final group broadly mirrors the composition of society. The rationale is that, if conducted properly and rigorously, the random selection process will result in a group that reflects a wide diversity in perspectives on an issue, deriving from different life experiences and interests (Davies, Blackstock, and Rauschmayer, 2005).

There is an argument, however, that social characteristics are not necessarily strongly correlated to attitude, so a well-stratified demographic sample will not necessarily provide adequate diversity of

viewpoints (Davies, Blackstock, and Rauschmayer, 2005). Some scholars have also advocated stratifying participants according to their discourse regarding the policy issue to be discussed – called discursive representation. A discourse can be understood as “a set of categories and concepts embodying specific assumptions, judgements, contentions, dispositions, and capabilities” (Dryzek and Niemeyer, 2008: 481). It is more than merely an opinion or perspective; arguably discourses have more solidity and can be measured and described (Dryzek and Niemeyer, 2008). It is a way to mitigate the problem of how to factor in political differences. Some argue that the aim in these cases is to ensure that the spectrum of understandings, interests, and values expressed in different discourses among participants in the deliberative process broadly reflects that of the wider population (Davies, Blackstock, and Rauschmayer, 2005; Parkinson, 2003). Others suggest that discursive representation can be helpful in situations where it is difficult to define the population (Dryzek and Niemeyer, 2008).

Recently, a debate has been ongoing amongst practitioners and academics about the need for discursive representation in deliberative processes on controversial topics, such as environmental issues. In reality, when criteria beyond demographics are included in recruitment approaches, it tends to more often be opinion or attitudinal data rather than a more holistic account of a discourse. For example, the recruitment of panellists for Toronto’s Climate Action Panel (2019) included one attitudinal question in addition to demographics: “Everyone needs to reduce their emissions that contribute to climate change, including myself”, with a four-point response scale: strongly agree / somewhat agree / somewhat disagree / strongly disagree (MASS LBP, 2019). In the case of the 2020 Climate Assembly UK, participants were also stratified based on their response to the following question: “How concerned, if at all, are you about climate change, sometimes referred to as ‘global warming’?” (Climate Assembly UK, 2020). On the other hand, in the case of the French Citizens’ Convention on Climate (2019-20), recruitment was based only on demographic representation (Gouvernement français, 2019). When some attitudinal criteria is included, there is also a question that lacks a clear answer regarding whether different discourses should be represented equally or in proportion to their presence within the population.

There is also a compelling argument, however, against discursive representation. One of the goals of public decision makers when convening deliberative processes is to reach recommendations that achieve public trust. When extra steps are taken to ‘correct the balance’, then public decision makers may be opening themselves to perceptions of manipulation to achieve a pre-ordained result. From a pragmatic perspective, when faced with a design choice, there is a case for erring on the side of the light touch. While motives may be well-intentioned, political realities and optics matter for the wider public to have confidence in the process, and thus its outcome. Overall, there is no one-size-fits-all approach and the decision to include information about opinion, attitudes, or discourses will vary depending on the purpose of the deliberative process and the context in which it is being convened. While demographic stratification is enough to ensure diversity and representativeness, in some circumstances it may not be enough to ensure credibility, requiring discursive or attitudinal representation as well.

Overcoming barriers to participation

Ensuring that all citizens have equal opportunities to participate is key to achieving inclusiveness and representativeness. The difficulty of this varies depending on the time commitment required and the salience and interest of the policy issue. People have other commitments, different levels of financial stability, and low trust of government institutions (as discussed in Chapter 1). Nevertheless, there are several ways to lower barriers to participation and achieve higher response rates.

Remuneration

Remunerating participants is one way to make it happen. Compensating participants for their time spent in a deliberative process, especially when it comes to longer, more time consuming processes such as Citizens’ Assemblies and Citizens’ Juries/Panels, makes it possible for citizens to afford to take some time

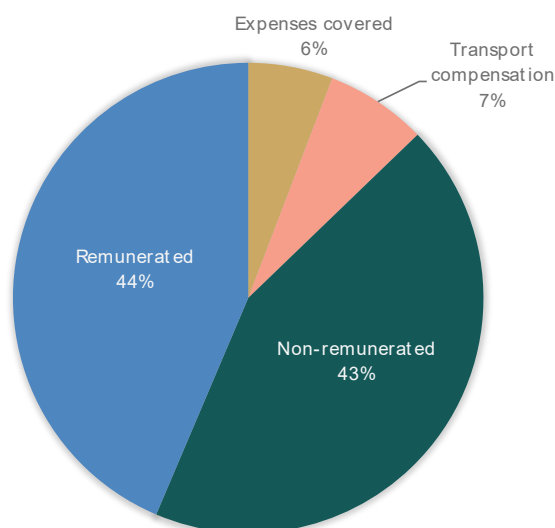
off from their work or other duties and to cover costs of childcare or elderly care. Often participants are remunerated based on the rate of the national wage average or at the rate that people are reimbursed for jury duty. However, the potential impact of receiving remuneration for participation on some participants' social security benefits should be a consideration.

In the 172 cases for which there is data, participants are compensated in one way or another 57% of the time (Figure 4.5). In 44% of deliberative processes there is remuneration in the form of payment. In a small number of cases, transport costs are compensated (7%) or expenses are covered (6%). There is no remuneration in 43% of deliberative processes. The majority of these latter instances are at the local level, where arguably costs to participate are lower.

The rationale for non-remuneration is that participation in a deliberative process activates a civic responsibility to volunteer in a democracy. In many cases, it is equally driven by budgetary constraints. As the data collected in this study does not contain details regarding the response rates of different demographics, it is not possible to draw concrete conclusions regarding the impact of remuneration on the decision to participate. Other studies suggest that payment does encourage demographics that generally do not participate otherwise, notably young people and those with lower incomes (newDemocracy Foundation and UN Democracy Fund, 2019: 150).

Figure 4.5. Participants in representative deliberative processes receive some form of remuneration or expenses coverage in slightly more than half of cases

Remuneration of participants of representative deliberative processes for public decision making, 1986-2019



Notes: n=172; Data for OECD countries is based on 15 OECD countries that were members in 2019 (Australia, Austria, Belgium, Canada, Denmark, Estonia, France, Germany, Ireland, Korea, Netherlands, Poland, Spain, United Kingdom, and United States) plus the European Union/Global, from 1986-2019.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Covering accommodation and transportation costs

There are other ways to reimburse participants beyond direct payments. Offering accommodation and covering transportation costs for participants coming from areas that are far away from the location where deliberation takes place, such as, for example, when participants come from all regions of a country to participate in a national level process, is a prerequisite. It may also entail making available structural support systems, such as providing or paying for childcare, or reimbursing the costs incurred for elderly

care. For example, participants in the 2019-2020 French Citizens' Convention on Climate are reimbursed, at their request, by the commissioning public authority for the following costs incurred:

- a daily allowance;
- persons who prove that they have lost part of the income from their professional activity are also entitled to additional compensation;
- coverage for citizens retained outside their municipality of residence for travel and accommodation costs, up to a ceiling of € 110 per night;
- reimbursement of meal costs;
- reimbursement of childcare expenses up to a ceiling of 18 € per hour (including the amount of employer contributions) (see Service-Public.fr, 2019).

Clear communication about the process, its importance, commitments required of participants, and expected outcomes

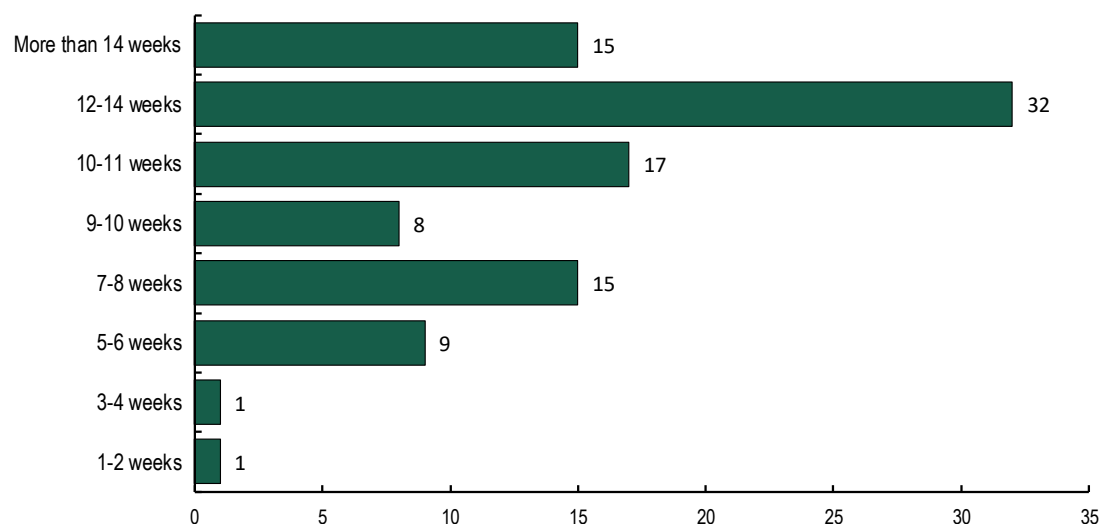
Clear and targeted communication about the deliberative process is essential for supporting the recruitment process and beyond. Having the full picture of the purpose, how the process will unfold, the level of commitment required, and how public decision -makers will respond is key. Effective communication during the selection stage (as well as throughout the deliberative process) can help to ensure a higher response rate, active participation, and lower dropout rates. More information about communicating representative deliberative processes can be found later in this chapter.

Duration

Time is one of the factors that distinguishes representative deliberative processes from most other types of stakeholder and citizen participation. Deliberative processes tend to require much longer amounts of time to conduct a proper recruitment and to prepare the educational materials and agendas. Half (48%) of the cases for which there is data required 12 weeks or more of preparation before the first participant meeting took place (Figure 4.6). Almost all (98%) of these cases involved a minimum of five weeks of preparation.

Figure 4.6. Preparing a representative deliberative process requires a significant amount of time, often lasting at least 10 weeks

The amount of time that it took the independent co-ordinating team to prepare the educational materials, plan the agendas, and prepare before the first meeting for representative deliberative processes for public decision making, 1986-2019



Notes: n=98; Data for OECD countries is based on 12 OECD countries that were members in 2019 (Australia, Austria, Belgium, Canada, Denmark, Estonia, Germany, Korea, Netherlands, Spain, United Kingdom, and United States) plus the European Union/Global, from 1992-2019. Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

The preparation time is in addition to the time required to conduct the participant recruitment, although it is possible for both to be done simultaneously. For two-stage random selection, the time required ranged from three to eight weeks. For single-stage random selection, it ranged from four to over eight weeks. Random selection combined with a small proportion of targeted selection takes on average six to eight weeks (Table 4.1).

Table 4.1. Duration of participant recruitment process for different types of recruitment methods

	Two-stage random selection	Single-stage random selection	Random selection plus targeted recruitment	Three-stage random selection
Number of cases	63	27	4	1
Range	3-8 weeks	4-8 weeks	6-8 weeks	6 weeks

Notes: n=110; Data for OECD countries is based on 16 OECD countries that were members in 2019 (Australia, Austria, Canada, Belgium, Denmark, Estonia, France, Germany, Italy, Korea, The Netherlands, Norway, Poland, Spain, United Kingdom, and United States) plus the European Union/Global.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Beyond the time required to recruit and prepare the informational materials and agendas, deliberative processes also require a significant amount of face-to-face time among participants in order to build trust, learn and grapple with the complexity of the issue, deliberate with one another, and formulate shared recommendations.

While the minimum timeframe required to be included in this report was one full day of face-to-face deliberation, the average duration was 3.7 full meeting days, spread out over the course of 6.6 weeks. As discussed in detail in Chapter 2, the average duration varies greatly depending on the model of deliberative process (Table 4.2). The most common model of the Citizens' Jury/Panel lasts for 4.1 days over five weeks, on average.

Allowing enough time for the in-person deliberation is crucial to achieving the overarching goals of: detailed and considered recommendations; building trust between participants, and instilling public confidence in the process and its outputs. A common finding is that rushing the time process leads to a rushed decision, which undermines these goals (newDemocracy Foundation and UN Democracy Fund, 2019: 110).

Table 4.2. Citizens' Assemblies, Citizens' Initiative Reviews, and Citizens' Juries/Panels involve the most face-to-face participant meeting time

Model	Average duration of face-to-face meetings (in days)	Average duration between the first and last meeting (in weeks)
Informed citizen recommendations on policy questions		
Citizens' Assembly	18.8	47
Citizens' Jury/Panel	4.1	5
a) consecutive days	3.4	0
b) non-consecutive days	4.1	7
c) ongoing	11.0	104
Consensus Conference	4.0	2
Planning Cell	3.2	2
Citizen opinion on policy questions		
G1000	1.7	4
Citizens' Council	1.7	1
Citizens' Dialogues	2.1	4
Deliberative Poll/Survey	1.6	0
World Wide Views	1.0	0
Informed citizen evaluation of ballot measures		
Citizens' Initiative Review	4.4	0
Permanent deliberative bodies		
The Ostbelgien Model	no data	78
City Observatory	8.0	52

Note: These calculations have been made by the authors on the basis of the data from the 289 cases, which together feature 763 separate deliberative panels, collected for this study, from OECD Member and non-Member countries. The average length from first to last meeting of the Planning Cell is an exception due to lack of data. In this instance, Nexus Institute, the principal organisation implementing Planning Cells in Germany, was consulted. The overall average length of meetings of Citizens' Jury/Panel is calculated not including the ongoing processes.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Taking into account the time required to recruit participants, prepare the process, and run the meetings, most deliberative processes tend to take around six to seven months from beginning to end. Chapter 2 offers more guidance about choosing a deliberative model depending on the time, complexity of the issue, and other factors.

Commitment by decision makers

To show citizens that their input is welcome and valuable, and that it is a privilege to represent fellow citizens in a deliberative process, it is a good practice to highlight the importance of the duty in which they have been invited to participate. Having strong political and/or institutional commitment is important for giving the process credibility and motivating people to invest their time by participating.

One way to do this is through the invitation letter, which can be signed by a person with a high level of authority, such as the mayor or minister. Its contents should appeal to citizens' sense of solidarity, as well as making it clear that their time will be valued and how their recommendations will be taken into account. Evidence suggests that the commitment of public decision makers is one of the key factors for why response rates are high and dropout rates are low amongst participants in representative deliberative processes for public decision making (Chwalisz, 2017). It is one of the distinguishing factors to the academic experiments and deliberative practices initiated by CSOs, for which there tends to be greater difficulty in recruiting a representative sample and maintaining participation over the course of the process (Chwalisz, 2017).

Additionally, to highlight the value that the commissioning public institution sees in participants' work, a high-level public representative often opens the deliberative process and welcomes the participants, or attends one of the sessions. Depending on the level of government, it can be a head of a public enterprise or organisation, a mayor, a minister or even the president (for example, the Irish Taoiseach opened and welcomed members to the Irish Citizens' Assemblies and the French President Emmanuel Macron spoke at the fourth session of the 2019-20 Citizens' Convention on Climate).

Sound deliberation and judgements

Core to deliberative processes is, of course, deliberation. This entails participants having an equal chance to speak, listen carefully to others, and weigh different options and trade-offs in light of the broadest access to diverse information. In the cases analysed in this report, the focus is on group deliberation, which also entails people finding common ground between one another and coming to some consensus. In the context of public decision making, this means that the group develops collective recommendations (often with a supermajority agreement).

Nabatchi *et al.* (2012) break down the criteria of sound deliberation and judgements into three components: deliberative analytic process; democratic social process, and sound judgement. The first entails high-quality discussions between participants, which are based on a solid information base, a prioritisation of key values, identification of alternative solutions, and a careful consideration of pros and cons – the trade-offs (Nabatchi *et al.*, 2012). To capture this component, the OECD has collected data about the information and learning environment.

The second criteria refers to the fact that deliberation for public decision making is not only a rational process, it also has a social element that makes it democratic deliberation. This means that equal opportunity to contribute, mutual understanding and consideration, and respect are crucial for overcoming traditional social power inequalities (Nabatchi *et al.*, 2012). Here the OECD has identified the important role of kind and neutral facilitators for fostering this inclusive environment.

Finally, sound judgement is about the capacity of citizens to reach a comprehensive collective decision, through egalitarian methods, based on the information available to them, their exchange of personal experiences, and their diverse perspectives (Nabatchi *et al.*, 2012).

Information and learning

Learning is one of the key elements of a deliberative process. As discussed in Chapter 1, deliberation requires accurate and relevant information, which reflects a diversity of perspectives. For participants to be able to have quality discussions over a specific policy issue and reach informed decisions on recommendations, a learning stage is essential to any deliberative participation model. It is also why time is a crucial component to a successful process, as discussed in the previous section.

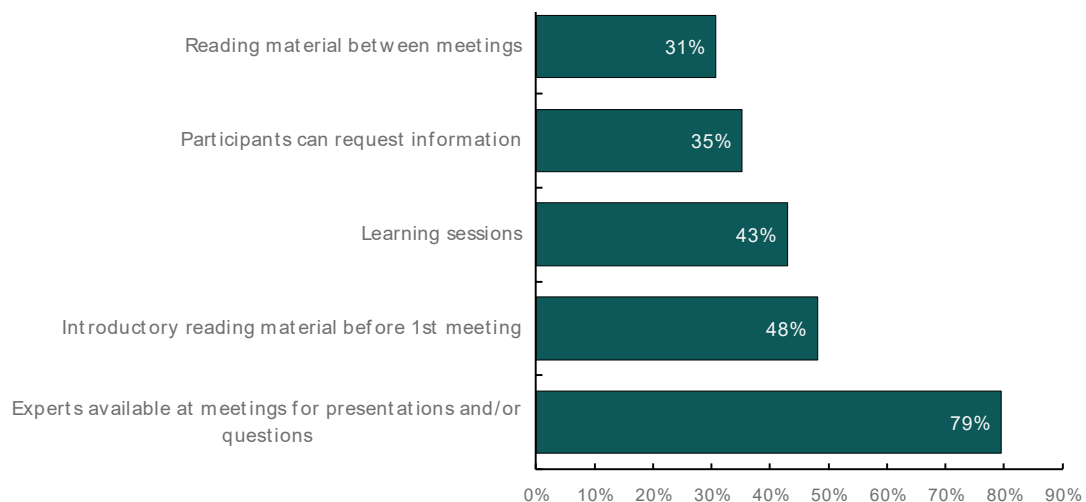
Learning usually takes place before the deliberation stage, though in practice the two often go hand-in-hand. It can also take place in the beginning of each smaller deliberative session, introducing a particular question or topic within a larger issue. An example of this is the World Wide Views model of deliberative process, where a complex issue is broken down into several components and each component is then discussed individually, after an introductory video provided to facilitate learning.

There have been different ways of informing participants about the policy issue at hand and facilitating learning. Figure 4.7 shows that among the deliberative processes for which data was available on learning practices (157 out of 282 cases), a large majority (79%) have had experts on the policy issue available at meetings. Experts were there to give presentations and answer participants' questions.

Other types of learning components include introductory reading material before the first meeting (48%), learning sessions, including field trips to locations concerned, such as hospitals or infrastructure objects (43%), the right for participants to request information and invite speakers, stakeholders, and experts (35%), and providing participants with clear and extensive reading material in between meetings, so that participants could come prepared to the discussions (31%).

Figure 4.7. Having experts available at in-person meetings and providing reading material before the first meeting are the most common learning element

Frequency of different types of learning components during representative deliberative processes for public decision making, 1986-2019



Notes: Data is from 157 deliberative processes for which there is data available related to the learning component of the process. Data comes from 14 OECD countries (Australia, Austria, Canada, Denmark, Estonia, France, Germany, Ireland, Japan, Netherlands, Poland, Korea, Spain, United Kingdom, and United States) and the European Union, between 1986-2019.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Selecting experts and stakeholders

There are two key aspects of information sources: 1) diversity of information and 2) importance of giving citizens control (newDemocracy Foundation and UN Democracy Fund, 2019: 121). On the first point, the independent team responsible for designing and organising the deliberative process chooses the experts and informational material. They do not necessarily have expertise on the policy issue – their role is as experts of participation and deliberation. At the outset, they prepare comprehensive educational materials for the participants, sometimes with input from an advisory group of experts and stakeholders.

An extensive range of information sources is important. Having a wide breadth ensures that participants encounter and consider different points of view; the diversity of participants is complemented by a diversity of viewpoints in information sources. The type of information provided also matters in terms of public perceptions of fairness (i.e. this cannot be government brochures highlighting their successes or arguing for certain solutions). Allowing citizens to ask for information is therefore a crucial aspect of winning public trust in the process. They should be able to request any information they feel is necessary to come to an informed decision, which helps to address a mistrust of experts and ensures they do not feel and the public does not perceive that the participants are being led towards a certain conclusion (newDemocracy Foundation and UN Democracy Fund, 2019).

Information comes from three types of sources: 1) government; 2) stakeholder or active voices; and 3) sources requested by participants. The information programme usually begins with an introduction to the issue, the context, and the diagnosis of the problem, followed by more details about the issue, and an exploration of possible solutions (Gerwin, 2018: 54).

In half (48%) of the deliberative processes for which there is data, participants are provided with an introductory kit ahead of the first meeting. The kit tends to cover the following information: “the problem and what answers are needed from the participants; the context of the process; what is on the table; the current approach or thinking on the topic; a deep set of data required to make a decision, and information from other government agencies whose responsibilities interact with the decision” (newDemocracy Foundation and UN Democracy Fund, 2019: 123). Beyond independent information, it often also includes the government’s view and position of the problem so that this is transparent to the participants.

The newDemocracy Foundation and UN Democracy Fund handbook on democracy beyond elections (2019) suggests that information kits for Citizens’ Juries/Panels should aim for 50-200 page documents that explain as much of the problem as possible, as this provides a foundation for forming informed decisions. While this sounds like a lot of reading, which may be perceived as an issue to inclusiveness as not all participants will have the time nor capacity to read such a large amount of information ahead of time, the idea is not for everybody to read the entirety of the kit. Participants will be naturally more interested in certain aspects than others. Between them, they will have covered everything and added to the collective intelligence of the group.

There is also increasing interest in televisual materials being used to complement the text-based ones in recognition that people have different learning styles. To ensure inclusion, it is also important for organisers to be able to provide alternative formats, such as braille or large print and video subtitles, if needed.

Beyond this information, stakeholders are encouraged to put forth submissions to provide a complementary set of perspectives to the policy issue. This can take the form of stakeholder information sessions and public submission processes online, where the information is also available to the wider public. The independent co-ordinators, together with the commissioning public authority and the advisory group if one exists, should identify key industry, social, and community stakeholders and actively seek their contribution. They should represent a wide range of perspectives.

A process is needed to identify the final line-up of experts and stakeholders who will address the participants in person and the information that will be shared as priority reading material. This is arguably the most challenging design element. It has to include a range of different points of view, opinions, and

voices of groups that have a stake in or are involved in the policy question at hand. All stakeholders should be on an equal footing and have similar conditions and opportunities to present their point of view to the participants, which limits the influence of strong lobbies and allows groups with fewer resources to have a voice. Some examples of how this stage is designed in detail can be found in Gerwin's guide to Citizens' Assemblies (2018) and the newDemocracy Foundation and UN Democracy Fund's handbook on deliberative democracy (2019).

There is often a large amount of stakeholder submissions. In these cases, a selection is made by the independent organisers to ensure the diversity of submissions is reflected. For example, during the Irish Citizens' Assembly about amending the eighth amendment concerning abortion, 13,075 stakeholder submissions were received. Approximately 12,200 of them were published on the Assembly's website in chronological order on a rolling basis and categorised by the name of the individual or organisation that submitted it. So that this large number of submissions could meaningfully contribute to the Assembly's deliberations, a random sample of 300 submissions was selected and compiled into a single document, grouped according to submission date, and circulated to all Assembly members (see The Citizens' Assembly, 2018 for more details about this process).

Finally, at the very beginning of the process and at the end of each learning session before the deliberation phase, participants should be asked: "What do you need to know and who do you trust to inform you?" (newDemocracy Foundation and UN Democracy Fund, 2019: 126; Gerwin, 2018).

Facilitation

Data was not collected for this report about the role of facilitators in the various deliberative processes. However, it is important to acknowledge that the role of people conducting the meeting is crucial to its success. They are responsible for creating a warm atmosphere, building trust among members, and ensuring the credibility of the process (Gerwin, 2018). They play a crucial role in supporting the participants to formulate their own recommendations, while maintaining neutrality and withholding their own judgements about the proposals. For this reason, it is important that facilitators do not have a stake in the outcome of the process – they should be independent and at arm's length from the commissioning public authority.

Moreover, facilitators are there to deal with what can be considered 'difficult' situations, such as when there is tension between participants or someone loses their nerve (Gerwin, 2018). They also encourage equal participation amongst participants – some will naturally be more shy while others will be more likely to dominate a conversation; facilitators ensure a balance of speaking time.

For a practical guide to facilitating deliberative processes, see Chapter 5 (p. 165-202) in the newDemocracy Foundation and UN Democracy Fund handbook (2019).

Decision making within the deliberative process

A key difference between representative deliberative processes and other forms of citizen participation is that the outcome is not many individual views, but a collective and considered view. Citizens are tasked with finding consensus on the recommendations they provide to public decision makers. This does not mean that 100% of participants must agree with 100% of the proposals. This is highly unlikely and is arguably not desirable in a democracy that values pluralism. A common rule of thumb is that around 80% of the participants must agree that they would be fine with the recommendation. Sometimes the report with citizens' recommendations includes a minority report, where participants are able to include the proposals that garnered some support, but not enough to be accepted by the majority of the group (see, for example, MASS LBP's sample reports on their website).

The process for developing recommendations varies from model to model. For informed citizen recommendations, which requires the greatest amount of rigour, a detailed chapter about the steps to follow for developing recommendations and decision making is available in Gerwin's guide (2018: 66-82).

Influential recommendations and actions

The third criterion in Nabatchi *et al.*'s evaluation framework for deliberative processes (2012) is that the outcome is a set of influential conclusions and actions. There should be evidence of impact. This means that public authorities should respond to participants' recommendations in a timely manner, explaining the rationale for why or why not they are able to accept them, and providing regular public updates about their implementation. This section looks at the data regarding the outputs, implementation of recommendations, and evaluation and monitoring of deliberative processes.

Representative deliberative process outputs

At the end of a deliberative process, citizens' recommendations are delivered to the commissioning public authorities. Data was not systematically collected about the authorship of recommendations, although a qualitative analysis of available final reports from different countries suggests that often proposals are written mostly by citizens in their own words and are not edited by anyone. Participants sometimes accept or amend the proposals of experts from whom they hear, particularly when it comes to more technical proposals. In some cases, such as during the 2016-2018 Irish Citizens' Assembly, the report is written by the Secretariat with input from citizens, is sent back to a sub-group of citizens for comment, and then to the entire group to validate it. In the 2019-2020 French Citizens' Convention on Climate, the participants' recommendations are drafted with the help of legal experts, to ensure they could go directly to a legislative debate by parliamentarians. Such an approach leaves less room for 'translation' by public authorities. At the time of writing in early 2020, these recommendations have not yet been published and the full benefits and challenges of such an approach are not yet clear. The good practice principle is that the participants should have control of the recommendations.

An unedited final report gives the final document legitimacy and authenticity, which can also increase its perception of legitimacy in the public's eyes. More information about the activities, guides, and prompts that enable citizens to write detailed and complex policy recommendations is available in Chapter 5 of the newDemocracy Foundation and UN Democracy Fund handbook (2019).

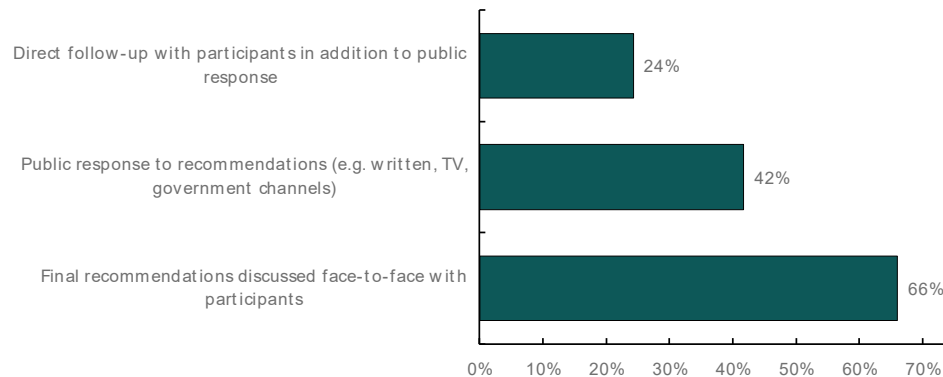
Response to citizens' recommendations

Once the final recommendations are delivered to the public authority, it is their responsibility to act. In a representative democracy, there is no expectation that the authority is obliged to accept all recommendations. There is, however, a responsibility to respond and to explain a rationale for accepting or rejecting any proposals.

Of the 104 cases for which data is available about the type of response, in two-thirds (66%) of them, the public authority discussed the final recommendations face-to-face with participants. In four in ten (42%) of those 103 cases, the public authority communicated a public response through government channels (such as website, social media) and traditional media (newspapers, radio), but it did not take place in person with the participants. In one quarter (24%) of the 103 cases, the commissioning authority followed up directly with the participants to let them know about the response to their recommendations, in addition to the public response (Figure 4.8).

Figure 4.8. In two-thirds of cases, public authorities discuss participants' recommendations face-to-face with them

Response of public authorities to the recommendations produced during representative deliberative processes for public decision making, 1986-2019



Notes: n=103; Data for OECD countries is based on 12 OECD countries that were members in 2019 (Australia, Austria, Belgium, Canada, Denmark, Estonia, France, Germany, Korea, Netherlands, United Kingdom, and United States) plus the European Union/Global, from 1992-2019.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

A good example where participants' recommendations received a thorough response with direct feedback to them after review is the 2014 Melbourne People's Panel about the city's 10-year, \$5 billion AUD plan. The Council met with the participants in person to hear their recommendations. After seven months of review, it reconvened the Panel with the wider public to announce the 10-year plan, and clearly indicated which aspects came from the Panel's suggestions. The Council accepted 10 out of 11 recommendations. The final plan document includes an annex where the participants' recommendations are written in their own words, with an explanation of the council's decisions regarding implementation (Box 4.4).

Overall, it is good practice to communicate directly with participants before and after the official response to recommendations to manage their expectations, highlight new opportunities to continue contributing to the issue, and reinforce the value of their involvement.

Box 4.4. Melbourne People's Panel (2014)

In 2014, 43 people were randomly selected by a civic lottery to participate in the Melbourne People's Panel about the city's 10-year, \$5 billion AUD plan. They were given the time and resources to meet six times over the course of four months to deliberate and provide the Council with detailed recommendations. After reflecting on the Panel's proposals for seven months, the council publicly launched the final budget, which accepted 95 % of the Panel's proposals. The final plan document includes an annex where the participants' recommendations are written in their own words, with an explanation for their decisions. The process allowed the Council to close its budget hole and is now being implemented.

More information is available at: <https://participate.melbourne.vic.gov.au/10yearplan>

Implementation of recommendations

As shown in the evidence, many people in countries around the world have been willing to give up a large amount of their time to participate in a deliberative process (on average, 3.7 days spread out over 6.6 weeks). It is a testament to the importance that impact plays in people's decision making about whether participation is worth their time. People lead busy lives, and it is a rational response to not participate if the purpose and outcome are unclear.

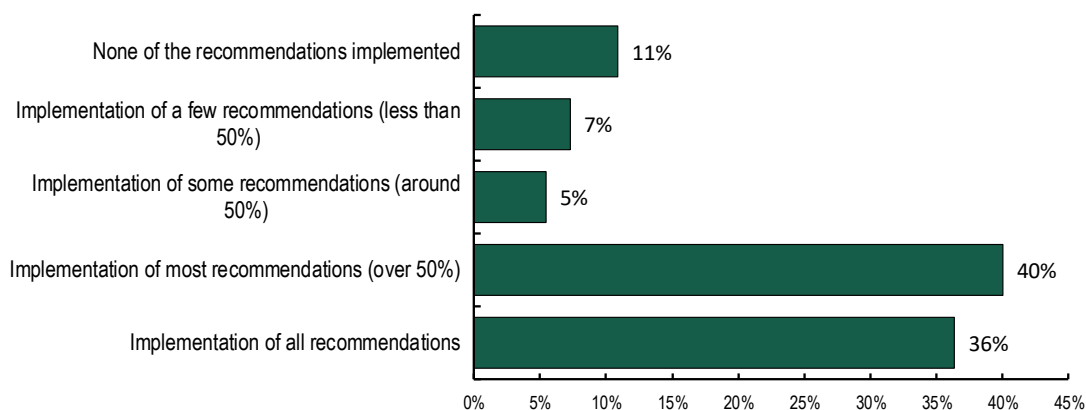
All of the cases in this report have been commissioned by public authorities who have the ability to act on the recommendations that result from a deliberative process. They make a commitment to respond to citizens' proposals and take them seriously. The more people feel they will have impact on policies that affect their lives, the more seriously they will volunteer their time.

However, impact is also the most elusive to measure. The previous section identifies that in many cases, there is a public or direct response to participants about their recommendations. The OECD tried to collect as much international data as possible about the implementation of commitments made based on citizens' recommendations. There was data available for 55 cases, which suggests some promising conclusions (Figure 4.9).

In three quarters (76%) of these cases, the public authorities implemented over half of the recommendations. In four in ten (36%) of these cases, it implemented all of them. Only in six (11%) of these 55 cases were none of the recommendations implemented. One example of how citizen recommendations have been implemented, leading to improved road safety is discussed in Box 4.5, but there are many others. More research and analysis is needed about which proposals are accepted and whether there is a general tendency to 'cherry-pick' (i.e. only accept proposals that fit with a public authority's existing agenda, those that cost less, etc.).

Figure 4.9. In the majority of examples, at least half of participants' recommendations are accepted by public authorities

Implementation of recommendations produced during representative deliberative processes for public decision making, 1986-2019



Notes: n=55; Data for OECD countries is based on 13 OECD countries that were members in 2019 (Australia, Austria, Belgium, Canada, Estonia, Ireland, Japan, Korea, Netherlands, Poland, Spain, United Kingdom, and United States) plus the European Union/Global, from 1997-2019.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

These findings suggest that when presented with informed and considered proposals, public authorities are likely to act on them, as they include sensible recommendations that can lead to more effective public

policies. More data is needed for this to be a robust conclusion, but it sheds some preliminary light on an issue that is much discussed and of great importance.

Impact in these situations is notoriously difficult to measure as often, even when a recommendation is accepted, it takes many months, if not years, for it to be operationalised and implemented. Public authorities are also seemingly missing out on an opportunity to publicly communicate how citizens' recommendations are informing their decision making. As discussed later in this chapter in the section on public communication, it is a tool that should be leveraged more often to promote participation. If citizens see that the proposals of people like them are having an impact on policies, it could increase their trust in government and increase their likelihood to give up their own time when future opportunities to participate in public decision making arise.

Box 4.5. Effectiveness of deliberative processes

Sharing the Roads Safely Citizens' Jury in South Australia, 2014

A four-day long Citizens' Jury in South Australia of 47 randomly selected citizens has produced a set of recommendations to improve road safety in their region. Because of measures recommended by the citizens Jury and their implementation, bicycle related injuries dropped sharply in South Australia. The Jury's recommendations helped to reduce fatal and serious injuries by 28% from their high in 2012. Examples like this one provide evidence of positive outcomes of implemented citizen recommendations.

More information can be found at: <https://yoursay.sa.gov.au/decisions/sharing-our-roads-safely/about>

Monitoring and evaluation

Monitoring and evaluating deliberative processes is key for several reasons. As Provision 5 of the 2017 OECD Recommendation on Open Government states, it is important to “develop and implement monitoring, evaluation and learning mechanisms for open government strategies and initiatives”, which include representative deliberative processes. Doing so allows for learning about what worked well and what could be improved regarding the processes that took place. It also helps build credibility and citizen trust in deliberative processes, and permits commissioning authorities and the public to understand the benefits for better policies and public services.

There is little data available about the monitoring of deliberative processes, and how citizens could be involved in monitoring implementation. However, good practice examples offer guidance on how such practices could be expanded to improve the end outcomes. For example, following a Citizens' Jury in Dakota about the county's land use plan, the members were reconvened to review how their recommendations were interpreted by officials. Later, the Jury members were asked to provide feedback on whether the plan was being implemented according to their proposals (Box 4.6).

Box 4.6. Ensuring sufficient feedback & monitoring implementation

Citizens' Jury on Dakota County's Comprehensive Plan (1997)

The Citizens' Jury on Dakota County's Comprehensive Plan brought together 24 randomly selected citizens for five days to provide informed recommendations to the local government for the County's Comprehensive Land Use Plan. The County faced tough choices related to its projected growth and how it could be managed.

After the process was completed and the government had a chance to consider the citizens' recommendations, the Citizens' Jury was reconvened to review how their recommendations were interpreted and taken into account. The Jury was also able to tell the county through a series of electronic votes whether the comprehensive plan appropriately reflected their recommendations.

More information can be found at: <https://jefferson-center.org/wp-content/uploads/2012/10/land-use.pdf>.

Another more recent example is from the Noosa Shire in Australia. Following a Citizens' Jury about organic waste, the Council reviewed their proposals and convened a series of workshops to discuss their costs and implementation timings (Box 4.7).

Box 4.7. Monitoring implementation of recommendations

Noosa Community Jury (2015)

In Australia, Noosa Shire, 24 randomly selected citizens were brought together for three and a half days to a Citizens' Jury process to consider trade-offs involved in reducing organic waste sent to landfill. Once citizens' recommendations were reviewed, the Council launched a series of workshops to discuss their costs and timing of implementation, taking the engagement of jurors even further and along multiple stages of the policy making cycle.

More information can be found at: <https://www.newdemocracy.com.au/2014/10/01/noosa-community-jury/>.

So far, the most common method of evaluation of deliberative process (67%) has been an anonymous survey of participants (Figure 4.10). Such surveys usually gather participant opinions on different elements of how the process went: their overall satisfaction; whether participants had enough opportunities to express their views; and whether they perceived the facilitation to be fair and balanced.

Seventeen per cent of deliberative processes have had an academic analysis. In most cases, these have been Deliberative Polls/Surveys (described in Chapter 2), as due to their design, they entail analysis of citizens' opinion change after deliberation. By nature they are a scientific process. However, as Pincock (2012) covers extensively with reference to a wide range of academic literature, the empirical evidence that deliberation necessarily leads to opinion change is mixed; high quality deliberation can also lead to a reinforcement of an existing opinion backed by a better set of reasoned arguments. Some Citizens' Initiative Reviews also have extensive academic evaluation due to close co-operation between the organisers and the researchers, and the researchers' interest in deliberative processes.

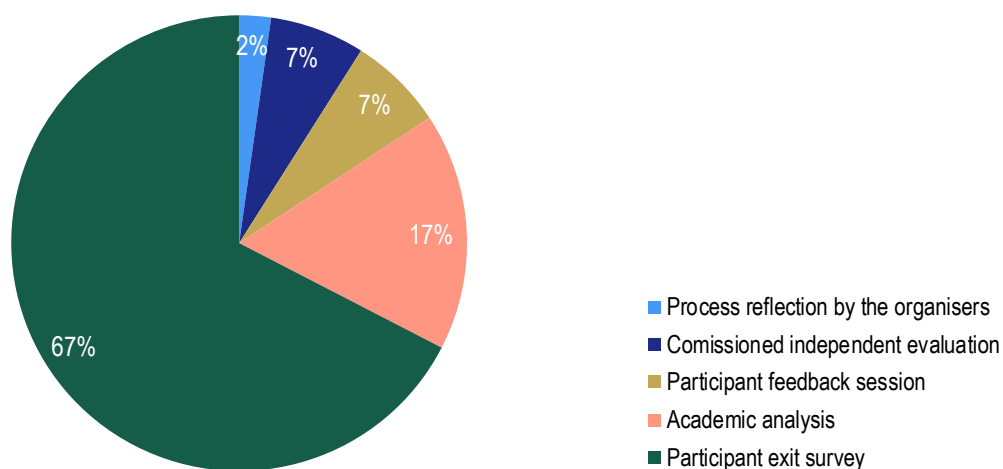
Only seven per cent of deliberative processes have had an independent evaluation, usually by a private consulting company or a non-governmental organisation with expertise in citizen participation. Such independent evaluation complements the before-mentioned participant survey, allowing for a more comprehensive evaluation. However, while the idea of independent evaluation rings well, it is not entirely clear who would be best-suited to carry it out. Being able to do so would require a good understanding of representative deliberative processes. Thus, it may not be necessary or feasible for smaller scale

processes due to practical constraints of time and budget. For larger scale processes that involve greater numbers and last a significant period, an independent evaluation could be recommended to ensure public confidence.

Two per cent are known to have had an official process reflection by the organisers. However, this percentage is likely to be much higher in reality. Qualitative research for this report suggests that organisers are constantly learning and adapting their approaches with each deliberative process they deliver. Formalising this, particularly for larger and more significant deliberative processes such as national Citizens' Assemblies, could help promote institutional learning and improve future practice.

Figure 4.10. The majority of representative deliberative process evaluations take the form of a participant exit survey

Methods used to evaluate representative deliberative processes for public decision making, 1986-2019



Notes: Data is from 89 deliberative processes for which data is available about the evaluation component. Data comes from 15 OECD countries (Australia, Austria, Canada, Denmark, Estonia, EU, France, Germany, Italy, Japan, Netherlands, Korea, Spain, United Kingdom, and United States), 1988-2019.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Impact on the wider public

Finally, the fourth criterion that Nabatchi *et al.* (2012) identify relates to evaluating deliberative processes is their long-term effects on themselves, the wider public, and on macro-level political processes (changing public officials' attitudes/behaviour and altering strategic political choices during elections). However, no data was collected for this report about how participation in a deliberative process impacts on the participants themselves in terms of agency and efficacy, nor on macro-level political processes. These are important aspects of impact and have been researched by academics, though further study is also needed (see Grönlund *et al.*, 2010; Niemeyer, 2011; Knobloch *et al.*, 2019).

This section thus focuses on the impact on the wider public. It considers the role that public communication as a mechanism for public learning plays in achieving this impact. It also looks at how deliberative processes have been combined with forms of participatory democracy to involve a larger portion of society beyond the small group of randomly selected participants.

Public communication as a tool for public learning

Public communication is understood as any communication activity or initiative led by public institutions for the public good. It is different from political communication, which is linked to the political debate, elections, or individual political figures and parties. With effective public communication, a deliberative process can be a mechanism for the broader public to learn about an issue as well as encourage it to participate more in public life in general. This is particularly the case as deliberative processes lead to citizens' voices being heard and help bridge the gap between citizens and governments. Public communication can also help gain support and legitimacy for the use of deliberative processes for decision making, as well as the recommendations developed by the participants in the deliberative process (Raphael and Karpowitz, 2013), which further facilitates the implementation of the recommendations and the resulting policy.

There are several good practices of public communication in support of deliberative processes that can help achieve the goal of public learning and ensure a smooth deliberative process. Rather than solely making information about the whole process available, the most effective examples demonstrate that the public authority has made an active effort to reach a wide range of citizens to increase awareness of the process and its purpose.

For smaller scale deliberative processes, information about the process (recruitment, agenda, experts, etc.) is made available on existing government websites and platforms and/or on the website of the independent organiser that has been commissioned to deliver the process. For larger scale processes that involve larger numbers and last a significant period, notably for Citizens' Assemblies, the common practice has been to set up a separate website where the public and the media can find all information relevant to the deliberative process. Examples include the websites set up for the 2016-2018 Irish Citizens' Assembly, the 2019-2020 French Citizens' Convention on Climate, and the 2020 UK Climate Assembly.

Having an individual responsible for public communication from the beginning of the process can help to ensure a coherent communications strategy both with participants of the process as well as the broader public (OECD, 2019).

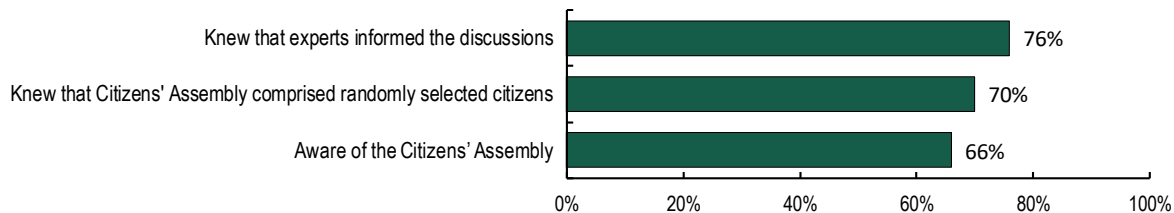
An example of how good public communication expands public learning beyond the participants of the process is the Irish Citizens' Assembly of 2016-2018. The Assembly was comprised of 99 randomly selected citizens, who were tasked with providing recommendations for the constitutional amendment regarding the right to abortion. The topic was complex and had been the subject of political debate for many years before the Assembly was convened. Participants of the deliberative process had an opportunity to learn from experts, listen to stakeholders, and deliberate amongst themselves to reach a conclusion. They recommended to the special cross-party parliamentary committee that was set up to especially to consider its conclusions to change the eighth amendment of the constitution, which at the time banned abortions, and suggested for the government to hold a referendum on the matter, which is required in Ireland for constitutional changes.

As the Irish Citizens' Assembly was well-communicated throughout the process (with online streaming of proceedings, interviews with participants in the press, all of the information related to the policy issue being made available online publicly, and extensive coverage on television, particularly by the public sector broadcaster), broader society was aware that it was taking place, knew about its mandate and composition, watched the livestreams, and read the submissions.

As research on the deliberative process shows, evidence presented to the Citizens' Assembly helped to increase the public's understanding of the issue in question. An exit poll after the referendum found that 66% of voters were aware of the Citizens' Assembly, including a plurality in all age groups, social classes, and regions, with the exception of those under twenty-four years old who were less aware (Suiter, 2018). Seven in ten voters (70%) knew that it comprised randomly selected Irish citizens, and three-quarters (76%) knew that experts informed the discussions (Suiter, 2018). These findings highlight the potential of deliberative practices to provide a wider platform for informed discussion in broader society. The high

awareness levels also indicate that transparency and public communication can have a significant impact and are central to the legitimacy of the deliberative method used.

Figure 4.11. Awareness and understanding of the Irish Citizens' Assembly by voters in the referendum on repealing the eight amendment of the Irish constitution about abortion



Notes: The poll was conducted by RTE in cooperation with political scientists based at UCD, UCC, DCU, and KU Leuven. It was based on a sample size of 3,779 eligible Irish voters aged 18 years and over. Interviews were conducted face-to-face with randomly selected individuals. The sample was spread throughout all 40 Dáil constituencies and undertaken at 175 polling stations.

Source: RTE, Universities Exit Poll (2018), "Thirty-sixth Amendment to the Constitution Exit Poll", available at: <https://static.rasset.ie/documents/news/2018/05/rte-exit-poll-final-11pm.pdf>.

Strong public communication about the representative deliberative process can also be a tool to help counteract disinformation and polarisation regarding the issue that is being addressed by the process. Empirical research has shown that "communicative echo chambers that intensify cultural cognition, identity reaffirmation, and polarisation do not operate in deliberative conditions, even in groups of like-minded partisans" (Dryzek *et al.*, 2019; see Grönlund *et al.*, 2015). There is also evidence from places such as Belgium, Bosnia, Colombia, and Ireland to suggest that deliberation can be an effective way to overcome ethnic, religious, or ideological divisions between groups that have historically found their identity in rejecting that of the other (Ugarizza *et al.*, 2014). Interviews with observers of the 2016-2018 Irish Citizens' Assembly regarding the issue of abortion also suggest that having ordinary people discussing the topic and presenting the findings publicly helped to counter disinformation during the referendum campaign.

Proactive and effective public communication by raising awareness about the deliberative process, and ensuring its transparency, can also potentially increase trust in both directions: of citizens in government and of government in citizens. There is some evidence that participating in a deliberative process does positively impact on citizens' trust in government (Box 4.8). Being aware that a deliberative process is taking place initiated by the government and being able to follow it as it is taking place in a transparent way can increase citizens' perceptions of the government as being open, accountable, transparent, and inclusive.

Box 4.8. Participation in a deliberative process can lead to increased trust by citizens in government

Deliberative poll on Transit and Traffic Issues in La Plata, Argentina (2009)

Sixty-two randomly-selected citizens were brought together for a day-long Deliberative Poll to discuss the transit and traffic issues facing the residents of La Plata. Participants were surveyed before and after the process. There was a strong increase in trust in government after participation. The participants dramatically changed their view about whether public officials would listen to their views. Before deliberation, 60% disagreed strongly with the statement that "public officials care a lot about what people like me think." After deliberation, this position dropped forty points to only 20%.

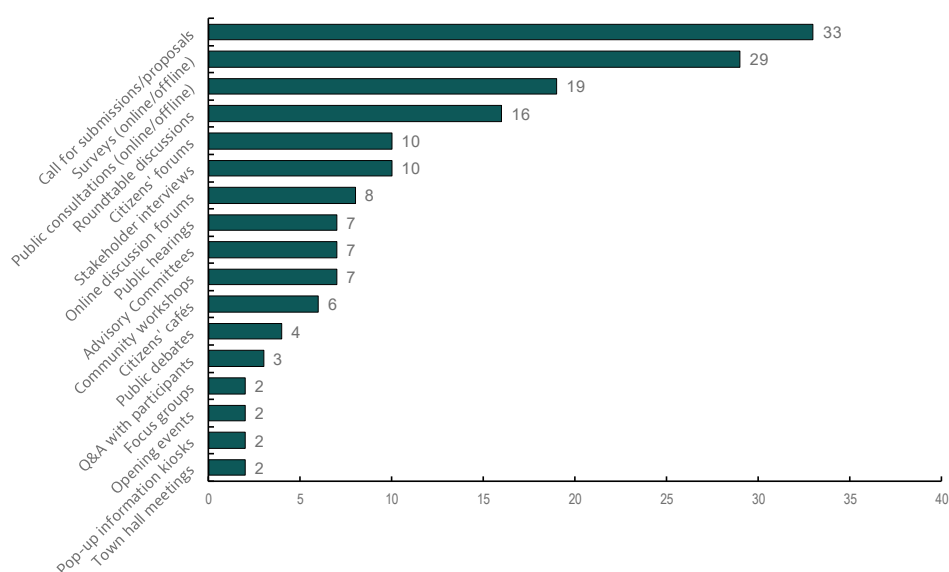
More information can be found at: <https://cdd.stanford.edu/2009/deliberative-polling-on-transit-and-traffic-issues-in-la-plata/>.

Combining participatory methods with representative deliberative processes

Typically, representative deliberative processes are not used in isolation, and are rather a central part of a wider strategy of citizen participation around a specific policy issue. The most common types of stakeholder participation that are used in conjunction with deliberative processes are online calls for proposals/submissions (used in 33 cases) and surveys (29 cases) (Figure 4.12). Other common methods are public consultations (19 cases) and roundtable discussions (16 cases).

Figure 4.12. Representative deliberative processes are most frequently complemented by open submissions, surveys, and public consultations

Frequency of different types of stakeholder participation processes used in conjunction with representative deliberative processes for public decision making, 1996-2019



Notes: Data is from 106 deliberative processes in 15 OECD countries (Australia, Austria, Belgium, Canada, Denmark, Estonia, France, Germany, Ireland, Japan, Netherlands, Poland, Korea, Spain, and United Kingdom) plus the European Union, between 1996 and 2019.

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

Some deliberative processes have built-in other participation processes by design. For example, Citizens' Councils are typically followed by a Citizens' Café, where recommendations are discussed with politicians and the broader public.

Stakeholder participation typically happens before the deliberative process, with a goal of gathering the public's opinions, that the participants can then take into account when deliberating and producing recommendations. However, sometimes stakeholder participation takes place in parallel to the deliberative process and can even be facilitated by the participants themselves. A common example is for the participants to host roundtable discussions open to anyone in the wider community to answer questions and gather perspectives and reactions from broader society. For instance, during the St. Joseph's Health Centre Community Reference Panel in 2015, the panel members convened public hearings and discussions, which then fed into their considerations for developing recommendations to St. Joseph's Health Centre (Box 4.9).

Box 4.9. Participants as conveners of the wider public

St. Joseph's Health Centre Community Reference Panel Canada (2015)

Participants of deliberative processes can become active conveners of the broader public. In order to involve more citizens in the process and enhance transparency and inclusion, St. Joseph's Health Centre Community Reference Panel in Canada organised a Community Roundtable Meeting to discuss the opinions of other community members. This evening session allowed members of the community to participate in the deliberative process and meet the members of the community panel.

More information is available here: https://stjoestoronto.ca/wp-content/uploads/2016/03/SJHC_Reference-Panel_Final-Report.pdf

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5

Good practice principles for deliberative processes for public decision making

Claudia Chwalisz

Based on analysis of the data collected and in collaboration with an advisory group of leading practitioners from government, civil society, and academia, the OECD has identified common principles and good practices that may be of useful guidance to policy makers seeking to develop and implement representative deliberative processes. This chapter explains the methodology and sets out the good practice principles.

Introduction

The OECD's Recommendation on Open Government (2017) provides, with respect to citizen participation in government, that Adherents should:

“8. Grant all stakeholders equal and fair opportunities to be informed and consulted and actively engage them in all phases of the policy-cycle [...]”; and

“9. Promote innovative ways to effectively engage with stakeholders to source ideas and co-create solutions[...]”.

Representative deliberative processes (referred to interchangeably as deliberative processes for shorthand) are one of the most innovative methods of fostering citizen participation in government. The OECD has collected a wealth of evidence as to how representative deliberative processes work across different countries. While there are a wide variety of models, analysis of the evidence collected reveals a number of common principles and good practices that may be of useful guidance to policy makers seeking to develop and implement such processes.

The OECD has drawn these common principles and good practices together into a set of Good Practice Principles for Deliberative Processes for Public Decision Making (hereafter, “good practice principles”). These good practice principles could provide policy makers with useful guidance as to the establishment of deliberative processes and the implementation of provisions 8 and 9 of the Recommendation on Open Government.

In addition to the comparative empirical evidence gathered by the OECD and from which they were drawn, the good practice principles have also benefitted from collaboration with an international group of leading practitioners from government, civil society, and academics who are members of the OECD's Innovative Citizen Participation Network¹ and of the Democracy R&D Network².

The group included:

- Yago Bermejo Abati, Deliberativa, Spain
- Damian Carmichael, Department of Industry, Science, Energy and Resources, Australia
- Nicole Curato, Centre for Deliberative Democracy & Global Governance, Australia
- Linn Davis, Healthy Democracy, United States
- Yves Dejaeghere, G1000 Organisation, Belgium
- Marcin Gerwin, Center for Climate Assemblies, Poland
- Angela Jain, Nexus Institute, Germany
- Dimitri Lemaire, Particitiz, Belgium
- Miriam Levin, Department of Digital, Culture, Media, and Sport, United Kingdom
- Peter MacLeod, MASS LBP, Canada
- Malcolm Oswald, Citizens' Juries CIC, United Kingdom
- Anna Renkamp, Bertelsmann Stiftung, Germany
- Min Reuchamps, UC Louvain, Belgium
- Iain Walker, newDemocracy Foundation, Australia

We called on the review group based on their breadth of experiences. Yago Bermejo Abati was one of the designers and organisers of the City Observatory of Madrid, which blended direct and deliberative processes. Nicole Curato's centre is one of the most widely published and respected academic centres globally, along with the work being done by Min Reuchamps over many years. Linn Davis has led innovations in the US aiming to make citizens' ballot initiatives more considered by incorporating a significant deliberative component, with that work now being trialled in Finland and Switzerland. Damian Carmichael from Australia holds a federal government role in a nation with many deliberative project examples but few at national level, making a public sector perspective of special interest in that context. Marcin Gerwin has run highly influential binding Citizens' Panels and also brought an Eastern Europe perspective. Miriam Levin's role with the UK Government's "Innovation in Democracy" programme was valued in this context. In the OECD's analysis of close to 300 processes, we noted two operators of particularly high quality and high transparency projects, so invited Peter MacLeod from MASS LBP (Canada) and Iain Walker from newDemocracy (Australia) for their input. Yves Dejaeghere's G1000 organisation is responsible for the first permanent deliberative body coming into being (Ostbelgien), while Angela Jain from the Nexus Institute has been involved with many of Germany's local Planning Cells as well as a national level experiment. Dimitri Lemaire from Particitiz in Belgium has long-term experience in a practitioner role, while Malcolm Oswald brings a UK perspective and has organised Citizens' Juries that follow a distinctive format unlike many other jurisdictions in the sample. Finally, Anna Renkamp and the Bertelsmann Stiftung have delivered deliberative processes for the German President and bring a senior-level project perspective as a result.

Methodology

The development of the good practice principles was informed by analysis of the evidence gathered by the OECD in its work on deliberative processes and to support the implementation of provisions 8 and 9 of the Recommendation on Open Government. In addition, the OECD evaluated existing literature where a number of organisations and academics have already defined some principles for deliberative processes.

As a first step, a mapping exercise was conducted to identify the commonalities and differences across countries' practices and between existing sets of principles, standards, and guidelines. For reference, Annex A includes an overview of existing principles, a table highlighting their commonalities and differences, and a summary of their common threads.

Following this, core principles and good practices required to achieve good deliberative processes that result in useful recommendations for the commissioning public authorities and a meaningful opportunity for citizens to participate in shaping public decisions were identified.

A public consultation was conducted from 28 February to 20 March 2020, after which the good practice principles were amended and were discussed with the OECD Working Party on Open Government for approval. The response to the public consultation was published on 20 May 2020.

The good practice principles are intentionally concise. They are intended to be the starting point for public decision makers wishing to commission deliberative processes and for practitioners wishing to design and organise them. A more detailed set of guidelines for implementing the good practice principles will be published as a follow-up to this report, with details about how to operationalise each of them.

Good practice principles for deliberative processes for public decision making

Figure 5.1. Good practice principles for deliberative processes for public decision making



1. **Purpose:** The objective should be outlined as a clear task and is linked to a defined public problem. It is phrased neutrally as a question in plain language.
2. **Accountability:** There should be influence on public decisions. The commissioning public authority should publicly commit to responding to or acting on participants' recommendations in a timely manner. It should monitor the implementation of all accepted recommendations with regular public progress reports.
3. **Transparency:** The deliberative process should be announced publicly before it begins. The process design and all materials – including agendas, briefing documents, evidence submissions, audio and video recordings of those presenting evidence, the participants' report, their recommendations (the wording of which participants should have a final say over), and the random selection methodology – should be available to the public in a timely manner. The funding source should be disclosed. The commissioning public authority's response to the recommendations and the evaluation after the process should be publicised and have a public communication strategy.
4. **Representativeness:** The participants should be a microcosm of the general public. This is achieved through random sampling from which a representative selection is made, based on stratification by demographics (to ensure the group broadly matches the demographic profile of the community against census or other similar data), and sometimes by attitudinal criteria (depending on the context). Everyone should have an equal opportunity to be selected as participants. In some instances, it may be desirable to over-sample certain demographics during the random sampling stage of recruitment to help achieve representativeness.
5. **Inclusiveness:** Inclusion should be achieved by considering how to involve under-represented groups. Participation should also be encouraged and supported through remuneration, expenses, and/or providing or paying for childcare and eldercare.
6. **Information:** Participants should have access to a wide range of accurate, relevant, and accessible evidence and expertise. They should have the opportunity to hear from and question speakers that present to them, including experts and advocates chosen by the citizens themselves.
7. **Group deliberation:** Participants should be able to find common ground to underpin their collective recommendations to the public authority. This entails careful and active listening, weighing and considering multiple perspectives, every participant having an opportunity to speak, a mix of formats that alternate between small group and plenary discussions and activities, and skilled facilitation.

8. **Time:** Deliberation requires adequate time for participants to learn, weigh the evidence, and develop informed recommendations, due to the complexity of most policy problems. To achieve informed citizen recommendations, participants should meet for at least four full days in person, unless a shorter time frame can be justified. It is recommended to allow time for individual learning and reflection in between meetings.
9. **Integrity:** The process should be run by an arm's length co-ordinating team different from the commissioning public authority. The final call regarding process decisions should be with the arm's length co-ordinators rather than the commissioning authorities. Depending on the context, there should be oversight by an advisory or monitoring board with representatives of different viewpoints.
10. **Privacy:** There should be respect for participants' privacy to protect them from undesired media attention and harassment, as well as to preserve participants' independence, ensuring they are not bribed or lobbied by interest groups or activists. Small group discussions should be private. The identity of participants may be publicised when the process has ended, at the participants' consent. All personal data of participants should be treated in compliance with international good practices, such as the European Union's General Data Protection Regulation (GDPR).
11. **Evaluation:** There should be an anonymous evaluation by the participants to assess the process based on objective criteria (e.g. on quantity and diversity of information provided, amount of time devoted to learning, independence of facilitation). An internal evaluation by the co-ordination team should be conducted against the good practice principles in this report to assess what has been achieved and how to improve future practice. An independent evaluation is recommended for some deliberative processes, particularly those that last a significant time. The deliberative process should also be evaluated on final outcomes and impact of implemented recommendations.

Notes

¹ As part of the area of work on innovative citizen participation, the OECD has been engaging with an international network of practitioners, designers, academics, researchers, civil servants, and curators to frame the topics and scope of research, to gather feedback and inputs to the research in an ongoing manner, and to strengthen the ties between these important groups of actors.

² The Democracy R&D Network is an international network of organisations, associations, and individuals who are organising, implementing, studying, and advocating for deliberative activities with the aim of helping decision-makers take hard decisions and build public trust. More information is available here: <https://democracyrd.org/about/>.

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6

Reimagining democratic institutions: Why and how to embed public deliberation

Claudia Chwalisz

The evidence suggests that the majority of representative deliberative processes that have taken place have been one-off initiatives, dependent on political will. Their topics have been decided top-down by public decision makers. However, there has been a move towards experimenting with the design of new democratic institutions, which embed deliberative processes in such a way as to make them a permanent part of the policy cycle, or a requirement under certain circumstances. Some of these new institutions also give citizens an agenda-setting role, allowing them to decide which issues should be up for public deliberation and how the remit should be framed. This chapter explores the reasons for and routes to institutionalising public deliberation, as well as its limits.

Introduction

Representative deliberative processes for public decision making (referred to interchangeably as deliberative processes for shorthand) have proliferated in many countries over the past four decades. This report includes a database of 289 examples (282 from OECD Member countries), and there are many others underway. There has been a great deal of experimentation with different models (Chapter 2) and design choices (Chapter 4), as well as with various connections to representative and direct democracy. However, two notable commonalities between most examples to date are their one-off nature and that their topics have been decided and defined top-down by public decision makers. Only 14 examples in this OECD report relate to cases of institutionalised practices.

These are some of the reasons why this report explores the future developments of representative deliberative processes, both in terms of how they can become a more permanent feature of democratic systems, and how agendas can be set by citizens rather than just top-down. In some ways, this discussion is nothing new. The academic debate about moving beyond ad hoc practices towards new deliberative institutions has been ongoing for about two decades (Smith, 2001 and 2018; Warren, 2007; Hartz-Karp and Briand, 2009; Elstub, 2010; Setälä, 2017; Gastil and Wright, 2019). However, in the past few years, the theoretical debates have taken place alongside experimentations with different approaches to institutionalisation in practice.

This chapter discusses the reasons for a move towards institutionalising¹ representative deliberative processes. It provides an overview of the different routes attempted so far, briefly discusses the legal, institutional, and budgetary requirements to make institutionalisation possible, and acknowledges the limitations. This is therefore only a preliminary discussion of a much larger and richer set of questions about the topic, which will be explored further in future OECD working and policy papers.

This chapter benefitted from a collaborative approach with a group of leading international practitioners in government, civil society, and academics who provided a substantial contribution with their ideas and comments at the outset².

Defining institutionalisation

There are two aspects to the meaning of institutionalisation: legal and cultural. Together, they touch on the requirements for sustained change.

Institutionalising deliberation in democratic politics and policy making means incorporating deliberative activities into the rules of public decision making structures and governance arrangements in a way that is legally-constituted so as to establish a basic legal or regulatory framework to ensure continuity regardless of political change.

Institutionalisation also has a cultural dimension. It can refer to regular and repeated processes that are maintained and sanctioned by social norms (Abercrombie, Hill & Turner, 1988), which are important for ensuring that new institutions are aligned with societal values.

Overview of key findings

The main findings in this chapter are as follows:

- Institutionalising deliberative processes into policy-making cycles and public decision-making procedures can make it possible to: take more hard decisions; conduct better deliberative processes more easily and less expensively; enhance public trust; enrich democracy by expanding meaningful citizen participation; and strengthen the civic capacity of citizens.

- There is no ‘one-size-fits-all’ approach, nor a single ‘best’ design to institutionalise. There is thus a need to consider diverse roadmaps to embedding public deliberation, with various aims.
- Three existing routes to institutionalisation are examined: the establishment of a permanent or ongoing structure for representative citizen deliberation; the establishment of requirements for public authorities to organise representative deliberative processes under certain conditions, and the establishment of rules allowing citizens to demand a representative deliberative process on a specific issue.
- One route to institutionalisation is to create a permanent or ongoing deliberative structure that complements the existing institutions of representative decision making. As of early 2020, permanent or ongoing deliberative bodies have roles that include agenda-setting, oversight, providing ongoing informed input about a particular public policy issue, and similar responsibilities to those of parliamentary select committees. These include:
 - The Ostbelgien Model
 - The Toronto Planning Review Panel
 - The Mextrolinx Regional Reference Panel on Transport in the Greater Toronto and Hamilton Area (GTHA)
 - The City Observatory of Madrid
 - The mixed deliberative committees in the parliament of the region of Brussels and the French-speaking parliament in Brussels
 - Goulburn Valley Water Annual Performance Forums
 - City of Kingston Ward Committees.
- Another route to institutionalisation has been to establish requirements for a public authority to organise a representative deliberative process under certain conditions. Examples include:
 - The Citizens’ Initiative Review, where a randomly selected group of citizens prepares a collective statement about significant information they believe voters should know about the pros and cons of a proposed ballot measure. This statement is circulated to all households in their voters’ pamphlet.
 - The 2017 Mongolian Deliberative Polling Law, which sets out that Deliberative Polls have to be organised for any constitutional amendments, projects to be funded by local development funds, or urban planning projects.
 - The Danish Board of Technology and Sciencewise in the UK. They are variations of programmes to involve citizens in policy discussions about complex science and technology issues.
 - The 2011 French law on bioethics, which institutionalises the obligation of the National Consultative Ethics Committee (CCNE) and the parliament to organise public debates and representative citizen deliberations for any changes of the laws relating to bioethics.
 - Municipal laws in two Japanese cities – Yoshikawa and Iwakura – that institutionalise Citizen Deliberation Meetings as a formal method of citizen deliberation to inform public decision making.
- The third route to institutionalising public deliberation involves legislation or regulation that stipulates that citizens are able to demand a public body to organise a representative deliberative process on a specific issue if the number of signatures in support of the demand meets a specified threshold. Examples include:
 - Municipal regulations in the Polish cities of Gdańsk, Kraków, Lublin, and Poznań allow citizens to initiate participation processes, including deliberative processes, by collecting signatures supporting their initiative. The threshold varies from 350 in Lublin to 1,000 in Gdańsk. A

separate threshold exists in some of cities for when enough signatures means that the request cannot be denied: 2,000 in Poznań and 5,000 in Gdańsk.

- The 2013 amendments to the Land constitution of the Austrian state of Vorarlberg to allow citizens to initiate a Citizens' Council with 1,000 signatures.
- Successful institutionalisation requires the right design for the context. This will vary depending on the level of government and other institutional factors.
- Institutionalisation requires support from politicians – not only the ones needed to enact a law or a regulation, but enough of a cross-party consensus to maintain it when governments change.
- Institutionalisation also needs backing by civil servants – not only those at the top of public authorities, but also the “hands on” officials at lower levels who have to incorporate these new practices into their work programmes.
- Achieving greater public backing requires a supportive media environment where outlets and journalists are willing and encouraged to give coverage to deliberative processes.
- Governments should consider drafting pieces of legislation or regulations that introduce a requirement for a deliberative process under certain conditions and to allow citizens to initiate a deliberative process if they gather enough signatures.
- Additional legal support issues (such as access to databases to carry out a random selection process well) need to be addressed to make organising deliberative processes easier, less costly, and to result in better outcomes.
- A next step would be to introduce requirements for employers to provide paid leave to participate in a deliberative process, as is the case with criminal juries, or for public authorities to compensate employers.
- Institutionalisation requires sufficient capacity, both within and outside of government. There need to be enough civil servants who understand the benefits, know how to commission a deliberative process and understand their role as neutral hosts. Equally, there need to be enough highly skilled practitioners who know how to design, organise, run, and facilitate deliberative processes.
- One strategy to address the capacity challenges could be for governments to establish an office permanently in charge of deliberative processes or an office with a broader remit that could also have responsibilities for deliberative processes. This could include an academy of participation to support standards of training, research, and evaluation.
- For institutionalisation to take place, it requires some initial financial investments in establishing sustainable infrastructure. While this requires a budgetary commitment, when deliberative processes are institutionalised they can be less costly than one-off experiences.
- It is important to leave enough room for experimentation and to make changes to institutional design based on evaluation and learning. If it is too highly regulated with too many constraints, institutionalisation could thwart innovation and participation.
- Introducing permanent or ongoing deliberative processes as complementary institutions to representative institutions requires a consideration of how such initiatives enhance existing accountability mechanisms and how participants can be accountable to one another and to members of the public.

Why institutionalise?

Chapter 1 focused on the question: ‘why deliberation?’, a complementary consideration to the question of institutionalisation. In short, there are seven key reasons why representative deliberative processes can help lead to better public decisions and enhance trust. They can:

1. **Lead to better policy outcomes** because deliberation results in considered public judgements rather than public opinions. Decision making within deliberative processes is informed by expert knowledge; people's own experience and values; and input from the broader community, resulting in informed citizen recommendations to policy makers.
2. **Give decision makers greater legitimacy** to make hard choices.
3. **Enhance public trust** in government and democratic institutions by giving citizens an effective role in public decision making.
4. **Signal civic respect and empower citizens.**
5. **Make governance more inclusive** by opening the door to a more diverse group of people.
6. **Strengthen integrity and prevent corruption** by ensuring that groups and individuals with money and power cannot have undue influence on a public decision.
7. **Help counteract polarisation and disinformation.**

The first chapter also gave an overview of the types of problems that representative deliberative processes are well-suited to address, namely 1) **values-driven dilemmas**, 2) **complex problems** that require trade-offs, and 3) **long-term issues** that go beyond the short term incentives of electoral cycles. Generally, they have also been used to address issues around which there is political deadlock.

With this in mind, institutionalising representative deliberative processes into policy-making cycles and public decision-making procedures can bring the same benefits as described above, and additionally makes it possible to:

1. **Take more hard decisions:** Institutionalising representative deliberative processes can help communities address challenging problems that the government is not able to solve on its own. Involving citizens makes it easier to identify community priorities and overcome resistance of interest groups and intra- and inter-party divisions, enabling action on difficult but necessary policy decisions. Institutionalisation in different ways and at different levels of government thus enables governments to take more hard decisions.
2. **Conduct better deliberative processes more easily and less expensively:** Institutionalisation can make it easier to develop re-usable processes, documents, practitioner capability, etc. This in turn can help to make high quality deliberative processes easier to conduct, less expensive, more effective, and less vulnerable to loss of support as new governments take power. It also makes them quicker to organise as issues emerge, as start-up time can be reduced. Institutionalisation can also improve practice by ensuring collective learning and making it easier to experiment, evaluate, and improve practice over time.
3. **Enhance public trust:** Public participation opportunities, including deliberative processes, have proliferated over the past few decades, but it is difficult to say that they have had a positive impact on overall levels of trust in government, politicians, and policy makers. This is likely partly linked to the one-off, ad hoc nature of most participation exercises, and their limitation to specific and project-related issues. Arguably, institutionalising deliberation (and conducting many more citizen deliberations) can help to increase public trust in government. It opens more opportunities for more people to get closer to the heart of governance and to garner greater empathy for the complexity of public decision making. Institutionalisation can also begin to fundamentally change the relationship between public authorities and citizens.
4. **Enrich democracy by expanding meaningful citizen participation:** Democracy is being governed, but also governing. Through institutionalisation, more people can get closer to being part of the governing process. In doing so, they bring a wider diversity of perspectives into democratic decision making. Governments go to great lengths to ensure political equality when it comes to voting in elections. Extending the same logic to the period in between elections could

mean, for example, having a goal for everyone to receive an invitation to participate in a deliberative process at some point in their lives.

5. **Strengthen the civic capacity of citizens:** Institutionalisation extends and embeds the privilege of representation amongst a wider range of people. The act of representing others is itself a skill and form of democratic fitness that deserves to be extended and cultivated by more people. It means that a larger proportion of society has the opportunity to serve their communities, to experience the complexity of public decision making, and to strengthen their sense of agency and efficacy.

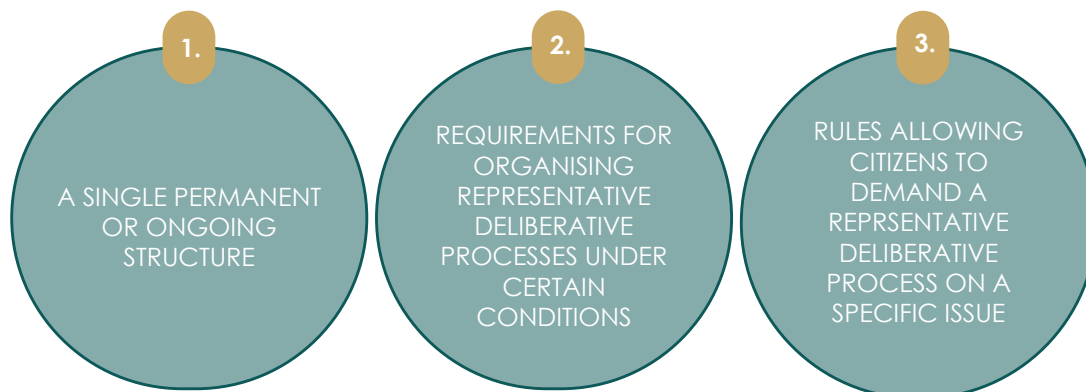
Different approaches to institutionalising representative citizen deliberation

There is no 'one-size-fits-all' approach, nor a single 'best' design to institutionalise. There is thus a need to consider diverse roadmaps to embedding public deliberation, with various aims. Different models of deliberative processes (see 2) will be useful in different circumstances, for different purposes, at different levels and on different issues. As this is only the starting point for future reflections, the routes that have been tried are considered (Figure 6.1), recognising that other options could be envisaged.

Three existing routes to institutionalisation are examined in this chapter:

1. The establishment of a permanent or ongoing structure for representative citizen deliberation;
2. The establishment of requirements for public authorities to organise representative deliberative processes under certain conditions; and
3. The establishment of rules allowing citizens to demand a representative deliberative process on a specific issue.

Figure 6.1. Three existing approaches to institutionalising representative citizen deliberation as of 2019



Source: OECD Database of Representative Deliberative Processes and Institutions (2020)

For each possibility, this chapter describes what it entails, where it is taking place already, and examples of institutionalising other forms of deliberative or participatory practice from which we might learn. There is also potential for these options to be combined in various ways. They could be feasible at all levels of government and, in line with the idea of an open state, in the public sector more broadly (i.e. ministries, departments, agencies, boards, commissions, hospitals, schools, etc.). All of these options are based on the view that elected legislatures and professional civil servants have – and should have – a key role in representative democracies. These measures are designed as institutional arrangements that interact with representative institutions with the aim of strengthening them.

1. A permanent or ongoing structure

One route to institutionalisation is to establish a permanent or ongoing deliberative structure that complements the existing institutions of representative decision making. This has various relative advantages and disadvantages. On the one hand, certain functions of government require attention on an ongoing basis (such as monitoring implementation and executive branch oversight). Permanent institutions are also harder to dismantle than one-off bodies. On the other hand, there is a greater possibility for ongoing citizens' bodies to be politicised if the individual members have long terms of office. However, this can be –and in the examples thus far, is being – mitigated by regular rotation of members with limited mandates. This means that new members are randomly selected after a certain period of time, ensuring that members are defended “against asymmetries in social and economic power to the extent necessary for [a permanent or ongoing deliberative body] to be democratically effective and realise the goods of political equality and deliberative reasoning” (Owen and Smith, 2019: 280).

Turning to some examples, a permanent deliberative body could be an agenda-setting and oversight council, which could decide on the issues that should be addressed by ad hoc representative deliberative processes like Citizens' Assemblies, Juries, or Panels, as in Ostbelgien (Box 6.1). The Ostbelgien Model refers to three new institutions that have been established through legislation to complement the regional parliament in the German-Speaking Community of Belgium (Ostbelgien). Randomly selected citizens are given new roles of agenda-setting, monitoring implementation, and developing recommendations for parliament.

Box 6.1. The Ostbelgien Model

On February 25th 2019, in Ostbelgien, the German-Speaking Community of Belgium, the parliament unanimously voted in favour of a piece of legislation that establishes three new democratic institutions:

1. A permanent Citizens' Council: it is comprised of 24 randomly selected citizens, who have a mandate to represent fellow citizens for one and a half years. One third of the members rotate every six months. Its mandate is twofold. First, it has an agenda-setting role. It initiates up to three ad hoc Citizens' Panels during its term and decides the issues the Panels should address. Second, the Council has an oversight role, ensuring that the recommendations from the Citizens' Panels are presented and debated in the parliament and receive a response from the relevant parliamentary committee and minister. The Citizens' Council met for the first time on 16 September 2019.
5. Citizens' Panels: There will be between one to three panels per year. Each Citizens' Panel will be comprised of 25 to 50 randomly selected citizens, who will meet for a minimum of three times over three months. The Citizens' Council decides the number of participants and the length of the Citizens' Panel. Citizen proposals that have the support of at least 100 citizens, as well as proposals of parliamentary groups or the government, can also be submitted for the consideration by the Citizens' Council (Parliament of the German-speaking Community of Belgium, 2019).
6. A Secretariat: this consists of full-time officials who are responsible for carrying out the random selection for the Citizens' Council and Citizens' Panels, servicing the Citizens' Council, and organising the Citizens' Panels.

A decree establishing the permanent participatory process can be found here (in English): <https://www.governanceinstitute.edu.au/centres/deliberative-democracy-and-global-governance/working-paper-series> and here (in French): https://www.pdg.be/PortalData/34/Resources/dokumente/diverses/2019.02.25_Dekret-Buergerdialog-FR.pdf

Another form of permanent deliberative institution could be a standing panel with a longer-term mandate to provide ongoing informed input about a particular public policy issue to public authorities and decision makers. Examples include the Toronto Planning Review Panel and Metrolinx Regional Reference Panel on Transport in the Greater Toronto and Hamilton Area (GTHA) (Box 6.2). In both cases, a broadly representative group of around 30 residents has been given a two-year mandate to advise the relevant public authority on a variety of questions related to the overarching policy issue on a continual basis. At the end of the two years, a new group is randomly selected to replace the members.

Planning issues seem to be excellent candidates for an ongoing deliberative structure, as these decisions are often controversial and involve difficult trade-offs. There are often legal requirements for public participation, which are not always pleasant for the civil servants who need to conduct them. Representative deliberative processes are designed in a way that helps to overcome political deadlock and tensions, as citizens need to consider the complexity of decisions and find common ground.

Box 6.2. Planning and Transportation Standing Panels in Toronto

Toronto Planning Review Panel, 2015-2017 and 2017-2019

The Toronto Planning Review Panel was an ongoing deliberative body, embedded into the city's planning division, which enabled ongoing citizen input on the issues of planning and transportation. Its members served two-year terms, after which time a new cohort was randomly selected to be representative of the Greater Toronto Area.

A group of 28 randomly selected residents from all parts of the greater Toronto area met for 11 full-day meetings from 2015-2017. Prior to deliberation, participants met for four days of learning and training.

A similar panel was appointed for the period of 2017-2019, this time consisting of 32 randomly selected citizens.

At the time of writing, there was a pause following the conclusion of the second cohort pending a review of the planning department's engagement strategy.

More information is available at: <http://bit.ly/3brvnxv>.

Metrolinx Standing Panel on Transportation, 2018-2020

Similarly, the Greater Toronto and Hamilton Area (GTHA) transport authority, Metrolinx, has established a Regional Reference Panel to give 32 randomly selected residents the mandate to provide informed advice on managing the growing transport demand over the next 25 years and achieving Metrolinx's goals in a manner that reflects the values and priorities of all residents. The Regional Reference Panel met for 11 full-day meetings between October 2018 and May 2020.

Metrolinx's Planning and Development Department is seeking the Panel's recommendations on issues such as:

- improving seamless connections between regional transportation services;
- setting high standards for traveller experience and design excellence;
- managing congestion and demand during peak hours;
- expanding access to cycling infrastructure;
- and preparing for new transportation modes and shared mobility services.

More information is available at: <http://www.metrolinx.com/en/aboutus/inthecommunity/mrrp/default.aspx>.

It is also possible to combine digital, deliberative, and direct democracy, as demonstrated by the City Observatory in Madrid (Box 6.3). A new institution established through a regulation passed in January

2019 gave a representative group of 49 citizens agenda-setting power to decide the issues that should go to a local referendum. Those issues could either come from the online platform *decide.madrid*, or could be elaborated by the Observatory members on any topic related to municipal policy. This decision has the potential to solve a big challenge with direct democracy more generally – the highly undemocratic practice of setting the agenda based on gathering large numbers of signatures.

Box 6.3. Madrid City Observatory

Proposal review and agenda-setting

The City Observatory is a model of a permanent deliberative body that has been developed and implemented in Madrid city council in Spain. It was established through a regulation passed on 29 January 2019 that transformed the existing City Observatory into a deliberative body comprised of randomly selected citizens with new competencies. The initial Observatory was limited to a regular meeting between governing politicians and civil servants to analyse data about citizens' opinions (collected through traditional means like opinion polls, focus groups, etc.). Until this regulatory change, the City Observatory had not held any meetings for several years.

In the first week of February 2019, the Council sent out 30,000 letters to households inviting them to be selected for the Observatory. On 12th March 2019, the 49 inaugural members were randomly selected among the 1,135 people who put themselves forward. The group of 49 was chosen stratifying for gender, age, and geographical location (which is strongly correlated to income distribution) to ensure representativeness. Mandated to address and propose solutions to key issues for the well-being of citizens in Madrid, the design of the City Observatory was for members to meet and deliberate over citizen proposals a minimum of eight times per year (Madrid City Council, 2019).

The agenda of the meetings was informed by the proposals submitted to the *decide.madrid* online platform. At each meeting, (at least) the most popular proposal on the platform was discussed. Observatory members analysed the proposals and could suggest improvements if the author of the proposal agreed. They were also free to define their own agenda and focus on any issues within the municipality's competencies. The members then had the power to send the citizen proposals, as well as their own proposals, to a local referendum, in this way opening up meaningful opportunities for participation in both setting the agenda and having a say in decision making.

It is an example of digital democracy, deliberative democracy, and direct democracy combined in an innovative way. However, after a change in government in May 2019, the future of the City Observatory was brought into question. After a period of many months that involved announcements to abolish the City Observatory and a public consultation on the matter, in February 2020, the composition and function of the Observatory reverted back to a body comprised of governing politicians and civil servants.

This example highlights the necessity of institutionalising such initiatives into policy and legislation, so that they become less dependent on political shifts and become an integral part of the democratic architecture (Chwalisz, 2019). It also demonstrates the importance of the two aspects of institutionalisation: legal and cultural. While the legal aspect is necessary and important, without a shift in social norms to sustain and sanction continuity, the legal rules are subject to change. It also highlights the need to gather buy-in from all stakeholders across the political spectrum so that it does not become wedded to one political grouping.

The operating rules of the Observatory can be found here (in Spanish): http://www.bocm.es/boletin/CM_Orden_BOCM/2019/02/01/BOCM-20190201-42.PDF

More information about the original design of the City Observatory are here: <https://www.newdemocracy.com.au/2018/11/15/the-city-of-madrid-citizens-council/>

Finally, representative deliberative processes could also be established as permanent institutions with similar responsibilities to those of parliamentary select committees. A first example of how this could work is being piloted by the parliament of the region of Brussels and the French-speaking parliament in Brussels in the form of “mixed deliberative committees”. These ad hoc committees are defined in internal regulations. Fifteen parliamentarians sit alongside 45 randomly selected citizens to develop recommendations for the permanent parliamentary committee on a specific issue (Box 6.4). The question is how to decide on and define the issue that should be put to this mixed deliberative committee. In Brussels, either parliamentarians or a citizen petition with enough signatures can bring forth a topic for consideration.

The use of mixing elected representatives with ordinary citizens will be an interesting experiment. One of the problems with deliberative processes, sometimes, is that they do not necessarily encourage deliberation among decision makers (Parkinson 2004; Stetälä, 2017). Including representatives can help to strengthen their sense of ownership of the process, potentially strengthening the impact. An instance when politicians and randomly selected citizens were mixed in a deliberative process was during the Irish Constitutional Convention in 2013. It was comprised of 66 citizens and 33 elected representatives from the Oireachtas and Northern Ireland Assembly (Farrell, 2014). While there is a risk that politicians could dominate discussions and intimidate citizens (Mansbridge *et al.*, 2012), this did not seem to materialise in Ireland according to observers (Suiter *et al.*, 2016). That may be due to the design of the process, which included skilled facilitation, private individual voting on proposals, and keeping small-group conversations confidential (with only the full-group plenary sessions being shared with the public).

Box 6.4. Mixed deliberative committees in the parliament of the region of Brussels and the French-speaking parliament in Brussels

Agenda-setting and legislative and policy recommendations

In December 2019, the parliament of the region of Brussels in Belgium adopted a set of internal regulatory reforms aimed at strengthening citizen participation in their legislative work. One of the enacted measures is the possibility to create “mixed deliberative committees”. The same regulatory change was approved by the French-speaking parliament in Brussels (officially called the French-speaking Community Commission – Cocof), the body responsible for regulating the French-speaking Community in the Brussels-Capital Region (Reuchamps, 2020). It is considered to be the first institutionalised mechanism of its type.

The mixed committees will be comprised of 15 parliamentarians (members of the corresponding thematic permanent committee) and 45 randomly selected citizens (Brussels’ residents who are over 16 years’ old). The exact selection mechanism and rules were yet to be published at the time of publication. These deliberative committees can be initiated in one of two ways: either by parliamentarians or at the request of at least 1,000 Brussels residents (1,200,000 inhabitants), although the final decision lies with the Parliament. The topics to be discussed must be of a regional scope within the competencies of the Parliament.

The mandate of the mixed committee is to meet several times, with the possibility of requesting the presence of experts, and to publish a report with recommendations for the Parliament on a specific issue. This report will have to be studied and discussed by the corresponding permanent parliamentary committee and other committees if needed. No more than six months later, the parliament must publish a report to explain the decisions and its follow-up to the recommendations.

The enacted modification to the internal rules of the regional parliament can be found here (In French and Dutch): <http://weblex.brussels/data/arccc/doc/2019-20/106936/images.pdf>

Further examples of permanent deliberative processes used for monitoring the implementation of recommendations are outlined in Box 6.5. All of these possibilities demonstrate that a permanent institution would not mean that its members would be in place for a long period. Like ad hoc processes, its members would be chosen by lottery, and would be replaced (or rotated) after a certain amount of time and/or on an issue-by-issue basis. The permanence of the institution, however, would help the public to recognise the body as playing a specific role in public decision making processes. They could provide citizens with the opportunity to play different roles in addition to those of developing and proposing recommendations on specific policy issues, notably agenda-setting and oversight.

It will take time to know how these various examples of institutionalised permanent and ongoing deliberative processes work in practice, as most were established only recently and as such there is little evidence of the impact at the time of writing. Their various designs and different approaches to integration into existing representative democratic systems will provide an interesting point of comparison.

Box 6.5. Annual Performance Forums and Ward Committees in Australia

Permanent deliberative processes for monitoring the implementation of recommendations

Goulburn Valley Water Annual Performance Forums

Goulburn Valley Water, a water provider in Victoria's Hume Region, set up a deliberative process for 2018-2023 to involve citizens in setting the price for water, which touched on all aspects of how the water authority operates. Annual Performance Forums were established to review the implementation of the pricing plan throughout its duration. The 40 citizens who were selected included randomly selected people from the original pricing forum and a new group of randomly selected participants. Meetings are held annually and participants are compensated for their time.

More information: <https://www.gvwater.vic.gov.au/community/community-engagement/annual-performance-forum>

City of Kingston Ward Committees

The local council in Victoria, City of Kingston, appoints three ward committees composed of randomly selected and demographically stratified citizens for two years. Ward committees provide strategic advice on a range of key issues. Launched in 2019, ward committees have a mandate to provide input to councillors on key initiatives. Their recommendations are presented during councillor information sessions.

More information is available at: <https://www.kingston.vic.gov.au/Community/Community-Groups-and-Networks/Committees-and-Networks/Ward-Committees>

2. Requirements for organising representative deliberative processes under certain conditions

The second route to institutionalisation that has been explored has been to establish requirements for a public authority to organise a deliberative process under certain conditions. Following the example of the Citizens' Initiative Review (CIR), ballot or referendum initiatives could be reviewed by a Citizens' Assembly, Jury, or Panel before the public debate and vote (Box 6.6).

In Oregon, where the CIR was initiated and institutionalised, a randomly selected group of citizens prepares a collective statement about significant information they believe voters should know about the pros and cons of the proposed ballot measure. This statement is circulated to all households in their voters' pamphlet. While there is legislation regarding the CIR in the state of Oregon, it has also been piloted by public authorities in Arizona, California, Colorado, and Massachusetts (Healthy Democracy, 2019), as well

as by academics in Finland (Academy of Finland, 2019) and Switzerland (Fenazzi, 2019). More details about the CIR are in Chapter 2.

Box 6.6. Citizens' Initiative Review

The Citizens' Initiative Review (CIR) is a deliberative process that provides a platform for citizens to evaluate proposed ballot measures and provide informed arguments for both sides of the issue to go out to all voters alongside their ballot papers. To date, the Citizens' Initiative Review has been implemented and institutionalised in the United States in the state of Oregon, where the model was developed by Healthy Democracy.

The CIR is officially authorised by state law. Many elements of the CIR's process are written into the state statute. The law outlines aspects of the panel selection, the process, and the composition and duties of the state Citizens' Initiative Review Commission. When a state-wide CIR takes place in Oregon, the Citizens' Statement that is produced during the process has a place in the official state voters' pamphlet.

On average, Oregon's Citizens' Initiative Reviews have gathered 22 randomly selected citizens for 4.4 consecutive days. Prior to the first meeting, citizens have no information about the policy question they will be addressing. Due to the political pressures of these review, organisers do not prepare briefing documents in advance. Rather, citizens receive all testimony directly from campaigns and experts during the review.

The process begins with a training programme for participants, providing them with the fundamentals of deliberating and evaluating information.

The following stage is learning and evaluation. Participants assess written evidence submitted by opponents and proponents of the ballot measure, and question both campaigners and independent experts. They then add to, edit, deliberate on, and prioritise all the evidence collected.

The editing and refining information phase is carried out in smaller groups where participants are invited to discuss and draft evidence statements, examine costs, benefits, and trade-offs of the proposed ballot measure (Healthy Democracy, 2019).

Finally, they draft a collective statement that includes the most important information for all voters to know. In addition to general information relevant to all voters, participants also select certain evidence that is strongest in favour of and against the measure, and then explain why each piece of evidence is important to one side or the other.

Their final statement is presented publicly in the press conference to the wider public and is included in the voters' pamphlet, which reaches every voter across the state. Compared to the other deliberative engagement models, CIR is less visible publicly until it has finished its work. The final result of the CIR is not addressed to the government, but rather to fellow citizens, helping them make better informed voting choices on ballot measures. The method can be a powerful tool to help counteract the spread of misinformation and disinformation ahead of a vote.

The House Bill establishing the details of the CIR can be found here (in English): <https://olis.leg.state.or.us/liz/2011R1/Downloads/MeasureDocument/HB2634/Enrolled>.

There is more information about the CIR in Chapter 2 about deliberative models.

Another way that this route to institutionalising public deliberation can be achieved is through legislation or regulations that require a deliberative process to take place under certain circumstances or in relation to a

specific policy issue. For instance, a representative deliberative process is required in France for as part of a broader citizen participation exercise for any changes to laws regarding bioethics (Box 6.7).

Box 6.7. Institutionalised deliberation in France

Citizen participation and deliberation in shaping bioethics policy (États généraux de la bioéthique)

Article 46 of the French 7th July 2011 law on bioethics institutionalises the obligation to organise public debates and deliberations for any changes of the laws relating to bioethics. The National Consultative Ethics Committee (CCNE), together with the parliament, is assigned responsibility to organise these public debates, that take the form of États Généraux.

The law defines États Généraux as various forms of citizen consultations and citizen conferences comprised of citizens selected to represent the diversity of the public. Citizens participate via both traditional consultation methods such as online submissions and online surveys, as well as representative deliberative processes where they learn, deliberate and produce recommendations on policy questions.

The 7th July 2011 law is available in French at:

<https://www.legifrance.gouv.fr/affichTexte.do?cidTexte=JORFTEXT000024323102&categorieLien=id>.

A similar piece of legislation is in place in Mongolia since 2017 (Box 6.8). It outlines that a Deliberative Poll (see Chapter 2 for more details about this model) is required to be organised for any constitutional amendments, projects to be funded by local development funds, or urban planning projects. Additionally, in overlap with the third route to institutionalisation described in the following section, the law also gives citizens the right to initiate a Deliberative Poll, if enough signatures are gathered, at the capital city and district levels.

Box 6.8. 2017 Mongolian Deliberative Polling Law

In 2017, the national parliament of Mongolia passed a “Law on Deliberative Polling”. The law defines the model of Deliberative Polling, sets its principles, defines circumstances under which deliberative polling is to take place, sets the composition and the role of an advisory committee, defines the process of organising a deliberative poll and taking into account its recommendations, as well as ensures funding to carry out such deliberative processes.

According to the law, Deliberative Polls have to be organised for any constitutional amendments, projects to be funded by local development funds, or urban planning projects (Fishkin, 2018:244). It suggests public authorities consider organising a deliberative poll after a request by residents. To initiate a Deliberative Poll in the capital city, 500 resident signatures are required, and to initiate one on district level, 300 signatures are needed (Fishkin, 2018: 245).

The law is available here: <https://www.legalinfo.mn/law/details/12492?lawid=12492>.

Bioethics decisions and constitutional amendments are not the only types of public decisions that can benefit from having requirements for public deliberation in place. In Denmark and the UK, there have been different variations of programmes to involve citizens in policy discussions about complex science and technology issues (Box 6.9).

These are not institutionalised in the sense discussed here – there is no law or regulation requiring deliberative processes to take place on these issues in specific circumstances, so they are not discussed in detail. However, considering them together with the French example (Box 6.7) highlights how the same

principles of having public deliberation requirements on bioethics policy could be applied to broader science and technology issues.

For instance, it could be envisaged that legislation could be passed to ensure that before new legislation or regulation is approved regarding an emerging technology, there is a deliberative process that results in informed citizen recommendations to parliament and/or government on the issue.

Box 6.9. Deliberative processes for assessing science and technology: Denmark and the UK

Danish Board of Technology

The Danish parliament established the Danish Board of Technology (DBT) in 1985 with an aim to institutionalise the assessment of technology in a participatory manner (Joss, 1998). The board was free to choose which technological projects to assess and what methods to use. It was funded by the government. The main criteria for choosing the questions for stakeholder and citizen deliberation were:

- a technological aspect;
- relevance to a large part of society;
- potentially controversial; and
- potential to benefit from discussing cultural and social aspects.

One of the main models of deliberative processes, the Consensus Conference (detailed in Chapter 2), was developed by the Danish Board of Technology for the purpose of stakeholder and citizen deliberation on technology-related policy issues. It was used widely to involve citizens and gather their opinions and recommendations regarding various new technologies.

In 2011, the Danish Board of Technology was abolished by law as a publicly funded institution. Since 2012, it continues its work as a non-profit foundation.

More information is available at: <http://tekno.dk/?lang=en>.

UK Sciencewise Programme

Sciencewise is a programme led by UK Research and Innovation, an independent organisation principally funded through the Science Budget by the Department for Business, Energy and Industrial Strategy (BEIS). It is an initiative of the government to develop policy in the areas of technology and science that is informed by citizen and stakeholder participation.

The Sciencewise programme supports government organisations and bodies in commissioning deliberative processes by providing advice, expertise, and up to 50% of funding. The priority themes include artificial intelligence and data, future of mobility, ageing society, clean growth, genomics, and gene editing. Sciencewise accompanies government organisations during each stage of the dialogue process: from scoping to forming an oversight group, and assessing the impact.

More information is available at: <http://sciencewise.org.uk/>.

In Japan, two cities, Yoshikawa and Iwakura, have institutionalised a specific form of representative deliberative process that translates as Citizen Deliberation Meeting (similar to Planning Cells, see Chapter 2) as a formal method of citizen participation to inform public decision making. The municipal laws in both of these places recommend the use of these Citizen Deliberation Meetings to policy makers, who are able to initiate them for any policy issue. There are no specific conditions specified under which it is obligatory for public authorities to use a representative deliberative process. Rather, it is an example of how the

details of a deliberative model can be put into law to ensure the quality of the process for when it is employed, as well as to encourage its use (Box 6.10).

Box 6.10. Citizen Deliberation Meetings in cities of Yoshikawa and Iwakura, Japan

Yoshikawa and Iwakura city legislation institutionalises a non-mandatory option for the municipalities to organise Citizen Deliberation Meetings (i.e. a type of a Planning Cell, see Chapter 2) as a formal method of citizen participation to inform their decision making.

The law details various elements that city governments must achieve regarding how these processes should be organised, such as random selection of participants, remuneration, and transparency of information about the meetings.

The existence of these laws has not necessarily led to more Citizen Deliberation Meetings being organised in these two cities than in other Japanese localities. A lesson can be drawn that institutionalising deliberative processes in a way that does not make them mandatory, but only includes them as an option, does not necessarily increase their use. Such a law can, however, be helpful in ensuring minimal standards of representative deliberative processes when they do take place.

The law detailing citizen participation in Yoshikawa via Citizen Deliberation Meetings (in Japanese):

http://www.city.yoshikawa.saitama.jp/reiki/H416901010015/H416901010015_j.html.

The law detailing citizen participation in Iwakura via Citizen Deliberation Meetings (in Japanese):

<https://www.city.iwakura.aichi.jp/cmsfiles/contents/0000000/385/cllm400000003uje.pdf>.

In the same category of institutionalising processes that have been successful on a one-off basis, public deliberation could also become a regular part of public budgeting. Typically, participatory budgeting entails setting aside a limited proportion of an overall budget and inviting the public to express their preferences about the best use of resources (OECD, 2019). However, there are numerous examples from Australia – Canada Bay (2012), Greater Geraldton (2013), Darebin (2014), and Melbourne (2014) – where citizens were involved in deliberating on and developing proposals for the entirety of a budget (Box 6.11). Arguably, involving citizens to weigh the trade-offs and consider the complexity of an entire budget results in recommendations that consider the bigger picture and the longer-term view than participatory budgeting initiatives limited to one portion of a public budget.

Beyond provisions 8 and 9 of the OECD Recommendation of the Council on Open Government (2017), institutionalising public deliberation on budgeting would also help to strengthen implementation of provision 5.b. of the OECD Recommendation of the Council on Budgetary Governance (2015), which suggests that adherents:

“Provide for an inclusive, participative, and realistic debate on budgetary choices by facilitating the engagement of parliaments, citizens, and civil society organisations in a realistic debate about key priorities, trade-offs, opportunity costs, and value for money”.

Box 6.11. Institutionalising public deliberation as part of public budgeting

Canada Bay, Australia (2012)

In 2012, for the first time in Australia, a local council used a deliberative process to garner informed citizen advice on a full set of decisions regarding services and funding. The council in Canada Bay, in metropolitan Sydney, commissioned a Citizens' Panel that was asked the question: "What services should we deliver in the City of Canada Bay, and how should we pay for them?"

Thirty-six randomly selected and demographically stratified citizens were asked to consider the trade-offs involved in ensuring the delivery of hundreds of services within a constrained revenue environment, and asked them to explore their preferred balance of services and funding changes.

This Citizens' Panel met five times over 2.5 months and had access to detailed information and technical expertise to enquire in detail. The council agreed that the Panel would set the level of service to be provided for in the 2014-18 Delivery Plan, subject to the final approval of council. This example goes beyond consultation and beyond traditional participatory budgeting, allowing the citizens a far greater say in the operations of their local government.

More information is available at: <https://www.newdemocracy.com.au/2013/03/30/city-of-canada-bay/> and in Thompson, Nivek (2012), "Participatory Budgeting – the Australian Way", *Journal of Public Deliberation* 8(2): Article 5.

Greater Geraldton, Australia (2013)

In September 2013, the Greater Geraldton council formally approved the implementation of two stratified, random sample Participatory Budgeting (PB) Community Panels. One was a 10 Year Capital Works Participatory Budgeting Panel, tasked with deliberating and recommending a priority list of capital works projects to be funded (around \$70 million AUD over 10 years). This needed to include a set of criteria to determine that ranking that could be used by the city for deciding future priorities.

The second one was the Range and Level of Services Community Panel, tasked with recommending the allocation of 100% of the City Region's operational budget of around \$70 million AUD annually. It had the remit of recommending to the council the community desired range, level, and priority of services to achieve minimal rate increases, or reductions, within the budget limitations set by the council's adopted Long Term Financial Plan.

More information is available in: Hartz-Karp, Janette (2012), "Laying the Groundwork for Participatory Budgeting – Developing a Deliberative Community and Collaborative Governance: Greater Geraldton, Western Australia", *Journal of Public Deliberation* 8(2): Article 6; and in Weymouth, Robert and Janette Hartz-Karp (2015), "Deliberative Collaborative Governance as a Democratic Reform to Resolve Wicked Problems and Improve Trust", *Journal of Economic and Social Policy* 17(1): Article 4.

Darebin, Australia (2014)

In 2014, the Darebin city council established an infrastructure fund (\$2 million AUD in 2014-2016) and used a Citizens' Jury process to get advice on how this money should be spent. At the outset, council committed to accepting the Jury's recommendations on an "all or nothing" basis.

The Darebin Participatory Budgeting Citizens' Jury meet for four full days over the course of four months. They reviewed submissions from the Darebin community as well as ideas from the jurors. They presented their recommendations to the mayor and councillors, recommending eight specific infrastructure developments. The council unanimously approved the Jury's recommendations.

More information is available at: <https://www.newdemocracy.com.au/2014/02/20/darebin-participatory-budgeting-citizens-jury/>.

Melbourne, Australia (2014)

In 2014, the City of Melbourne produced a \$5 billion AUD 10 Year Financial Plan, which was informed by the Melbourne People's Panel, a descriptively representative random sample of 43 citizens who provided a considered set of recommendations to inform the lord mayor and councillors. The City's scope of operations is in the region of \$400m annually. This was the largest city with the largest budget being opened up to citizens through a deliberative process.

More information is available at: <https://participate.melbourne.vic.gov.au/10yearplan>.

3. Rules allowing citizens to demand a representative deliberative process on a specific issue

Finally, the third route to institutionalising public deliberation is to give citizens the right to initiate a representative deliberative process on a specific issue if they gather enough signatures. This often takes the form of legislation or regulation that stipulates that citizens are able to demand a public body to organise a deliberative process on a specific issue if the number of signatures in support of the demand meets a specified threshold.

As mentioned in the introduction, there are ways to combine the different institutionalisation methods. Some of the previously mentioned examples therefore include the element of citizen initiative, notably the Mixed Deliberative Committees initiated by the parliament of the region of Brussels (Box 6.4) and the Mongolian Deliberative Polling Law (Box 6.9).

Beyond these cases, however, there are additional examples from Poland and Austria where rules have been introduced to allow citizens to demand a deliberative process. Five of the biggest Polish cities have passed local regulations that give citizens the right to demand that a deliberative process is organised if enough signatures are gathered (Box 6.12). This right has not yet been used by citizens.

Box 6.12. Local legislation that allows citizens to initiate representative deliberative processes on the local level in Poland

In Poland, the national law allows cities to create local rules on citizen participation (Law 16/95/1990, Article 5). Several cities have used this opportunity to specify the types of methods of citizen participation that can be used. Making use of this national law, the cities of Gdańsk (Law XVI/494/15), Kraków (Law CXI/2904/18), Lublin (Law 722/XXVIII/2017), and Poznań (Law VIII/844/VII/2017) have all institutionalised models of deliberative participation. In Gdańsk, Kraków, Lublin, and Poznań, the law makes an explicit reference to Citizens' Panels ("Panel Obywatelski" in Polish).

In all of these cities, citizens can initiate participation processes, including deliberative processes, by collecting signatures supporting their initiative. The threshold varies from city to city. For instance, 1,000 signatures are required to propose such a process in Gdańsk, and with 5,000 signatures, the request cannot be refused by the mayor. In Lublin, only 350 signatures are required to request a participatory process. In Poznań, a request with 2,000 signatures cannot be denied.

The rules establishing citizen participation in Lublin can be found here (in Polish): <http://bit.ly/2SfOuTA>.

Similarly, in the Austrian state of Vorarlberg, 1,000 citizen signatures can prompt the state government to organise a Citizens' Council (Box 6.13). This right was used for the first time in 2017, when a petition with 1,400 signatures led to a Citizens' Council about the future use of land in the state (Vorarlberg.at, 2017).

Box 6.13. Citizens' Councils in Vorarlberg, Austria

The Austrian state of Vorarlberg has a long history of constitutional reforms that favour direct and participatory democracy (Palermo and Alber, 2015: 225-28). Article 1, paragraph 4 of the Land constitution of Vorarlberg was amended in 2013 to include a reference to direct democracy initiatives, referendums, public consultations, and supporting other forms of democracy, notably Bürgerräte, which literally translates to Citizens' Council.

Citizens' Councils can be initiated in three ways: if 1,000 or more citizens sign a petition asking for one, by a decision of state government, or by the state parliament. Citizens used this right of initiative for the first time in 2017 to deliberate on the handling of land.

Citizens' Councils are typically composed of around 15 randomly selected citizens and last two consecutive days. The first part of the process allows participants to identify issues of public interest to be discussed by the Citizens' Council within the proposed subject, and there is no strictly predetermined remit.

During the next step, citizens engage in facilitated deliberation, develop solutions to the problems identified, and produce collective recommendations (Partizipation.at, 2019). The process relies on the method of dynamic facilitation, where the facilitator encourages participants to speak their minds without having to follow a strict agenda or process; it is a safe place for everyone to express themselves is created, leading to openness, inclusion, and creative solutions (Center For Wise Democracy, 2019).

Recommendations are then presented and discussed with the broader public in a Citizens' Café, which is open for anyone to attend. Finally, the recommendations are presented to the local government and a small group of participants are assigned to follow up with the government on how the recommendations have been implemented (Partizipation.at, 2019).

The regional government guidelines for convening and implementing Citizens' Councils define a range of important elements, including for what purpose Citizens' Councils should be used, what are their main elements, what is their role in relation to the institutions of representative democracy, who can initiate these processes of deliberative engagement and other details.

According to the guidelines, the Citizens' Council process has to be followed by an event where citizens' recommendations are presented publicly (a Citizens' Café), as well as by delivering recommendations to decision makers. It recommends the use of Citizens Councils when dealing with complex issues that affect the broader society, common good and requires a broad social consensus. Practices of deliberative democracy are seen as a complement to institutions of representative democracy, and the role of Citizens' Councils is to recommend and consult.

The regional government guidelines for convening and implementing Citizens' Councils can be found here (in German): https://www.partizipation.at/fileadmin/media_data/Downloads/methoden/Buergerrat_Richtlinie.pdf.

In an adjacent way, the rules of the French Economic, Social, and Environmental Council (Conseil économique, social et environnemental, CESE) also allow for a certain threshold of citizen signatures to trigger a debate (Box 6.14). At the moment, this debate takes place amongst members of the CESE, who are representatives of civil society organisations. One possible reform could be to allow a certain number of citizen signatures to trigger the organisation of a deliberative process, like the French Citizens' Convention on Climate. During this Convention, 150 randomly selected citizens had a mandate to meet for seven long weekends from October 2019 until April 2020 to develop detailed recommendations that would either go directly to a parliamentary debate or to a national referendum.

Box 6.14. French Economic, Social, and Environmental Council (Conseil économique, social, et environnemental, CESE)

The Economic, Social, and Environmental Council is a consultative assembly that facilitates the debate of civil society organisations, associations, and other stakeholders. The Council can be called to debate over a certain public policy by either a petition signed by 500,000 citizens, the government, or the parliament.

As one of the outcomes of the “Great Debate” in early 2019, French President Emmanuel Macron pledged to transform the CESE into a Citizen Participation Council – a deliberative body consisting of randomly selected citizens. At the time of writing, no reforms have been implemented.

More information is available at: <https://www.lecese.fr/en>.

Moving from *ad hoc* initiatives to institutionalised practices: Requirements, obstacles, and strategies

Three existing routes to institutionalising public deliberation have been discussed: establishing a permanent or ongoing deliberative body; creating legal or regulatory requirements to organise a deliberative process under certain conditions, and creating legal or regulatory rules that give citizens the right to initiate a deliberative process. Other possibilities could also be envisaged, and will be the focus of future OECD research on how to implement the OECD Recommendation of the Council on Open Government (2017).

While numerous examples of where each of these three routes have been implemented have been discussed, this section considers what is needed and what are the obstacles to achieving any or all of these institutionalisation options. It thus explores the requirements of moving from an idea to implementation, the potential difficulties that could be encountered, and strategies to meet the requirements and overcome the obstacles.

The right institutional design

First and foremost, successful institutionalisation requires the right design for the context. This will vary depending on the level of government (i.e. national/federal, regional/state, or local) and other institutional factors (i.e. in what branch of power the deliberative practise will be institutionalised and phase of the policy cycle). There is no “one size fits all” approach. The challenge is that there are currently limited examples of institutionalisation, and only a few (mostly academic) papers proposing viable designs that are yet to be tested. An institutionalisation design guide does not yet exist, though this could be an area of future OECD work to build further on the initial explorations in this report.

Political support

Institutionalisation requires support from politicians – not only the ones needed to enact a law or a regulation, but enough of a cross-party consensus to maintain it when governments change. It is difficult to achieve such agreement across political divides, and even more so sustainably. There is a risk when an initiative is perceived to be associated with the agenda of one political party, as the example of the Madrid City Observatory demonstrates (see Box 6.3). A potential strategy could be to identify situations where institutionalising citizen deliberation can help to solve a recurring vexing problem that affects all parties, and that is not being solved with the usual methods.

Elected representatives, as well as key senior civil servants, also tend to see decision making as their role, and this relates to both making policy decisions, but also making decisions about when and if citizens get a say on any particular topic. Few politicians have witnessed or experienced one-off deliberative processes – let alone institutionalised examples – so it is not necessarily familiar or easy to understand, with unclear benefits and large potential risks. Increasing opportunities for politicians and civil servants to witness citizen deliberations and to speak with counterparts in other places who have had these experiences could be a promising starting point.

Elected representatives and officials must overcome scepticism about the competency of ordinary people to address complex problems. This is an understandable reaction given that citizen engagement is often designed in such a way to garner people's top-of-the-head opinions about an issue. Many times, even when there is recognition that citizen involvement is necessary and helpful, the argument that an issue is too complex for ordinary citizens arises. Without providing citizens with the necessary time and information to understand an issue, this is certainly true. However, deliberative processes are designed in such a way to overcome these typical shortcomings of public consultation, allowing citizens to become informed about the multifaceted aspects of a policy issue.

Support from civil servants

Institutionalisation also needs backing by civil servants – not only those at the top of public authorities, but also the “hands on” officials at lower levels who have to incorporate these new practices into their work programmes. Civil servants charged with decision making and public engagement on complex policy issues have challenging jobs already, without adding new requirements. However, as with elected representatives, one potential solution could be to search for situations in which institutionalising deliberation could help solve pressing challenges for civil servants.

Many have also had bad experiences with traditional forms of consultation, where “open” meetings or forums (offline and online) tend to be dominated by the noisiest voices and those with the most to lose. Outputs in such processes tend often take the form of wish lists that do not consider the constraints and trade-offs. A degree of understanding about how deliberative processes differ, and also how they can be combined with other forms of stakeholder participation effectively, is needed. Achieving this might require dissemination events, specific training, and career or salary incentives. Promising opportunities for institutionalisation are presented in situations where public participation is mandated, and where the usual processes are not helping civil servants to deliver more effective and legitimate solutions.

Moreover, there is a need for cultural change within the public service – it is not enough to have a few committed individuals – and within society more broadly to recognise the importance and capability of citizens playing a role in public decision making. Too often citizen participation is viewed as a threat, or an expensive additional step, rather than as a way to complement the existing institutions of representative democracy and to strengthen policies by early involvement of the public. Institutionalisation requires a commitment from all stakeholders to sustained change.

Support from the public and the media

Achieving greater public backing requires a supportive media environment where outlets and journalists are willing and encouraged to give coverage to deliberative processes. In most OECD countries, neither the media nor the public are well-informed about deliberative processes. This is starting to change, notably in countries where high-profile national initiatives have taken or are taking place, but is not yet on a scale needed for cultural change.

Public communication can be used as a strategic tool not only to facilitate deliberative processes, but also to increase public support for them. Involving the person responsible for communicating deliberative processes (such as a press officer, media advisor, or director of communications) from the very beginning

could be beneficial. They can help develop a communications strategy, organise press conferences, and handle media requests, maximising the opportunities for quality media coverage as a result.

A supportive legal and regulatory framework

Once the political and public will is in place, there are considerations of whether new legislation or regulation is needed, or whether existing legislation, regulation or governance arrangements need to be amended or revised. For example, governments should consider drafting pieces of legislation or regulations that introduce a requirement for a deliberative process under certain conditions (such as before a public decision is taken regarding long-term projects that cost a certain amount) and to allow citizens to initiate a deliberative process if they gather enough signatures. For accountability, there should be a provision that states that above a certain threshold, public decision makers are not able to ignore the petition, as is the case in certain Polish cities (see Box 6.12). The level(s) of government at which the legislative and/or regulatory changes are required is an aspect to consider. Once again, as the Polish example highlights, often changes are required at multiple levels.

Beyond legal changes to establish rules or requirements for public deliberation, additional legal support issues need to be addressed to make organising deliberative processes easier, less costly, and to result in better outcomes. For example, the rules in OECD countries, and within countries at different levels of government, differ in regards to access to databases to carry out a random selection process, like a civic lottery, well. Legislation and regulation should be adapted so that the most complete databases that exist can be used for the random selection procedure, to ensure that the largest number of people possible have a fair chance of being selected to participate at the outset. Consideration in doing this should always be given to inclusivity. In particular, many of the most vulnerable people are not citizens, so they will not necessarily appear on electoral registers or other databases. All of these considerations should be in light of overarching personal data protection rules, such as the European Union's General Data Protection Regulation (GDPR).

A next step would be to introduce requirements for employers to provide paid leave to participate in a deliberative process, as is the case with criminal juries, or for public authorities to compensate employers. If citizens' time and inputs into policy making are valued, then it is important to compensate their time and ensure inclusivity. Providing paid leave and reimbursement of costs to participate in a deliberative process would help ensure the implementation of the good practice principle of inclusiveness (see Chapter 5)³. It would also demonstrate the seriousness and importance of citizen involvement in policy making, and would encourage citizens to participate as a way of fulfilling their civic responsibility as citizens of a democratic community.

Sufficient capacity within and outside government

Institutionalisation also requires sufficient capacity, both within and outside of government. There need to be enough civil servants who know how to commission a deliberative process and understand their role as neutral hosts. Equally, there need to be enough highly skilled practitioners who know how to design, organise, run, and facilitate deliberative processes. Practitioners can be within government if they are established in independent, arm's length institutions from commissioning authorities. They can also be external providers, such as the many organisations that have delivered the projects analysed in this report. Civil servants need to understand the benefits and know how to tender, commission, and work with practitioners for a deliberative process.

One strategy to address these challenges could be for governments to either establish an office permanently in charge of deliberative processes (such as a "Centre of Excellence on Deliberative Democracy") or an office with a broader remit that could also focus on deliberative processes. For instance,

this could be the Open Government office or a “Centre of Excellence on Deliberative and Participatory Democracy”.

Such a centre could be funded by government, but at arm’s length in order to stay unbiased and trustworthy. Examples of similar institutions that exist include the French Centre for Citizen Participation (Box 6.15) or the UK What Works Centres (Box 6.16). Professional staffing might be by civil service employees or universally respected and impartial civil society organisations (CSOs) or universities under government contract. In addition to running deliberative programmes, the remits of such an office could be:

- **Setting standards** of good practice for deliberative processes for public decision making that are in line with the OECD Good Practice Principles and are adapted to the context. This is important to avoid corruption or manipulation of the procedures. Having an office or agency with the priority of maintaining the integrity of the process can enhance its legitimacy and trustworthiness. Documented good practices and professional staff allow the process to remain impartial and independent of partisan politics;
- **Advising decision makers** who are considering the uses of citizen deliberation in their work;
- **Building knowledge** in the government and public institutions more broadly by **training civil servants** to be smart commissioners and neutral hosts. There needs to be a clear delineation of functions: those who initiate the process; those who organise and run it; and those who supervise it;
- **Monitoring and evaluation of ongoing deliberative processes and their impact** to ensure that collective learning ensues (for example, about which processes do and do not work well in particular contexts) and that the outputs have influence on public decision making;
- **Managing a budget** dedicated to funding deliberative processes;
- **Investing in the skills and capabilities of civil society organisations** that could be capable of organising, running, and facilitating a deliberative process, since institutionalisation implies a greater need for more operators, and
- **Regularly reporting findings from representative deliberative processes to government and parliaments** to ensure the cumulative benefit of deliberative processes are related to the parliamentary and government cycles.

Furthermore, a Citizens’ Advisory Council could support the work of a Centre of Excellence, comprised of randomly selected citizens who rotate serving a one- or two-year mandate. The remits of such a council could be twofold. One being the monitoring and evaluation of ongoing deliberative processes alongside the Centre for Excellence. The second being to monitor implementation of accepted recommendations made by one-off deliberative processes. In an institutionalised context, there will be more representative deliberative processes taking place. While sometimes the process is evaluated (32% of the time amongst the 282 cases in OECD Member countries; see Chapter 3), the impact is harder to measure and is rarely evaluated. A Citizens’ Advisory Council could have an oversight function to follow-up on the implementation of accepted recommendations by public authorities at all levels of governance.

Box 6.15. French Centre for Citizen Participation (Le centre de la participation citoyenne, CPC)

Launched on 25 November 2019, the Centre for Citizen Participation was set up by the Inter-ministerial Directorate for the Support of Public Sector Transformation (DITP) and relates to the executive branch of government.

The Centre offers ministries advice and expertise on citizen participation and engagement in policy making. As a resource and skills centre, it provides strategic advice for decision makers and methodological advice for the steering committees of deliberative processes. It also helps policy makers to implement recommendations produced by citizens.

More information is available at: <https://participation-citoyenne.gouv.fr/>

Box 6.16. UK What Works Centres

The What Works Network is an initiative to use evidence to improve the design and delivery of public services. It aims to improve the way that government and other public sector organisations “create, share and use (or ‘generate, translate and adopt’) high quality evidence in decision making. It supports more effective and efficient services across the public sector at national and local levels” (GOV.UK, 2019).

The What Works Network consists of nine independent What Works Centres, three affiliate members, and one associate member. The bodies of interest in relation to establishing a Centre of Excellence as suggested in this report are the What Works Centres.

The centres help to ensure that evidence shapes decision making by:

- “Collating existing evidence on the effectiveness of programmes and practices;
- Producing high quality synthesis reports and systematic reviews in areas where they do not currently exist;
- Assessing the effectiveness of policies and practices against an agreed set of outcomes;
- Filling gaps in the evidence base by commissioning new trials and evaluations;
- Sharing findings in an accessible way;
- Supporting practitioners, commissioners and policymakers to use these findings to inform their decisions” (GOV.UK, 2019)

The centres are funded through a combination of government and non-government sources, which include the Economic and Social Research Council (ESRC) and the Big Lottery Fund. They are supported by the What Works National Advisor and his team in the Cabinet Office.

More information is available at: <https://www.gov.uk/guidance/what-works-network>

Sufficient funding

Some budgetary obligations are required to make institutionalisation a feasible endeavour. It requires some initial investments in establishing sustainable infrastructure (either through legal or regulatory rules, or new institutions that play the role of a secretariat or similar). While this requires a budgetary commitment, a public sector cost-benefit analysis of citizen participation and deliberation could identify that when deliberative processes are institutionalised, it is less costly than one-off experiences.

Limits to institutionalisation

This chapter has largely explored the potential of institutionalisation and the experiments taking place thus far. However, institutionalisation may not always be beneficial. It is important to consider the potential limitations and how they might be mitigated.

The same as with one-off deliberative processes, an important consideration when designing institutionalised citizen deliberation is to take into account that deliberative processes are not well-suited for every type of policy issue. They are best used for addressing values-driven policy dilemmas, complex problems that require trade-offs, and long-term issues that go beyond the short-term incentives of electoral cycles (see Chapter 1).

It is important to avoid a “one size fits all” model of institutionalisation. This chapter has already laid out three different routes – which could be combined in various ways – and many other possibilities could exist. The political, legal, and institutional contexts all matter when deciding if and how to institutionalise public deliberation. Moreover, it is equally imperative to leave enough room for experimentation and to make changes to institutional design based on evaluation and learning. If it is too highly regulated with too many constraints, institutionalisation could thwart innovation and participation. For example, participatory budgeting (PB) activists in Porto Alegre did not necessarily want the PB process to be codified because they believed that it would remove the potential for experimentation, creativity, and innovation (Baiocchi, 2005, as cited in Smith, 2009: 50). The downside of not codifying, however, meant that the PB process was vulnerable with a change of government.

The more that deliberative processes are used, and the more that they are involved in shaping important public decisions, the more likely they are to come under attack. They will thus need to garner greater legitimacy. As Mansbridge (2018) argues, “robust legitimacy derives not only from appropriate delegation but from the design and the public presentation of the mini-publics themselves”. Effective public communication is a critical component of success to ensure that the representativeness of the participants in the deliberative process, the balanced and extensive nature of the evidence and expertise presented to participants, and the quality of deliberation and results are well-publicised. These points are reflected in the OECD Good Practice Principles for Deliberative Processes for Public Decision Making (see Chapter 5).

The introduction of institutionalised deliberative processes also raises new questions about the meaning of accountability, which today primarily denotes the capacity to sanction through elections. However, accountability did not always have this restrictive definition. When the word first came into use in the 1960s, it meant literally to give an account – “having to describe, explain, and justify one’s actions to those to whom one is responsible” (Mansbridge, 2019: 193-4). Introducing permanent or ongoing deliberative processes as complementary institutions to representative institutions thus requires a consideration of how such initiatives enhance existing accountability mechanisms and how participants can be accountable to one another and to members of the public. Table 6.1 offers an overview of this more deliberative view of accountability:

Table 6.1. Types of accountability in deliberative processes with participants chosen by lot

Accountability type	Level of formality	
	Formal	Informal
Sanction-based	Laws against bribery and other forms of wrongdoing.	Representatives monitoring and sanctioning the norms of discourse within their own deliberations. Members of the public exerting informal pressures on the representatives.
Deliberative	Collective written accounts to fellow representatives or the public.	Representatives mutually listening, explaining, and justifying perspectives, opinions, and interests to one another. Representatives doing the same with the larger public or specific constituents, face-to-face, or through media.

Source: Mansbridge (2019).

Finally, as stressed throughout the chapter, institutionalisation is in the experimental stage. Any institutionalisation efforts should therefore be monitored and evaluated. It is a collective learning process.

Notes

¹ Institutionalise and embed are used interchangeably throughout this chapter and report to mean the same thing.

² This group included: Bjørn Bedsted (Danish Board of Technology, Denmark) Yago Bermejo Abati (Deliberativa, Spain); Terrill Bouricius (Former elected official and unaffiliated political scientist, United States); Lyn Carson (newDemocracy Foundation, Australia); Nicole Curato (Centre for Deliberative Democracy and Global Governance, Australia); Yves Dejaeghere (G1000 Organisation, Belgium); Mahmud Farooque (Arizona State University Consortium for Science, Policy, and Outcomes, United States); Doreen Grove (Scottish Government, United Kingdom); Brett Hennig (Sortition Foundation, United Kingdom); Dominik Hierlemann (Bertelsmann Stiftung, Germany); Angela Jain (Nexus Institute, Germany); Dimitri Lemaire (Particitz, Belgium); Miriam Levin (UK Government, United Kingdom); Peter MacLeod (MASS LBP, Canada); Arantxa Mendiarrat (Deliberativa, Spain); Min Reuchamps (UC Louvain, Belgium); David Schecter (Democracy R&D, International Network); Graham Smith (Centre for the Study of Democracy, University of Westminster, United Kingdom); Jane Suiter (Institute for Future Media and Journalism, Dublin City University, Ireland); Nivek Thompson (Deliberatively Engaging, Australia), Niamh Webster (Scottish Government, United Kingdom), and Antoine Vergne (Missions Publiques, France).

³ Principle 5 on inclusiveness states: “Inclusion should be achieved by considering how to involve under-represented groups. Participation should also be encouraged and supported through remuneration, expenses, and/or providing or paying for childcare and eldercare.”

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7

Other interesting deliberative practices

Ieva Česnulaitytė and Mauricio Mejia Galvan

This chapter describes other deliberative practices that did not meet all three criteria for inclusion in this report: impact (commissioned by a public authority); representativeness (participants were randomly selected and demographically stratified); and deliberation (they had at least one full day of face-to-face meetings). The examples in this chapter are nonetheless valuable and relevant for the OECD's broader work on citizen participation. The first part of the chapter looks at the other types of deliberative trends across the world: Deliberative Polls in Africa; deliberative practices in Latin America and India; as well as international and transnational deliberative processes.

The second part of the chapter discusses other creative ways that deliberative processes have been used in responding to social mobilisation, designing new models of democracy, drafting constitutions, as well as in democracy festivals and 21st Century Town meetings.

Introduction

This report has covered a range of representative deliberative processes that meet three specific criteria: impact (they were commissioned by a public authority); representativeness (their participants were randomly selected and demographically stratified), and deliberation (they had at least one full day of face-to-face meetings). For comparative reasons, all cases had to have these elements in common. However, across the world, there have been many other deliberative processes that were shorter, where their participants were not randomly selected, or they were initiated, funded and carried out by academia or civil society organisations, without support or link to public authorities. These examples were not included for methodological rigour to ensure comparability of similar processes. However, they are equally as important, valuable, and promising, and could also be ways that countries could implement provisions 8 and 9 of the Recommendation of the Council on Open Government (2017).

Deliberative processes have also been subject to innovation and were an integral part of proposed new models of democratic institutions, such as in the Byron Shire Council model of democracy in Australia, or were used in complex processes of drafting constitutions in an open manner, such as in Iceland and Chile. The context of those deliberative processes of the study which were part of a broader innovative democratic experimentation was not discussed, therefore this chapter explains some of these creative uses of deliberative processes.

What is covered in this chapter is therefore not an extensive analysis, as it is not based on the data collection conducted for this report. It is rather a short overview to complement the core report findings, as many of these examples and other notable deliberative democratic innovations are extensively covered elsewhere (see Elstub and Escobar, 2020: 371-449).

Deliberative trends across the world

Deliberative Polls in Africa

This report does not feature any examples from Africa, as there have not been any that were commissioned by public authorities to the best of the authors' knowledge at the time of writing. However, there have been several deliberative processes that should be recognised. To date, there have been four Deliberative Polls in Malawi (2017), Senegal (2016), Ghana (2015), and Uganda (2014). Deliberative Polls were conducted by the Resilient Africa Network together with Center for Deliberative Democracy led by James S. Fishkin (Cdd.stanford.edu, 2020; see Chapter 2 for a description of Deliberative Polls).

Resilient Africa Network is a partnership of African Universities financed by the USAID (ResilientAfrica Network, 2020). In addition, a more experimental Deliberative Poll took place in Tanzania in 2015 and was conducted by a group of academics and civil society organisations and funded by development foundations. This Deliberative Poll was done in parallel to an informational session undergone by a second random sample of participants. The results in opinion change of both groups (the one that was exposed to learning and deliberation and the one that was only subject to learning) were compared, revealing the strong importance deliberation had in shaping citizens' opinions (Birdsall *et al.*, 2018).

Deliberative polls in Africa have been successful in engaging citizens in informed deliberation and produced well thought-through recommendations for all levels of government: local (Senegal and Ghana), regional (Malawi and Uganda), and national (Tanzania). The policy issues covered in these polls have been: flooding and community relocation; food security; water; sanitation; hygiene; challenges of rapid urbanisation; dealing with environmental disasters and population growth; and the use of natural resources.

All of the Deliberative Polls have had high participation rates and intensive deliberation (Fishkin *et al.*, 2017:151). Furthermore, it was found that even though some of these countries experience low levels of education, this has not significantly affected the deliberation and is not an obstacle for such processes to be implemented (Chirawurah *et al.*, 2019:31). As a result, several evaluation studies highlight the importance and potential of informed deliberation in shaping development policies in this region (Chirawurah *et al.*, 2019:31). This shows the universal nature of deliberative processes and their adaptability to different contexts and applicability for addressing policy questions related to development. However, in cases where foreign aid is used to conduct deliberative processes, particular efforts could be taken to ensure transparency and accountability of the process, which helps enhance the legitimacy of its outcomes.

Deliberative practices in Latin America

Deliberative practices are widespread in the Latin American region, though they tend to take a different form to the models of representative deliberative processes described in this report. There are interesting one-off and institutionalised examples.

One of the notable ad hoc deliberative experiments took place in Colombia in 2012. Researchers from the University of Bern organised a deliberative process with Colombian ex-members of paramilitary and guerrilla organisations to study deliberation in a post-conflict situation. The results of 28 roundtables showed that fruitful deliberation can happen in hostile and conflictual environments. Researchers also found that deliberation can be key in post-conflict situations as it facilitates dialogue, understanding and reconciliation (Ugarriza and Caluwaerts, 2015).

One of the most well-known practices of citizen engagement – participative budgeting (PB) – originated in 1989 in Porto Alegre, Brazil, and has been extensively employed in the region, becoming institutionalised in numerous Latin American countries. Peru and Brazil have embedded PB in national legislation and numerous cities have it institutionalised on the local level: Mexico City (Mexico); Buenos Aires and Rosario (Argentina); and Medellin (Colombia). PB can include several stages of citizen deliberation, from brainstorming priority funding areas for a community, to collective development of projects that will receive funding, to deliberation prior to voting for specific projects.

In addition, deliberation is a core component in many institutionalised bodies and practices created to represent citizens and civil society in decision making, which are common at all levels of government. Examples of these include deliberative councils such as the National Planning Council in Colombia and multi-level policy making mechanisms, such as the National Public Policy Conferences in Brazil (Pogrebinschi, 2016:5). Due to the deliberative nature of various councils and policy conferences, the LATINNO database, which documents democratic innovations in Latin America, has over 200 democratic innovations registered in Brazil, out of which 92% are deliberative (Pogrebinschi, 2016:8).

On the local level, deliberation in *cabildos* (local councils or town hall meetings) is a longstanding tradition in Latin American countries. Modern democracies inherited this tradition from colonial rule. In *cabildos*, citizens have an opportunity to debate and exchange ideas related to local decision making (Ugarriza, 2012). The *cabildos* are often ad hoc practices and do not offer citizens decision making power, although they nonetheless provide an important arena for debate and deliberation. For instance, the tradition of local-level deliberation and the network of *cabildos* was useful in Chile during the deliberative constitution-writing process of 2016, discussed below (OECD, 2017).

Similarly, in the state of Oaxaca, Mexico, traditional governance structures, such as *usos y costumbres*, are practiced locally. In these structures, communities are ruled by traditional assemblies, which are in most cases mandatory for community members, and allow for citizen deliberation on local issues, resource allocation, and electing community representatives (Magaloni *et al.*, 2019: 1850). Four hundred and

eighteen out of 570 municipalities of Oaxaca has adopted such traditional governance structures, making it a widespread phenomenon (Magaloni *et al.*, 2019: 1846).

The culture of deliberation in different shapes and forms is therefore widely present in most Latin American countries, with citizens showing interest and capacity to participate in a more systematic way. This offers a favourable environment for the models of deliberative processes presented in this study to be applied in the region, for the benefit of citizens and governments of all levels.

Village democracy in India

India's use of deliberation as a democratic practice is a long-standing tradition widely spread around the country. The gram sabha, or village assemblies, are part of local governance structure that were institutionalised in the 1992 Indian constitution and affect 840 million people living in approximately one million villages in rural India (Parthasarathy and Rao, 2017). As per the constitution, all rural Indian villages are governed by an elected village council, and a council (or gram sabha) comprised of all residents over 18 of the village and on the electoral roll. They hold meetings at least two times a year (Parthasarathy and Rao, 2017).

This deliberative tradition is also present in urban India. In 2015, the government of National Capital Territory of Delhi launched a decentralisation policy to give local councils more decision making power. The smallest local governance unit, the mohallas (approximately a thousand households) can form a "mohalla sabha" or an open meeting where citizens can propose, deliberate and decide about local public works, monitor their progress as well as identify potential publics for social benefits such as pensions (Government of Delhi, n.d). The process of a mohalla sabha is composed of a deliberative stage followed by decision making through consensus or majoritarian voting.

The village democracy exercised through the gram sabhas, provide a space for citizens –both men and women, high and low castes – to share ideas, take decisions, raise concerns and make the government accountable. The local deliberative practices in rural India face many challenges (funding, clarity of scope, civic capacities, inequalities amongst participants, etc.) (Samy, 2017), but have demonstrated positive effects on the social inclusion of lower-caste groups and women and had impact on poverty reduction and local development (Parthasarathy and Rao, 2017).

International and transnational deliberative processes

Both international and transnational deliberative processes have been included in the study, but it is worth distinguishing between the two types of processes. International deliberative processes, such as World Wide Views, are those practices where deliberative panels take place simultaneously and on the same policy question in several different countries and later their results are presented as an aggregate of results from different national panels. In such cases, many countries can be involved in the process, and the total number of participants is relatively high. However, this design does not create an opportunity for citizens from different countries to interact and deliberate together (Smith, 2018:8). Nevertheless, supranational governments and international organisations can use the recommendations produced in such processes as a collective output of the countries involved. They can also be taken into consideration on the national level.

On the other hand, transnational processes are designed as a single deliberative process where citizens from different countries participate together. In this case, it is possible to make the process more representative as the random selection of participants can be stratified based on the composition of the community in question, such as, for example, the European Union. Participants from all nations are then able to deliberate face-to-face. Even though such processes require substantial translation capacities, there have been recent successful smaller scale examples. For example, the 2019 Citizens' Dialogue in The Hague gathered randomly selected citizens from five different countries to discuss European affairs.

One hundred and twenty Europeans were split into smaller groups and each of them was equipped with numerous interpreters to help participants communicate (Bertelsmann-stiftung.de, 2020). Such transnational processes, when citizen participants from all concerned countries are involved, are equipped to produce common recommendations for supranational governments and international organisations that are highly representative of citizens' opinions.

Taking into account that citizen participation in supranational decision making is challenging as it is, deliberative processes can offer a representative and sustainable way of achieving meaningful and informed citizen input at this level of government.

Other creative uses of deliberative processes

Deliberation as an answer to social mobilisation

The massive demonstrations around the world in recent years (Chile, Hong Kong, France, Bolivia, Lebanon, and Colombia) are to be studied case by case as per the local and national context, but are symptomatic of a general trend. Citizens are disappointed by their political elite; they distrust their political apparatus and disagree with critical policy choices. Through popular protest, citizens are looking for a way to express a collective demand for greater political participation. Some national governments are answering this citizen demand with ad hoc deliberative processes.

In France, after the Yellow Vests movement and the subsequent protests around the country, President Emmanuel Macron announced the organisation of three-month national participatory process. The Grand Débat National (Grand National Debate) consisted of different channels and methods of participation online and offline around four topics: fiscal policies; climate change; democracy; and public services. From January to March 2019, almost two million contributions were posted in the dedicated online platform and more than 10,000 local meetings were organised. The last stage of this participatory process consisted of four thematic national conferences and 21 citizen conferences with randomly selected citizens (Grand Débat National, 2019; Buge and Morio, 2019).

At the time of writing, a similar process is ongoing in Colombia and is set to finish in March 2020. The Conversación Nacional (National Conversation) is President Duque's answer to the massive protests and strikes of November 2019. Organised around six topics, citizens are invited to participate in an online platform and in deliberative conferences organised for each topic and each region (Conversación Nacional, 2020).

Deliberative initiatives can help citizens to channel their demands in a constructive way within an institutionalised space where governments are more willing to listen compared to social mobilisations and protests. Deliberation can help to build common understanding, and results in informed citizen recommendations rather than a wish-list of demands, allowing for constructive and peaceful dialogue between citizens and governments. The outcome of deliberation as an answer to social mobilisation depends on the commitment of the government to implement the solutions that emerge and the willingness to share the decision making power with citizens in the long term.

Deliberative processes used to design new models of democracy

In 2019, the newDemocracy Foundation designed and facilitated a co-creation process for a new model of democracy for the Byron Shire Council in New South Wales, Australia. The goal of the process was to identify how the Byron Shire Council could include citizens and stakeholders in decision making in a permanent way within the limits of its resources. The co-design of this model was also done in an innovative way. A design group was established, which constituted of two members of each of the following groups:

council staff; councillors; community groups; expert process designers; state agencies; and citizens from a community panel (newDemocracy Foundation, 2019).

The community panel was a Citizens' Jury of 18 randomly selected citizens who met six times over the course of three months to discuss and produce recommendations for what the Byron Shire democracy model could resemble. After the model was designed, it was tested by the groups involved (including the citizen group) and feedback was reported to finalise the model.

The distinctiveness of this model of co-creation was that a Citizens' Jury was formed not only to gain informed citizen recommendations and input, but also to give them equal opportunities, a clear mandate, and equal decision making power in the model design process. Citizen representatives had a strong basis for the opinion they put forward when debating and working on the model with other stakeholders in the design group, as their stance was developed during the community panel process and was backed by this group.

Deliberation and co-creation in constitution-writing processes: Iceland and Chile

Iceland

In 2008, Iceland established an innovative framework using deliberation and co-creation mechanisms to include citizens and stakeholders in a participatory constitution-making process. Even though it was novel, it is important to acknowledge that antecedents in British Columbia (2004), the Netherlands (2006), and Ontario (2007) helped to craft and design the latter process (Suteo, 2015).

In the aftermath of the 2008 financial crash in Iceland and the “pots and pans” revolution, the growing echo for a constitutional reform took hold amongst the electorate and elected representatives. In November 2009, “the Anthill”, a civil society organisation, held the first National Forum, a one-day deliberative exercise with 1,200 randomly selected citizens and 300 representatives of interest groups and institutions (Suteo, 2015). In June 2010, Iceland passed a Constitutional Act, which established a Constitutional Council of twenty-five elected members in charge of drafting a bill for submission to parliament. Then, parliament organised a second National Forum with 950 randomly selected citizens to deliberate and establish the priorities of the public regarding the new constitution. This document meant to serve as inspiration and basis for the Constitutional Council deliberation (Landemore, 2015).

The draft bill, proposed by the constitutional assembly to parliament, was submitted to a non-binding referendum in 2012 and secured a two-thirds approval. Moreover, and for a variety of reasons (see Landemore, 2015), the crowdsourced constitution was buried by parliament before the legislative elections of 2013. The Icelandic constitution-writing process was able to include citizens and stakeholders during two deliberative moments and through online participation to comment and amend the draft text.

Chile

The Chilean pre-constituent process was intended to open constitutional deliberation to citizens in 2015-2016. It was initiated by civil society organisations and backed by the government, aiming to replace the 1980 constitution, which was drafted and enacted under the Pinochet dictatorship and which, despite numerous amendments, has been unable to gain full legitimacy in the eyes of the citizenry and part of the political establishment (Observatory of the Constituent Process in Chile (2018).

In October 2015, President Michelle Bachelet announced a multi-stage process to draft a new constitution. As a first step, the President organised citizen dialogues, a broad citizen deliberative exercise at the local, intermediate, and national level (OECD, 2017). The process was organised in three main stages. First, an online individual questionnaire gathered 90,804 responses. Next, there were local self-convened meetings of 10 to 30 people, taking place mostly in private spaces but also in universities, schools, churches, and

other social spaces. Finally, more institutionalised participation took place through local cabildos or town hall meetings at the provincial and regional level.

The consultation mechanism was based on a deliberative convergence methodology, which conceived the consultation as an opportunity to deliberate – even in the presence of diverging viewpoints – and reach conclusions or convergence collaboratively. The results of the consultation, the Citizen Bases, were not binding for the executive or legislative branches of the Government; rather, they aimed to provide insights to inform the constitutional discussion (OECD, 2017).

A parallel consultation was held for indigenous populations (6,478 participants) to include their voices in the new constitution. As per official numbers, 204,000 people participated in local meetings and 17,000 in the parallel indigenous consultation. The initial commitment of the Government was to send to Congress a new draft constitution, based on the Citizen Bases and then ratified through a plebiscite. For diverse political and institutional reasons (Observatory of the Constituent Process in Chile, 2018), the constitution was not amended as proposed by President Bachelet, but the process has established a precedent. Citizen participation in the constitution-writing process remains relevant in Chile, as protesters' demands for more participation during the 2019 social mobilisation and the decision of the government to organise a plebiscite in April 2020 demonstrate (France 24, 2020).

Democracy festivals

Deliberation is a key element of democracy festivals that are usually set up by non-governmental organisations that partner with governments. Originating around 50 years ago in Almedalen park on the Swedish island of Gotland, today democratic festivals have spread across the Nordic-Baltic region and take place annually in Sweden, Denmark, Finland, Norway, Estonia, Latvia, Lithuania, and Iceland. Germany and the Netherlands have also set up their own, and the United Kingdom, France, Ukraine, Croatia, Nepal, and Korea are in the process of setting up similar democracy festivals (We Do Democracy, 2020).

Democracy festivals bring together citizens, government representatives, civil society, and entrepreneurs to discuss and deliberate over key social issues. Topics covered usually range broadly to cover any issue related how a given country, region, city, or community can be improved. The festival setting provides an informal inclusive environment for all members of society to deliberate on an equal footing, and focuses on participation and interaction (Democracy Festivals Association, 2020). Such festivals complement government citizen participation efforts, contribute to fostering a deliberative culture, and provide opportunities for the public to exercise civic fitness.

21st Century town meetings

The 21st Century town meeting is a model of citizen participation in decision making that encompasses deliberation and digital tools to allow for wider engagement. First developed and trademarked by the America Speaks organisation, the 21st Century Town meeting model has been applied fairly extensively to date (Americaspeaks.org, 2020). Even though they have a deliberative element, these meetings usually are composed of self-selected participants and do not always have face-to-face discussions, hence they were not included in the main study.

Typically, any interested citizen can sign up to participate in the deliberative process. However, organisers usually engage in broader outreach efforts, especially to invite underrepresented groups to join the process. Demographic stratification is used to ensure that the group is more or less representative.

Before the meeting, participants are sent information materials to enable informed and constructive discussions. On the day, participants are then divided into groups of 10-12 people, and with the help of an independent moderator, learn about and discuss various policy issues (Participedia.net, 2020).

The distinctive feature of 21st Century town meetings is the use of electronic keypads at each group table that allow participants and note takers to immediately transfer their arguments, ideas, opinions, and votes to a dedicated team. This team then processes this information, aggregates views, highlights key arguments, provides immediate feedback, and can initiate participant polling and voting on various questions throughout the day (Participedia.net, 2020).

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8

Conclusion

Claudia Chwalisz

This chapter includes an overview of the report and its key findings, acknowledges the limitations of the data, and provides key recommendations to public decision makers for improving how deliberative processes are initiated, designed, run, communicated, monitored, evaluated, and institutionalised. It presents reflections on further areas of study.

Purpose of this study and the main findings

This is the first international empirical comparative study of representative deliberative processes¹ for public decision making of this breadth and depth. A great deal of research and theoretical thinking has been developed and deserves to be recognised – with seminal works by Pateman (1970); Mansbridge (1983); Fung (2003), Smith (2009); Elstub and Escobar (2019), among others. Yet, much of it has focused on individual examples, experiments, and small-N comparative studies, often limited in geographic scope. The goal of this large-scale study is to better understand how deliberative processes have been used by public authorities around the world, identify good practice principles, and explore how they have been institutionalised thus far.

In analysing the international evidence collected, three core defining features were revealed as being of key importance, a fact also reflected in the work of a number of scholars in the field. These were thus the three criteria required to be included in this study.

First, cases had to involve deliberation. This includes: weighing carefully different options, which requires accurate and relevant information and a diversity of perspectives; a shared evaluative framework for reaching decisions, and a requirement for participants to apply these shared criteria to weigh trade-offs and find common ground to reach a group decision (see, for example, Matthew, 1999; Carson, 2017; Bone *et al.*, 2006). As deliberation requires time, this element was operationalised as a minimum of one full day of face-to-face meetings.

Second, participants involved in deliberative processes had to be representative of a wide cross-section of society. In all of the cases, this representativeness was achieved through random selection (sortition) and demographic stratification (a process that ensures that the group broadly matches the demographic profile of the community against census data or other similar data).

Finally, the process had to have policy-making impact, meaning that it was initiated by a public authority and decision makers agreed to respond to or act on recommendations (see, for example, Farrell *et al.*, 2019; Carson and Elstub, 2019).

After an extensive data collection from all levels of government (see Annex B), 289 relevant cases were identified (282 of which are from OECD countries) that include 763 individual juries or panels (755 of which are from OECD countries). All of them met all three criteria for inclusion.

A few findings were unexpected. There were more cases than anticipated at the outset. Many examples have become well-known and are commonly cited, but these turned out to be only a portion of a much larger and very diverse field of practice. The data analysis revealed that there are four types of purpose for deliberative processes², and 12 distinct models (see Chapter 2)³. Each has different characteristics, and it confirmed the hypothesis that there is no one-size-fits all approach to designing deliberative processes. For public authorities, it is therefore important to know how to choose a model depending on the issue, complexity, context, and other factors. There is also plenty of room to experiment and evolve current methods, although this is best done when respecting good practice principles (see Chapter 5). In some jurisdictions, such as Australia, the UK, and Scotland, the promotion of deliberative techniques is an integral part of a broader open government reform agenda.

Although this report only includes examples that were commissioned by public authorities, the research revealed that representative deliberative processes were first developed by academics and civil society organisations (CSOs), and only later picked up by governments. For example, Citizens' Juries/Panels were developed by Ned Crosby and the Jefferson Center in 1971 in the United States, the Planning Cell by Peter Christian Dienel at the University of Wuppertal in 1970s in Germany, and the Deliberative Poll by James Fishkin at Stanford University in 1988. However, the more recent, institutionalised examples, such as the Ostbelgien Model and the City Observatory, show that public authorities have since joined the forces

with academia and CSOs. They are now at the forefront of innovating and developing new models of deliberative processes.

The data collection had no geographic restrictions. The OECD searched for representative deliberative processes that took place globally, not limited to OECD Member countries. However, the vast majority of cases that matched the criteria for inclusion came from the Global West, and hence almost entirely OECD Member countries. The deliberative practices in other regions often featured some, but not all, of the three criteria, and there is thus an overview about them in Chapter 7 to recognise that other interesting practices are happening elsewhere.

The data showed that many public authorities who had convened one deliberative process then continued to convene others, demonstrating that they found value in informed citizen recommendations. This is part of the explanation for the high number of cases in certain countries.

Other findings from the empirical evidence were in line with the authors' expectations. The "deliberative wave" has been building for a long time. The earliest cases to meet all three inclusion criteria (representativeness, deliberation, and impact) are from 1986, to the best of the authors' knowledge. Since 2010, a second and bigger wave has been gaining momentum. There is preliminary data to suggest that perhaps 2019 was the beginning of a third and even larger wave. There was a significant upsurge of examples at this time, and the data in this study does not even include processes that were ongoing but not yet completed at the cut-off date for data collection of October 2019. Twenty-five deliberative processes in this report were completed in 2019, but OECD estimates suggest that a further 30-40 processes were ongoing or announced after October.

This was one of the key reasons for focusing narrowly on representative deliberative processes for this report. More and more of these practices are taking place, but the international comparative evidence was missing to better understand how they work, as were the principles of good practice that such evidence revealed should underpin them to ensure useful results for public authorities and citizen confidence. As discussed in previous chapters, representative deliberative processes are only one of many ways that Adherents to the OECD Recommendation on Open Government (2017) can implement provisions 8 and 9 regarding citizen participation⁴. They are also not a silver bullet solution for strengthening representative democracy, but one part of a bigger picture.

Moreover, the data confirmed that the range of policy issues addressed using representative deliberative processes has been wide and increasing (see Chapter 3). The issues that are tackled most often are those that have a direct impact on citizens' everyday lives and those to which citizens can easily contribute their personal opinions and experiences: urban planning and health. Local and regional/state level processes are commonly concerned with urban and strategic planning, infrastructure, and health questions. National and international ones are most often about environment and technology policy issues.

However, when deciding whether a representative deliberative process could help to better solve a public problem, a better way to evaluate the appropriateness of citizen deliberation is in terms of which types of problems are well-suited to being addressed through deliberative processes. These tend to be value-driven policy dilemmas, complex problems that require trade-offs, and long-term issues that go beyond short-term incentives. They are also particularly useful for addressing problems blocked by political deadlock. It is just as important to be clear about where deliberative techniques are not useful (see Chapter 1).

Good practice examples were found at all levels of government, although half (52%) of all cases in this study were from the local level. It demonstrates that citizens are capable of addressing a great variety of complex issues at any level of government. At the moment, international-level deliberative processes are more relevant than ever as societies across the globe face collective problems that are value-driven, long-term, and complex.

Finally, the research highlights that the vast majority of representative deliberative processes have been one-off, initiated due to the political will of the elected representatives or civil servants. There are few

examples of institutionalised deliberative processes – meaning ones that are legally embedded and supported by social norms to ensure continuity regardless of political change (see Chapter 6).

Three different routes to institutionalisation were identified based on the data: 1) establishing permanent or ongoing deliberative processes (such as the agenda-setting council in Ostbelgien); 2) establishing requirements for deliberative processes to be organised under certain conditions (such as before a referendum or ballot measure), and 3) creating rules to allow citizens to demand a deliberative process on a specific issue (if they gather enough signatures, for instance). Collaborative work with an international advisory group of practitioners in government, civil society, and academics shaped the reflections on the requirements, obstacles, and strategies to institutionalisation, such as support of elected representatives, civil servants, the public, and the media, as well as legal/regulatory changes required, sufficient capacity in the civil service and civil society, and sufficient funding.

Limitations of the data

The data in this report is a repository of as many cases as could be possibly identified by the OECD Secretariat and that fit the minimum criteria of inclusion during the data collection period of March-October 2019. It is possible, and even likely, that the database is missing some valid cases that had taken place before the cut-off date. This is due to ignorance rather than a desire to exclude any particular example. It is recognised that there is some bias towards cases in Anglophone and Francophone countries, although efforts have been made to increase the reach of our research beyond them. Omissions due to language barriers are probable.

Proposals for action

Based on the extensive international data collected for this report, numerous good practices for improving how representative deliberative processes are initiated, designed, run, communicated, monitored, evaluated, and institutionalised can be identified:

1. **Public authorities should follow the Good Practice Principles for Deliberative Processes for Public Decision Making (hereafter, the “good practice principles”, see Chapter 5)⁵.**

All good practice principles are required to achieve high-quality representative deliberative processes that result in useful recommendations for the commissioning public authorities and a meaningful opportunity for citizens to participate in shaping public decisions. They are intentionally concise as these are overarching principles, which can then be implemented in different ways depending on the context. They are intended to be the starting point for public decision makers wishing to commission deliberative processes and for practitioners wishing to design and organise them. They should also be used as the basis for monitoring and evaluation. The principles are summarised as follows:

- The task should be clearly defined as a question that is linked to a public problem.
- The commissioning authority should publicly commit to responding to or acting on recommendations in a timely manner and should monitor and regularly report on the progress of their implementation.
- Anyone should be able to easily find the following information about the process: its purpose; design; methodology; recruitment details; experts; recommendations; the authority's response; and implementation follow-up. Better public communication should increase opportunities for public learning and encourage greater participation.

- Participants should be a microcosm of the general public. This can be achieved through random sampling from which a representative selection is made to ensure the group matches the community's demographic profile.
 - Efforts should be made to ensure inclusiveness, such as through remuneration, covering expenses, and/or providing/paying for childcare or eldercare.
 - Participants should have access to a wide range of accurate, relevant, and accessible evidence and expertise, and have the ability to request additional information.
 - Group deliberation entails finding common ground; this requires careful and active listening, weighing and considering multiple perspectives, every participant having an opportunity to speak, a mix of formats, and skilled facilitation.
 - For high-quality processes that result in informed recommendations, participants should meet for at least four full days in person, as deliberation requires adequate time for participants to learn, weigh evidence, and develop collective recommendations.
 - To help ensure the integrity of the process, it should be run by an arm's length co-ordinating team.
 - There should be respect for participants' privacy to protect them from unwanted attention and preserve their independence.
 - Deliberative processes should be evaluated against these principles to ensure learning, help improve future practice, and understand impact.
2. **Representative deliberative processes for public decision making should be used together with other participation methods as part of a broader public participation strategy.**

Deliberative processes involve a component of broader stakeholder participation, such as public surveys, public consultations, town hall meetings, and roundtable discussions (see Chapter 4). The combination needs to be designed in a sequenced way where it is clear how the surveys, consultations, town hall meetings, or roundtable discussions feed into the deliberative process. Often this means that stakeholder participation takes place at the beginning and its outputs become part of the evidence base for the representative group of participants in the deliberative process. For instance, there is usually an open call for submissions of evidence from stakeholders, which can include businesses, academics, advocacy groups, trade unions, and other actors. Sometimes there are public meetings or roundtables in between sessions of the deliberative process, where the participants themselves lead the discussions with the public. Such methods extend participation to the broader public and allow community inputs to inform the citizen deliberations.

3. **Information about the representative deliberative process should be transparent and made available to the public.**

The data collection for this report highlighted that in many cases, it is difficult to find important information about the deliberative process. It should be easy for citizens and the media to find information regarding the purpose, design, methodology, and details about how people were recruited, which experts participants heard from, how the experts were chosen, and how the citizens' recommendations were developed (for example, whether they were written in the words of participants). This has an impact on people's confidence in and their perceptions of the legitimacy of the process. It is also necessary for the media's ability to cover it accurately.

4. **Better public communication should be leveraged to increase opportunities for public learning, to inform the public about the process, evidence presented, outcomes, and implementation, and to encourage greater citizen participation.**

With effective public communication, a representative deliberative process can be a mechanism for the broader public to learn about an issue and encourage a wider debate (see Chapter 4). Public authorities should also ensure to close the 'feedback loop' to maintain the relationship with citizens in between one-

off deliberative processes. Once the citizens' final recommendations are delivered to the public authority, it is the authority's responsibility to respond and to explain the rationale for accepting or rejecting any proposals.

Updating the participants and the wider public about how the recommendations from the deliberative process are being implemented helps to foster a relationship between citizens and public institutions, with the potential to impact positively on trust in both directions. Demonstrating to citizens that when they participate, their proposals are taken seriously and it is worth their time can also help to encourage greater citizen participation in other forms and on other policy issues.

5. The appropriate legal and/or regulatory changes should be enacted to support the institutionalisation of representative deliberative processes for public decision making.

Governments should consider drafting pieces of legislation or regulations that introduce a requirement for a deliberative process under certain conditions (such as before a public decision is taken regarding long-term projects that cost a certain amount or have a significant impact on people's lives), and to allow citizens to initiate a deliberative process if they gather enough signatures (see Chapter 6). For accountability, there should be a provision that states that above a certain threshold, public decision makers are not able to ignore the petition. The level(s) of government at which the legislative and/or regulatory changes are required is an aspect to consider. Changes may be required at multiple levels. Where legal or regulatory changes enacted, they should be explicitly linked to clear standards and principals to avoid diluting the quality of deliberation.

6. Beyond legal changes to establish rules or requirements for public deliberation, there are additional legal support issues that need to be addressed to make organising deliberative processes easier, less costly, and to result in a better outcomes.

The rules across OECD countries, as well as within different countries across levels of government, differ in regards to access to databases in order to carry out a random selection process, like a civic lottery, well. Legislation and regulation should be adapted so that the most complete databases that exist can be used for the random selection procedure to ensure that the largest number of people possible have a fair chance of being selected to participate at the outset. These should be considered in light of overarching personal data protection rules, such as the European Union's General Data Protection Regulation (GDPR).

7. A next step would be for employers to provide paid leave to participate in a deliberative process, as is the case with criminal juries.

If citizens' time and inputs into policy making are valued, then it is important to compensate their time and ensure inclusivity. Providing paid leave to participate in a deliberative process would help ensure the implementation of the Good Practice Principle of inclusiveness (see Chapter 6)⁶. It would also demonstrate the seriousness and importance of citizen involvement in policy making, and would encourage citizens to participate as a way of fulfilling their civic responsibility as democratic citizens of a community. To ensure inclusivity, provision should also be made to support the unwaged, including accommodating people with special needs.

8. For institutionalisation to be possible, public authorities should invest to ensure sufficient capacity in the civil service and civil society to commission and deliver representative deliberative processes, as well as sufficient funding.

Governments could either establish an office permanently in charge of deliberative processes (such as a "Centre of Excellence on Deliberative Democracy") or an office with a broader remit that could also focus on deliberative processes (such as the Open Government office or a "Centre of Excellence on Deliberative and Participatory Democracy").

Such a centre could be funded by government, but at arm's length to stay unbiased and trustworthy. Examples of similar institutions that exist are the French National Commission for Public Debate (Box 6.15)

or the UK What Works Centres (Box 6.16). Professional staffing might be by civil service employees or universally respected and impartial civil society organisations (CSOs) or universities under government contract. The remits of such an office could be:

- **Setting standards of good practice for deliberative processes for public decision making that are adapted to the context.** This is important to avoid corruption or manipulation of the procedures. Having an office or agency with the priority of maintaining the integrity of the process can enhance its legitimacy and trustworthiness. Documented good practices and professional staff allow the process to remain impartial and independent of partisan politics;
- **Advising decision makers** who are considering the uses of citizen deliberation in their work;
- **Building knowledge in the government and public institutions more broadly by training civil servants to be smart commissioners and neutral hosts.** There needs to be a clear delineation of functions: those who initiate the process; those who organise and run it, and those who supervise it;
- **Independent monitoring and evaluation of ongoing deliberative processes and their impact to ensure that collective learning ensues** (for example, about which processes do and do not work well in particular contexts). It is also important for being able to measure the impact: of the recommendations on policy changes; on the public's trust in their fellow citizens and in government; of participation on the attitudes and behaviour of the participants themselves. Monitoring and evaluation helps to build credibility and citizen trust in a deliberative processes and the commissioning authority. It is recommended that the evaluation should be carried out by a neutral actor with expertise in deliberative democracy to instil confidence in the findings;
- **Managing a budget dedicated to funding deliberative processes;**
- **Investment in the skills and capabilities of civil society organisations** that could be capable of organising, running, and facilitating a deliberative process, since institutionalisation implies a greater need for more operators; and
- **Regularly reporting findings from representative deliberative processes to government and parliaments** to ensure the cumulative benefit of deliberative processes are related to the parliamentary or government cycles.

Reflections for future study

This report has provided a foundation for future comparative international study of deliberative processes for public decision making. However, in many ways it has only begun to scratch the surface. The data collection, while extensive, also revealed that there is a great deal of missing data. The OECD tried to collect information about each case pertaining to 60 variables (see Annex B); however, it was not possible to find information to fill every data point for every case. The open access database available with this report should provide a basis for other researchers to build on it further and hopefully shed light on the aspects of deliberative processes that are less accessible.

Moreover, this report did not cover everything, nor did it attempt to. For instance, future research could explore how citizen deliberation through digital participation tools differs from in-person deliberative processes. At the time of writing in early 2020, the COVID-19 pandemic had just erupted, raising new questions about how representative deliberative processes could be supported through digital tools. It is the beginning of a new period of experimentation, where announced or in-progress representative deliberative processes like Citizens' Assemblies are being adapted to this context.

Before the pandemic, there was already a great deal of experimentation occurring with online group deliberation, though most of it traditionally relied on text-based interactions. Group deliberation, which entails weighing evidence and long discussions with an aim of finding common ground, is underpinned by

trust between people. Most research suggests that trust can only be built in person and with time (Green, 2007). Online platforms, particularly those that rely on text-based exchanges, are certainly useful for many reasons, but they are not necessarily deliberative.

Recent experiments to conduct deliberative processes via video, where participants can see facial expressions and hear tone of voice, suggest a promising avenue. They also come with a new set of challenges to do with digital access and skills. Virtual reality experiments have not yet been tested, but could be in the future as well.

A better understanding of how online citizen deliberation differs from in-person deliberation, how online deliberation via text-based platforms differs to video-based platforms, the trade-offs involved, and the situations in which one option might be preferable to another would be useful. Such research would also help Adherents to the Recommendation of the Council on Open Government (2017) to implement the element of provision 9 that pertains to seizing opportunities provided by digital tools for stakeholder participation. The OECD is exploring how digital tools can help support representative deliberative processes, as well as their limits, in a series of articles on its online platform Participo (see <https://medium.com/participo/digitalfordeliberation/>).

A better understanding of impact is also needed. While it was relatively easy to find information regarding public authorities' responses to citizens' recommendations, it was extremely difficult to find information about their implementation. This is for numerous reasons, including the fact that often implementation takes time and this can happen months, if not years, after the process comes to an end. The limited evidence in this report suggests that most of the time public authorities implement the majority of citizens' recommendations. There is not enough data to make this claim robustly, however, and further research is required.

Furthermore, research that links the outcomes of these processes to citizens' perceptions of their trust, fairness, and effectiveness is also lacking. Another way of considering impact would be whether a public body uses deliberative processes again to address another policy issue, and whether they institutionalise a process. Something much harder to measure, but equally important in terms of impact, is the broader cultural change discussed in Chapter 6 on institutionalisation; social norms are also needed for new democratic institutions to take hold.

In a similar vein, a framework for evaluating deliberative processes could be useful for governments, practitioners, and civil society organisations. Not enough evaluation is currently taking place to learn from ongoing processes – both in terms of their design and impact. The two are related. At the moment, researchers in different places are using different evaluation questionnaires and methods. Developing a standardised approach to evaluating deliberative processes for public decision making would avoid the need of starting from scratch every time, and would also lead to a pool of comparative international data that could be used for further analysis. The OECD will be developing such an evaluation framework for representative deliberative processes.

Finally, the chapter on institutionalising deliberative processes can be seen as a starting point for more creative reflections on how to embed citizen deliberation into public decision-making procedures and institutions. This report only explored the routes to institutionalisation that have taken place so far, with few examples. Discussions with the members of the international advisory group of practitioners in government, civil society, and academics that informed that chapter, however, pointed to numerous other possibilities that are yet to be tried. The OECD is exploring other democratic reform options that embed random selection (sortition) and deliberation in a forthcoming working paper.

More experiments with institutionalised forms of citizen deliberation are necessary. These will need to be monitored and evaluated to understand what works and what does not, and how institutional designs could be adapted to achieve their aims. The evidence in this report suggests that citizens are very willing to give up large amounts of their time if the purpose is clear and important, and that their contributions help lead

to better policy outcomes. Institutionalisation is about creating ongoing opportunities for informed citizen inputs to become a 'normal' part of the way public decisions are taken. The questions of why and how to institutionalise are highly salient as they touch on the more fundamental transformations that are happening to renew democratic institutions in ways that strengthen representative democracy and involve citizens more meaningfully in shaping public decisions.

Notes

¹ Throughout this report, deliberative process has been used interchangeably as a shorthand for representative deliberative processes.

² The four types of purpose: (1) informed citizen recommendations on policy questions; (2) citizen opinion on policy questions; (3) informed citizen evaluation of ballot measures, and (4) permanent deliberative models.

³ The twelve models are: Citizens' Assembly; Citizens' Jury/Panel; Consensus Conference; Planning Cell; G1000; Citizens' Council; Citizens' Dialogues; Deliberative Poll/Survey; World Wide Views; Citizens' Initiative Review; the Ostbelgien Model; and the City Observatory.

⁴ Provisions 8 and 9 of the 2017 OECD Recommendation of the Council on Open Government provide, with respect to citizen participation in government, that Adherents should:

“8. grant all stakeholders equal and fair opportunities to be informed and consulted and actively engage them in all phases of the policy-cycle [...]”; and

“9. promote innovative ways to effectively engage with stakeholders to source ideas and co-create solutions[...]”.

⁵ In addition to the comparative empirical evidence gathered by the OECD and from which they were drawn, the Good Practice Principles also benefitted from collaboration with an international group of leading practitioners from government, civil society, and academics who are members of the OECD's Innovative Citizen Participation Network (an international network of practitioners, designers, academics, researchers, civil servants, and curators who are engaged in the OECD's area of work on innovative citizen participation) and of the Democracy R&D Network (an international network of organisations, associations, and individuals who are organising, implementing, studying, and advocating for deliberative activities). The Good Practice Principles were also shared for comments and discussion through a public consultation from 29 February – 20 March 2020. The OECD response to the consultation was published on 20 May 2020 and is available at oe.cd/innovative-citizen-participation.

⁶ Principle 6 on inclusiveness states: “Efforts should be made to actively include a wide cross-section of society. Participation should be encouraged and supported through remuneration, expenses, and/or providing or paying for childcare and eldercare. In some instances, it is desirable to try to over-represent some hard-to-reach groups”.

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Annex A. Overview of existing principles

There are a great number of existing principles and standards for citizen participation generally. 5, however, focuses on principles and standards for deliberative processes for public decision making in particular. The following list of principles or standards for deliberative engagement existed when the collaborative work for developing the OECD principles began in September 2019:

- Jefferson Centre: *Citizens' Jury Handbook* (2004)
- Involve: *Deliberative Public Engagement: Nine Principles* (2008)
- Mosaic Lab: *Deliberative Engagement Principles* (2016)
- newDemocracy Foundation: R&D notes about 'How to do it?' (2017-2018) and 5 Principles
- MASS LBP: *How to Run a Civic Lottery* (2017) and *How to Commission a Citizens' Assembly or Reference Panel* (2019)
- Marcin Gerwin: *Guidelines and Basic Standards for Organising Citizens' Assemblies* (2018)
- Healthy Democracy: *Key Quality Elements of the Citizens' Initiative Review* (2018)
- David Farrell *et al.*: *Deliberative Mini-Publics: Core Design Features* (2019)

Comparing existing principles

In Table A A.1, the OECD has identified the commonalities and differences of the existing principles documents.

Table A A.1. Comparison of existing principles of good practice for deliberative processes: commonalities and differences

Principles, as written in existing documents	Jefferson Centre: Citizens Jury Handbook (2004)	Involve: Deliberative Public Engagement: Nine Principles (2008)	Mosaic Lab: Deliberative Engagement Principles (2016)	newDemocracy Foundation: R&D notes about how to do it? (2017-2018)	MASS LBP: How to run a civic lottery (2017) and How to commission a Citizens Assembly or Reference Panel (2019)	Marcin Gerwin: Basic standards for organising citizens assemblies (2018)	Healthy Democracy: Key Quality Elements of the Citizens Initiative Review (2018)	David Farrell <i>et al.</i> : Deliberative Mini-Publics: Core Design Features (2019)
Purpose and mandate								
Participants have an explicit mandate to advise public authorities on issues that typically require trade-offs or compromises		X		X	X	X		
Process is tailored to the circumstances: purpose and objectives; intended outcomes; the people who should be involved; the context		X						X
The task or remit of the deliberative process is neither too broad nor too narrow	X				X			
Deliberation is suitable when a range of people and/or groups must act in order for the community to move		X		X				

forward								
The task or remit is in a clear, plain language and provides a strong and open platform for discussion about trade-offs			X					
Public deliberation is appropriate if broad concern exists within a community; citizens have not had the opportunity to consider the different courses of action and their long-term consequences; and the decision-making of public leaders needs to be informed by public judgement, as well as experts views				X				
A mandate typically has three responsibilities: to learn about the issue; to consider various perspectives concerning the issue; and to reach consensus and provide detailed recommendations concerning the best resolution of the issue					X			
Participants are tasked with understanding and speaking for the needs of their community, even when they differ from their own concerns or preferences					X			

The participants can go beyond the task or remit, but must provide detailed reasons for doing so	X							
Random selection								
Random selection of participants	X		X	X	X	X	X	X
Representativeness: composition should match demographic profile of the community; aim is to create a community in small scale that feels like us	X		X	X		X	X	X
Diversity and inclusiveness: efforts made to involve diversity of people, people from marginalized or seldom-heard groups		X		X				X
Preventing exclusion: could entail incentives to participate such as remuneration, expenses or childcare	X	X				X	X	
Equality: a sense that everyone has an equal shot of being selected to participate						X	X	X

Participants are less open to influence from special interests (especially wealthier and more powerful ones) and are representing the broader public interest				X	X			
The panelist selection process is monitored by a neutral party							X	
Independent organisation								
There might be an advisory committee/board with individuals who are knowledgeable about the issue and represent a variety of perspectives and opinions; the interest of the committee is in the integrity and fairness of the process, not in any specific outcome	X			X	X		X	X
Independent coordination by impartial secretariat or organisation which prepares the random selection, develops the agenda, invites facilitators and experts				X	X	X	X	X
The process should be led by a professional team with specialised expertise in dialogue, group work				X	X	X	X	

and consensus-building								
Learning, expertise and evidence								
Possibility for participants to gain information and weigh evidence	X		X	X	X	X	X	X
Impartiality: any organization, informal group or institution has the right to submit evidence	X		X	X		X	X	X
Participants are able to engage the experts/stakeholders in a dialogue to guarantee questions have been answered	X	X		X		X	X	X
There is guidance for choosing experts to ensure a diversity of perspectives / balance	X			X		X		X
Openness: members of society should be able to provide inputs (comments, proposals or suggestions) / there should be wider engagement with members of the public				X	X	X		X
Learning phase ensures that each participant shares a common			X	X	X	X		

understanding of the process, relevant context, and subject matter expertise to make informed recommendations								
Possibility for participants to invite experts / to identify experts that they wish to hear from				X		X		
Training or practice of critical thinking must be embedded in deliberative processes. Participants must make a transition from the individual practice of critical thinking to a collaborative inquiry or critical engagement				X				
Guidelines are provided to experts to encourage them to use language that is not saturated in academic jargon, acronyms, or similar				X		X		
Participants spend almost half of their time learning about the topic					X			
Deliberation								
Discussions which include listening to others mindfully	X	X	X	X	X	X		X

Mix of small group and plenary discussions; variety of formats (change of rhythm; size of small groups, get people moving, take into account different learning styles, quiet time for individual reflection)	X	X	X	X	X	X		X
Discussions should be moderated by professional skilled facilitators	X	X		X	X	X	X	X
Exercise follows a path of learning, deliberation and drafting recommendations		X	X	X	X	X		X
Duration								
Sufficient time for reflection and ability to prolong the length or number of meetings if necessary				X		X		
Adequate time for deliberation (but not too long that it results in members becoming overly socialized or affecting the equality of opportunity to participate*)	X							X*
Participants invest at least forty or more					X			

hours								
Impact								
Linked to the policy process: clear guidelines for how the body commissioning a deliberative process should deal with the recommendations		X	X	X	X	X	X	X
Participants strive to reach consensus on a series of detailed recommendations	X		X	X	X	X	X	X
Recommendations are in a language that the participants have themselves developed and approved	X		X	X	X		X	
Recommendations should be reflected in a public report to build a public understanding of the participants recommendations	X			X	X	X		X
Recommendations should be presented by participants publicly to the public officials; this can also be in presence of interested citizens and the press	X				X	X		

In addition to consensus recommendations, participants can write a minority report to convey concerns with the process or its conclusions, which are included in the final report				X	X			
Recommendations and the report should be presented to decision-makers directly			X					
Recommendations that receive the participants support at an agreed threshold should be treated as binding						X		
The Citizens Statement is distributed to reach the largest number of voters possible based on budget and access to communication outlets							X	
Transparency								
Transparency: all materials (programme, experts briefings, submissions by experts, interest groups and members of the public, audio recordings, transcripts of plenary sessions) should be available online		X		X		X		X

The participants final report, with details about the project and methodology, should be made available to the public	X			X		X	X	
Information is accessible to all participants, taking into account different literacy levels and languages, and disabilities such as restricted hearing or sight		X						
Visibility and public communication								
Visibility: publicity throughout the process; public announcement at the outset and communication of results	X	X		X	X	X	X	X
Respect and harnessing civic energy								
Participants should be valued and respected: organisers should fulfill their duty of care to support participants; organisers and decision-makers should state commitment to take process seriously and respect participants	X	X		X	X	X		

contribution								
Participants are given clear information on the process before, during, between and after meetings, events and online initiatives		X		X		X	X	
Encouraging participants to stay in touch with each other after the event, giving participants information to help them stay involved through volunteering, campaigning or interest groups, and providing information about other participation initiatives		X						
Evaluation								
Process is reviewed and evaluated to assess what has been achieved and to improve future practice		X		X		X	X	
Participants are asked to complete an evaluation of the project (the process, parts of the agenda, project staff, perceptions of bias) and given an opportunity to write a personal statement	X			X			X	
The results of the participants	X							

evaluations are included in the final report								
The process is evaluated for fairness and efficacy							X	
When possible, the evaluation should be conducted by an independent academic research team to measure quality of deliberation and ensure absence of bias							X	
A plan is made to evaluate the success of distribution methods of the Citizens Statement, and resources permitting, to evaluate voter response on the usefulness of the Citizens Initiative Review							X	

Source: Jefferson Centre (2004); Involve (2008); Mosaic Lab (2016); newDemocracy Foundation (2017-18); MASS LBP (2017, 2019); Marcin Gerwin (2018); David Farrell *et al.* (2019); Healthy Democracy (2018)

Below is a descriptive summary of the principles that are found in all or almost all of the existing documents. In addition to the evidence collected and the principles and good practices it revealed, these principles provided a useful starting point for the development of the Good Practice Principles and the discussions with the international group of experts, public officials, and practitioners who provided important input into this process:

- purpose outlined in a clear task or remit to participants, which is linked to a defined public problem that involves the weighing of trade-offs;
- influence on public decisions through a clear link to the policy process, including guidelines for how the decision-making authority will respond to recommendations determined at the outset, wide use of voter information, internal implementation structures, or authority to sponsor popular referendums or directly enact policy;
- respect for the participants and a valuation of their time and efforts;
- representativeness of participants (a “microcosm of the general public”) through random selection and demographic stratification;
- deliberation, which entails listening carefully and actively; a mix of various formats that alternate between small group and plenary discussions, and skilled facilitation;
- informed discussion by providing participants with adequate time and resources to learn and weigh expertise and evidence from a wide range of experts and stakeholders;
- independence of the process at arm’s length from the commissioning public authority;
- transparency of all materials – including process design, agendas, briefing documents, submissions, audio and video recordings, the report, and methodology – that should be available to the public, and
- publicity of the recommendations, the final report (often written in the words of participants themselves), and the public authority’s response to the recommendations.

Annex B. Methodology

Criteria for inclusion in this report

To be included to form the basis of an empirical comparative analysis in this report, the representative deliberative processes needed to meet the three defining characteristics identified through the OECD's analysis:

1. **Deliberation (deliberative processes had to have at least one full day of face-to-face meetings).**

Deliberation involves weighing carefully different options, which requires accurate and relevant information and a diversity of perspectives; a shared evaluative framework for reaching decisions, and a requirement for participants to apply these shared criteria to weigh trade-offs and find common ground to reach a group decision (see, for example, Matthew, 1999; Carson, 2017; Bone *et al.*, 2006).

The criteria of one full day of meetings was established to operationalise the fact that deliberation requires time.

2. **Representativeness (participants of the deliberative process were randomly selected and demographically stratified).**

Representativeness is achieved through random selection (sortition) and demographic stratification (a process that ensures that the group broadly matches the demographic profile of the community against census or other similar data).

Random selection with demographic stratification is also a shared thread between cases since the overarching aim of the research is to explore innovative forms of participation. While not new in itself, as the practice of sortition dates back to Ancient Athens and has been used in many places around the world at various times throughout history, its modern incarnation is novel. It helps to overcome some of the key challenges involved in designing stakeholder participation, notably those related to the representativeness, diversity, and inclusiveness of participants.

3. **Impact (deliberative process were commissioned by a public authority).**

Impact means that decision makers agree to respond to and act on recommendations (see, for example, Farrell *et al.*, 2019; Carson and Elstub, 2019).

The report excludes deliberative processes conducted purely for academic or experimental purposes without a direct link to public decisions. The link to an authority that will eventually decide on a policy issue has an impact on numerous factors, such as who decides to participate, the response rate, and the dropout rate. Removing the link to power makes participation less meaningful and makes it more likely that only those with a strong interest in the topic will choose to participate. It is also likely why experiments have lower response rates and higher dropout rates than the average. That does not mean that experiments are not useful for other purposes, such as research. However, including such cases in this study would skew the analysis and conclusions about their use for governance.

Data collection

The data collection for this report was through desk research, a targeted call for submissions to the OECD Innovative Citizen Participation Network (ICPN) and international Democracy R&D Network of deliberative practitioners, and an open call through the OECD Toolkit and Case Navigator for Open Government platform. More details about the collection can be found [here](#).

The case collection was not limited to OECD Member countries, however, only seven examples were found in non-Member countries. The analysis thus focuses on OECD Member countries for comparability reasons.

The data collection took place from 6th March to 31st October 2019. The cases needed to have been completed by the end of October 2019 to be included. Cases that were in progress at that time were omitted for comparability reasons (with an exception for ongoing permanent deliberative processes), since the criteria for analysis includes the response by the public authority and evaluation of the process and impact.

Desk research

The first step involved extensive desk research to collect as many cases of deliberative processes as possible for this study. A wide range of academic literature was consulted, including previous overarching studies of deliberative processes, books, and articles analysing specific models or particular cases.

Guides, handbooks, and other documents related to principles and good practices of deliberative processes were consulted as well. Most of them were published by practitioners and organisers of multiple deliberative processes, as well as research organisations (including, but not limited to, Mass LBP, United Nations Democracy Fund, newDemocracy Foundation, Jefferson Center, and the Democracy R&D network).

Project archives of key organisations that have delivered deliberative processes provided extensive documentation of certain cases. These often include online reports of deliberative processes that explain the random selection recruitment method, number of participants and their demographics, experts and stakeholders involved, and other details.

- The Danish Board of Technology Foundation: <http://tekno.dk/projects/?lang=en>
- Bertelsmann Stiftung: <https://www.bertelsmann-stiftung.de/de/unsere-projekte>
- Democracy&Co: <https://www.democracyco.com.au/our-projects/>
- Democracy R&D: <https://democracyrd.org/work/>
- G1000: <https://g1000.nu/projecten/>
- Healthy Democracy: <https://healthydemocracy.org/cir/>
- Involve: <https://www.involve.org.uk/our-work/our-projects>
- Jefferson Center: <https://jefferson-center.org/projects/>
- Mass LBP: <https://www.masslbp.com/work-panels>
- newDemocracy Foundation: <https://www.newdemocracy.com.au/category/library/our-work/>
- Nexus Planning Cell database: <http://pzdb.jazzpis.space/cells>
- Shared Future: <https://sharedfuturecic.org.uk/service/citizen-inquiries/>
- Stanford Center for Deliberative Democracy: <https://cdd.stanford.edu/deliberative-polling-timeline/>

In addition, online news articles and other media sources were used to identify potential deliberative processes for the database.

Online databases were consulted and filtered to identify the cases that match the criteria of the study. These included:

- ActionCatalogue: <http://actioncatalogue.eu/search>
- Latinno: <https://www.latinno.net/en/>
- The Loka Institute: <http://www.loka.org/TrackingConsensus.html>
- OECD Open Government Toolkit Navigator database: <https://www.oecd.org/gov/open-government-toolkit-navigator.htm>
- Participedia: <https://participedia.net/>
- Partizipation: <https://www.partizipation.at/praxisbeispiele.html>
- Sortition Foundation: https://www.sortitionfoundation.org/sortition_around_the_globe

Targeted call to OECD ICPN and Democracy R&D Networks

In tandem with the desk research, a call for cases was targeted at the members of the OECD Innovative Citizen Participation Network, which consists of innovators and practitioners of innovative citizen participation practices. The full list of network members can be found at the end of the Annex.

A similar targeted call for cases was opened to the members of the Democracy R&D Network, an international network of organisations, associations, and individuals helping decision makers take hard decisions and build public trust through deliberative processes.

More about the Democracy R&D network: <https://democracyrd.org/>.

Qualitative interviews were conducted with several members of both networks, with a goal to gather more details about the cases of deliberative processes they facilitated. These were particularly important in the situations where details were not readily available online. The interviewees included representatives of The Danish Board of Technology Foundation, Healthy Democracy, Missions Publiques, G1000, the Nexus institute, Tokyo Metropolitan University, as well as organisers of the Polish Citizens' Juries/Panels and those of the Ostbelgien Model.

Open call through OECD Toolkit Navigator

In addition to the targeted call, there was a public call for cases opened on the OECD Toolkit and Case Navigator for Open Government platform for the period of 4th July-31st August 2019. The aim of the call was to open up the data collection for input from the wider public.

The platform is available here: <https://www.oecd.org/gov/open-government-toolkit-navigator.htm>.

Data cleaning and validation process

The collected data went through a cleaning and validation process. Due to the fact that the cases collected dated from 1986 and exact individuals who were commissioners as well as organisers of those cases could not be identified or were no longer in positions, the validation efforts were concentrated on the most recent cases. All the cases collected that took place in 2018-2019 were validated by contacting the organisations that were responsible for their implementation to verify the accuracy of each data point. Some of the earlier cases have also been validated, if they were organised by the same organisations that conducted and validated cases for 2018-2019. In total, the data for 81 out of 282 cases has been validated.

For variables where qualitative data was collected, especially where textual description was provided, the key information that reoccurred across most cases was identified and used for analysis. For example, variable 26 is a description of the details of the random selection process of the participants. From the

overall responses, several factors, such as the number of citizens who received invitations to participate, the stratification criteria, and the database used for contacting citizens, were identified as recurring and important. Hence, these elements were used for further analysis.

Variables used for analysis

For each deliberative process that met the three criteria for inclusion in the study, the OECD attempted to collect data pertaining to 60 different variables, based on availability. The variables were set with the intention to gather detailed data on the process of organising and preparing deliberative processes, their participants, organisers, commissioners, funders, outcomes, and lessons learned. The full list of variables can be found in Table A B.1.

Table A B.1. Variables of the OECD Database of Representative Deliberative Processes and Institutions (2020)

Variables		Deliverables
1.	Project title	The title of the deliberative process
2.	Deliberative model (categorised by OECD)	The model of the deliberative process, categorised as one of the 12 models introduced in the study.
3.	Deliberative model (named by organisers)	The model of the deliberative process, as indicated by the organisers.
4.	Ad hoc or Institutionalised?	The nature of the deliberative process (an ad hoc initiative, or a permanent institutionalised process).
5.	If institutionalised, is there a legal document establishing its functioning? (i.e. terms of reference)	For institutionalised processes, existence of a legal document establishing the functioning of the deliberative process.
6.	Institutionalisation regulations URL	A web link to the legal document establishing the functioning of the deliberative process.
7.	Project name	Original name of the deliberative process (original language, or title to a broader project that the deliberative process pertains to).
8.	Project description	The goal of the deliberative process.
9.	Was there a dedicated committee/group set up in relation to the deliberative process? (i.e. expert group, advisory committee)	Whether there was a dedicated committee/group set up in relation to the deliberative process (i.e. expert group, advisory committee).
10.	Advisory committee members	The members of the dedicated committee/group set up in relation to the deliberative process (public officials, experts, civil society organisations, academics, business, and citizens).
11.	The role of the advisory committee	The role of the dedicated committee/group set up in relation to the deliberative process (oversight, design and facilitation, ensuring balanced information, providing expert knowledge).
12.	Project URL	The web link to the deliberative process description (either on the website of the commissioning public authority or the implementing organisation).
13.	Year(s) of project	The year(s) of the duration of the deliberative process.
14.	Country	The country in which deliberative process took place.
15.	OECD member?	Whether a country was an OECD Member at the time of data collection.
16.	Level of government	The level of government at which the deliberative process took place.
17.	Place (Country/State/Region/City)	Depending on the level of government, either the country, the state/region or the city where deliberative

	process took place.
18. Implementing organisation	The organisation that was commissioned/assigned by the public authority to implement the deliberative process.
19. Organisation URL	The web link to the organisation that was commissioned/assigned by the public authority to implement the deliberative process.
20. Organisation type	The type of the organisation that was commissioned/assigned by the public authority to implement the deliberative process (academia, civil society organisation, private company or a public organisation).
21. Issue category	The topic of the policy issue addressed through a deliberative process.
22. Was the Jury/Assembly/Panel independent with mandate to set its rules of procedure?	The independence of a deliberative process with mandate to set its rules of procedure.
23. Number of panels of the deliberative process	The number of deliberative panels in the deliberative process. A panel is considered separate if it is comprised of different people who did not participate in the previous panels of the same deliberative process. With the exception of when some participants of different local level panels are brought together for a regional or national level panel, which is also considered as a separate panel.
24. Total number of participants	The total number of participants across all panels of a single deliberative process.
25. Participant selection method	The method used for participant random selection (one-stage random selection, two-stage random selection, three-stage random selection, targeted selection, random selection (for when it is not clear what was the exact random selection procedure) and other).
26. Participant selection methodology details	The detailed description of how random participant selection took place (stages, numbers of citizens invited, stratification criteria etc).
27. What was the method for participant selection?	The channel used for inviting randomly selected participants (post, phone, email, leaflets, survey, in person, other).
28. Who was the invitation to participate from?	The person from whom the invitation to participate was sent (minister, member of parliament, mayor, prime minister, president, local councillor, premier, head of public institution, specific government department, other).
29. Response rate to invitation	The percentage of randomly selected invited citizens who agreed to participate in the deliberative process.
30. Duration of participation selection process	The length of the process of random selection of participants (in weeks).
31. Duration of preparation/planning/agenda setting phase before 1st participant meeting	The length of the preparation/planning/agenda setting for the deliberative process, excluding participant selection (in weeks).
32. Remuneration of participants	Whether/how, participants of the deliberative process were remunerated (remunerated, non-remunerated, transport expenses compensated, expenses covered).
33. Which stakeholders were involved in the process design?	The stakeholders that were involved in designing the deliberative process (academics, citizens, civil society organisations, government officials, private companies, none).
34. What did the stakeholders, involved in the process design, bring to the table?	The contribution of different stakeholders to the design of the deliberative process.

35.	Was a dedicated online platform/tool used to keep participants up to date, informed and connected during the process?	The use of a dedicated online platform or tool to keep participants up to date informed and connected throughout the process (yes/no).
36.	Name of the platform for participant communication.	The name of the online platform used.
37.	How has process been communicated?	The communication efforts that were deployed related to communicating about the deliberative process to the broader public.
38.	Elected officials part of the panel	Whether part of the participants of the deliberative process were public officials.
39.	How many elected officials took part in the panel?	The number of the public officials that were part of the participants of a deliberative process.
40.	Total duration of face-to-face meetings (in days)	The duration of the face-to-face meetings of the participants during the deliberative process (in days).
41.	Total duration between 1st participant meeting date and last meeting date (in weeks)	The duration of the deliberative process (from the first participant meeting to the last, in weeks).
42.	Was there an initial survey to measure the beliefs of participants?	Whether there was a survey conducted to measure participant opinions at the start of the deliberative process (yes/no).
43.	Learning component of the process	The learning components of the deliberative process (introductory learning material before the first meeting, reading material between meetings, experts available during meetings for presentations and questions, participants could request information, there were specific learning sessions).
44.	Was there a connection to other forms of engagement? If so, what were they?	Whether there have been other forms of citizen engagement in relation to the deliberative process and what they were (select from surveys, consultations, roundtable discussions and other).
45.	Please provide further details on other forms of engagement	Detailed description of other forms of engagement in relation to the deliberative process.
46.	Outcome	The outcome of the deliberative process (vote, recommendations etc.
47.	Outcome (file number)	The number of the report/article/other document outlining the recommendations that were produced/collective opinions discovered during the deliberative process in the database of outcome documents.
48.	Were final recommendations discussed face-to-face with the public authority?	Whether participants of deliberative process discussed their recommendations face-to-face with the public authority that commissioned them.
49.	Response and follow-up by public authority	The response of the government authority to the recommendations (implementation of recommendations, response to the participants or broader public),
50.	Was there a change in administration during the period when deliberative process took place?	Whether there was a transition of power in the public authority that commissioned the deliberative process, while the process was taking place.
51.	Implementation of recommendation is being monitored	Whether the implementation of the recommendations produced during deliberative process have been monitored.
52.	If yes, how is implementation of recommendations is being monitored?	The ways in which the implementation of the deliberative processes have been monitored.
53.	Has the process been evaluated?	Whether the deliberative process has been evaluated.
54.	If the process has been evaluated, how?	What kind of evaluation was conducted (academic analysis, participant exit survey and other).

55.	Evaluation of the process URL	The web link to an evaluation report/study/survey results/article of the deliberative process.
56.	Challenges encountered	The challenges that the organisers of the deliberative process encountered while designing, implementing and evaluating a deliberative process and after.
57.	Lessons learned	The lessons the organisers of the deliberative process learned from the experience.
58.	Total cost (not mandatory to fill in)	The total cost of the deliberative process.
59.	Currency	Currency in which costs have been indicated.
60.	Funding source(s)	The organisations that funded/commissioned the deliberative process and the funding sources they used to pay for the deliberative process.

Re-classifying the model of some cases

Initially, the representative deliberative process model (variable 3) was inserted for each case as either the one that was indicated by the process organisers or the name that appears in the process title (ex. Citizens' Jury on Climate would be categorised as a 'citizens' jury'). Drawing on the complete dataset, the OECD identified 12 models of deliberative processes (Chapter 2), which were characterised by various common characteristics across different cases.

After the 12 models of deliberative processes were defined, all deliberative processes in the database were reclassified to fall into one of the 12 categories based on their characteristics. Hence, variable 2 indicates the model of deliberative process that corresponds to the 12 models identified in this study. For example, community panels, reference panels, citizens' panels and citizens' juries have been brought together under the umbrella term Citizens' Juries/Panels. Below is the table used for reclassification.

Table A B.2. Classification of models of deliberative processes

Model	Includes
1. Citizens' Assembly	Citizens' Assembly
2. Citizens' Jury/Panel	Citizens' Jury, Citizens' Panel, Reference Panel, Community Panel
3. Consensus Conference	Consensus Conference
4. Planning Cell	Planning Cell, Citizen Deliberation Meeting
5. G1000	G1000
6. Citizens' Council	Citizens' Council
7. Citizens' Dialogues	Citizens' Summit, Citizens' Forum, Citizens' Dialogues, Citizens' Workshop, Citizens' Hearing, Deliberative event
8. Deliberative Poll/Survey	Deliberative Poll, Deliberative Survey
9. World Wide Views	World Wide Views, Europe Wide Views
10. Citizens' Initiative Review	Citizens' Initiative Review
11. The Ostbelgien Model	The Ostbelgien Model
12. City Observatory	City Observatory

Source: OECD Database of Representative Deliberative Processes and Institutions (2020).

In five cases, the model appearing in the title of the representative deliberative process did not match the set characteristics of the corresponding model identified by the OECD Secretariat. For example, a process titled "Citizens' Assembly on Social Care" did not meet the characteristics of the Citizens' Assembly model identified by the Secretariat based on the data; in all but name it fit the model of a Citizens' Jury/Panel. This is partially down to an ongoing debate and confusion about terminology among practitioners and

academics, with the same terms being applied to different processes, largely driven by different political contexts. The OECD acknowledges these differences and has attempted to group the processes with similar design characteristics, regardless of what they are called, for the purpose of international comparative analysis. For this reason, five processes that were titled as "Citizens' Assemblies" (three in the UK and two in Canada) have been reclassified as Citizens'/Juries Panels for the analysis of deliberative models in this study, to allow for a more accurate comparative analysis¹.

Members of the OECD Innovative Citizen Participation Network

As part of this study, the OECD has been engaging with a network of practitioners, civil servants, academics, researchers, and designers to frame the topic and scope of research, to gather feedback and inputs to the research in an ongoing manner, and to strengthen the ties between these important groups of actors. From the OECD Secretariat, Claudia Chwalisz, Ieva Česnulaitytė, and Alessandro Bellantoni coordinate the network.

The ICPN was convened at full-day meetings in June 2019, where they helped identify the research questions and suggested sources for the data collection, and in January 2020, where they provided rich comments and feedback regarding the report's preliminary findings. These meetings were possible thanks to support from the Royal Society of Arts, Manufactures, and Commerce (RSA), the Electoral Reform Society (ERS), and the Open Society Foundations (OSF).

Members:

- Yago Bermejo Abati, Co-founder, Deliberativa Spain
- Eddy Adams, Thematic Pole Manager, Social Innovation and Human Capital, URBACT
- Alberto Alemanno, Founder, The Good Lobby and Jean Monnet Professor, HEC Paris
- Jon Alexander, Co-founder, New Citizenship Project
- Sarah Allan, Head of Engagement, Involve
- Graham Allen, Co-ordinator, Citizens' Convention on UK Democracy
- Theo Bass, Programme Manager, UK Research and Innovation
- Tonu Basu, Lead of Thematic Engagement, Open Government Partnership
- Luca Belgiorno-Nettis, Founder, newDemocracy Foundation
- Javier Bikandi, Head of Innovation, Basque government
- Jessica Blair, Director, Electoral Reform Society in Wales
- Jan Boelen, Rector, Karlsruhe University of Art & Design, Director, Atelier Luma
- Stephen Boucher, Founder, Political Creativity
- Éric Buge, Officer, French Parliament
- Didier Caluwaerts, Assistant Professor, Vrije Universiteit Brussel
- Elizabeth Canovan, Assistant Secretary General, Department of the Taoiseach
- Damian Carmichael, Open Government Lead, Department of Industry, Science, Energy, and Resources
- Lyn Carson, Director of Research, newDemocracy Foundation
- Ed Cox, Director, Royal Society of the Arts, Manufactures, and Commerce (RSA)
- Nicole Curato, Associate Professor, Centre for Deliberative Democracy & Global Governance, University of Canberra
- Fiona Curran, Social Policy and Public Service Reform Officer, Department of the Taoiseach
- Yves Dejaeghere, Director, G1000 Organisation

- Natalia Domagala, Head of Data Ethics Policy, UK Department for Digital, Culture, Media, and Sport
- Laurie Drake, Director of Research and Learning, MASS LBP
- Kezia Dugdale, Director, John Smith Centre
- Zakia Elvang, Co-founder, We Do Democracy
- Oliver Escobar, Professor, University of Edinburgh
- Gorka Espiau Idoiaga, CRIEM Professor of Practice 2016-2019, McGill
- David Farrell, Professor, University College Dublin
- Jessica Feldman, Assistant Professor, American University of Paris
- Jim Fishkin, Professor, Stanford University
- Frances Foley, Project Director, Citizens' Convention on UK Democracy
- Paulina Fröhlich, Head of "Future of Democracy" Program, Das Progressive Zentrum
- Karin Fuller, Outreach and Engagement Lead, Treasury Board of Canada Secretariat
- Jessica Garland, Director of Policy and Research, Electoral Reform Society
- Marcin Gerwin, Center for Climate Assemblies
- Doreen Grove, Head of Open Government, Scottish Government
- Dominik Hierlemann, Senior Expert, Bertelsmann Stiftung
- Lauren Howard, Outreach and Engagement Specialist, Treasury Board of Canada Secretariat
- Tim Hughes, Director, Involve
- Darren Hughes, Chief Executive, Electoral Reform Society
- Amelie Klein, Curator, Vitra Design Museum
- Hélène Landemore, Professor, Yale University
- Aline Lara Rezende, Assistant Curator, Ljubljana Biennial of Design
- Panthea Lee, Principal, Reboot
- Dimitri Lemaire, Director, Particitiz
- Josef Lentsch, Managing Partner, Innovation in Politics Institute
- Juha Leppänen, Chief Executive, Demos Helsinki
- Miriam Levin, UK Department of Digital, Culture, Media, and Sport
- Rose Longhurst, Program Officer, Open Society Foundations
- Peter MacLeod, Principal, MASS LBP
- Arantxa Mendiáharat, Co-founder, Deliberativa Spain
- Geoff Mulgan, Professor of Collective Intelligence, Public Policy and Social Innovation, University College London
- Paul Natorp, Co-founder, Sager der Samler (Citizen Change) and Founder, Rethink Activism Festival
- Beth Noveck, Co-founder and Director, GovLab and Chief Innovation Officer, New Jersey Government
- Arild Ohren, PhD Candidate, Norwegian University of Science and Tech
- Reema Patel, Head of Public Engagement, Ada Lovelace Institute and Nuffield Foundation
- Lex Paulson, Founding Director, UM6P School of Collective Intelligence
- Teele Pehk, Estonian democracy artist & urbanist
- Tiago Peixoto, Tech & Citizen Engagement Lead, World Bank

- Sophie Pornschlegel, Senior Policy Analyst, European Policy Centre
- Alice Rawsthorn, Design critic and author of *Design as an Attitude*
- Kyle Redman, Programme Manager, newDemocracy Foundation
- Gaëtane Ricard-Nihoul, Deputy Head of Citizen Dialogues Unit, European Commission
- Sam Roberts, Head of Open Data and Open Government Policy, UK Department for Digital, Culture, Media, and Sport
- Cassie Robinson, Senior Head, UK Portfolio, The National Lottery Community Fund and Co-founder, The Point People
- Stefan Roch, Program Manager, Bertelsmann Stiftung
- Matt Ryan, Non-resident fellow, GovLab
- Vera Sacchetti, Co-creator, TEOK Basel
- David Schechter, Co-ordinator, Democracy R&D
- Typhanie Scognamiglio, Director of Participation, Centre de la participation citoyenne, French Inter-ministerial Department for Public Sector Reform
- Graham Smith, Professor, University of Westminster
- Paolo Spada, Researcher, Universidade de Coimbra
- Ellen Stewart, Social Policy and Public Service Reform Officer, Department of the Taoiseach
- Jane Suiter, Director, Institute for Future Media and Journalism
- John Tasioulas, Director, Yeoh Tiong Lay Centre for Philosophy, Politics, and Law at King's College London
- Matthew Taylor, Chief Executive, RSA
- Riley Thorold, Global Programme Manager, RSA
- Clifton Van der Linden, Founder, VoxPopLabs
- Van Reybrouck, Author and Founder, G1000
- Stefaan Verhulst, Co-founder and Chief Research and Development Officer, GovLab
- Kitty Von Bertele, Europe Officer, Luminate
- Iain Walker, Director, newDemocracy Foundation
- Alex Way, Managing Director, MASS LBP
- Niamh Webster, Digital Lead, Scottish Government
- Richard Youngs, Senior Fellow, Carnegie Europe
- Anthony Zacharzewski, Director, Democratic Society
- Katharina Zuegel, Co-director, Décider Ensemble

Notes

¹ Lethbridge Citizens' Assembly on Councillor Employment and Compensation, Prince Edward County Citizens' Assembly, Citizens' Assembly on Social Care, Camden's Citizens' Assembly on the Climate Crisis, and National Assembly for Wales

Annex C. Resources for representative deliberative processes

Throughout this report, there are references to various useful resources for practitioners in government and civil society. A version of this list will be maintained up-to-date on the following Trello board: <https://trello.com/b/FypHueG9/resources-for-representative-deliberative-processes>.

General handbooks

Table A C.1. General handbooks

Author(s)	Title	Description	Link
UN Democracy Fund and newDemocracy Foundation	Handbook on Democracy Beyond Elections (2019)	Comprehensive handbook with different sections aimed at politicians, department heads, project leaders, facilitators.	https://www.newdemocracy.com.au/wp-content/uploads/2018/10/newDemocracy-UNDEF-Handbook.pdf
MASS LBP	Reference Panel Playbook (2019)	Eight steps for designing a reference panel	https://www.masslbp.com/the-reference-panel-playbook
David M. Farrell, Nicole Curato, John S. Dryzek, Brigitte Geißel, Kimmo Grönlund, Sofie Marien, Simon Niemeyer, Jean-Benoit Pilet, Alan Renwick, Jonathan Rose, Maija Setälä, and Jane Suiter	Deliberative Mini-Publics: Core design features (2019)	Academic analysis of key design features of deliberative mini-publics. Part of the Centre for Deliberative Democracy & Global Governance working paper series.	https://www.governanceinstitute.edu.au/magma/media/upload/ckeditor/files/Deliberative%20Mini-Publics%20Core%20Design%20Features.pdf
Marcin Gerwin	Citizens' Assemblies: A guide to democracy that works (2018)	A step-by-step how-to guide aimed at practitioners in government and civil society in plain language. Available in six languages.	https://citizensassemblies.org/download/
Healthy Democracy	Key Quality Elements of the Citizens' Initiative Review (2018)	An explanation of the key elements needed to run a high-quality Citizens' Initiative Review.	https://healthydemocracy.org/cir/kqe/

newDemocracy Foundation	Research and development notes (ongoing publications)	A series of short notes in plain language, underpinned by academic research, about various aspects of representative deliberative processes.	https://www.newdemocracy.com.au/research-and-development-notes/
Jefferson Center	Citizens' Jury Handbook (2004)	A comprehensive guide for organizing a citizens' jury according to the Jefferson Center model, which involves consecutive-day meetings.	http://www.rachel.org/files/document/Citizens_Jury_Handbook.pdf

Commissioning a representative deliberative process

Table A C.2. Commissioning a representative deliberative process

Author(s)	Title	Description	Link
MASS LBP	How to Commission a Reference Panel (2019)	A useful document for preparing the tender or advertisement for an independent co-ordinator.	https://static1.squarespace.com/static/55af0533e4b04fd6bca65bc8/t/5caf519c1905f447b2b701a1/1554993566709/MASSLBPProcurementGuide.pdf

Civic lotteries

Table A C.3. How to run a random selection and stratification process (e.g. a civic lottery)

Author(s)	Title	Description	Link
MASS LBP	How to Run a Civic Lottery (2017)	It breaks down the process of random selection and demographic stratification. Starting on page 38 there is also an example of the invitation letter and FAQ page that goes along with it.	https://static1.squarespace.com/static/55af0533e4b04fd6bca65bc8/t/5aafb4b66d2a7312c182b69d/1521464506233/Lotto_Paper_v1.1.2.pdf
Marcin Gerwin	Citizens' Assemblies: A guide to democracy that works (2018) – Chapters 7-12 (pp. 32-50)	A step-by-step how-to guide, which includes a chapter about the random selection and stratification process. Available in six languages.	https://citizensassemblies.org/download/
Lyn Carson	Sample Size for Mini-Publics	A short paper explaining the rationale for	https://www.newdemocracy.com.au/wp-content/uploads/2019/02/RD-Note-Sample-Size-Updated.pdf

	(2018)	choosing an appropriate sample size.	
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Choosing experts and stakeholders for a representative deliberative process

Table A C.4. Choosing experts and stakeholders for a representative deliberative process

Author(s)	Title	Description	Link
Lyn Carson and David Schechter	Choosing Expert Speakers (2017)	Short paper about who should select the experts and how they should do it	https://newdemocracy.com.au/wp-content/uploads/2017/05/docs_researchnotes_2017_May_nDF_RN_20170515_ChoosingExpertSpeakers.pdf
Lyn Carson and Tyrone Reitman	Constructively Incorporating Stakeholders in Public Decision-Making (2018)	An approach for incorporating stakeholders into a representative deliberative process	https://newdemocracy.com.au/wp-content/uploads/2018/05/docs_researchnotes_2018_May_RampD-Note-Incorporating-Stakeholders.pdf
Marcin Gerwin	Citizens Assemblies: A guide to democracy that works (2018) Chapter 15 (pp. 54-60)	A guide to selecting experts and stakeholders to support the learning phase of a representative deliberative process. Available in six languages.	https://citizensassemblies.org/download/

Institutionalising citizen deliberation

Table A C.5. Institutionalising citizen deliberation

Author(s)	Title	Description	Link
Min Reuchamps	Explainer of Brussels Parliament's Mixed Citizen-MP Deliberative Committees (2020)	Article aimed at a wider public about these new committees and how they were established	http://constitutionnet.org/news/belgiums-experiment-permanent-forms-deliberative-democracy
Brussels Parliament	Overview of legislative changes that enable mixed committees (2019)	An overview of the changes covered in the legislation setting up the mixed citizen-MP deliberative committees	http://www.parlement.brussels/dynamisme-participation-citoyenne-coeur-de-reforme-reglement/
G1000 Organisation	Ostbelgien Model Press Release (2019)	An overview of how the Ostbelgien Model was established and how it works	https://www.foundationfuturegenerations.org/files/documents/news/20190226_dgpermanentcitizensassembly_pressrelease.pdf
ParticipaLab	Future Democracies, "The City Observatory" Chapter (p. 87)	An overview about how the City Observatory of Madrid was operating	https://archive.org/details/FutureDemocraciesLCPD/page/n85/mode/2up

Lyn Carson and Marcin Gerwin	(2019) Embedding Deliberative Democracy in Poland (2018)	A short paper about how the rule allowing citizens to demand a representative deliberative process was established in Poland	https://newdemocracy.com.au/wp-content/uploads/2018/05/docs_researchnotes_2018_May_nDF_RN_20180508_EmbeddingDeliberativeDemocracyInPoland.pdf
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Innovative Citizen Participation and New Democratic Institutions

CATCHING THE DELIBERATIVE WAVE

Public authorities from all levels of government increasingly turn to Citizens' Assemblies, Juries, Panels and other representative deliberative processes to tackle complex policy problems ranging from climate change to infrastructure investment decisions. They convene groups of people representing a wide cross-section of society for at least one full day – and often much longer – to learn, deliberate, and develop collective recommendations that consider the complexities and compromises required for solving multifaceted public issues. This "deliberative wave" has been building since the 1980s, gaining momentum since around 2010. This report has gathered close to 300 representative deliberative practices to explore trends in such processes, identify different models, and analyse the trade-offs among different design choices as well as the benefits and limits of public deliberation. It includes Good Practice Principles for Deliberative Processes for Public Decision Making, based on comparative empirical evidence gathered by the OECD and in collaboration with leading practitioners from government, civil society, and academics. Finally, the report explores the reasons and routes for embedding deliberative activities into public institutions to give citizens a more permanent and meaningful role in shaping the policies affecting their lives.



PRINT ISBN 978-92-64-83762-1
PDF ISBN 978-92-64-72590-4



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